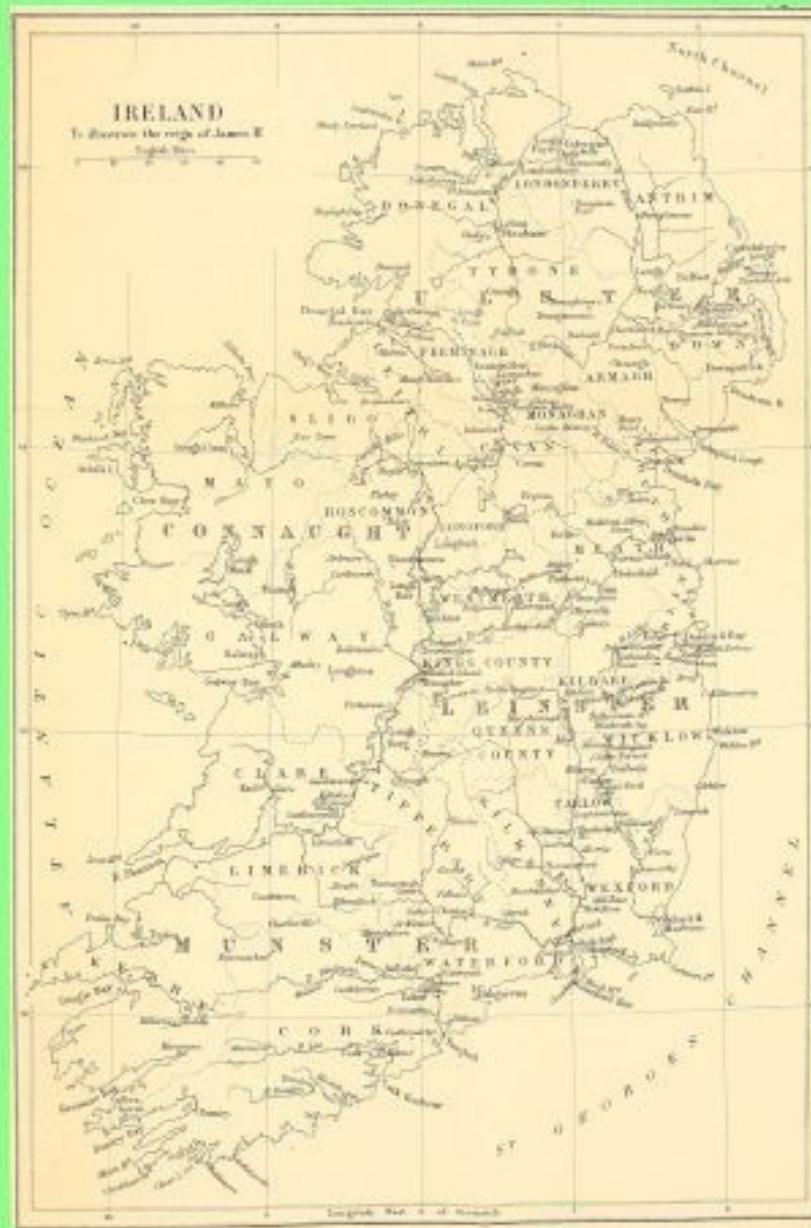


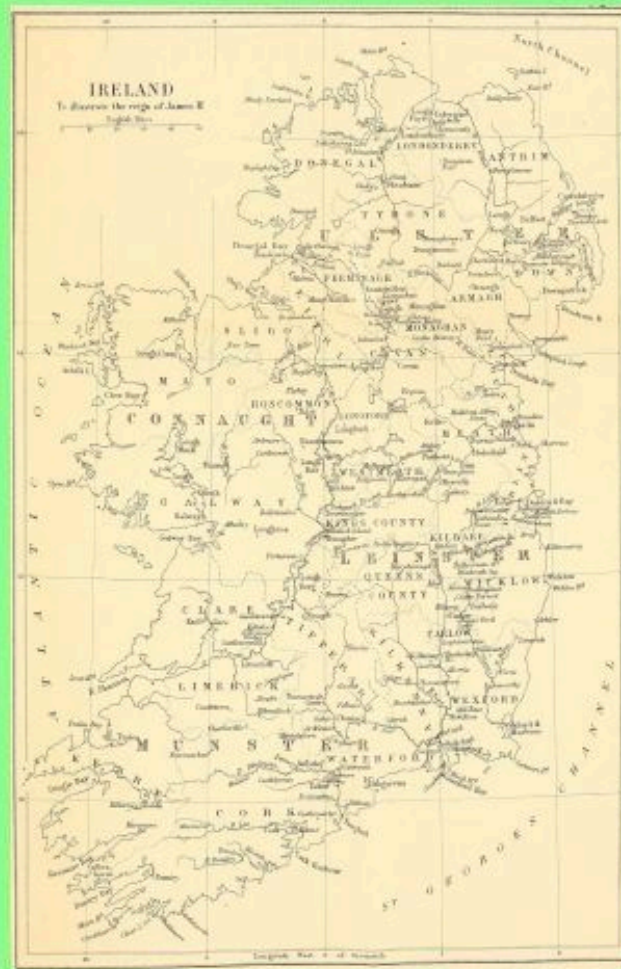
Ireland

Under the Stuarts



Volume III.

Under the Stuarts



Volume III.

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IRELAND
UNDER THE STUARTS
AND
DURING THE INTERREGNUM

BY
RICHARD BAGWELL, M.A.
HON. LITT.D. (DUBLIN), AUTHOR OF 'IRELAND UNDER THE TUDORS'

VOL. III. 1660-1690

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MAP

Ireland to illustrate the reign of James II.

At end of the volume.

IRELAND UNDER THE STUARTS

CHAPTER XL

THE RESTORATION GOVERNMENT, 1660

The King enjoyed his own again, and England rejoiced exceedingly. Even Oliver's unbeaten soldiers, disgusted with his incompetent successors, were for the most part ready to retire into private life. Yet the spirit of the Puritan revolution survived, and the Mayor of Dover presented a richly bound Bible to the restored monarch, who graciously accepted it, remarking that it was the thing that he loved above all things in the world. At Canterbury a crowd of importunate suitors gave him some foretaste of future troubles, but the entry into London was wonderful. 'I stood in the Strand,' says Evelyn, 'and beheld it, and blessed God.' With the shouts of welcome still in his ears Charles took refuge in the arms of Barbara Palmer, and next day issued a proclamation against vicious, debauched, and profane persons.

Coote and Broghill were jealous of each other. There is reason to believe that the former was inclined to claim the whole credit of restoring the King, but that the latter proved his own priority by producing a letter from his rival acknowledging the fact. They agreed that the Restoration might be delayed or frustrated by hasty action in Ireland, and that it was better to wait until England herself was committed to it. The officers who had gladly pronounced for a free Parliament might not have been united had royalty been openly favoured. But the Irish Convention lost no time in repudiating Cromwell's plan of one legislature for the whole of the British Islands, while strongly approving the restoration of the secluded members in England. They declared that 'as for several hundreds of years last passed by the laws and laudable custom and constitution of this nation, Parliaments have been usually held in Ireland and that in those Parliaments laws have been enacted and laws repealed, and subsidies granted, as public occasion required so that right of having

The Irish
Convention.

Parliaments held in Ireland is still justly and lawfully due and belonging to Ireland, and that the Parliament of England never charged Ireland in any age with subsidies or other public taxes and assessments, until after the violence offered to the Parliament of England in December 1648, since which time they who invaded the rights of the Parliament of England invaded also the rights of the Parliament of Ireland by imposing taxes and assessments upon Ireland.’ This important declaration was not made for more than a month after the first meeting of the Convention, and the leaders had prevented news from crossing the Channel until they were sure of unanimity. It is therefore not surprising that they were reported to favour separation from England. The Convention now stigmatised this as a calumny originating with Ludlow and his friends, for the idea of separation was hateful to Ireland as absolutely destructive, ‘being generally bone of their bone, flesh of their flesh.’ It was clearly seen that the colonists would have a majority, and means were taken to make it permanent. The Convention pledged themselves to favour education, and to assist in the establishment of a pious, learned, and orthodox parochial clergy supported by tithes or endowments. The adventurers and soldiers were to be secured in the lands they had acquired, and all arrears of military pay to be cleared off.^[1]

For some months before and after the Restoration all real power was in the hands of the army, but the Irish Convention gave a show of legality to the means by which the soldiers were paid. A poll tax was imposed for this and other public charges, every person of either sex under the degree of yeoman or farmer being assessed at twelve pence, which was the minimum, and the rate rose according to social position. A baron’s contribution was fixed at thirty shillings, and that of a marquis, marchioness, or marchioness dowager at eight pounds, which was the maximum. The chief Protestant gentry were appointed collectors in each county, Coote heading the list for Roscommon and Broghill for Cork. The royalist wire-pullers in London had been urging the managers of the Convention not to go too fast for fear of alarming the Presbyterians, and it was not till May 1 that they published a declaration condemning the high court of justice and the sentence on the late King. The people of Ireland, they said, took the first opportunity afforded them of denouncing the most foul murder recorded in sacred or profane history, considering that it had been committed in a country where the true reformed

Provisional
taxation.

religion flourished, and that it was contrary to the solemn league and covenant which the murderers had themselves taken.^[2]

Charles II. was proclaimed in Westminster Hall on May 8, and six days later in Dublin; and there were general rejoicings though the central figure was wanting. The shops were shut, all the finery they contained having been transferred to the citizens' backs. Hogsheads of wine were provided for the multitude, and the more they drank the better the givers were pleased. The guns of the Castle thundered salutes, volleys of musketry were heard on all sides, bonfires and fireworks blazed until midnight. A headless figure stuffed with hay and reclining on a rude hearse was carried in a mock funeral procession, and subjected to the blows and insults of the mob. The journey ended at the mayor's door 'where it was in part burnt before the bonfire there, and part trod to dirt and mortar by the rout.' Such was the end of the mighty Long Parliament.^[3]

Charles II.
proclaimed May 14.

Sir Charles Coote had been President of Connaught since 1645, and there was no difficulty in his case, since service under the Protector was not to be considered a disability. Broghill's appointment, if ever regularly made, was of much later date and of republican origin, but he had the military authority and the legal presidency was soon conferred on him also. With these two was associated Major, soon after Sir William Bury of Grantham, who had been one of the Irish Council under both Protectors. These three were appointed Commissioners for the Government of Ireland in January and were members of the Convention though keeping their official work separate. Broghill was generally in London for some time after the Restoration, and Bury, who had Presbyterian leanings and whom Adair calls a religious, prudent gentleman, did not always agree with Coote. Other Commissioners were afterwards added and all were paid at the rate of 1,000*l.* a year until the end of 1660. In compliance with the wishes of the Irish Convention some of the great offices were filled up very soon after the Restoration. The great seal of Ireland fell to Sir Maurice Eustace, who had been Prime Serjeant and Speaker of the House of Commons as early as 1634, and had afterwards endured seven years' imprisonment which only ended in 1658. He thought himself too old for the work, and Clarendon was of the same opinion: 'he was now old and made so little show of any parts

Lords Justices
appointed.

extraordinary, that, but for the testimony that was given of him, it might have been doubted whether he ever had any.' Sir James Barry, the chairman of the Convention, became Lord Chief Justice. He had been Strafford's attorney-general, and very useful to him in making out the royal title to Irish land. Sir William Domvile, who was made Attorney-General, chiefly on the recommendation of Daniel O'Neill, showed great ability and presided in the Convention in succession to Barry, who became Lord Santry. Arthur Annesley was installed in his father's old place of vice-treasurer, and was soon created Earl of Anglesey.^[4]

Monck, now Duke of Albemarle, claimed the Lord Lieutenancy of Ireland where he had an estate, but does not appear to have had any intention of living there.

Monck and Robartes.

Clarendon says his chief object was to make money. It became necessary to find a deputy, and Charles fixed upon Lord Robartes, whose business capacity was undoubted and who had a good reputation for honesty. He was, however, of a morose temper, seldom agreeing with others, and was much offended at being made Deputy to Albemarle, and not to the King directly, though he was offered the usual power of viceroy. The negotiation dragged on for six months, during which Robartes made enemies of all with whom he had to confer on Irish business, and at last he accepted the Privy Seal, leaving the Government of Ireland to the old Commissioners, while Albemarle, who was too important to displace, remained Lord Lieutenant. In September Coote was created Earl of Mountrath and Broghill of Orrery, and the latter showed his astuteness in securing precedence by getting his patent passed one day before his rival. On the last day of the year the two new Earls were appointed Lords Justices along with the Chancellor Eustace. They were specially authorised by the King to assemble the Irish Convention again in order to provide funds for the payment of the army. The ancient framework of Irish government was completed by appointing a Privy Council of thirty-four members among whom was Sir Philip Mainwaring, made secretary by Strafford in 1634 and still in legal possession of his office. He died a few months later, having received little or no reward for old service and for more than twenty years of poverty varied by imprisonment.^[5]

Before the Restoration was accomplished the Irish Convention sent over Sir John Clotworthy and Major William Aston as Commissioners to

communicate with the still sovereign Parliament of England. Clotworthy, created Viscount Massereene a few months later, was deeply interested in the Cromwellian land settlement and gained much influence by his activity. His unconcealed Presbyterian leanings were forgiven because, in Clarendon's words, 'he was of a generous and a jovial nature' and a staunch Royalist. After the Restoration these two Commissioners were appointed to attend the King along with eleven others, including Coote, Broghill, Barry, Eustace, and Audley Mervyn. They carried with them 20,000*l.* for Charles and lesser gifts for each of his brothers. Their instructions were to petition for an Irish Parliament consisting of Protestant Peers and Commoners and freed for this turn from the restrictions of Poynings' law, for an act of oblivion for all Protestants subject to parliamentary exceptions, and for an act for the attainder of such persons as Parliament should select. It was desired that adventurers and soldiers should be settled in their lands and the Irish in Connaught and Clare. Improprate tithes in the King's hand were to be restored to the Church, and taxation was to be controlled by the Irish Parliament. These were the chief points insisted on by the dominant party, while the Irish Roman Catholic gentry in London besought Ormonde, who had been the principal means of uniting the three kingdoms, to mediate for them 'and the remnant of their miserable nation' who were ready to lay down their lives for the King. Sir Nicholas Plunket was usually the spokesman of these suppliants. On July 27 Ormonde, who became an Irish duke, took his seat in the House of Lords as Earl of Brecknock, and on the same day Charles concluded his speech as follows: 'I hope I need say nothing of Ireland, and that they alone shall not be without the benefit of my mercy. They have shewed much affection to me abroad, and you will have a care of my honour and of what I have promised to them.'^[6]

Negotiations with
England.

Unfortunately for the chances of the Irish Roman Catholics some of them would not wait, but took forcible possession of their old lands, and there were many outrages. The extent of the disorder may have been exaggerated, but the Convention Parliament believed the worst and the result was a royal proclamation, dated only two days after the King's entry into London, in which he declared himself 'very sensible of the innocent blood of so many thousands of our English Protestant subjects formerly slain by the hands of those barbarous rebels.' To prevent the further spread of lawlessness all

Position of the
Roman Catholics.

Irish rebels except those protected by articles were to be apprehended and prosecuted. Adventurers and soldiers were not to be disturbed except by Act of Parliament or due course of law. Many were imprisoned accordingly, and Ireland was quiet while the question of future legislation was being discussed in London. The pressure of business there was so great that little progress was made during the latter months of 1660. Mountrath carried on the provisional government, but his Presbyterian colleague did not expedite the settlement of Church and State. After the appointment of regular Lords Justices things went a little faster. In January five months' pay was due to the army on which everything depended, beside an old arrear of fifteen months, and the King found it necessary to acknowledge the Irish Convention, thanking them for what they had done, promising a Parliament as soon as possible, and asking for supplies. A poll-tax, as authorised by proclamation of the Lords Justices and Council, was accordingly imposed, baronets being assessed at six pounds with a regular scale down to husbandmen, petty farmers, and handicraftsmen, who were to pay six shillings each. With a Parliament and possible impeachment in the near future, care was taken not to tax either spiritual or temporal peers. The Church, which never ceased to be legally established, had already been restored to its own.^[7]

Eight Irish Bishops had survived the great storm, and the King with Ormonde and Clarendon beside him ventured to fill the vacancies without waiting for an Irish Parliament. Papists, Presbyterians, and Sectaries were all alike powerless against the Royalist reaction. Bramhall was named for translation to the primacy very soon after the Restoration, and early in 1661 every see was provided for. Two Archbishops and ten Bishops were consecrated in St. Patrick's Cathedral on January 27, and this unique ceremony was no doubt very impressive.

The Church re-established.

'All the orders of the kingdom,' wrote the new Primate to Ormonde, 'Justices, Council, Convention, Army, City, graced it with their presence.' The anthem was supplied by the Dean, William Fuller afterwards Bishop of Lincoln, who sang in very tolerable verse of the essential unity of Church and Crown. Jeremy Taylor, who had been over two years in Ireland, was now Bishop of Down and preached the sermon. Henry Jones of Clogher, who had been Oliver's scoutmaster-general, was not allowed, or was

perhaps too penitent to lay on hands, but held a Bible and presented it to the Primate. Taylor had no doubts about the claims of episcopacy, but in another sermon preached three months later he practically describes his own not very enviable position among the Ulster nonconformists: 'says the papist, "I will not obey the protestant kings, because, against the word of God, they command me to come to church where heresy is preached"; "and I will not acknowledge the bishops," saith the presbyterian, "because they are against the discipline and sceptre of Jesus Christ"; and the independent hates parochial meetings, and is wholly for a gathered church, and supposes this to be the practice apostolical; "and I will not bring child to baptism," saith the anabaptist, "because God calls none but believers to that sacrament"; "and I will acknowledge no clergy, no lord, no master," saith the quaker, "because Christ commands us to 'call no man master on the earth, and be not called of men rabbi.'" And if you call upon these men to obey the authority God had set over them, they tell you with one voice, with all their hearts, as far as the word of God will give them leave; but God is to be obeyed and not man, and therefore if you put the laws in execution against them, they will obey you passively, because you are stronger, and so long as they know it they will not stir against you; but they in the meantime are little less than martyrs, and you no better than persecutors.'

[8]

Nonconformists were now officially styled fanatics, and Mountrath suggested that the King should make 100,000*l.* by excluding them from the benefit of the new settlement. Orrery was less extreme or less outspoken, but both he and Eustace were willing to give Bramhall a free hand. Only five days before the great consecration a proclamation was issued against Papists, Presbyterians, Independents, Anabaptists, Quakers, and other fanatical persons. Conventicles were prohibited, the bishops being charged to see that the sheriffs and justices did their duty, while military officers were ordered to support them. Another proclamation provided for the commemoration of King Charles the Martyr on January 30, and a third for the prosecution of Tories as traitors unless they surrendered before February 18, in which case those who had not committed murder might be received to mercy on giving security for good behaviour. It was found possible to reduce the army by 1,650 men and a proportionate number of officers during the first twelve months after the Restoration, but to do this 50,000*l.* had to be transmitted from England. These men no doubt were paid in full, but when that was

Attempts to enforce uniformity.

done eight months of new and fifteen months of old arrears were due to those that remained under arms. It was time to summon a parliament.^[9]

FOOTNOTES:

[1] *Declaration of the General Convention of Ireland, &c.*, newly brought over by a gentleman to the Council of State in England, London, 1660; *Mercurius Politicus*, 612 (Needham's last number). Broghill reached Dublin on February 23, which occasioned much joy. Colonel Marcus Trevor to Ormonde, April 17 and 18, 1660, in *Carte Transcripts*, R.O., vol. xxx. Budgell's *Memoirs of the Boyles*, 85-87, 3rd edition, 1737. Budgell was a disreputable person, but can scarcely have invented the story about Coote's letter.

[2] *Declaration of the General Convention of Ireland* (dated March 12, 1659-60) with the late proceedings there, newly brought over by a gentleman to the Council of State in England, London, 1660; *Ordinance of the General Convention* 'for speedy raising of money,' April 24, 1660, in Marsh's Library, Dublin; Lord Aungier to Ormonde, May 11, 1660, in Carte's *Original Letters*; *Declaration of General Convention*, May 1, 1660, London and Dublin, 1660 (broadside); *Proclamation of General Convention for proclaiming Charles II.* (broadside), London and Dublin.

[3] Letter of Toby Bonnell, May 16, 1660, in *English Hist. Review* for January 1904.

[4] As a sample of the way in which Coote and Bury agreed to differ see their joint letter of October 4, 1660, in Cal. of State Papers, *Ireland*; Patrick Adair's *True Narrative*, p. 236; Clarendon's *Life*, Cont., pp. 124, 229; Eustace to Nicholas, October 3, 1660; *Humble desires* presented to His Majesty by the Commissioners of the General Convention, MS. Trin. Coll., June 20 and 21, 1600.

[5] Clarendon's *Life*, Cont., pp. 125-128, 197-199; State Papers, *Ireland*, December 18 and 19, 1660. The instructions to Robartes calendared at July 1660 really belong to 1669.

[6] Rawdon to Conway calendared at March 17 and 28, 1660; Instructions for Broghill, Coote and others, n.d., but very soon after May 14 Irish nobility and gentry in London to Ormonde, May 6—the two last from *Carte Transcripts*, R.O., vol. xxx.; King's speech to the Convention Parliament, July 27, *Old Parliamentary Hist.*, xxii. 400.

[7] Proclamation of June 1, 1660 (broadside), reprinted in *Old Parliamentary Hist.*, xxii. 311. Coote and Bury to Colonel Finch, September 3, and Lord Montgomery to Ormonde, October 31, 1660, enclosing letter from Jeremy Taylor—*Carte Transcripts*, vol. xxxi. George Rawdon to Lord Conway, January 23, 1660-1, in State Papers, *Ireland*. *Ordinance of Irish Convention*, March 1, 1660-1, in Marsh's Library, Dublin.

[8] Taylor's sermons of January 27 and May 8, 1661, in his *Works*, ed. 1839, vi. 301, 348. The words of Fuller's anthem are in Mason's *Hist. of St. Patrick's*,

194, and in the 32nd *Report* of the Deputy Keeper of Public Records, 107. The opening lines are:

‘Now that the Lord hath readvanced the Crown, Which thirst of spoil and frantic zeal threw down.’

And the concluding chorus:

‘Angels look down, and joy to see Like that above a Monarchy. Angels look down, and joy to see Like that above an Hierarchy.’

[9] Proclamations of January 19, 21, and 22, 1660-1, in *State Papers, Ireland*, and the Lord Justice’s speech, *ib.* calendared at May 11.

CHAPTER XLI

DECLARATION AND ACT OF SETTLEMENT, 1660-1662

In the autumn of 1660 Sir Henry Bennet, who then represented Charles at Madrid, forwarded a letter from Hugh O'Neill calling himself Earl of Tyrone. The brave defender of Clonmel and Limerick felt that his end was near and begged favour for his family 'which a long and sad experience will have taught them to value as they ought to do.' Roman Catholic refugees from Ireland, whatever part they might have taken in the long struggle with the Parliament, felt that only the King could now help them. At his command they had been ready to change from the service of Spain to that of France, and to go wherever his policy required them. They were included in the Breda declaration which promised oblivion for the past and toleration for the future. In London they found many sympathisers but also many enemies, and the latter proved much the stronger party. The adventurers and soldiers occupied all the best parts of Ireland, and by the proclamation of June 1 they were confirmed in their possessions until the King with the advice of the English or Irish Parliament should 'further order, or that they be legally evicted by due course of law.' Charles spoke under pressure at the dictation of the English Parliament, but he was bound by the Act of 1642 which pledged two and a half millions of Irish acres for the cost of the war. He was not the man to risk his own position from sentiment or from a sense of justice, but as far as he could do so safely he sympathised with the dispossessed natives. He owed his restoration to England, and Scotland and the English in Ireland, 'but,' says Clarendon, 'the miserable Irish alone had no part in contributing to his Majesty's happiness; nor had God suffered

Position of Irish
Recusants.

them to be the least instruments in bringing his good pleasure to pass, or to give any testimony of their repentance for the wickedness they had wrought, or for their resolution to be better subjects for the future.’^[10]

At first the Irish appeared as suppliants acknowledging their faults, pleading extenuating circumstances, and begging for royal favour. But as the King’s leaning towards them became evident they took higher ground, demanding their rights in strong language, and ‘confidently excused, if not justified, their first entry into rebellion’ as to the inexcusable barbarity of which Clarendon speaks as strongly as any of the Cromwellians. Rightly, from their point of view, but not wisely, they maintained that the English rebellion, stained as it was by the late King’s murder, was much worse than theirs. Charles attended regularly at the many Council meetings where the representatives of various interests were patiently heard, and the more boldly the Irish advanced their claims the more he was forced to listen to the case of the Cromwellians, who of course raked up the story of the original rebellion which in Clarendon’s words was ‘as fresh and odious to the whole people of England, as it had been the first year.’ As spokesman for his unfortunate countrymen, Sir Nicholas Plunket must have felt the weakness of his own position, for it was known, and he knew it was known, that during the last phase of the Irish war he was anxious for an accommodation with Cromwell and hostile to Ormonde and Clanricarde. He had plenty of help from men who knew all the facts, but Orrery and Massereene were no less well informed, and Ormonde himself was on the spot. Plunket had been a party to the peace of January 1649 and accepted office under it, but the terms were ill-kept, and even if Ormonde were disposed to treat them as still fully in force he was precluded by the King’s Dunfermline declaration that it was exceedingly sinful and unlawful. It was argued that those who had made the peace professed to represent all Ireland, and that they had been totally unable to manage the clerical party who reduced its value to waste paper.^[11]

Irish demands considered.

At the end of November a Declaration was at last agreed to which for the most part left the adventurers and soldiers in possession, while making ostensible provision for Irish proprietors who had not engaged in the rebellion or who had earned favour by subsequent

The Declaration.

Adventurers.

services. The whole settlement was founded on the principle that the property of all persons implicated in the rebellion from and after October 1641 was forfeited and actually vested in the Crown. The Declaration begins with an acknowledgment of what the King's subjects in Ireland had done to further his restoration. A distinction is drawn between what was done by the Act of March 1642, to which Charles I. had consented, and the subsequent ordinances of the usurping Parliament, the result of both being that the adventurers and soldiers possessed the greater part of Ireland. The truce of 1643 and the treaties of 1646 and 1649 were forced upon the late King, and his son would have us believe that he had confirmed the latter to save his father's life, though in fact he had done so long after his death. Attention is then drawn to the fidelity of the Irish during Charles' exile who changed from one service to another to suit his interest 'though attended with inconveniency enough to themselves; which demeanour of theirs cannot but be thought very worthy of our protection justice and favour.' Nevertheless all the lands possessed by the Adventurers on May 7, 1659, were secured to them, while those whose claims had not been fully satisfied were to have the deficiency made up out of territory assigned to them as a body but not yet distributed. Officers and soldiers were next confirmed in their possessions with savings in the case of fraud. Church lands were excepted, as also the estates of men not protected by the Act of Indemnity or who had broken the peace since the Restoration. In these cases, as in those where valid incumbrances were proved to exist, reprisal was to be made. Commissioned officers serving before June 5, 1649, whose arrears had not been paid in money or land were to be satisfied out of undisposed land in certain counties or within the mile-line surrounding the transplanters' district beyond Shannon. The forfeited houses in towns were also assigned to these officers, 'satisfaction being first made to such protestants, who on leases, or contracts for leases, have built or repaired houses, or planted orchards or gardens.' Protestants whose estates had been divided among adventurers or soldiers were to be forthwith restored, a reprisal of equal value being given to the latter. ^[12]

Soldiers.

49 officers.

The next class provided for were known as Innocent Papists, that is Irish proprietors who had been dispossessed 'merely for being papists,' and who had received more or less of an equivalent in Connaught and Clare. Applying

Innocent Papists.

for such an equivalent was their own act, and might 'without any injustice' disentitle them to any relief, but they were admitted on equitable grounds. In many cases no doubt there had been only three courses open to them, exile without means to live, starvation at home, or land beyond Shannon. They were now to be capable of restoration to their old estates at any time before May 2, 1661, on condition of surrendering their transplanted portions to the King to reprise others. Any adventurer or soldier disturbed to make room for the restored Papist was to have a reprise of equal value. In the case of towns 'planted with English, who have considerably improved at their own charges and brought trade and manufacture into that our kingdom and by their settlement there do not a little contribute to the peace and settlement of that country,' the old Roman Catholic proprietors were to have reprise of equal values 'near the said corporations.' The difficulties of doing equal justice to all was acknowledged to be great, but those of the Irish who had acceded to Ormonde's peace and had received land as transplanted were held bound by their own act. Their case was hard, no doubt, but said the King, 'they can no more reasonably expect that we should further relieve them, than our friends in England and Ireland can expect that we should pay back to them all the moneys they were compelled in the evil times to pay for their compositions, which they would have avoided had it been in their power.' Those who had chosen the better part and followed the royal fortunes abroad, Muskerry and many others being named, were to be restored if they had received nothing as transplanted, but adventurers and soldiers in possession were to be first reprised 'out of the remaining forfeited lands undisposed of.' This was all to be done by October 23, 1661. Eighteen peers, including Clanricarde, Westmeath, Clancarty, Mountgarret and Taaffe were specially named for restoration 'without being put to any further proof' along with twenty commoners of whom Richard Bellings was the most remarkable. Orrery had persuaded the English Council, or perhaps had only given them an excuse for declaring, that there was enough undisposed forfeited land to reprise everyone for his losses, and in the meantime the adventurers and soldiers were left in possession. The first to be restored were innocent Protestants and 'those persons termed innocent papists, who never took out any decree or had lands assigned to them in Connaught or Clare.' Innocent Protestants and Papists who had taken out

Article men.

Ensignmen.

Nominees.

such decrees came next, then the Irish Papists who had constantly served under the King's ensigns abroad. [\[13\]](#)

All who had been in rebellion before September 15, 1643, and had received grants in Connaught or Clare were excluded from the benefits of the Declaration, but some persons were specially protected from its disabilities. Ormonde and his wife with all his tenants and mortgagees or those of his ancestors 'barons of Arklow, Viscounts of Thurles, or Earls of Ormond or Ossory,' were fully guarded. Inchiquin, who had procured a private Act in England for the purpose, was restored to his estate of which he had been deprived 'for his eminent services and adhering unto us.' Albemarle was confirmed in all his possessions, as were Orrery, Mountrath and his kinsmen, and several others including 'the orphans of Colonel Owen O'Connolly,' Sir Theophilus Jones, Arthur Annesley Viscount Valentia, and Major George Rawdon. If any restorable persons were ousted to make room for these eminent persons they were to be reprised, forfeited lands in Carlow being specially designated for those who were removed from the Ormonde estate. [\[14\]](#)

Recipients of special favour.

It was intended that when the Declaration had been confirmed by law in Ireland, and its provisions carried out, it should be followed by a general act of pardon, indemnity, and oblivion on the English model, 'notorious murderers only excepted,' but excluding all who had conspired to seize Dublin Castle in 1641, and all who had any part in the execution of Charles I. down to the halberdiers on guard. But, unfortunately, this healing measure was withheld. The King, admitted the imperfections of his Declaration, pleading 'that the laying of the foundation is not now before us, when we might design the model of the structure answerable to our thoughts.' Thousands of Englishmen had possessed themselves of Irish lands after long and tedious legal process, they had brought over their families, sometimes selling all they had to do so, they had made great improvements, and it was impossible, as it would have been unjust, to confiscate their property, 'reprisal not first being provided for.' The enormous difficulty of the task must be admitted, but Charles proved himself no true prophet when he expressed a confident hope that mutual

A satisfactory settlement was impossible.

forbearance would bring about a good understanding between two parties who had nothing in common but the memory of an internecine war.^[15]

The next step was the appointment of a commission to carry out the Declaration. It consisted of thirty-six persons, including many peers and all the King's counsel. The attorney and solicitor-general were afterwards excluded lest the Crown should be made a judge in its own cause, but in truth there were but few disinterested men among these Commissioners, for they were all concerned in Irish land, though often differing in opinion. Massereene, Petty, and Audley Mervyn, for instance, were naturally inclined to maintain the Cromwellian arrangements, while Lord Montgomery, Domville, and Lane were more in favour of the old Protestant inhabitants. Some of their colleagues were disposed to do justice to the Roman Catholics, but the latter had no direct representation. It is unnecessary to enlarge on the subject, for little or nothing was done by this unwieldy body, and the instructions for its guidance had to be applied by a smaller and less prejudiced commission. Of the three Lords Justices Orrery and Mountrath leaned towards the adventurers and soldiers, while Eustace thought more of 'the old English interest which lately overspread the land far different from such as did rise up with Cromwell,' mushrooms who considered themselves the true representatives of England and ignored those who came in with the Conqueror and never made any defection before 1641. Were they, he asked, all to be cast out for one fault? In several months the Commissioners had only succeeded in relieving one widow, though the streets were 'full of those miserable creatures of all sorts noble as well as of inferior degree.' He thought they were criminal who had deluded the King into believing that there was a great scope of available land. Orrery and Mountrath felt the responsibility though averse to restoring the Irish, and to avoid the odium of inaction did of their own motion restore a few notable Roman Catholics, but the great mass were reserved for the new commission.^[16]

The first
Commission for
claims.

The composition of the first commission was not the sole cause of delay, for the judges held that it would not be safe to act on the Declaration until it had legal sanction. It was remembered how Strafford had contributed to his own destruction by boasting that he would make Acts of

Composition of the
Irish Parliament,
May 1661.

State equal to Acts of Parliament. The Irish Convention having done its duty by making some provision for the pay of the army, it was resolved to call a Parliament. As freeholds were for the most part in Protestant hands there could be no question about the majority. ‘The papists and anabaptists,’ said Orrery, ‘stood in several places to be chosen, yet but one of each sort was actually chosen, and they both in the borough of Tuam, an archbishop’s see; from which all collect that both these opinions will oppose the true church.’ The one Papist was Geoffrey Brown, much trusted by the late Confederacy but opposed to the nuncio. He was excluded by the oath of supremacy, and his seat seems to have been treated as vacant and filled up. Parliament met at Chichester House on May 8 after hearing Taylor preach on the texts that obedience is better than sacrifice and rebellion as the sin of witchcraft. Bramhall presided in the Lords, the Chancellor being disabled as one of the Lords Justices. Lord Santry was anxious for the post, but was considered a cold friend to the Declaration and rejected to his great disgust. For the Speakership of the Commons the King recommended Domville the attorney-general, but the adventurers were too strong and the Lords Justices acquiesced in the choice of Sir Audley Mervyn, whose flowery speech before them contained much Latin and some Greek. Never, he said, since Ireland was happy under an English Government was so choice a collection of Protestant fruit that grew within the walls of the House of Commons. Their lordships had piped and the Irish danced, and ‘Japheth might perhaps be persuaded to dwell in the tents of Shem.’ This oration was ordered by the Commons to be printed, and it filled six crowded folio pages. Thanks were also voted to Bishop Taylor for his sermon. *A jove principium* exclaimed Mr. Speaker on taking the chair. The oaths of supremacy and allegiance were affirmed by both Houses, the civil authorities directed to co-operate with the bishops in re-establishing the Church, while the Solemn League and Covenant and the Engagement were ordered to be burned by the common hangman in Dublin and in all market towns.^[17]

Speaker Mervyn.

After a little sparring between the two Houses, the Declaration was adopted by Parliament in a fortnight, but the Instructions for working it which had also been transmitted from England were still open to discussion. Commissioners were chosen by ballot, four peers, representing each rank, and eight members of the House of Commons.

Debates on the Declaration.

In the Upper House the lot fell first upon Wentworth Earl of Kildare, the head of the Geraldines, who strangely enough held Ormonde's proxy. His mother was a Boyle and his father had adhered steadily to the Parliament, but he was looked upon as in some sort the protector of the old English. For colleagues he had Lord Montgomery, Lord Kingston, and John Parker, Bishop of Elphin, afterwards Archbishop of Tuam, who had exerted himself in favour of the suffering Irish. Speaker Mervyn headed the Commoners' contingent, and this shows how strong the Adventurers were. Among the others were Petty, Sir John Skeffington, Massereene's son-in-law and heir, Sir Theophilus Jones, who held the Sarsfield property at Lucan, and Sir William Temple, afterwards so famous. All were of course interested in land. Temple, whose diplomatic cleverness was already recognised, acted for the Commons in their communications with the Upper House. His younger brother John, the Solicitor-General, was made acting Speaker during Mervyn's absence. Being unable to agree as to what ought to be the contents of the coming Bill of Settlement, each House instructed its own emissaries separately. The Lords Justices also appointed agents to represent them in London and to carry over the Bill of Settlement: Michael Boyle, Bishop of Cork, afterwards Primate and Chancellor, Lord Kingston, and Colonel Thomas Pigott, Master of the Court of Wards. Pigott, in Eustace's opinion, was 'as right unto the poor people of this nation as any man living,' but he could not say as much for the first two. Francis Lord Aungier, whose financial skill was valuable, had six months leave from the House of Lords. Massereene also had leave to go to the country, which he utilised to slip over to England and join his forces to the representatives of the Commons, but a letter was written on Kildare's motion warning the English Government against hearing one who was not authorised to speak for the Peers. Of Roman Catholic suitors there was no lack in London, Sir Nicholas Plunket always figuring as their chief spokesman. [\[18\]](#)

In the Lords.

In the Commons.

It was from the first evident that there would not be land enough to satisfy all claims, and the Declaration made careful rules about priority. Innocents were to be first restored, but the Instructions raised so many barriers that their case might well seem hopeless. Not only were 'adventurers and soldiers and other persons' in possession to be fully reprised before anyone could be restored,

Conditions of the Settlement.

but Innocent Papists were disqualified who came within any of the following categories:-

1. Those who were of the rebels' party before the cessation of September 15, 1643.
2. Those who enjoyed their estates real or personal within the rebels' quarters, an exception being made in favour of the inhabitants of Cork and Youghal who were 'expelled and driven into the quarters of the rebels.'
3. Those who had entered the Roman Catholic confederacy before the peace of 1646.
4. Those who joined the nuncio against the King.
5. Those who having been excommunicated for adhering to the King owned it an offence and were relieved from the ban.
6. Those who derived title from any person guilty of the above crimes.
7. Those who pleaded the articles of peace for their estates.
8. Those who being within the royal quarters during the war communicated with the King's enemies.
9. Those who before the peace of 1646 or 1648 sat in any assembly of the Confederate Roman Catholics, or acted under orders from them.
10. Those who empowered agents to treat with foreign papal powers or brought foreign forces into Ireland.
11. Those who had been woodkernes or tories before Clanricarde left the Government.^[19]

With such a list of disqualifications it would seem hard for any Irish Roman Catholic to prove his innocence within the meaning of the Act. It was at first intended to exclude all who had paid contributions to the rebels, whether voluntary or not, but this was dropped as too manifestly unjust. A strong effort was made to do away with the disqualification from enjoying estates in the enemy's quarters, but against this it was argued that in many cases there was no other applicable test. After twenty years there was little or no direct evidence, and if the presumption from residence was disregarded the great mass of the Irish would be restored, controlling future Parliaments and

Paucity of evidence.

getting all the seaports into their hands. ‘Until the cessation,’ Mountrath wrote, ‘none but the rebels’ friends could live in their quarters, all others were expelled or destroyed’; and this reasoning prevailed. Yet it cannot be doubted that many remained in the Irish quarters only because they had nothing to live upon anywhere else.^[20]

Even those who could prove their innocence had to make reprisal to Adventurers and soldiers in possession before they could be restored. It soon became evident that Orrery had greatly exaggerated the amount of land available, but Lord Aungier drew attention to the fact that many Adventurers had received more than the value of the money advanced by them. This was largely the result of the Doubling Ordinance passed when the Parliament were in financial straits after Edgehill. As it never received the consent of Charles I., Charles II. could legally ignore it. By this it was provided that those who added one-fourth to their original stake should have the whole doubled and be recouped in Irish measure instead of the English acres originally intended. Thus one whose first subscription was 1000*l.* and who afterwards added 250*l.* would be credited with 2500*l.* As to the Irish acres the point had been conceded in the King’s Declaration. Nor was this all. If the original Adventurer refused to increase his stake a stranger might come in and do it for him, receiving double of the whole after deducting the original advance, and thus a speculator who never gave more than 250*l.* would receive credit for 1500*l.* Massereene and other interested persons endeavoured to maintain this arrangement, but the abuse was too glaring and the Bill of Settlement provided that the reprisal should extend only to the amount actually contributed. Even so the fund was still far from sufficient. ‘If,’ said Ormonde, ‘the Adventurers and soldiers must be satisfied to the extent of what they suppose intended unto them by the Declaration; and if all that accepted and constantly adhered to the peace in 1648 must be restored, as the same Declaration seems also to intend, and was partly declared to be intended at the last debate, there must be new discoveries made of a new Ireland, for the old will not serve to satisfy these engagements. It remains then to determine which party must suffer in the default of means to satisfy all; or whether both must be proportionately losers.’^[21]

Available area
insufficient.

The Doubling
Ordinance.

Ormonde would have liked to restore many of the Irish, but they disregarded his advice. Instead of acknowledging, while endeavouring to minimise, their share in the rebellion they insisted that the Parliamentarians alone were rebels and sufficiently rewarded by being suffered to live. They themselves were the loyalists and worthy of reward. But their enemies were in possession, all-powerful in the Irish army and Parliament, and in a position to show that the Confederates had depended on foreign and papal support, and had done many things in derogation of the royal authority. During the winter of 1661-2 the wrangle continued, and at last Charles, probably much against his will, was constrained to cut the knot. The Solicitor-General Heneage Finch, afterwards Lord Chancellor and Earl of Nottingham, acted as legal adviser in all the Irish business, and he brought up a report from the Committee of Council specially charged with it. The Commissioners from the Irish Parliament and Council had produced the instructions of January 18, 1647, from the supreme council to Bishop French and Nicholas Plunket as envoys to the papal court, a draft of similar instructions for France and Spain, and a copy of the Jamestown excommunication. Sir Nicholas Plunket was then called in and acknowledged his signature to the first and his handwriting throughout the second document. This report was presented when the King was present in Council supported by twenty members including the Duke of York, Clarendon, and Ormonde, and it was thereupon ordered 'that in regard the said Romish Catholics have been already several times heard at this Board as to the Bill of Settlement, no more petitions or further addresses be required or admitted from them for obstructing the same,' and the Solicitor-General was directed to go on with the engrossing of it. Sir Nicholas Plunket was at the same time ordered to 'forbear coming into or appearing in His Majesty's presence or court, notice of this order being given to the committees employed from the said Council and Parliament, to be by them transmitted into Ireland.' Plunket was often heard again later on, but not till the Act of Settlement had passed. [\[22\]](#)

Incompatible claims.

Sir Nicholas Plunket.

Mountrath died of smallpox on December 18, and a fresh patent was at once made out to the survivors, Eustace and Orrery. But it was already announced that this was only provisional, that Ormonde was to be Lord Lieutenant, and that no important step was to be taken until his arrival.

Albemarle resigns in Ormonde's favour.

Albemarle, who had a large Irish property, had for a long time opposed his appointment, and surprised everyone by suddenly recommending him as a most fitting person. It was, he said, useless for him to retain the office in his own hands since he could not well be spared from the King's side. Charles did not consult Clarendon, whose opposition to his friend's promotion is amusingly described by himself. The Chancellor objected that the King could not spare the Duke and that the latter would be able to do no good in Ireland. He might have been useful if despatched immediately after the Restoration, but now he had hampered himself by engagements with individuals, and 'had given himself so much to his ease and pleasure that he would never be able to take the pains which that most laborious province would require.' Ormonde answered good-humouredly that no one knew the difficulties better than he did and that he had not sought the viceroyalty but could not refuse it on public grounds, and that he would take indefatigable pains for a year or two to purchase ease for the rest of his life. His powers of work were enormous, but he knew how to unbend better than his friend. When the news reached Dublin the Irish House of Lords at once sent a letter of thanks to the King for choosing one 'of whose noble and sweet disposition and prudent and just government void of all sinister and self ends we have formerly had full experience.' His presence would offer the best chance of peace and settlement, and no kingdom ever needed them more. The House of Commons were no less complimentary, regarding Ormonde's government as the most likely to maintain order and to establish an English and Protestant interest. ^[23]

The Houses were not allowed to do much until the Bill of Settlement had assumed its final shape. By Poynings' law it could not be altered after its transmission by the English Council. A week before Plunket's dismissal by the Privy Council the Irish House of Commons petitioned the King that no provisos should be inserted in the Bill which affected the interests secured by the Declaration. Many had, however, been already decided on and some were added later, which were not all such as the dominant party in Ireland could approve. Further favour was indeed extended without demur to Ormonde, Sir John Temple, Sir George Rawdon, Sir William Petty, and other well-known Protestants, and there was no opposition to what was done for the Established Church, but such eminent Roman Catholics as Sir Robert Talbot, Sir Valentine

Provisos in the Bill of Settlement.

Grant to the Duke of York.

Blake, and Geoffrey Brown, while deserving well of the Crown, cannot have had the goodwill of the Adventurers. Antrim, who had been omitted from the Declaration, was by a special clause placed upon the same footing as those named in that document. The estates of all the regicides, except a small portion already given away, were granted to the Duke of York without any protection for the old proprietors. James proved his claim to 77,000 acres, and in 1668 his agents were in possession of at least as much more to which the title was disputed. Lest there should be any doubt as to what lands were 'forfeited,' it was declared and enacted 'that the said word shall be deemed and taken not only of such lands, tenements, and hereditaments as are already forfeited by judgment, confession, verdict, or outlawry, but such as by reason of any act or acts of the said rebellion already committed by the several and respectable proprietors hereof shall or maybe forfeitable.' And 'undisposed land' was defined to be all that was not disposed of by the Act. ^[24]

The final touches were given to the Bill of Settlement early in April, and on May 6 it was read a first time in the Irish House of Commons, who had the power to reject but not to amend it. Speaker Mervyn had just returned to his post, and his influence was quickly visible. In the course of prolonged debates discrepancies were noticed between the original Declaration and the latter part of the Bill with which it was incorporated. There was some inclination to refuse the passage of the Bill until an explanatory measure was also passed, but Orrery pointed out that there could be no explanation until there was an Act in being to explain. The Commons proceeded, however, with the preparation of an explanatory bill, and the Lord Lieutenant was reminded that he would be expected to transmit it soon after his arrival in Ireland. ^[25]

The Bill in the First Parliament.

Ormonde, in his capacity of Lord Steward, was detained in London by the King's marriage, but reached Coventry on his way to Holyhead by the beginning of July. He was accompanied by many Irish peers, members of Parliament and claimants to land who were now hastening to defend their own interests in Ireland. In each county that he passed on the road to Chester the Lord Lieutenant came to meet him, and the local militia were paraded. He travelled by land to Holyhead, crossed in very rough weather and landed at Howth on July 27, the anniversary of the day on which he had surrendered

Ormonde arrives a Lord Lieutenant.

Dublin to the parliamentary commissioners fifteen years before. He was at the Castle next day, and on the third received the House of Commons and had to endure a speech from Sir Audley Mervyn which was voted to express their sense and ordered to be printed. There were many other speeches and addresses, and on the 31st the Lord Lieutenant appeared in the House of Lords and gave the Royal assent to the Bill of Settlement.^[26]

In October 1662, a few months after Ormonde's arrival in Ireland, the faithful old secretary Nicholas was dismissed and Sir Henry Bennet appointed in his stead.

Bennet Secretary of State.

He was soon made Lord Arlington, and by that name is but too well known in history. The correspondence with the Lord Lieutenant passed through his hands, and he set himself from the first to make money out of Ireland. Most of the officials, in co-operation with Colonel Talbot, did their best to advance the interests of a courtier who was likely to be very powerful. He was, says Burnet, 'proud and insolent, a man of great vanity and lived at a vast expense without taking any care of paying the debts which he contracted to support that.' Clarendon says much more to the same effect and adds that he was never guilty of friendship to any man. He married Lady Ossory's sister, and was thus pretty closely connected with the Lord Lieutenant, but the relations between them were never very cordial. The nature of Bennet's interest in Ireland was soon made clear in the case of an ancient proprietor who had no court interest.^[27]

James I. had granted to the head of the O'Dempseys a great estate on both sides of the Barrow in King's and Queen's Counties, worth 4000*l.* a year in its unimproved condition and subject only to a small quit-rent. Sir John Davies had reported that the clan were inclined to live in a civilised manner, and the chief was created Viscount Clanmalier by Charles I. His son Lewis succeeded before the outbreak in 1641, commanded a regiment during the war, and was included in the Cromwellian Act of Attainder. He afterwards claimed to have adhered constantly to the peaces of 1646 and 1648 and to have preserved the land and goods of many distressed English, but received no consideration for his estate which had been given to soldiers and Adventurers. Not having served the King abroad he was not protected by any clause in the Act of Settlement, and Sir Henry Bennet coveted the property. Probably

The Clanmalier Estate.

Foundation of Portarlinton.

Clanmalier would have failed before the Court of Claims, for he had been a long time in the rebels' quarters, but his case seems not to have been heard, perhaps through his lawyer's mistake, and his position was hopeless from the first. In November 1662 the King granted the whole estate to Bennet who had just been made Secretary of State, and the Irish officials did their best to make the grant effective. Winston Churchill and Talbot were very active in the matter, and the latter showed very little anxiety about getting anything for Lord Clanmalier. Ormonde was more sympathetic, and discouraged the private Bill by which Bennet's friends proposed to cut all knots. The Adventurers and soldiers had to be reprised, and they exerted themselves to find concealed lands, thereby reducing the stock available for working the Act of Settlement. Clanmalier was only tenant for life, but in the end the Act of Explanation gave the whole estate to Bennet without considering the reversion. The men in possession were to have two-thirds of their interests, which some valued at three and some at six years' purchase, and the Manor of Portarlinton was erected with great privileges and the right of sending two members to Parliament. If Lord Clanmalier got anything at all it was in the nature of a compassionate allowance. It is not surprising to find that Tories were numerous near the new borough, and that some of them bore the name of Dempsey.^[28]

FOOTNOTES:

[10] Hugh O'Neill to Ormonde, October 27, 1660, enclosed in Bennet's letter of same date, *Carte Transcripts*, vol. xxxi. Clarendon's *Life*, Cont., 226. The Breda declaration is in his *Hist. of the Rebellion*, xvi. 193, and in *Somers Tracts*, vii. 394.

[11] Clarendon's *Life*, Cont., 209, 221.

[12] The Declaration of November 30, 1660, is incorporated with the Act of Settlement, 1662, 14 & 15 Car. II, cap. 2, which occupies 109 folio pages of the *Irish Statutes*.

[13] *Irish Statutes*, i. 252-260, sections 16 to 28 of the Declaration. Clarendon's *Life*, Cont., 233.

[14] Sections 11 to 15 and 20 of the Declaration, *ut sup.*

[15] Sections 12-15, 29, 31 and 35 of the Declaration, *ut sup.*

[16] The names of the first Commissioners are in the Act of Settlement, *Irish Statutes*, ii. 264. Eustace to Ormonde, July 29, August 17 and 21, 1661, *Carte Transcripts*, vol. xxxi.; Lord Aungier to same, May 1, *ib.* The King to the Lords Justices, April 12, 1661, State Papers, *Ireland*. The persons ordered to be

restored by the Lords Justices were Lords Clancarty, Clanricarde, Westmeath, Fingall, Dillon, Taaffe, and Galmoy, Colonel Richard Butler (Ormonde's brother), and Colonel Fitzpatrick. The first and the last of these were married to Ormonde's sisters, but it appears from the Act of Explanation that there had been a hitch in the cases of Lords Westmeath and Dillon and of Colonel Butler.

[17] Orrery to Ormonde, May 8 and 15, 1661, in *Orrery's State Letters*, i. 35, 36. Jeremy Taylor's sermon on May 8, *Works*, vi. 343; Lord Kingston to Ormonde, May 5 and 8, *Carte Transcripts*, vol. xxxi.; *Irish Lords Journal*, vol. i., May 8-25, *Commons Journal*, vol. i., May 8-17, Mervyn's speech being in full; *Declaration of Lords spiritual and temporal*, May 17, separately printed for circulation.

[18] *Irish Lords and Commons Journals*, May to July 1661. Eustace to Ormonde, July 29, 1661, *Carte Transcripts*, vol. xxxi. Montgomery to Ormonde, June 29, and Kildare to same, *ib.* There is an elaborate but not very clear account of all this in Carte's *Ormonde*, book vi.

[19] Instructions incorporated in the Act of Settlement, 1662, no. 11, *Irish Statutes*, i. 269.

[20] Mountrath to Ormonde, June 19, 1661, *Carte Transcripts*, vol. xxxi.; Heneage Finch's report, February 1, 1670-1, printed in Carte's *Ormonde*, ii. appx. 91, p. 75. Finch is a first-rate authority for everything that happened in London.

[21] The Doubling Ordinance of July 14, 1643, in *Scobell*, i. 45, repudiated by section 126 of the Act of Settlement. Lord Aungier to Ormonde, April 17, 1661, *Carte Transcripts*, vol. xxxi. Ormonde's letter in full in Carte's *Ormonde*, vol. ii. In his letter of June 1 to Ormonde Bellings says not one per cent. would regain their property 'and yet they shall seem not to be excluded from all possibility of enjoying it when that imaginary thing a reprisal is found,' *Spicilegium Ossoriense*, ii. 189.

[22] Order in Council, March 14, 1661-2, in Cox, supplementary letter, p. 5. Instructions to the Confederate envoys in *Confederation and War*, vi. 223-227. In the letter already quoted Bellings gives credit to Ormonde for having saved as many of the old proprietors as he could. He confines his sympathies to the 'ancient families' and warns Ormonde that it cannot be for a Butler's interest to see the land possessed by 'a generation of mechanic bagmen who are strangers to all principles of religion and loyalty.'

[23] Warrant for Ormonde's appointment, November 4, 1661, State Papers, *Ireland*; Orrery and Eustace to Nicholas, December 19, *ib.*, Clarendon's *Life*, Cont., 234-238. On this occasion Clarendon gives one of his rare dates, and it is wrong, 1664 instead of 1662. *Irish Lords and Commons Journals*, December 6 and 7, 1661.

[24] *Irish Commons Journal*, March 6, 1661-2. Act of Settlement, 14 & 15 Car. II. cap. 2, from clause 86 to the end. For the harshness with which the Duke of York's claims were enforced and the character of the men employed in the work see the letters printed in the 32nd *Report* of the Deputy Keeper of the Public Records, appx. i. pp. 170-181, particularly Colonel Cooke to Ormonde, June 6, 1668.

[25] *Irish Commons Journals*, May-July 1662. Orrery to Ormonde, May 17 and June 20, in his *State Letters*, i. 111, 123. The Bill of Settlement passed the Lords on May 30, 1662, without a dissentient voice. Forty-one peers were considered present, but of these twenty-three were proxies. Those who actually attended were three Archbishops; three Earls, Kildare, Roscommon, and Donegal; three Viscounts, Conway, Baltinglas, and Massereene; seven Bishops; two Barons, Caulfield and Colooney—*Irish Lords Journal*.

[26] Carte's *Ormonde*, ii. 257. Clarendon's letter of July 17 in his *Life* by Lister, iii. 208.

[27] Carte's *Ormonde*, ii. 272. Burnet, ii. 99. Clarendon *State Papers*, iii. 81 (supplement). The letter in which Ormonde explained the State of the Land Question to Bennet when the Court of Claims had just ceased to give decrees is printed as an appendix.

[28] Lord Roscommon, the poet, made an eloquent speech for Clanmalier in the Irish House of Lords. The intrigues about this property may be followed in the Calendar of State Papers, *Ireland*, 1662-5, but the letters are too numerous to cite separately. That from Lord Aungier, calendared at April 2, 1662, must, I think, belong to 1663. Aungier, who possessed some of the land as an Adventurer, says all the Commissioners favoured Bennet: he was himself protected by law. Act of Explanation, sections 78 and 79. Dunlop's *Ireland under the Commonwealth*, i. 154.

CHAPTER XLII

COURT OF CLAIMS AND ACT OF EXPLANATION, 1662-1665

While Ormonde was on his way to Ireland the King appointed seven Commissioners for carrying out the Bill of Settlement as soon as it should become an Act. Great care was taken in choosing these, and Clarendon assures us that it would have been impossible to get fitter men. The first named was Henry Coventry, well known in the history of the time. Sir Edward Dering of Kent, a very good man of business, was second. The third was Sir Richard Rainsford, serjeant-at-law and afterwards a judge in England. Sir Thomas Beverley, one of the King's remembrancers, was the fourth. Sir Edward Smith, Chief Justice of the Irish Common Pleas, came next, and was followed by Colonel Edward Cooke. The last named was Winston Churchill, father of the great Duke of Marlborough. Coventry was too useful at Court to be left long in Ireland, and after a few months he was recalled and replaced by the Surveyor-General Sir Alan Brodrick. Before the Commissioners could sit to hear claims of innocence, rules of procedure had to be made and a vast amount of preliminary work done. Petty's Down Survey was used for the purposes of the settlement, his cousin John acting as Brodrick's deputy. The Court of Claims was formally opened on September 20, its powers under the Act of Settlement and an amending Act being limited to one year from that date. The Lord Lieutenant was empowered by the Instructions to issue subsidiary commissions, and one to enquire into the value of estates restorable or reprisable was issued to independent persons, and another to Anglesey, Sankey and others, in conjunction with Coventry and his colleagues, to investigate frauds and

The Court of
Claims.

irregularities in the distribution of lands beyond Shannon under the Cromwellian Government.^[29]

The result of the first day spent by the Commissioners in hearing claimants was that two were declared innocent and one nocent. 'If,' said Ormonde, 'the lottery would hold out so to the end of their commission it would prove no ill one for the Irish,' and they accordingly began to indulge in extravagant hopes. The more violent among them declared that Orrery and the other leaders who had restored the King should be rooted out as heretics and damned traitors as soon as the army became 'Catholic loyal.' It was said, probably with truth, that many forged conveyances were produced and admitted by the Court. There was angry consternation among the Adventurers and soldiers who did not believe in the impartiality of the Commissioners. The House of Commons, meeting after a short recess, lost no time in giving a voice to the prevailing discontent. Ormonde had forwarded the explanatory Bill as desired, but it was altered in England, and when it came back was, as he foretold, promptly thrown out by the Commons on the motion for a second reading. 'When,' he wrote to Clarendon, 'anybody of credit among these people finds himself like to be pinched in his interest he causes a cry to be raised that all is lost to the English and that the Irish be their masters.' Timid people sold their goods and departed, while the alarmists stayed and got cheap bargains. Monks and friars added to the panic by holding chapters as openly as in Spain, while prudent Roman Catholics would have liked a sharp proclamation against the regulars as a protection to themselves. The House of Commons were bent on making the Act of Settlement more stringent, and unanimously agreed to twenty proposals for the purpose. Founding an argument upon the last clause of the Act which gave the Lord Lieutenant power to alter the procedure of the Commissioners before a date which had already passed, they called upon him to define the English quarters as existing from time to time until he left Ireland in 1647, no witnesses outside the line being admitted to prove innocence, since the rest of the island was assumed to be rebels' quarters. Another proposal was that no claimant once adjudged nocent should be allowed to make any other claim. Ormonde was asked to admit a committee of the House to confer with a committee of the Council, the action of the Commissioners being suspended in the interim. The House of Commons had of course no

Innocents and
Nocents.

The Commons
dissatisfied.

jurisdiction over the Court of Claims, and Clarendon reported that the King was ‘horribly angry’ at their presumption in seeking to treat with the Council.^[30]

Though fully determined not to yield to parliamentary pressure, Ormonde promised that the proposals of the House should have ‘such speedy answer as the weight and number of these would permit.’ The Lord Lieutenant was treated with respect throughout, but the Speaker’s speech on the occasion was not conciliatory in substance. The Act of Settlement, he said, was the Irish Magna Charta and not to be infringed in any way: ‘our strength lies in this as Sampson’s in his locks; if those be cut we are as weak as others when the Philistines shall fall upon us.... I shall never forget that expression of His Majesty at a full council "my justice I must afford to you all, but my favour must be placed upon my Protestant subjects."' He descanted with some force upon the anomalous powers of the Commissioners who both found the facts and laid down the law. The House of Commons asked for juries, since they were certain to be composed of Protestant freeholders. Mervyn clearly understood that Irish claims would still be made whatever law or lawyers might say, and to defeat them proposed to impound all nocents’ title-deeds. ‘Sir,’ he said, ‘in the North of Ireland, the Irish have a custom in the winter, when milk is scarce, to kill the calf and preserve the skin, and stuffing it with straw they set it upon four wooden feet which they call a *Puckan*, and the cow will be as fond of this as she was of the living calf; she will low after it and lick it and give her milk down, so it stands but by her. Sir, these writings will have the operation of this *Puckan*, for wanting the land to which they relate they are but stuffed with straw, yet, sir, they will low after them, lick them over and over in their thoughts, and teach their children to read by them instead of horn-books. And if any venom be left they will give it down upon the sight of these *puckan* writings, and entail a memory of revenge, though the estate tail be cut off.’ This was prophetic: for many generations and perhaps even to this day obsolete title-deeds were handed about, though useless for any purpose but to make property insecure and to perpetuate the memory of wrongs long past.^[31]

Speaker Mervyn represents the malcontents.

Titles not regarded as permanently valid.

The Commissioners continued to sit during the spring and summer of 1663, but no one was satisfied, and the sheriffs made difficulties about executing their decrees unless they were backed by the ordinary courts of law.

The Court of Claims satisfied no one.

The time for hearing claims expired in August, when it was estimated that only one-sixth of the applicants had been heard, but that 800,000 acres had been restored to them. Many Protestants sought decrees of innocence, as a precaution no doubt, for Ormonde and Cork were among them. In March the Lord Lieutenant sent an answer to the Speaker reproaching the Commons with having caused general insecurity so that many English Protestants had been frightened into 'selling their lots and adventures at vile and under rates, or compounding with the old proprietors on very ill terms.' He announced the discovery of a plot by so-called Protestants to seize the Castle, and the Commons could only resolve to live and die with His Grace. Average politicians might be a little startled at the military conspiracy, but what they really feared was quite different, and they presented bills for the suppression of the Popish hierarchy and for imposing the oaths of supremacy and allegiance upon all officials and others in positions of trust. Five days later the House adjourned for six weeks, but before the time had expired the Lord Lieutenant prorogued Parliament by proclamation and it did not meet again for more than two years. Both he and the King were almost tempted to dissolve at once, and he was empowered to do so at his own discretion.^[32]

Ireland could not be governed without a standing army, and the cost of maintaining one, even on the most reduced scale, made it impossible to balance the public accounts. As there was no money to spare in England, the force upon which everything depended was irregularly paid and of course discontented. Ormonde refused to be coerced by hot-headed cavaliers into discharging all officers and men who had served the Protector, though he weeded them as closely as possible. Those who were discharged all remained in the country. A wholesale proscription would affect nearly all the English in Ireland, 'and many of your own party,' he told the King, 'were forced by the persecution that followed them in England to shelter themselves in Ireland, and as they were able to make friends, to get into the army some as inferior officers, some as private soldiers.' The revolutionary

Discontent among soldiers.

Many cavaliers served the Parliament.

politicians thought it safer to get them out of England even on these terms. They were Royalists all along, and showed it when the time came. Many who never served against the King and some who had actually fought for him in England, 'their interest and detestation of the Irish assisting their mistake,' thought they might conscientiously oppose him when treaties with the rebels were being made in his name. They also believed, or wished to believe, that the late King had handed over the whole war to the Parliament once for all. National feeling and the folly of the clerical party made them receive Cromwell in certain towns, but they had since repented. He declined to cashier such men, though he took care to admit no recruits that had not a clear record. There were therefore heads to conspire and plenty of hands to execute, but Ormonde was aware that the plot in the North of England had sympathisers in Ireland. It was reported that Ludlow had returned to put himself at the head of the malcontents, and the Ulster Presbyterians might have been goaded by the bishops into rebellion. Spies were not wanting, and Colonel Vernon, Henry Cromwell's old antagonist, made himself very useful. Robert Shapcote, representing the borough of Wicklow, was arrested as a ringleader, and the House of Commons could not interfere during prorogation. It does not appear that more than two or three Presbyterian clergymen were in any way concerned, nor any of the more responsible sectaries. Ormonde's suspicions fell, perhaps not unnaturally, upon Henry Cromwell's old chaplain, Stephen Charnock, but there seems no reason to suppose that he was implicated, and in any case he eluded all attempts to arrest him either in England or Ireland. [\[33\]](#)

The villain of the piece was Thomas Blood, owner or former owner of a small property at Sarney, near Dunboyne, in Meath, whose mysterious life has never been fully cleared up but who is known to students of history and to readers of 'Peveril of the Peak' as the man who stole the crown in the Tower and tried to kidnap the Duke of Ormonde at the top of St. James's Street. Plenty of dupes were to be had among the unpaid soldiery and the settlers who were likely to lose their lands through the action of the Court of Claims. One of these, Colonel Alexander Jephson, member of Parliament for Trim, disclosed the whole plot to Sir Theophilus Jones two days before the time fixed for its execution. Jones was living at Lucan, of which he disputed the ownership with the Sarsfield family, and was walking near the bridge looking at Colonel Jeffreys' troop when

The Castle plot.

A Puritan visionary.

Jephson appeared and asked him about his land case. Jones said the trial was fixed for June 17, and that he hoped to succeed. Jephson said he would be beaten but would recover the estate in 7000 years. After this apocalyptic speech he asked for a private interview, distrusting Jeffreys, who had been heard to say that the Commissioners were just men. They went into the House together, Jones promising secrecy provided his visitor's suggestions were just and honest. Jephson laid his hand on his sword, which he had not worn for thirteen years, declared that he and his friends were going to Dublin 'resolved to adventure their lives' for the preservation of the English. Having a wife and thirteen children he had taken the precaution to make a will, but had no doubt of being able to seize Dublin Castle, Cork, Limerick, Waterford, and Clonmel. The conspirators had plenty of money ready in Dublin, some of which probably came from Holland, and 20,000 Scots excommunicated by the Bishop of Down and other prelates were ready to take the field in two days. The regular army would doubtless follow as soon as they had circulated their scheme, of which thousands of copies were already in print. Sir Henry Ingoldsby would appear in Dublin at the head of 1000 horse as soon as the revolutionary flag was hoisted on the Castle. All soldiers who joined would have their arrears at once paid in full, and all the English would be restored to their lands as they stood on May 7, 1659. The solemn league and covenant would be enforced once more with the help of many sympathising ministers who then went about in periwigs, and no popery would be tolerated. Jephson was to arrest Clancarty and Fitzpatrick, and the Lord Lieutenant to be civilly treated as a prisoner. There was to be no bloodshed and no plunder, but by peaceful means he had no doubt that they would have everything in their power long before seven thousand years. Jones himself was to be *Generalissimo*. Sir Theophilus wrote everything down at once and the next morning carried the news to Ormonde. ^[34]

Philip Alden, one of the chief conspirators, gave full information, and his escape from the Castle was probably connived at. He was an old adherent of Ludlow and kept up a correspondence with him to prevent suspicion.

The 21st of May, after at least one postponement, was fixed for the attack on the Castle. Blood's plan, which he had been nine months hatching, was for six men to enter by the main gate at six in the morning and make their

Failure of the plot.

Escape of Blood.

way to the back entrance in Ship Street, where some confederates were to be in waiting with a basket of bread. The loaves were to be dropped at the gate and in the confusion Blood was to rush in with 100 men and make himself master of the Castle. Nearly 300 old officers would be ready to clear the streets. The conspirators met about nine o'clock the night before at the White Hart in Patrick Street, where it was intended that there should be a large gathering before morning, but the landlady took fright and declared that if they did not disperse she would give the alarm to the Lord Lieutenant. This seems to have prevented the attempt, but Ormonde was already warned and prepared for any event. Blood escaped through Ulster and a proclamation appeared at once announcing the discovery of the plot, followed two days later by another, in which several conspirators were named and 100*l.* offered for the apprehension of any one of them. Many arrests were made, and the excited state of feeling may be gathered from what happened when the first batch of prisoners were arraigned. A soldier was killed by a musket accidentally discharged outside, and the fear of a rescue caused such a panic that the judges were near leaving the bench. Jephson was found guilty along with Colonel Edward Warren, Captain Thompson, and a Presbyterian clergyman named Lecky. The first three were executed a few days later, Jephson making a full confession and laying all blame on the vile Papists. Again there was an alarm and great confusion, the tradesmen beginning to shut up their shops, but the Sheriff and his guard restored order so that Warren's speech could be heard. He talked of the good old cause 'which now lieth in the dust and some days would have terrified the greatest monarchs.' Thompson also spoke, saying he was fooled by Blood, praying for the King and dying a Church of England man.

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The Rev. William Lecky, who was Blood's brother-in-law, feigned madness after conviction so that sentence of death could not be passed on him. He perhaps hoped that Massereene and Speaker Mervyn would be willing and able to protect him, but if so he was disappointed. After nearly six months' confinement he escaped out of Newgate prison disguised as a woman, his fetters having been filed off by two men also in female attire, but was caught again, sentenced, and hanged. His efforts to bring other Presbyterian ministers into the plot had little success, great as the discontent was. Many of them suffered detention, but only two, Andrew McCormick and John

Presbyterians only
slightly implicated.

Crookshanks, seem to have been really implicated. They fled to Scotland and were both killed at Rullion Green in 1666. The most important person affected in Ulster was Major Alexander Staples, by whose means the conspirators hoped to possess Londonderry. Staples was in prison for a year, but having been active in the King's restoration he received a pardon, and the same indulgence was extended to Shapcote, by whose example he had been guided. In Munster there was an attempt to tamper with the soldiers, but Orrery, with the help of his kinsman the Bishop of Cork, had no difficulty in dealing with the malcontents. In Connaught it was reported that Ludlow had actually arrived, and some suspected officers fitted out a ship nominally to search for the enchanted island of Brasil. They were taken at the Arran islands and discharged as 'ridiculously enthusiastic' dupes. Ludlow was at Vevay all the time, though rumours of his coming were rife long afterwards. He was in constant danger from Royalist assassins, one of whom, an Irishman named Riordan, ultimately succeeded in killing John Lisle.^[36]

Nothing caused more alarm among the Adventurers and the English generally than the judgment of the Commissioners declaring Antrim innocent. Much of his property was in possession of Massereene and of other soldiers and Adventurers who knew how to make themselves heard, and the case may have had something to say to the Castle plot. Within the meaning of the Act of Settlement Antrim was certainly not innocent, for he had lived long in the rebels' quarters, worked for Rinuccini against Ormonde, and afterwards been Cromwell's pensioner. He had, however, raised men who formed the nucleus of Montrose's force, though he did not go with them himself as agreed, and though the number fell far short of what he had promised. He had been ruined by his extravagance at Court long before 1641, and his creditors, some of whom were secured by a mortgage, naturally maintained that if the men in possession were put out their claims should be preferred to those of the nominal owner. At first there was no inclination to treat Antrim favourably, and when he came to London soon after the Restoration he was imprisoned in the Tower by the King's special order at the instance of the Commissioners of the Irish Convention, who impugned his conduct during the war, and he was also charged with having libelled the late King by suggesting his complicity in the Irish rebellion. His creditors would have arrested him if the Government had not. No evidence was offered, and at

The Marquis of
Antrim's case.

the end of March 1661 bail was accepted for his appearance before the Irish Council, Lords Moore, Dillon, and Taaffe being bound for him in the sum of 20,000*l*. He appeared in Dublin accordingly, was under restraint there for a short time, and was then bailed by orders from England. All the documents were forwarded and the case was committed by the Irish Council to Attorney-General Domvile and Solicitor-General Temple.^[37]

Charles had at first refused to see Antrim and showed no disposition to favour him. By the Act of Settlement he was placed on the same footing as Lord Netterville, who had to go before the Commissioners and failed to obtain a decree of innocence. Pressure in his favour was however applied by Queen Henrietta Maria, acting no doubt under the influence of Jermyn, now Earl of St. Albans. At first her advocacy had not much effect, and she was too cautious to write strongly in her own name though she entreated Ormonde to ‘forsake in part his own sense which will most singularly oblige her.’ She was above all anxious that the case should be entirely settled in England. Antrim had been sent to Ireland nevertheless, and when it was proposed to pass a special Act in his favour, Ormonde found his whole Council against it and declared that there was not the slightest chance of getting such a measure through the House of Commons. Moreover, Antrim had put in his claim of innocence. If he succeeded, no further legislation was wanted; if he failed, an Act to exonerate him would be unjust to other Adventurers and soldiers. An investigation was made by a Committee of the English Privy Council, of which both Clarendon and St. Albans were members. Ormonde and Anglesey, who best knew what could be said against Antrim, were absent in Ireland, and the report was favourable to him. The Chancellor, who admitted that he had always disliked him, did not think that he could be rightly condemned ‘except you have somewhat against him which we do not know; and that it is strange that you have never sent the information to us; for we know the King was not more inclined towards him than law and justice required.’ As it was, and in the absence of further information from the Irish Council, His Majesty wrote to them declaring his belief in Antrim’s innocency and desiring them to transmit his letters to the Commissioners. Several documents, he said, had been produced which showed that the late King was ‘well pleased with what the marquess had done, after he had done it, and approved the same.’ He added that Antrim’s English creditors were very unwilling to lose their

Queen Henrietta
Maria favours
Antrim.

security by leaving his great estate in the hands of Adventurers and soldiers 'who have advanced very small sums thereon.' The Lord Lieutenant and Council hesitated to transmit the letter to the Commissioners on the ground that the King had not all the facts before him, that Antrim had notoriously sided with the nuncio, prevented the Confederates from sending the stipulated 10,000 men to England, and opposed the peaces of 1646 and 1648. Antrim's friends at Court then procured a second letter from the King addressed to the Commissioners of Claims directly, but containing the same matter as the first, and so matters stood when the case came on for hearing. [38]

Rainsford presided in the Court of Claims, and wished to find Antrim innocent at once upon the King's letter only and without hearing any evidence. Dering objected to this, and the case proceeded, but Rainsford frequently interrupted saying that it was waste of time and that the letter covered all. At last it was proposed first to refer the case back to the King, then to adjourn it, and then to give further time for the production of the Council's answer to the King's letter. All these expedients were rejected by a majority and Antrim was adjudged innocent by four votes to three. According to the evidence he was clearly disqualified under the Act of Settlement which the Commissioners were sworn to administer, and their decree rested entirely on the King's letter. [39]

A King's letter held superior to an Act of Parliament.

At the moment of this trial Roger Lestrangle was appointed surveyor of the press, and his attention was very soon attracted to a pamphlet printed in London but sent from Ireland under the title of 'Murder will out,' in which it is maintained that 'the King's letter takes all imputations from Antrim and lays them totally upon his own father.' The writer, whose name has never become known, said he was a young man and may well have been one of the junior counsel present. There can be no doubt that Charles I. did often communicate with the Irish through Antrim, but there is no evidence of his complicity in the rebellion itself, though he may have been quite ready to use and increase Strafford's army and to make himself master of Dublin during the months preceding the actual outbreak. The pamphlet, however, made a great stir in England and was very useful to the extreme Protestant party. Charles was much in the habit of signing

'Murder will out.'

Antrim is restored.

important papers without knowing their contents, but he now had this important letter read over to him in full Council along with the hostile petition of the Adventurers and soldiers. Ormonde had already complained that the restoration of over 100,000 acres to Antrim would falsify all calculations as to the amount of land available, nor could he naturally be much inclined to favour the man who had thwarted him on every possible occasion during the Irish war. Ultimately Antrim regained his estate through a proviso in the Act of Explanation, repudiating the decree of innocence, and setting forth that the marquis had since pleaded guilty to prevent a new trial. Certain quit-rents imposed by that measure—and on such an enormous tract of land they must have amounted to a considerable sum—were granted by the King to St. Albans, and no doubt that was the reward for Henrietta Maria's interference. Her favourite is described by Evelyn as having 'lived a most easy life, in plenty even abroad, while his Majesty was a sufferer ... a prudent old courtier and much enriched since his Majesty's return.'^[40]

The first Bill of Explanation promoted by the Irish Parliament having been promptly rejected by the English Government, Ormonde and his Council were directed to prepare another. This was drawn by Rainsford and sent away at the end of September. Amendments to it followed a few days later, and Rainsford, who apparently had not had exactly his own way, sent over a separate draft by the same messenger. Consideration of the Bill was deferred until Sir Thomas Clarges arrived with these additional papers, but Richard Talbot gave out that the delay was his doing. Rainsford, Beverley, and Brodrick were sent for at once, and Churchill was allowed to follow at the end of the year. The Bill came before the Council in the middle of November, and was explained by Finch. Sir Nicholas Plunket was at once heard in reply, but admitted that the Solicitor-General had anticipated most of his objections. After this, though there was much discussion in Council, the Bill hung fire for months. Bristol's attack on Clarendon and the stress of parliamentary work generally delayed the despatch of Irish business and gave time for countless intrigues. 'There are very few,' Clarendon told Ormonde, 'who have spent a few months in Ireland and return hither who do not understand Ireland and the several interests there better than you.' All parties were heard by April 1664, and as Clarendon had long foreseen the King then found it necessary to send for the Lord Lieutenant. He went over accordingly in May, leaving his son Ossory as Deputy. Orrery reached

The Bill of
Explanation.

London about the same time, and for some months the scene of action was there, while Ossory kept Ireland quiet without much difficulty. ‘He is winningly civil to all,’ his grandmother wrote ‘and yet keeps that distance that belongs to his place, and manages his affairs with judgment and care.’^[41]

The Act of Explanation was not intended to alter anything in the Act of Settlement, but only to clear up doubts and supply omissions. Ormonde repeatedly declared that almost any permanent arrangement would be better than none, Ireland being a prey to uncertainty in the meantime. There was not land enough to satisfy everybody and it was necessary that each party should sacrifice something. In Ireland the English party had agreed to surrender one-sixth of what the Act of Settlement gave them, but the Irish agents in London thought this too little, and it was then arranged that 1,800,000 Irish acres of profitable land should be assigned to the English and the rest to the Irish. The latter being still dissatisfied, the English party consented to have the one-sixth raised to one-third, and upon that basis the Bill was settled by Finch with the help of a committee consisting of the Duke of Ormonde and of all the Irish Privy Councillors then in London, including Orrery and Anglesey, with the Commissioners of Claims excepting Smith, who seems not to have left Ireland. Clarendon wished the Bill to be strictly explanatory and opposed all provisos in favour of particular persons, as he had done in the case of the Act of Settlement, and all material alterations in the draft sent from Ireland. ‘To what purpose,’ he said, ‘is Poynings’ Act that all Acts shall be transmitted from thence hither if we under pretence of mending an Act shall graft new matter into it that hath not the least relation to the matter prepared there.’ Both he and Ormonde were opposed to such provisos. But he was overruled, for Charles’s good nature or indolence had induced him to give many promises, which had to be redeemed. ‘The first thing a King should learn,’ said Temple after some experience of the reigning monarch’s ways, ‘is to say No, so resolutely as never to be asked twice, nor once importunately.’ That lesson was never learned by Charles II., and the wrangle about the interests of particular persons continued for nearly a year after Ormonde’s arrival in England.^[42]

Object of the Bill.

Dissatisfaction of Clarendon.

The Act of Explanation contains 234 clauses and occupies 136 folio pages. Forfeited lands were vested in the Crown as before, but decisions actually given under the former Act were confirmed. There was, however, no attempt to provide for further decrees of innocence, the power to grant which had expired on August 21, 1663. There had been over 800 decrees, but Plunket and his friends alleged that 8000 cases had been unheard for want of time, and Finch allowed that there were about 5000 such claims, including several that had been entered twice. By the Act of Settlement officers and soldiers were protected as to lands in their possession on May 7, 1659, but some doubts had arisen as to whether this did not exclude those who had left the army between that date and November 30, 1660, and it was now decreed that there was no such exclusion. It was laid down that Protestants should be first provided for, 'of whom his Majesty ever had and still hath greatest care and consideration in the settlement of this his kingdom,' and all Adventurers, officers, and soldiers were confirmed as to two-thirds of what they had held at the former date. Protestant purchasers of land from the transplanted in Connaught and Clare were confirmed, but Adventurers who claimed under the doubling ordinances of the Long Parliament had to be contented with the equivalent of what they had actually advanced. Of the thirty-eight persons specially named as restorable in the Act of Settlement, seventeen had received nothing, the stock of land available for reprisals having been exhausted. To these were now joined sixteen who had been mentioned but less particularly in the former Act, twenty-one fresh names were added, and the whole fifty-four were declared entitled to their principal houses and 2000 acres of land adjoining them. Very many of the provisos to which Clarendon objected were nevertheless included. The administration of the new Act and of the 'matters of the former Act which remain in force' was entrusted to five members of the former commission, Chief Justice Smith, Sir Edward Dering, Sir Alan Brodrick, Sir Winston Churchill, and Colonel Edward Cooke. Rainsford, now a judge in England, and Beverley, a master of requests, were very obnoxious to the English party in Ireland and were not reappointed, ostensibly by reason of their official duties. It was not till May 1665 that the Act was ready for transmission to Ireland, where it might be passed or rejected but not altered.

Provisions of the
Bill agreed to.

The Court was at Salisbury in August 1665, and there the Great Seal was affixed to the Bill of Explanation. Business was at this time much interrupted by the plague, and some of the discussion had taken place at Sion House and Hampton Court. Ormonde set out about the middle of the month, stayed some days at Bristol, where as Lord Lieutenant of Somersetshire he was occupied in settling local disputes, and on September 2, having crossed the Severn at Gloucester and the Wye at Hereford, sailed from Milford Haven in the *Dartmouth* frigate, and after only eight hours at sea arrived at Duncannon next morning, where he found the Duchess and his two sons with their wives. The distinguished party were ill lodged and fed at the fort, whence they went to Waterford, and on the third day to Kilkenny, where the Lord Lieutenant stayed for six weeks. On October 17 he entered Dublin amid great rejoicings, the citizens marching in procession. The garrison were reinforced by a troop of mounted volunteers in handsome grey uniforms with scarlet and silver facings, mythological figures appeared at various points, and claret ran freely from a fountain in the Corn Market. Every available coach was in attendance, and when these vehicles were at last got out of the way fireworks were discharged in the streets. ^[44]

Ormonde brings the Bill to Ireland.

After the adjournment of the Irish Parliament on May 25, 1663, the recess was prolonged by almost innumerable prorogations until October 26, 1665, when the Houses were at last allowed to meet. In order to observe their temper Ormonde withheld the Bill of Explanation for some days, during which he ordered it to be printed, and the Commons at once took up the Castle plot which had been exposed after their last sitting. A committee was appointed who had the documentary evidence before them, and Robert Shapcote, the member of the House chiefly implicated, was twice heard in his own defence. The result was that he and six other members were expelled and declared incapable of sitting in any Parliament, their further prosecution being left to the ordinary course of law. The conspirators' declaration written by Blood was ordered, if the Lord Lieutenant should think fit, to be burnt by the hangman in the most public part of Dublin. The Bill of Explanation was read a first time on November 11 and a second time ten days later. Petitions were then presented from John Fitzgerald, Knight of Kerry, a Roman Catholic, and Captain John Magill of Down, a Protestant, whose estates were declared forfeited to the Crown by special words in the

The Bill in the Irish Parliament.

Bill. Counsel were heard at the Bar and the documentary evidence was referred to a select committee, who reported that the Knight was ‘a very well deserving innocent person’ and the captain ‘a very well deserving innocent Protestant.’ The House then resolved that they would entertain these cases after the Bill had been read a third time. Another committee was named to criticise the Bill, the chief doubt being as to the sufficiency of the vesting clause. Those who thought themselves aggrieved by the decisions under the first Act were determined to leave nothing to chance. The third reading was taken on November 29, and the House then proceeded to formulate its objections in the shape of a petition to the Lord Lieutenant.^[45]

The most important question raised by the Commons’ petition concerned the interpretation of words in the first clause, which vested in the King all lands ‘seized or sequestered by reason of the late horrid rebellion which began on October 23, 1641.’ Some lawyers held that it was necessary to prove in each case separately that the owner of land on that fatal day had been actually engaged in rebellion, a doctrine which shook the title of all the men in possession. There was also some doubt whether the new proprietors would hold their land in fee or as tenants for life, but the Irish judges had decided in the former sense. The Lord Lieutenant, first orally and then in writing, answered, promising that doubts should be decided in a manner agreeable to the parliamentary majority and to the intention of those who had passed the Bill, which could only be amended by a subsidiary Act. Any attempt at fresh legislation was dangerous where so many discontented persons were involved, and the rock was avoided by asking the opinion of the English judges on the first point. Ten of them, including Sir Orlando Bridgeman and Rainsford, the late commissioner of claims, held that the disposal of land within the meaning of the Act would of itself be good evidence that it was vested in the King, and that the burden of proof lay upon the party whose former property had been seized or sequestered. As to Fitzgerald and Magill, whose lands had never been seized but who were treated as if they had been, the House of Commons were of opinion that they were innocent—nothing having been proved or even stated against them. Counsel for the Knight of Kerry said their client was ‘of English extraction, never attainted, a matter rare in an Irish pedigree, but constantly loyal.’ In these hard cases Ormonde promised to do his best, and this was something more than a

Two hard cases.

common official answer since clause 159 provided that doubtful points might be decided by an order in council having the force of law.’^[46]

There was much discontent, especially among those who wished to fish in the troubled waters of a new Bill. It was, however, decided by 93 to 74 that the Lord Lieutenant’s answer was satisfactory, but a violent debate took place upon the question that the Bill do now pass. Strong language was hurled across the floor and many swords were half-drawn. The December sun set upon a scene of confusion, and when candles were called for they were quickly blown out by the opposition. Some shouted that what they had gotten with the hazard of their lives should not be lost with Ayes and Noes. Others called for an adjournment, and ‘between you and me,’ says an eye-witness, the members, who were hungry as well as angry, ‘wanted very little of going to cuffs in the dark.’ A spontaneous adjournment followed, but the Bill passed quietly two days later. A division was challenged by Archer Upton—who held some of Antrim’s land and lost all by his reinstatement—but he did not find a seconder. Orrery kept his men so well in hand that only one Munster member had voted in the minority, and he was a great advocate for the doubling ordinance. Churchill attributed the final triumph entirely to Ormonde, who ‘by an eloquence peculiar to himself seemingly unconcerned but certainly extemporary, so charmed their fears and jealousies that they that were most displeased with the bill were yet so pleased with the overtures he had made them that when it came to pass it had only one negative.’ It passed the Lords without a single dissentient voice.^[47]

Violent opposition
to the Bill;

but it passes
without a division.

FOOTNOTES:

^[29] State Papers, *Ireland*, July 18, October 24, 1662. The Commissioners are given in 15th Report of Record Commissioners (1825), p. 34. Act for enlargement of time, *Irish Statutes*, 14 & 15 Car. II. cap. 12 (Royal assent September 27, 1662).

^[30] *Irish Commons Journal*, February 10, 1662-3; Clarendon to Ormonde, February 28, in *Carte Transcripts*, vol. xlvii., and Lister’s *Life of Clarendon*, iii. 239.

[31] Speech of Sir Audley Mervyn delivered to the Duke of Ormonde in the presence chamber in Dublin Castle, February 13, 1662-3, in *Irish Commons Journal*, i. 617-630. The Speaker was ordered to have his speech printed and entered in the Journals.

[32] *Egerton MS.*, p. 789, gives all the decrees of the Court of Claims, January 13, 1662-3, to Friday, August 21, 1663—Innocent Papists 566, Innocent Protestants 141, Nocent 113. Mervyn's speech (14 folio pages) in *Irish Commons Journal*, February 10, 1663; Lord Lieutenant's letter, *ib.* March 10; proposed bills, *ib.* April 10. Ormonde to Clarendon, February 21, March 7 and 12, April 8, 1662-3, to the King, March 28, *Carte MSS.*, vol. cxliii.; Clarendon to Ormonde, February 28 and April 18, *Carte Transcripts*, vol. xlvii.

[33] Ormonde to the King, May 8, 1663, *Carte MSS.*, vol. cxliii.; to Bennet, *ib.* June 10 and August 22.

[34] A narrative by Sir Theophilus Jones, &c., *Trinity College MSS.*, f. 3, 18 (no. 47). This paper is unsigned but appears to be the original draft in Jones's hand. Account of the Irish Plot in *Ormonde Papers*, 1st series, ii. 251; Firth's *Ludlow*, appx. 450, 475. *Life and death of the famed Mr. Blood*, London, 1680. *The Horrid Conspiracy of impenitent traitors, &c.*, London, 1663.

[35] State Papers, *Ireland*, May-July 1663, particularly James Tanner's deposition, May 31, Sir George Lane to Bennet, June 25, and Robert Lye to Williamson, July 16. The last is a graphic description of the execution by an eye-witness. Lord Conway to Rawdon, November 18, 1663, in *Rawdon Papers*.

[36] Colonel Vernon to Williamson, July 1, 1663, in State Papers, *Ireland*; Lane to Bennet (with inclosure), *ib.* November 18; Pardons of Staples and Shapcote, *ib.* August 18, 1664. Patrick Adair's *True Narrative*, chap. xvii.; Reid's *Presbyterian Church*, chap. xviii.; Lang's *Hist. of Scotland*. Orrery to the Munster officers, May 25, 1663, in his *State Letters*, vol. i.; Sir Thomas Clarges to Ormonde, May 15, in *Carte Transcripts*, vol. xxxii.; Firth's *Ludlow*, appx. vi.

[37] State Papers, *Ireland*, from June 22, 1661, to May 8, 1662. Clarendon's *Life*, pp. 259-267.

[38] *Carte's Ormonde*, ii. 277-284. Clarendon's *Life*, Cont., 262-269. Clarendon to Ormonde, July 18, 1663, *Carte Transcripts*, vol. xxxii., and August 1, *ib.* vol. xxxiii. The King's letter of July 13 to the Lord Lieutenant and Council is in *Somers Tracts*, v. 626. Documents calendared, State Papers, *Ireland*, under August 22.

[39] Dering's notes of the evidence are printed in Hill's *Macdonnells of Antrim*, pp. 309-317, and the decree of innocence, *ib.* appx. 11. The decree is signed by the majority, Rainsford, Beverley, Brodrick, and Churchill. Dering, Smith, and Cooke, forming the minority, do not sign. Ormonde saw the danger of inferring that Antrim acted under the order of Charles I. Writing to Arlington on August 22, 1663, he says it was argued but too plausibly 'that the King may as well declare any of them who have most contributed to his restoration to be nocent ... without proof as my Lord of Antrim to be innocent against proof ... no security in an Act of Parliament,' *Carte MSS.*, cxliii. 164.

[40] Act of Explanation, clause 172, s. 99. Arlington to Ormonde, October 17 and 27, 1663, and January 30, 1663-4, in Tom Brown's *Miscellanea Aulica*, and

Ormonde's answer to the first, October 27, in *Carte MSS.*, vol. cxliii. *Murder will out*, published in London between August 22 and October 17, and reprinted in *Somers Tracts*, v. 624. Evelyn's *Diary*, August 18, 1683. Grant of quit-rents to St. Albans, State Papers, *Ireland*, December 15, 1665. For some of St. Albans' jobs see Carte's *Ormonde*, ii. 295.

[41] Bennet to Ormonde, October 27, 1663, in *Miscellanea Aulica*, and November 17 *ib.*; Clarendon, February 7, 1663-4, *Carte Transcripts*, vol. xlvii. Lady Thurles to Ormonde, December 17, 1664, *Carte MSS.*, vol. ccxv.; J. Hughes to Williamson, 1664-5, State Papers, *Ireland*.

[42] Clarendon to Ormonde, April 16, 1664, January 30 and March 18, 1665-6, *Carte Transcripts*, vol. xlvii. Carte's *Ormonde*, ii. 302, and Finch's report, *ib.* appx. no. 91. Temple's *Essay*, written in 1668. Clarendon's *Life*, Cont., 276, where one-third should be read for one-fourth.

[43] *Irish Statutes*, 17 & 18 Car. II. cap. 2, especially clauses 4, 5, 6, 148, 159. Finch's report in Carte's *Ormonde*, ii. appx. 91.

[44] Arlington to Ormonde, August 19, 1665, in *Miscellanea Aulica*. Sir Nicholas Armourer to Arlington, September 11, State Papers, *Ireland*. Robert Leigh to Williamson, October 18, *ib.* Carte's *Ormonde*, book vi. Armourer calls Lady Ossory 'the best woman in this world.'

[45] *Irish Commons Journal*, October 26 to November 29, 1665.

[46] The petition is in *Irish Commons Journal*, December 11, and Ormonde's answer in State Papers, *Ireland*, December 15. Opinion of the English judges, *ib.* February 15, 1665-6.

[47] *Irish Commons Journal*, December 16-18, 1665. Leigh to Williamson, December 16, State Papers, *Ireland*; Orrery to Arlington, *ib.*; Churchill to Arlington, December 27, *ib.*

CHAPTER XLIII

ORMONDE AND THE IRISH HIERARCHY

Loyalty to the Crown of England was Ormonde's leading principle, and this is the key to his eventful life. He surrendered Dublin to the Parliament rather than to the Irish because he regarded the usurping power as the State for the time being. Later on and in still more desperate circumstances he was forced to ally himself with the Roman Catholic clergy, but he steadily refused to destroy the value of the reversion, and events proved that it was impossible to reconcile the claims of the Vatican with those of a sovereign who was constitutionally the supreme head of an Established Protestant Church. The idea of a free Church in a free State had not yet dawned upon Europe, and when the monarchy was restored the legal position of the Roman Catholics remained as it had been before the civil war. After a short struggle, which revealed great dissensions among those who sought relief, the recusancy laws were left untouched.

Ormonde a
consistent Royalist.

At the Restoration the dispossessed Irish Roman Catholics, especially those who had followed the King's fortunes abroad, looked to Ormonde as the only man who might be willing and able to espouse their cause. As far back as 1653 Peter Walsh, Rinuccini's determined opponent, was licensed by the Irish Government to assist in enrolling and transporting 4000 men for the Spanish service on condition of ceasing while in Ireland to exercise his office as priest. Later on he was allowed to live quietly in London, and when Ormonde returned he wrote to him on behalf of his co-religionists. The letter was published in the following year, and Orrery answered it. Walsh

The Roman
Catholics at the
Restoration.

Peter Walsh and
Orrery.

argued that the Irish were covered by the indemnity promised in the peace of January 1649, but Orrery truly answered that it could not cover offences of later date, and that the articles in question had been generally infringed, particularly by the excommunication of Ormonde and his expulsion from Ireland. Walsh naturally maintained that the rebels of Ireland, considered as rebels, were much less guilty than those of England, that many had expiated their fault by repentance and faithful service, and that the innocent or at least penitent majority ought not to suffer for the crimes of a few. Orrery, on the contrary, urged that the Roman Catholics of Ireland had been in rebellion over and over again during the last three reigns, while the Protestants had defended the royal authority, and that Ormonde had understood the real bearings of the question when he surrendered Dublin; and later when he allowed the loyal Protestants to make terms with 'Ireton himself, esteeming them safer with that real regicide so accompanied than with those pretended anti-regicides so principled.' Even if he had wished it Ormonde could not have expelled the bulk of the Adventurers and soldiers who were in possession of the forfeited land. What he did do was to obtain tolerable terms for a great many Roman Catholics, and it may well be that it was not always the most meritorious who came best off. The Celtic population had begun the quarrel, and they were the least considered. Walsh himself was always inclined to draw a distinction in favour of the Anglo-Irish.^[48]

Richard Bellings, whose opposition to Rinuccini had been no less strenuous than Walsh's, left Ireland with Ormonde in 1650. He had married a Butler and was always on good terms with the head of that family. At Paris he was engaged in controversy with Bishop French, John Ponce, and others of the ultramontane party who did not forgive his hostility to the nuncio. His knowledge of papal diplomacy and influence among the Irish refugees abroad no doubt made him useful to Hyde, who befriended him after the Restoration, when he was at first in great difficulties. Early in 1662 Clarendon asked the King if he intended to 'allow Dick Bellings anything to live upon, or that he shift as he can.' Fox was thereupon ordered to pay him 400*l.* a year, and he ultimately got back all or most of his Irish property, though some difficulties were made about the merits of one who had been secretary to the council of rebels. In 1663 he was sent to Rome to solicit a cardinal's hat for Aubigny, and more privately to take what steps were

Richard Bellings.

possible to bring about an understanding between Alexander VII. and the statutory head of the Church of England. He failed in both objects but without forfeiting the confidence of Ormonde and Clarendon, neither of whom perhaps were fully in the secret. Evelyn met him at Cornbury in 1664, and both before and after his Italian journey he tried to help the Lord Lieutenant in his dealings with the Irish Roman Catholics. ^[49]

In the summer of 1661, when the Royal declaration was known but before the meeting of the Irish Parliament which was to make it law, Bellings wrote from Dublin to Ormonde, who was still in London and not yet Lord Lieutenant. The letter is essentially a plea for the Anglo-Irish who never sought foreign help as long as there was a settled government. There is not a word about the Ulster settlement, and the conduct of Borlase and Parsons ‘who favoured the party opposing his Majesty,’ is represented as the beginning of troubles. The new settlers, or most of them, were ‘the scum of England,’ and the result of their supremacy would be to people Ireland with ‘a generation of mechanic bagmen who are strangers to all principles of religion and loyalty.’ Ormonde’s connections and natural allies would be ousted and in time his own family would suffer. ‘The King’s faithful subjects, those who have followed his fortune abroad, all the ancient families in Ireland and among them your Grace’s kindred, your allies and friends will be made slaves.’ Ormonde had saved some and might save more, and he was reminded that the eyes of Europe were upon him. ^[50]

His appeal to Ormonde.

The Roman Catholics of Ireland had no share in the Restoration: that by a strange stroke of fortune was the work of their enemies, Coote and Broghill and the Cromwellian army. Three of their bishops were in Ireland at the moment and for some time after—namely, Edmund O’Reilly the Primate, Anthony McGeohagan, Clanricarde’s old antagonist, who had been appointed to Meath, and Eugene Swiney, who had driven Bedell from Kilmore. The first two were in hiding and the last was bedridden. There were also three vicars-general and the superiors of the Capuchins, Dominicans, and Carmelites; and Peter Walsh, who was in London, let these ecclesiastics know that they would be expected to congratulate the King and to declare their loyalty. They accordingly appointed Walsh their procurator with full powers and instructions on behalf of them all to kiss the

Peter Walsh appointed procurator.

sacred hands ‘of our most serene lord king Charles II.,’ to congratulate him on his restoration, and to solicit his favour. The least they thought themselves entitled to expect was his adherence to the terms agreed on (1648) between Ormonde and the Confederates. This paper was dated January 1, 1661, and received by Walsh eight days later. Other signatures were afterwards added, including those of Oliver Darcy, Bishop of Dromore, and Patrick Plunket, Bishop of Ardagh. Bishop French sent a proxy from Spain, and his representative signed the instrument of procuration in September 1662. ^[51]

Armed with this instrument, which does not appear to have been ever formally withdrawn, Walsh busied himself in London with endeavours to better the position of his co-religionists. With Orrery and Mountrath at the head of affairs little could be expected from the Irish Government, but he was able through Ormonde to bring influence to bear on the King, and procured the release of about 120 priests, many of whom had been long in prison, and this without distinction between the nuncionists and those who adhered to the peace of 1648. He opened communications with his brethren in Ireland, representing the necessity of their making some demonstration of loyalty. Bellings was in Dublin in the winter of 1661, and there drew up a paper founded upon a petition presented to the Long Parliament at the beginning of the troubles. The language closely resembles the English oath of allegiance but without clearly renouncing the Pope’s deposing power. The Roman Catholic clergy of Ireland set forth their hard case and the severe measures taken against them. In order to show how little they deserve such misfortunes they fully acknowledge the King’s sovereignty in all civil and temporal affairs and declare their readiness still to do so ‘notwithstanding any power or pretension of the Pope.’ They ‘openly disclaim and renounce all foreign power, be it either papal or princely spiritual or temporal’ pretending to release them from the obligations of allegiance. Irrespective of their religion all absolute princes and supreme governors are recognised as God’s lieutenants, and they repudiate the doctrine that it is lawful for a private person to kill the Lord’s anointed. In conclusion they maintain that their dependence on the see of Rome in no way interferes with the obedience due to their lawful sovereign, and they claim his protection in return. This document, without any signatures, was

A loyal remonstrance of the Roman Catholic clergy contemplated.

Signatures thereto.

conveyed to Walsh by Lord Fingall and communicated to Ormonde, who after two days' delay said that it might have been stronger but that it would nevertheless be acceptable if sufficient names were attached. As an anonymous paper it would be useless. The substance of the document was approved of by the King. There were in London at the time about thirty Irish priests, and of these twenty-four, including one bishop, Darcy of Dromore, affixed their signatures after two days' discussion. Others followed, both in London and Ireland. Four or five more objected to the expediency of the Remonstrance but not to its contents. Walsh and his friend Caron published pamphlets in the same sense, which at first were well received; and between London and Dublin 121 Irishmen of position, including twenty-one peers, signed the Remonstrance. But at the beginning of 1663 the movement had long been hanging fire, and Ormonde hinted plainly that those who expected favour should give their names without further delay.'^[52]

Primate O'Reilly was summoned to Rome in 1660, and arrived there at the end of 1661 soon after the Remonstrance was signed. He stayed three years, so that he knew, even if he did not inspire, the proceedings of the Roman Court in the matter. As a partisan of Rinuccini and opponent of the peace of 1648 he had been accused of being a firebrand, and the clergy of his province now testified in his favour as an earnest and devoted priest, who had suffered many things for denying the royal supremacy. Ever since his arrival in Ireland in October 1659 he had 'lurked in woods, mountain caves, and similar hiding-places, with no bed but straw or hay and a cloak thrown over it, without comforts, contented with coarse bread, butter and flesh, drinking beer, water or milk, without wine except for the sacrament, and all day without a fire.' He was careful not to commit himself by public utterances at Rome, but the action of the Curia was not long delayed. In July 1662, just as Ormonde was starting to assume the government of Ireland, Jerome de Vecchiis, the internuncio at Brussels, who had authority in the Irish Church, wrote to Bishop Darcy and to Friar Duff, who had also signed the Remonstrance, declaring that it contained propositions already condemned by the Holy See. Both letters fell into Clarendon's hands. Still more strongly, and on the same ground, did Francesco Barberini blame the Irish gentlemen in the name of Pope and

Primate O'Reilly
opposes the
Remonstrance,

which is
discountenanced at
Rome.

Propaganda. Before the year was out the theological faculty at Louvain condemned the Remonstrance, declaring that the guilt of sacrilege would rest alike on those who signed it in future or refused to revoke signatures already given. And this was significantly dated ‘on the day consecrated to the martyrdom of the glorious pontiff Thomas of Canterbury,’ formerly Primate of England.^[53]

Out of more than two thousand priests in Ireland, only seventy signed the Remonstrance, and but sixteen of these were of the secular clergy. Among the fifty-four Regulars all but ten were Franciscans. The lay signatures were 164. Even in his own order the majority soon appeared to be against Walsh, and ultimately agreed to a much weaker declaration of their own, which contained

The Remonstrance
hangs fire.

Royal and papal
claims found
incompatible.

no definite mention of the Pope and was at once rejected by Ormonde as inadequate. Having made but little progress in Ireland, Walsh went to London in August 1664, and shortly afterwards heard that the internuncio had come there secretly. A meeting was arranged ‘in the back-yard at Somerset House,’ De Vecchiis being accompanied by Patrick Maginn, one of the Queen’s chaplains, and Walsh by his friend Caron. In argument the Roman representative was perhaps no match for the two learned Franciscans, but he took his stand on the fact of the Remonstrance being condemned by the Pope. To the assertion that His Holiness had been misinformed, he answered angrily that he was the informant—*ego informavi*. Caron continuing to urge that the Remonstrance contained nothing contrary to Catholic doctrine; he answered, ‘so you think, but the Apostolic See thinks differently.’ He seems nevertheless to have really wished for some accommodation, and suggested that a papal bull might be issued ordering the Irish to obey the King on pain of excommunication. This was plainly inadmissible as it made civil allegiance depend on the Pope; and the internuncio then proposed that His Holiness should create as many bishops as the King chose to name, and that these prelates should have power to banish from Ireland all clergymen whom they found disobedient to their Sovereign. Walsh liked this idea better than the other, but objected that the King, if he was a Catholic, could appoint what bishops he liked, but that he was in fact a Protestant and that the Pope had condemned the oaths of allegiance and supremacy, while the clergy had to swear fidelity to him. Moreover, the King could banish rebellious subjects

without any help from Rome, and the total result of the proposed concordat would be to make ecclesiastics wholly independent of the Crown. The conference, which lasted three hours, ended in nothing as such encounters usually do, and De Vecchiis soon returned to Brussels, but afterwards made another effort in which he was assisted by Aubigny who still hoped for the red hat. Walsh and Caron were verbally invited over to Flanders, and to the latter a letter was sent inviting him to discuss the matter in dispute with his brethren at Brussels and Louvain, and describing the Remonstrance as a rock of offence (*lapis scandali*). Caron, who was ill and busy with controversial writing, refused to go, telling his colleague that he would not have done so in any case, for that the Court of Rome required a blind submission and no debate. Walsh was anxious to accept the invitation, and extracted Ormonde's unwilling consent, but the King forbade him to stir, and Clarendon reminded him that he was a marked man on account of his opposition to Rinuccini, that safe conducts might not be regarded in such a case, and that the fate of Huss might be his. Walsh then restated his case in two very long letters, and to these he received no answer.^[54]

Ormonde landed at Waterford on September 3, 1665, bringing the Act of Explanation with him. Father Maginn, who had been at the Somerset House interview, travelled with him, and went on to Dublin; while the Lord Lieutenant stayed at Kilkenny looking after his own affairs and waiting for the momentous law to be printed. Walsh had crossed by Holyhead and met Maginn, who offered to solicit subscriptions to the Remonstrance among his friends in the North, and went to Ulster for that purpose. He had but little success, and Walsh made up his mind that the only chance was a national congregation which he had opposed in 1662, chiefly on the ground that all previous assemblies of the clergy had ended badly for the Crown. The reasons which now weighed with him were the evident wish of O'Reilly and others to revisit Ireland, the prospect of war with France and Holland, and the probability that dangerous intrigues in Ireland would be defeated if the clergy could be induced to make a declaration of loyalty. Moreover, he fancied that he had himself gained influence and popularity by his answer to Orrery's pamphlet. Bishop Darcy was now dead, but Patrick Plunket, Bishop of Ardagh, who lived in Dublin with his brother Sir Nicholas, was willing to sign the letter of invitation, along with Patrick Daly, Oliver Dease, and James Dempsey, vicars-general of Armagh, Meath, and Dublin.

A congregation
summoned

Dempsey was very reluctant, but his letters demanding a national congregation in 1662 were produced and he submitted. There was a general desire to postpone the day of meeting, and this did not promise success. Walsh suggested February, but the winter was objected to. After Easter the clergy would be collecting their revenue for the year, and ‘because horse-meat would be then scarce, they insisted upon the 11th of June as a time when the weather being warm and grass of some growth they might travel with more conveniency.’ Walsh had to accept the date, though he foresaw that time would thus be given to the enemies of his policy at Rome. The letters of invitation were signed on November 18 but not sent out until February, and Archbishop Burke of Tuam, who was in Ireland but refused to attend, observed sarcastically that his summons had been a long time on the road. ^[55]

Walsh had offered to intercede with Ormonde for Archbishop O’Reilly. This was soon after the Restoration, and the Primate reminded the friar of his promise when he left Rome in 1665. After some correspondence O’Reilly addressed the Lord Lieutenant in a very submissive tone. He ‘was the publican standing far off and not daring to lift his eyes to heaven, who begged for a share of His Majesty’s unparalleled mercies and solemnly promised compliance with his will as became a faithful subject.’ If otherwise, he concluded, ‘who am I? but a worm, the reproach of mankind, the vilitie of the people, a dead dog, a flea.’ This was written before the Congregation was decided on, and after the invitations had gone out Ormonde gave leave to Walsh to let the Archbishop know that he might come home safely provided that he would sign the Remonstrance. Walsh transmitted this assurance in four separate letters, but only in the second did he mention the condition. O’Reilly expressly says that this second missive was never received by him, otherwise he would not have come to Ireland. As it was he wrote to Walsh wishing success to the expected gathering and enclosing a letter to the members. The latter was purposely left open, and Walsh never presented it, for it avoided any approval of the Remonstrance and suggested that they should devise a fresh one. Walsh, he said, nevertheless deserved thanks for his pains, and he proposed to subscribe 13l. towards the expenses out of his slender revenue. ^[56]

Ormonde, Walsh,
and O’Reilly.

Bishop French, as coadjutor to the Bishop of St. Jago, was living at Compostella in 1665 ‘well looked upon and enjoying a subsistence competent and decent for his quality.’ Having been a party to the Jamestown declaration, where all Ormonde’s supporters were excommunicated, and a prime mover in the invitation to Charles of Lorraine, he did not think it safe to visit Ireland without the Lord Lieutenant’s special leave. Charles II. had refused to see him at Paris. Walsh liked and respected him though their opinions were irreconcilable, and Ormonde admitted that he was ‘a good man, good priest, and good bishop, candid and without cheat.’ He justified the Jamestown proceedings though very civil to Ormonde personally, and regretting former strong language. In refusing to deny the Pope’s deposing power, he was, he said, supported by ‘seven saints, including St. Thomas, seven cardinals, one patriarch, three archbishops, ten bishops, and thirty-one classical authors with other eminent divines,’ and he challenged Walsh to match this array. Failing to find a passage from Galicia, he began his journey homewards by land, but a letter from Walsh reached him at St. Sebastian in which he was advised not to visit Ireland without having made a complete submission. Expressing surprise that leave had been given to O’Reilly and refused to him, he went on to Paris and thence to Belgium, where he spent the rest of his life. ^[57]

On June 11 the Congregation met as announced, the Remonstrance having been previously condemned by the new internuncio Rospigliosi and by Cardinal Barberini. Besides Walsh himself only three who had signed it were members of the assembly. The total number present were about sixty including many vicars-general and provincial heads of religious orders. There were but two bishops, Plunket of Ardagh and Andrew Lynch of Kilfenora. The latter was placed in the chair. Nothing material was done during the first two days, but on the evening of the second Primate O’Reilly came to Walsh’s rooms having just arrived from Flanders by way of England. He produced letters from Rospigliosi stigmatising Walsh and Caron as apostates and their supporters as a few nefarious brethren. The Primate was advised not to go to Ireland, and in any case to use all his influence against the Remonstrance. He came accordingly prepared to wreck the Congregation. At his first appearance there he claimed the chair as primate. Lynch refused to give way, and all the Armagh clergy followed their archbishop out of the room. An immediate dissolution seemed

The Congregation
meets, June 1666.

imminent, which was no doubt what O'Reilly wished for, but the chairman held his own, making a declaration that he claimed no supremacy, and matters were patched up for the time.

From the first it was evident that the Remonstrance would not be adopted, but it would take a good-sized volume to contain even a full abstract of Walsh's report.

The Remonstrance rejected.

Ormonde employed Bellings as his intermediary, and adhered to the position that the Congregation had met only to pass the disputed instrument, that a most

The Congregation dissolved.

unexpected chance had been given them of showing their loyalty, and that they would never have such another. No serious motion to that effect was made, nor would the Congregation entertain the negative proposition that the Remonstrance contained nothing contrary to the Catholic faith. They were also required to consent to six propositions of the Sorbonne, the theological faculty of Paris, promulgated in May 1663 and declared binding by Louis XIV. in the same year. The first three laid down that the Pope had no temporal authority over the King, who had no temporal superior but God, and that his subjects could not be dispensed from their allegiance on any pretext. The other three declared that the Pope had no power to depose bishops, that he was not above an œcumenical council, and that he was not infallible without the consent of the Church. The Congregation accepted the first three but rejected the others, and agreed to an act of recognition differing widely from the original Remonstrance. They expressed loyalty to the King and repudiated the doctrine 'that any private subject may lawfully kill or murder the anointed of God, his prince,' but did not mention the Pope nor abjure his authority, though they declared themselves bound to resist rebellion or invasion. Ormonde was not satisfied, and no further progress was made, but those signatories of the original Remonstrance who happened to be in Dublin made a final effort and expostulated at great length. The letter was drawn up by Walsh, though he felt it to be useless, and read out at the Congregation, but had not the slightest effect. It was signed by fourteen Franciscans, two Dominicans, and two secular priests. Oliver Plunket afterwards noticed that priests ordained at Rome did not sign the Remonstrance, its chief support being in France and Belgium. The assembly offered on two occasions to compensate Walsh for his trouble and expense since the Restoration, first by voting a sum of 2000*l.* and afterwards by proposing an annual subscription for three years. They also

declared their readiness to promote his interest at the Roman Court. Walsh refused all such offers, and the Lord Lieutenant, seeing that nothing could be got by further discussion, ordered the Congregation to dissolve themselves on the fifteenth day, and this was quietly done. ‘These twenty years,’ was Ormonde’s reflection, ‘I had to do with those Irish bishops, I never found any of them either to speak the truth or to perform their promise to me; only the Bishop of Clogher (Macmahon) excepted; for during the little time he lived after his submission to the Peace, and commission received from me I cannot charge him.’^[58]

On the evening of the fourth day Ormonde received Primate O’Reilly at the Castle. According to Walsh he was the only other person present, but O’Reilly says Bellings’ father was there also and took an active part in the conversation. It is not easy to reconcile the two accounts, but it appears from both that the Lord Lieutenant treated his visitor civilly and that no ground of agreement was found. When the Congregation separated, the members were free to go where they pleased except the three bishops whom Ormonde wished to see first. Lynch of Kilfenora, the late chairman, slipped away quietly to the Continent. Plunket of Ardagh after a few days was allowed complete liberty, and he remained in Ireland busied in ordaining a vast number of priests without much regard to their qualifications. In the meantime the Lord Lieutenant received information from London which caused him to detain Primate O’Reilly a little longer. Lord Sandwich, on his journey through Galicia to Madrid, had heard through Bishop French that O’Reilly was on his way to Ireland intending to give all the trouble he could. He was told to have no fear and was not imprisoned, but a guard of soldiers was told off to prevent him from communicating with those about him. Ormonde had no good opinion of him and reminded Clarendon that Arlington had intended to employ him as a spy but thought his services too dear at 500*l*. He was conveyed at his own request to England and thence to Calais in charge of city-major Stanley. On reaching Louvain he wrote to Walsh that he had been fairly treated, but in a very different strain to Rome. He made the most of his discomforts, which were no doubt considerable, and said that Stanley was perhaps as inhuman as the ten leopards of St. Ignatius, bishop and martyr.^[59]

Primate O’Reilly
and other prelates.

‘The proceedings at the meeting,’ said Ormonde more than fourteen years later, ‘are at large set down in a great book by Peter Walsh. My aim was to work a division among the Romish clergy, and I believe I had compassed it, to the great security of the Government and Protestants, and against the opposition of the Pope, and his creatures and nuncios, if I had not been removed from the Government, and if direct contrary counsels and courses had not been taken and held by my successors; of which some were too indulgent to the whole body of Papists, and others not much acquainted with any of them, nor considering the advantages of the division designed. I confess I have never read over Walsh’s book, which is full of a sort of learning I have been little conversant in; but the doctrine is such as would cost him his life, if he could be found where the Pope has power.’ This was written to his son, but he had said the same thing to Essex seven years before. No doubt his recall made a difference, but the Government had really very little to give, for all the revenues went to the Established Church and there was more to look forward to from Rome than from London. Many of Ormonde’s bitterest opponents found preferment abroad. He did indeed provide for Walsh to the end, and for Caron till his death just before the meeting in 1666. The Act of Explanation passed in the previous year made it impossible for him to make better terms even for Roman Catholic laymen. Walsh, who failed to make his party formidable, submitted to Rome just before his death, but to Burnet who liked and admired him he seemed ‘in all points of controversy almost wholly Protestant.’ He attended the Church of England service without scruple, and Evelyn, who met him at dinner at the Archbishop of York’s, says nearly as much as Burnet.^[60]

Why the
Remonstrance
failed.

FOOTNOTES:

^[48] Licence from the Irish Council to Peter Walsh, May 26, 1653, in O’Flaherty’s *West Connaught*, p. 423. Eighteenth article of peace, January 17, 1648-9, in *Confederation and War*, vii. 198. Walsh’s letter to Ormonde written in October 1660, but not published till after March 30, 1661, when the latter was made a Duke, and the answer published in 1662, before Ormonde’s arrival in Ireland, are both reprinted in Orrery *State Letters*, ii. 355.

^[49] Macray’s *Privy Council Notes*, Roxburghe Club. Notes in Nicholas’s hand, State Papers, *Ireland*, under July 20, 1661. Evelyn’s *Diary*, October 17, 1664.

[50] Bellings to Ormonde, June 1, 1661, in *Spicilegium Ossoriense* ii. 189. It was inevitable that Ormonde's friends and the Irish generally should blame him for not doing enough, see Foxcroft's *Supplement to Burnet*, pp. 60-62. The Plunket author of *A Light to the Blind* talks like Bellings of the 'Cromwellian scum of England,' and calls Clotworthy, Broghill, Coote, and the rest 'little fanatic scabs.' According to him Ireland really belonged to the Anglo-Norman Conquerors, being royalist and Catholic; the native Irish, having intermarried with them and remained Catholic, were of course loyal like them.

[51] Walsh's *Hist. of the Remonstrance*, pp. 4-6. O'Reilly wrote at this time that he was lurking 'nelle spelonche,' and McGeohegan 'in cavernis'—Brady's *Episcopal Succession*, i. 226, 239.

[52] Walsh's *Hist. of the Remonstrance*, i.-xii. 47. Ormonde to Walsh, January 26, 1662-3, *ib.* 94.

[53] Letter of Armagh clergy, December 13, 1660, *Spicilegium Ossoriense*, ii. 201. Letters of Card. Barberini and De Vecchiis, July 8 and 21, 1662, Walsh's *Remonstrance*, pp. 16-19. James Rospigliosi, internuncio in 1666, calls himself 'ministerium apostolicum cui res Hiberniæ incumbunt,' *ib.* p. 634. Louvain judgment, December 29, 1662, *ib.* p. 102.

[54] Peter Walsh to Essex, August 4, 1674, in his *Four Letters*, 1686, p. 3; *Hist. of the Remonstrance*, pp. 511-513, 530-533.

[55] *Hist. of the Remonstrance*, pp. 570-574, 602.

[56] O'Reilly's letters of August 31, 1665, and April 13, 1666, in *Hist. of the Remonstrance*, pp. 611-613. Writing to the Propaganda in the late autumn of 1666 he expressly says that he attended the congregation in order to defeat its object—'ad istam congregationem ... festinavi ut impedirem quominus noster clerus amplecteretur præfate Walchæi remonstrantiam, ut vocat, suæ fidelitatis erga Regem'—*Spicilegium Ossoriense*, i. 446.

[57] *Hist. of the Remonstrance*, pp. 618-625. Bishop French to the Pope, May 22, 1666, in *Spicilegium Ossoriense*, i. 449. French's Latin is better than his English for he uses such expressions as 'from them parts.' His great attack on Ormonde, the 'unkind deserter,' was not till 1676.

[58] The transactions of the Congregation are in *Hist. of the Remonstrance*, pp. 641-743, the French and Latin texts of the Sorbonne decrees at p. 660. The account given by the Rev. W. Burgatt, a hostile member of the Congregation, does not materially differ from Walsh's, *Spicilegium Ossoriense*, i. 440. Ormonde to Clarendon, June 9, 1666, and to Arlington, June 13, State Papers, *Ireland*. On July 7 Clarendon wrote: 'If I were you I would expel all the priests out of Ireland who refuse to subscribe the declaration, and to my understanding if you consent to the least alteration, how insignificant soever, you overthrow the whole and absolve all who stand now obliged by the subscription.'—*Carte Transcripts*, vol. xlvii.

[59] *Hist. of the Remonstrance*, pp. 744-749. O'Reilly to the Propaganda, *Spicilegium Ossoriense*, i. 448 (Latin). Sandwich left Portsmouth, March 3, 1665-6, and reached Madrid May 26, and these dates fit in with Walsh's account. Ormonde to Clarendon, June 9, 1666, State Papers, *Ireland*.

[60] Ormonde to Arran, December 29, 1680, in Carte's *Ormonde*, ii. appx. p. 101, and to Essex, December 9, 1673, in *Essex Papers*. Burnet's *Own Times*, i. 194, 195. Evelyn's *Diary*, January 6, 1685-6.

CHAPTER XLIV

GOVERNMENT OF ORMONDE, 1665-1668

It was not surprising that there should be some difficulty about the Acts of Settlement and Explanation, since the private fortune of every member was concerned. But in other matters Ormonde had little to complain of in the behaviour of the Commons. When he informed them that France had joined hands with Holland, and that warlike preparations were going on in Brittany which might be meant for Ireland, the House made a solemn declaration of loyalty and promised eight subsidies of 15,000*l.* each. Twenty subsidies in all appear to have been granted by this Parliament. The royal assent to the money Bill and to the Bill of Explanation was given on the same day, and Ormonde made a speech in which he congratulated Parliament in having at last ‘got into the prospect of a settlement.’ He apologised for having practically confirmed much of what had been done by the late usurping Government, adding with grim humour that justice was sometimes done by unjust men, ‘Ireton at Limerick having caused some to be hanged that deserved it almost as well as himself.’ Of the later Acts passed by this Parliament, the most important was that for religious uniformity. Knight service and the Court of Wards had been already abolished, and hearth-money permanently settled on the King in compensation. Ormonde kept the Parliament in existence until August 1666, the time being largely occupied in disputes between the two Houses. The Commons claimed the right to sit at free conferences, but the Peers would not allow it.

Ormonde and his Parliament.

Disputes between Lords and Commons.

‘Gentlemen,’ said Lord Drogheda, ‘you would all be lords.’

‘Another rebellion,’ replied Mr. Adam Molyneux, ‘may make us so as well as a former made your ancestors.’ Both Houses having appealed to the Lord Lieutenant, he reminded them that Strafford, who had long parliamentary experience, had recorded in Ireland that the English Commons stood uncovered at conferences. He dwelt on the danger of breaking ‘any ancient custom and practice,’ but the Commons were obdurate and declared that all the Irish precedents were in their favour. Having secured the legislation he wanted, Ormonde then decided to dissolve. Indeed the privileges of Parliament had become an intolerable burden. Scarcely any debts could be recovered, and the salaries of members, though all did not take them, came to nearly 100*l.* a day. An attempt was made to remedy these abuses by law, but it came to nothing. A Bill of Indemnity on the English model had been discussed at intervals since 1661, but without much enthusiasm, and the Parliament came to an end without passing any such healing measure. On August 6 the Lord Lieutenant proceeded in state to the House, sent for the Commons, underwent a long speech from Speaker Mervyn, and gave the royal assent to the subsidy and some other Bills. The Lord Chancellor then thanked the Houses for their services in ‘a most learned and eloquent speech,’ and dissolved them, to the great joy of thousands who had suffered in pocket from their protections and privileges. No legal Irish Parliament met again until 1692.^[61]

Parliament had been liberal in granting subsidies, but it was hard to collect the money, and not more than 60,000*l.* could be reckoned on in any one year from this source: 164,000*l.* had been remitted from England since the Restoration, but large arrears were still owing to the army. The annual cost of Government was about 190,000*l.*, and there was a deficit of some 37,000*l.* a year. Even with the greatest economy Ormonde did not see his way to do without 30,000*l.* a year from England. The restraint upon the cross-Channel trade in fat cattle had made matters worse, for the usual cash return was not made, and there was an actual scarcity of coin in Ireland, so that it was almost impossible to make any payments in ready money. The garrison of Carrickfergus exhausted their credit in the town, and were irritated by stoppages for the insufficient clothing supplied to them. The first outbreak, in January 1666, was easily suppressed; but the officers, who knew the sufferings of their men, were not supposed to have behaved very well. In May a large sum of

Financial difficulties.

Soldiers mutiny for their pay.

subsidy-money was brought into Carrickfergus for transmission to Dublin; but the soldiers of four companies swore that it should not be removed until they had received nine months' pay; and the townsmen, who saw some chance of shop debts being settled, sympathised with them. The mutineers were not above 200, many of whom surrendered to Lord Donegal, the governor; but there were enough left to hold the town, as they threatened to do, until they were paid. Of four captains, only Captain Butler was on the spot, the others being on leave. The chief ringleader was Corporal Dillon, but the non-commissioned officers were generally staunch. The statement of grievances was drawn up by illiterate men, and Lord Donegal's representative found them 'so drunk that no one can make them understand any reason ... mighty hot in their ale.' As soon as the news reached Dublin, Ormonde sent off ten troops of horse by land and 400 men of the Guards under his son Arran. He himself rode to Dundalk in one day, and to Hillsborough on the second. Before he could reach Belfast, Arran had already landed, in spite of bad weather, forced the wall, driven the mutineers into the castle, and seen Dillon killed. He refused all terms, and six hours after his landing, the garrison surrendered at discretion. One hundred and ten men were tried by court-martial and found guilty, for there could be no doubt of the facts. Ten were selected for execution, and nine actually suffered. The rest were conveyed by sea to Dublin, and Ormonde at first intended to send them to the West Indies, but they begged to be allowed to redeem their offence, were formed into a separate company, and afterwards did good service. Ormonde had many enemies at Court, but Clarendon said that in his opinion, at least, the mutineers had not been too severely treated. ^[62]

Theoretical claims of the English Parliament notwithstanding, internal affairs were subject to the local legislature. In commercial matters, however, the power of the larger kingdom was unquestioned. Whatever benefit could be derived from Cromwell's Navigation Act was shared by Ireland, and there was free trade between the two islands. But after the Restoration Irish members came no more to Westminster, and the usurper's enlightened policy was abandoned. In 1663, by the 'Act for the encouragement of trade,' as it was absurdly called, Ireland was excluded from the colonial trade, and the importation of Irish cattle into England was forbidden between July 1 and December 20 in each year. All depended on grass, for the days of turnips

Exclusion of Irish cattle.

and feeding cakes were still far off, and this was the season when stock were in good condition. A fine of 20s. was imposed for every beast landed notwithstanding, half to the King and half to the informer, for the influx of Irish fat cattle was considered 'of infinite prejudice to most counties in England.' Among the peers Anglesey only protested, and he had a strong case, though his first reason was the amazing one that the Act allowed free export of money and bullion which the wisdom of our ancestors had always restrained. But he also maintained the rights of people in Ireland 'they being by law native Englishmen but debarred from the English markets,' thus giving a monopoly to some of the King's subjects to aid ruining others. It was erroneously supposed that English rents were depreciated by Irish cattle. Petty showed how impossible it was for imported cattle, whose gross value was 132,000*l.*, to affect seriously a rental of 8,000,000*l.*, which had fallen by one-fifth. Pepys more truly attributed the depression of agriculture to the low price of wheat. Shaftesbury, though he swelled the partisan chorus against Irish cattle, told the King that the mischief was really owing to depopulation, the plague and the Dutch war having added at least a quarter of a million to the normal number of deaths. There was also a constant stream of emigrants to the American colonies, where they might 'enjoy the liberty of their mistaken consciences.'^[63]

In spite of remonstrances from the Irish Government, the Act for excluding fat cattle came into force on July 1, 1664, and was to continue till the end of the first session of the next Parliament, which did not, in fact, meet for many years. Another question affecting Irish trade then became prominent for a time. The trade with the Canaries was entirely in the hands of the English, who had 'an immoderate appetite' for the wine, and the islanders therefore obtained very high prices. Certain London merchants represented that these prices would be reduced by giving them a monopoly, and though there was much opposition, a charter was granted in March 1665, followed by a proclamation in May. Promoting the privileges of the Canary Company was afterwards made an article of impeachment against Clarendon, and it was said that he received a bribe of 4000*l.* He admits having favoured the grant and received a present, but with the King's knowledge and approval, and he says that every preceding Chancellor had done the same in like case. One object of the monopolists was to prevent a direct trade between Ireland and the islands carried on in part by enterprising Jews who worked the business

The Canary
Company.

from Dublin. The question had been discussed and the charter granted before Ormonde left England, but when he was ordered to issue a proclamation as in England, the Irish merchants at once protested. In those days cash payments for foreign goods were considered a drain upon the national wealth, and England had to balance her account with Canary by sending out specie, whereas the meat, fish, butter, leather, pipe-staves, and frieze sent from Ireland exceeded the value of the wine, the difference being paid in pieces of eight. As to the liquor being dear, Ormonde said that ‘if men will drink canary they should pay for their delicacy, and whatever they shall so pay is spent among us.’ He was ready to obey the King’s positive commands, but on no other ground would he consent to deprive Ireland of her most lucrative trade. In September 1666, he had to issue the proclamation, but the plague, the fire, and the Dutch war were all against the monopoly. The Spanish authorities gave every possible opposition, interloping merchants were allowed to compete, and in the end the company were fain to surrender their charter, which was much disliked by the English House of Commons. Ireland imported some 2000 pipes of Canary wine annually, but it is not improbable that some of this found its way to England, as the defeated monopolists asserted. ^[64]

The plague followed the Court to Salisbury and drove Charles to Oxford, where Parliament sat for three weeks in October 1665. Clarendon says that the members, for want of time and fear of contagion, ‘rejected all other businesses but what immediately related to the public,’ one of which was the atrocious Five-mile Act. Ormonde had hoped that the restrictions on Irish cattle might be repealed, but quite a contrary spirit prevailed, and a Bill for total prohibition passed the House of Commons. The first Act had been freely evaded, and a much more stringent one was called for. The King had no wish to be unjust unless it was very inconvenient to be just, and the Lords, not being subjected to Court pressure, held the Bill over until the prorogation. When the Houses met for business at Westminster nearly a year later, the question soon came up again. Pepys says the Prohibition Bill was the work of the western members, ‘wholly against the sense of most of the rest of the House; who think if you do this, you give the Irish again cause to rebel.’ The event, however, showed that the majority was the other way, and that it included the northern counties, but others, particularly Norfolk, Suffolk, and Kent, whose business it was to feed, and not to breed,

Question of prohibiting Irish cattle.

made the Irish cattle welcome. The larger towns, whose interest it was to have cheap meat, had little power, and both landlords and farmers were generally against Ireland, the former because they thought low prices affected their revenue, and the latter because their produce was subjected to competition. Sir William Coventry, whose character was much better than that of most contemporary public men, threw his weight into the scale against Ireland, persuading the King that he would get no supply if the Commons were thwarted, that their fury would soon burn itself out, and that the rejection of the Bill could then easily be compassed in the House of Lords. Coventry's judgment was certainly not infallible, for it was his advice that made the Chatham disaster possible. But Clarendon was strongly opposed to the Cattle Bill, and animosity towards him may have affected the action of the younger statesman. Finch, the Solicitor-General, eloquently opposed the Bill at every stage, and Anglesey was sent to London to present the case of the Irish Government against it.^[65]

The fire of London was a calamity of such proportions as in modern times would arouse the sympathy and perhaps excite the generosity of the whole civilised world. Ninety years later England gave 100,000*l.* to the sufferers from the Lisbon earthquake. Even in 1666 it was natural that Ireland should wish to help, and it was proposed to send over 30,000 head of 'our proper and indeed our only coin.' Instead of receiving the thanks of the House of Commons, this gift inflamed its fury, and was looked upon as a trick. The houseless citizens begged that they might be allowed to enjoy the supply, but the cavalier squires reviled them for their selfishness, and the pressure upon the reluctant Lords was increased. With much difficulty the Commons were induced to allow the importation in the form of salt beef, but under such restrictions that the city was not likely to profit much. Buckingham, who had neither conscience nor shame, and whose own rents had been reduced, saw that popularity was to be gained at the expense of Ireland, and Ashley, who knew better, found his account in fanning the flame. He excused himself in private by saying that he was in favour of a legislative union under which neither island would have power to hurt the other. In debate the Achitophel of Dryden's great satire could find no better argument than that the rejection of the Bill would cause Irish rents to rise as those of England fell, and that the Duke of Ormonde would soon be richer than the Earl of Northumberland. Ormonde's prosperity might indeed excite the

Irish cattle worse
than starvation.

envy of many who did not choose to remember that his loyalty had endured exile and penury while they lived at home at ease under the Protector. Some thought that Ashley was anxious to be Lord Lieutenant himself, but of this there does not seem to be much evidence. Ossory, whose temper was hot, and who was enduring great provocation, reproached the future Chancellor with having been one of Cromwell's counsellors, for which he had to apologise in the House of Lords; but most readers of history will nevertheless sympathise with him.^[66]

The Duke of Buckingham hated the Chancellor, who stood in his way. He also hated and envied Ormonde, whose fiery son resented his insinuations, so that lookers on foretold a quarrel. At last Buckingham said in debate that anyone who opposed the Cattle Bill must have an Irish estate or an Irish understanding. Mindful of the mistake he had made in Ashley's case, Ossory forebore to answer, but a conversation outside led to a challenge, which Buckingham accepted, though he was thought to have taken good care that there should be no meeting. Ossory denied that he had intended to fight on account of words spoken in the House; Arlington and the Duke of York, who were both interested in Irish land, testified that the quarrel was of long standing. The challenger was sent to the Tower and his adversary committed to Black Rod's custody, but they were soon released. Buckingham's arrogance at this time was such that he suffered detention a few days later for a scuffle with the irascible Lord Dorchester in the House itself. Ormonde admitted that the Lords had dealt fairly with his son, and thanked Arlington for taking a friendly part in the matter.^[67]

The Bill as introduced applied to Scotland as well as to Ireland, but this was altered after much discussion, and the final struggle was as to whether Irish cattle should be declared a nuisance. The word was insisted on by the Commons because it was thought likely to secure strict administration, since the King could not very well favour what he had himself declared to be a public nuisance. There were many conferences between the two Houses, but the Commons stood stubbornly by the obnoxious term. The Lords were willing to join in a petition to the King not to grant any licences, but the Lower House, by 116 to 57, voted to adhere to their word. If Charles had remained firm, he might have carried the peers with him, but he wanted money too badly. Some advised a dissolution, but he could hardly hope for a better House of

Irish cattle voted a public nuisance.

Commons than one which contained nearly a hundred placemen and pensioners, and which was still stirred by the loyal tempest of 1660. Having been at first the strongest opponent of the Bill, he became its most strenuous supporter. Sir George Carteret, the King's Vice-Chamberlain, was thought to have been chiefly instrumental in converting his master, who made it a personal matter with peers to swallow the word Nuisance, his conduct, in Clarendon's words, 'giving those who loved him not great argument of triumph, and those who loved him very passionately, much matter of mortification.' Between fear and favour the Lords yielded, and four days later the Bill became law. The Poll Bill, which was the price of the King's surrender, received his assent at the same time. Charles soon prorogued Parliament, telling the Commons that their session had borne little fruit, and that it was high time for them to be in the country. Eight peers protested against the Irish Bill, chiefly on the ground that the importation of cattle was no nuisance, and that the word was professedly introduced to limit the dispensing power, 'a just, necessary, and ancient prerogative inherent in the Crown,' as a means of dealing with unforeseen emergencies.^[68]

Ireland, said the Irish Government while there were still hopes of stopping the dreaded Bill, 'is a country generally proper only for breeding and grazing of cattle, which, with what commodities proceed from them, are their chief merchandises.' Gookin, the friend of Ireland, said the same thing many years before. So it had always been, and so it is likely to remain, for there is no finer cattle country in the world. The winters are so mild that the beasts need not be housed, while the grass begins earlier and lasts longer than elsewhere, but corn suffers from the abundance of rain and the want of sunshine. A time came when Irish rents were raised by high protective duties on grain, the mass of the people living on potatoes, and suffering annually between the old crop and the new. There were many Irish famines before 1846, but they are forgotten. When the potatoes failed and the duties were abolished the area under corn gradually shrank, and the production of meat again became the national and natural industry. The evils foretold by Ormonde and his advisers followed upon the restrictive legislation, and cattle became a drug on the market. Efforts were, however, made to continue the trade, since the Act which forbade importation into England had no force to prevent exportation from Ireland, and the extreme

Irish cattle totally prohibited

cheapness of the stock was a great temptation. By the Act such cattle might be seized unless they were declared on oath to be of British origin, half the proceeds of sale going to the informer and half to the poor of the parish. But the speculators sometimes compounded with the churchwardens beforehand, and the smuggling went on, though the risks attending the traffic were so great that no perceptible relief was given to the Irish stockmasters. An amending Act was passed next year which made the ships liable to seizure and the sailors to the common gaol. Even then the possibility of great profit tempted the blockade-runners. There had always been a trade between Ireland and Minehead, and a struggle was made to maintain it. 'So little,' says a local historian, 'were the wants of the poor or so considerable were the forfeitures that in the year 1675 an accumulated surplus sum of about 500*l.* was in hand, and then laid out in the purchase of a freehold estate in the parish of Ottery St. Mary, which estate still retains the name of the Cow-lands.' The proceeds of this investment are even now applied on each New Year's Day to a distribution of blankets, and this is always called the Cow Charity.^[69]

The trade with England in fat cattle having been destroyed by the Act of 1663, Ireland was full of young stock which the Act of 1667 left upon their owners' hands. They were excluded from Scotland as well as from England. The immediate loss was of course very great. Many tenants deserted their holdings, and rents were everywhere hard to collect. The contraband business did not pay very well, but foreign ports were open, and the great Dutch market seemed to offer the easiest remedy. Very little hay was made in Ireland, and the young animals, half starved in winter upon withered grass, were in no condition to thrive on the spring herbage. The meat was too soft to salt well, the curing was ill done, much of it was uneatable when landed and had to be destroyed. Hides were sold by weight, which was increased by exporting them dirty, so that the credit of the trade was low. Butter was badly and dishonestly packed, making a good show at the ends of each firkin, with inferior stuff in the middle, and even stones sometimes. But the Irish stockholders were quick to learn. They kept their bullocks until age made them fit for salting, and two years after the passing of the prohibitory Act some of their beef reached Holland in as good condition as English produce, while their butter was even better. The second Dutch War interrupted the trade for a time, but it was resumed later, and England by

Evil effects of the exclusion policy.

denying a market to Ireland had only succeeded in creating a formidable competitor abroad.^[70]

English rents were not raised by the interruption of the cattle trade; for even the breeding counties lost more on their wool than they gained on their calves, Irish landowners having turned their attention to sheep. By English statutes passed since the Restoration it had been made felony to transport wool from England or Ireland to Scotland or to any country outside England. When Charles tried to repair the loss to Ireland, it was not thought possible to make wool free. The King's power to pardon a felony was not disputed, but even prerogative lawyers doubted whether it could be done before the fact. The restrictions were imposed in the manufacturers' panic caused by Dutch competition, which was successful partly on account of cheap Irish provisions; but Petty thought such exorbitantly 'fierce ways of prohibition' might do twice as much harm as the trade was worth. England suffered by her own legislation, which promoted a glut in the market, for Irish wool was produced so cheaply that it could be sent over Channel in vast quantities in spite of the heavy licence duty. English flockmasters were injured, but the profit to Ireland was small. Irish wool was good, and better prices were to be had from foreigners, so that smuggling was found to pay well, and a trade was begun which reached vast proportions in later days.

The woollen trade.

Ireland was thinly peopled, but there was so little employment that labour was cheap, and there was plenty of available land. English commercial jealousy was thus excited, and the House of Commons forgot that they were really dealing with the Protestant settlers and showing them how to seek support from other and perhaps hostile nations. The Roman Catholic majority had always done so, and would do it again when opportunity offered. Petty saw that a legislative union was the only real solution of the problem, for without it the colony was starved, while the natives were at the mercy of those who had supplanted them. In the meantime he wrote in 1676: 'It is wonderful that men born in England, who have lands granted to them by the King for service done in Ireland to the Crown of England, when they have occasion to reside or negotiate in England should by their countrymen, kindred, and friends there, be debarred to bring with them out of Ireland food whereupon to live, nor suffered to carry money out of Ireland, nor to bring such commodities as they fetch from America directly

home, but round about by England with extreme hazard and loss, and be forced to trade only with strangers and become unacquainted with their own country; especially when England gaineth more than it loseth by a free commerce.' The prohibition of cattle alone had destroyed a carrying trade which employed one hundred English ships, and things became much worse when the bulk of Irish wool was smuggled away in foreign bottoms.^[71]

As soon as the Cattle Bill became law the Irish Government addressed the King with a view to lessening its effects, Anglesey, Burlington, and Conway, three of the protesting peers, being authorised to press the case in London. They told the King that Ireland was ruined by the exclusion of her stock from England and Scotland, that the people, being deprived of their usual occupation, were driven into rebellion, that the revenue would suffer, and that the means of repelling foreign invasion would be taken away. They suggested as a remedy that Ireland should be allowed to export freely to foreign countries, and to keep out Scottish goods till such 'times as the restraint upon Irish cattle and commodities in Scotland be taken off.' This would keep a little money in the country, and repress 'the luxury and humour of the people after outlandish commodities.' In the meantime it would be necessary to send 50,000*l.* in specie from England to pay the army and defray the expense of government. In a little more than a month after the three lords presented their memorial Charles took steps to defeat by a side-wind the law which he had insisted on making in its worst form. The matter, he said, had been several times discussed at the Privy Council, with whose advice he granted much of what Ormonde and his friends asked for; believing that Ireland, exhausted as she was by long wars, could not do without trade, and that her loyalty deserved all the tenderness and care that he could show. But the people were to be encouraged to avoid the consumption of luxuries that could not be produced at home. The restraints upon exportation from Ireland to foreign parts were therefore taken off, saving the rights of the Canary, Turkey, and East India Companies, and subject to the existing law about trade with the Plantations. The Lord Lieutenant was empowered to grant licences accordingly, and the Duke of York, as Lord High Admiral, was directed to grant the necessary passports. Ormonde lost no time in issuing a proclamation giving effect to the King's orders, and excluding all the commodities of Scotland as a measure of retaliation. Anglesey as vice-treasurer would carry over the necessary 50,000*l.* Proclamations were made

Ireland retaliates on Scotland.

and licences issued without much delay, but the money was long in coming.
[72]

When England came to be at war with both France and Holland at the beginning of 1666, it was natural to suppose that there might be danger of a descent on Ireland. Orrery, who was an alarmist, thought there would be a rebellion; and he dreaded the sectaries and Presbyterians almost as much as the more numerous natives. Ormonde, who always kept cool, had little fear. There were indeed plenty of disaffected people, but they were not united, and he thought that the Government would always be too strong for any discontented party. As the spring came on, the Duke of Beaufort's fleet was thought to be dangerous, and there were signs that Ireland was not forgotten by the French. In April one of their men-of-war entered Kenmare Bay, took soundings, and explored it thoroughly while three others lay outside. A little later on an Irish vessel from Galicia came into the Shannon with the usual cargo of fruit and soap, but twelve pieces of heavy ordnance were found in her hold. In June thirty-nine vessels came into Kinsale together; they had been reported long before they reached the coast and were generally believed to be French, but proved to be the Virginia fleet. Orrery did not believe in the landing of a great French army, for the game would not be worth the candle, and the country could not support it. A small force might, however, be sent as a nucleus round which Irish disaffection could gather. Cork harbour and many smaller havens lay practically open. The Tories were always available to keep the small army in Ireland busy, and a Dutch cruiser plying between Waterford and Youghal carried off a cargo of cattle to France, which showed how imperfect were the naval preparations of England. Irish gunsmiths were at work in many places, and it was not to be supposed that this was for any good purpose. Most of the Protestants had been disarmed after the plot in 1663, and indeed many of them were hardly to be trusted, but Orrery did not believe that any except a few really damnable fanatics would join a foreign invader and so play into the hands of Irish papists. But the uneasiness was general, and whenever a few sail were descried they were declared to be part of Beaufort's fleet. [73]

First Dutch War. A descent feared.

While thinking an invasion improbable, Ormonde nevertheless considered it necessary to be prepared, and the most obvious precaution was a militia. About 16,000

Ormonde's military precautions.

foot and 4000 horse would be enough, but there was no statute available as for the trained bands in England and therefore no means of defraying the expense. Something was got by the sale of prizes taken by King's ships in the Irish seas, and some money was afterwards sent from England; but it was not intended to keep the militia embodied when the immediate crisis had passed. Orrery, who had been urgent in recommending a militia, took care that in his province no man should be enrolled without taking the oaths of allegiance and supremacy. The old soldiers of the Parliament were available in large numbers. When this work of armament was well advanced, Ormonde determined to visit Munster himself, since that was the quarter most open to attack. In inviting him to his new house at Charleville, Orrery, who knew his tastes, promised him a boiled leg of mutton daily. Mallow was then the only bridge over the Blackwater, that at Cappoquin not having been repaired since the war. At Limerick, whence he had been so obstinately excluded in 1650, the Lord Lieutenant was welcomed with all possible honour, the satisfaction of the citizens being expressed by the recorder in an eloquent speech. At Cork his reception was equally good, Bishop Synge providing comfortable quarters, and at Kinsale he was entertained by Robert Southwell, and saluted by forts and shipping, including the Mediterranean merchant fleet, which had just arrived with cargoes of currants and oil for England. They had not seen a ship since leaving the Straits of Gibraltar except one hostile cruiser off Cape Clear which fired forty shots without disabling any vessel. After giving orders to the sovereign of Kinsale as to keeping the channel open, Ormonde returned to Cork, whence he went by Youghal and Clonmel to his own house at Carrick. He believed that unless the enemy got command of the sea an attempt to invade Ireland would be 'as fatal to them as once Ireland was to the Spaniards or Gigery to the French. All the countries I have passed through have appeared with good numbers of serviceable horse with old soldiers on their backs and good officers in the head of them, and if the proportion holds, as I doubt not it will, in other countries, I presume we may be at least 5000 good horse when it shall be needful to draw them together.'

[74]

The disaster at Chatham in June 1667 revived the panic in Ireland, and Ormonde gave orders for strengthening the defences of Kinsale so as to make it a safe retreat for British shipping. 'The greatest prejudice we can probably expect this year

Fortifications at
Kinsale.

from without is the forcing of our harbours.’ Orrery showed much diligence in carrying out the work, and the port was soon safe from attack. Mr. Chidley or Chudleigh, who was employed about this business, was apparently the same as he who built the boats which enabled Ludlow to take Ross Castle in 1652. There does not seem to have been any serious plan of invasion either by the French or Dutch, but the latter had cruisers or privateers which took many prizes. On the other hand, there were a good many Dutch prisoners taken, and their treatment was not creditable to the governing powers. They were detained at Cork and Bandon in a state almost of starvation, Captain Crispin, who was in charge of them, complaining that no money was provided. Orrery protested, ‘for though they are now enemies, yet they are Christians, and they may be our friends again.’ This was in July 1666, but things were no better fourteen months later. The English inhabitants were charitable, but the prisoners were so miserable that they rose against their guards and twice tried to burn Bandon. When Orrery visited them, ‘they all on their knees weeping begged to be hanged.’ He gave them some relief from his own pocket. Captain Crispin could do nothing, and dared not throw up his appointment for fear of losing all arrears due to him. And so it continued to the end of the war.^[75]

The fall of Clarendon had only an indirect effect upon Ireland. He was driven from office and into exile by such people as Lady Castlemaine and the Duke of Buckingham, and by the base ingratitude of a sovereign who would not have been restored without him. The fifteenth article of his abortive impeachment was ‘that he procured the Bills of Settlement for Ireland, and received great sums of money for the same in most corrupt and unlawful manner.’ That the first minister was more or less responsible for those Acts is true, and it is no less true that much injustice was done, but that Clarendon was actuated by corrupt motives is a charge resting on no evidence at all. His enemies in the House of Commons were unable to formulate an indictment, while Bishop French, writing on behalf of the dispossessed proprietors, is equally vague, and can only gloat over the misery of the fallen statesman. ‘This proud Haman,’ he says, ‘who jointly with some few others, to get money for themselves, and estates for their children, contrived the general extirpation of the whole Irish race ... was forced, for his own safety, and the preservation of his life, to quit his fine house, forsake his family, and bid his country farewell, and to travel in his

Fall of Clarendon.

old age, in the dead of winter, through so many dangers at sea and incommunities by land, to seek for some shelter abroad, seeing he could not be secure at home.’^[76]

That Clarendon frequently ‘swore with a great oath that the Irish should all be extirpated root and branch’ is contradicted by innumerable documents, and as his accusers give no particulars of corrupt dealing, his own statement is entitled to belief. The King called him a fool for his slowness to enrich himself when so many deserving cavaliers were in distress, adding characteristically that it was better to be envied than pitied. The adventurers and soldiers left in possession at the Restoration gave half a year’s rent to his Majesty to repair the losses ‘of such as we shall judge have most eminently acted for and suffered with us’; and of these Clarendon was surely one. Charles ordered that what was due in Meath, Westmeath, Kilkenny, and Wexford should be collected by Massereene and Orrery and paid over to the Chancellor, who was not to be told anything about it until the money was ready. In due course he was informed that his share would amount to about 25,000*l.*, half of which he was to receive immediately. He did get 6000*l.*, and never another penny, for the Irish Government seldom had any ready cash. In the belief that at least 12,000*l.* would be sent at once, Clarendon embarrassed himself by buying some property in Wiltshire which he had not the money to pay for. As for being the author of the Irish Settlement, Clarendon had begged to have no share in it, and his responsibility was no greater than that of any other Privy Councillor or of the King himself.^[77]

Clarendon’s
defence.

By the death of Southampton and the exile of Clarendon Ormonde was left with but little support at court. His old friend’s dismissal was quite unexpected by him, and at first he did not think his own position would be much affected. The King’s main argument was that the Chancellor’s unpopularity, faithfully reflected in the House of Commons, made it impossible to carry on the government, and against this Ormonde protested. No prominent statesman, he said, could escape popular clamour, and the advantage of yielding to it was very uncertain, and ‘should never be brought in competition with honour and justice, which are the only lasting supports to greatness.’ Charles replied that his old servant’s humour had become unsupportable to him and to all the world; but, he added, ‘I assure you that your former friendship to the

Ormonde and
Clarendon.

Chancellor shall not do you any prejudice with me, and that I have not in the least degree diminished that value and kindness I ever had for you, which I thought fit to say to you upon this occasion, because it is very possible malicious people may suggest the contrary to you.’^[78]

Clarendon left England at the end of November 1667, and in the following February the King sent for Ormonde, directing him to make Ossory his deputy and to give him such instructions as he thought fit, but not to start if his health would be likely to suffer, nor until the state of business was such that he could be spared. He had long hesitated about the policy of going to confront his enemies or staying to look after his own interests, and he shrank also from the expense of moving. The return of Ossory to Ireland early in March turned the scale. He left Ireland in the middle of April, and Orrery, who had been detained by illness, followed him in June. Ormonde had been warned by his son some time before that the Lord President of Munster was intriguing against him, but was very unwilling to believe it in view of the latter’s constant expressions of goodwill. Perhaps, indeed, he protested rather too much, but Ormonde trusted him so far as to send a copy of the anonymous articles of impeachment secretly devised against himself: ‘I desire your lordship that no copy may be taken of them, lest it may thereby come to be suspected how I came by them.’ But before Orrery got to London it was well known that he was working against the Lord Lieutenant, though the latter was anxious for his presence as likely to be useful to the service. After three months’ experience he was telling everyone that Orrery was no friend of his.^[79]

Ormonde and
Orrery.

Of all the bad men in a bad time Buckingham was perhaps the worst, without shame, honour, or decency. He amused Charles and those about him, and his career is disposed of in a single line of Dryden—he had his jest and they had his estate. Ormonde was an offence unto him both for his high character and for the universal respect in which he was held. Nevertheless he made some approaches to Ossory, who refused to be reconciled to him unless he would act a friendly part to his father. In fact he intrigued incessantly against him, trying first to capture his position as Lord Steward, and when that failed, hoping to succeed him as Lord Lieutenant, going so far as to make nominations to offices in Ireland. Arlington, whose wife was Lady Ossory’s

Ormonde recalled.

sister, did not openly oppose Ormonde, though he gave him little help. He had to hold his own against Buckingham, and did in fact secure the weight of business while his rival made a show in public. An attempt was made to prove financial mismanagement in Ireland, and this involved Anglesey, who had lately resigned the Vice-treasurership. The attack failed, and the idea of an impeachment was soon dropped. Ormonde seldom used strong language, but in writing to his son he said that Buckingham was a vile man, that Orrery's gout was the least of his infirmities, and that Lord Meath, upon whose articles it was hoped to found an impeachment, had lost more than he could spare of the sense God gave him. Meath's name was struck off the Irish Privy Council, and Charles repeatedly affirmed his confidence in the Lord Lieutenant. Towards the end of 1668 well-informed people still thought that he would not be removed, and even in February he wrote himself to that effect. Four days later his supersession was finally decided on, which, says Pepys, 'is a great stroke to show the power of Buckingham and the poor spirit of the King; and little hold that any man can have of him.' But to the end Charles continued to speak well of Ormonde, who told the Irish Chancellor that he was much more surprised at the praise than at the recall. ^[80]

FOOTNOTES:

^[61] *Irish Commons Journal*, January to August, 1666. *Irish Lords Journal*, July 16, and August 3 and 7. Ormonde to Arlington, January 17 and April 4, State Papers, *Ireland*; Leigh to Williamson, *ib.* August 6. Writing to Ormonde, August 14, Arlington regrets that the Bill of Indemnity had not passed—'the persecutions all parties, at least two considerable ones, are exposed to for want of it,' were certain to give trouble.—*Miscellanea Aulica*, p. 413.

^[62] Ormonde to Arlington, January 20, 1665-6, May 25 and 30, State Papers, *Ireland*; letters, May 25-29, *ib.*; G. Warburton to Williamson, June 27, *ib.*; a memorandum, July 17, *ib.*; Clarendon to Ormonde, July 7, *Carte Transcripts*, vol. xlvii.; Arran's account, May 28, *ib.* vol. xxxiv.

^[63] *Statutes at Large*, 15 Car. II. cap. 7. Petty's *Political Anatomy of Ireland*, chap. x. On January 1, 1668, Pepys heard much about the almost miraculous cheapness of corn, 'so as the farmers can pay no rent, but do fling up their lands,' and he had noted the same thing at April 9, 1667. Shaftesbury to the King in Christie's *Life*, vol. ii. appx. 1. His estimate of losses from plague is more than confirmed by Clarendon, *Life*, Cont., p. 821. Anglesey's protest against the 1663 Act is in Rogers' *Protests of the Lords*, i. 27.

[64] Clarendon's *Life*, Cont., pp. 610-630. Lister's *Life of Clarendon*, ii. 424, iii. 530. Evelyn's *Diary*, October 27, 1664. Pepys has frequent notices, particularly at October 8, 1666, and June 27, 1667. State Papers, *Ireland*, July 1665 to July 1668, particularly Ormonde to Arlington, July 25 and 27 and August 26, 1666.

[65] Ormonde to Arlington, September 12, 1666, State Papers, *Ireland*. Pepys' *Diary*, October 8. Clarendon's *Life*, Cont., pp. 691, 955-964. Arlington to Ormonde, October 12, 1665, *Miscellanea Aulica*, p. 362, and to Temple, October 15, *Letters*, ed. Bebington. Writing in 1673, Temple said a higher standard of living and love for foreign commodities, and depopulation caused by war, had really caused the agricultural depression in England, and 'not this transportation of Irish cattle, which would have been complained of in former times, if it had been found a prejudice to England. Besides, the rents have been far from increasing since.'—*Works*, iii. 20. See Andrew Marvell's letters to his constituents, October 22 and November 2, 1665. On May 18, 1665, Sir Ralph Verney writes that the market was at a stand, owing to a report that the Lords would not pass the Bill 'against bringing in foreign cattle.' Cows were daily sold at from ten to fifteen shillings apiece which had formerly been well worth five times as much.—*Verney Memoirs*, iv. 117.

[66] Clarendon's *Life*, Cont., pp. 967, 969. Christie's *Life of Shaftesbury*, chap. x. In his monograph, 1888, the late H. D. Traill thought Butler's lighter lash more suitable to Shaftesbury's tergiversations than 'the resounding scourge of Dryden,' but his conduct about the Cattle Bill and the Irish branch of the Popish Plot justify the heavier implement. Arlington to Ormonde, October 20 and November 20, 1666, *Miscellanea Aulica*, p. 427 *sqq.*

[67] Details as to the quarrel between Ossory and Buckingham are given by Clarendon, *Life*, Cont., p. 969 *sqq.*, and in Arlington's letter to Ormonde, October 20, 1666, *Miscellanea Aulica*, p. 424.

[68] Pepys' *Diary*, January 7, 9, 14, and 18, 1666-7. Clarendon's *Life*, Cont., p. 988. Rogers' *Protests of the Lords*, i. 31. The protesting peers were the Earls of Cardigan, Bridgewater, Burlington, Anglesey, and Castlehaven, Lords De La Warr, Conway, and Berkeley of Stratton. See Marvell's letters to his constituents on December 22, 1666, January 5, 15, and 19, 1666-7.

[69] Lord Lieutenant and Council to the King, August 15, 1666, February 9, 1666-7, State Papers, *Ireland*; Ormonde to Arlington, March 30, 1667, *ib.* Collinson's *Hist. of Cheshire*, ii. 29. Information kindly supplied by the Rev. F. McD. Etherington, Vicar of Minehead. The author of a *Letter from a Gentleman in Ireland to his Brother in England*, 1677, says Irish corn was only fit for home use, 'being by reason of the climate not so large, firm and dry a grain that it should be fit for transportation.'

[70] See the very clear account in Temple's essay on Irish trade, *Works*, iii. 7-16. Rawdon's letters at this time in State Papers, *Ireland*, show the effects of the prohibition on certain estates. Robert Leigh to Williamson, *ib.* March 19, 1666-7.

[71] Petty's *Treatise on Taxes*, 1662, xi. 17, and his Report of Council of Trade, 1676, affixed to *Political Anatomy*. *Letter from a Gentleman in Ireland*, 1667. The author of *Reasons for a Limited Exportation of Wool*, 1677, says the Dutch could have Irish beef at one penny per lb. Instructions to Lord Robartes, July 23,

1669, State Papers, *Ireland. The Grand Concern of England explained*, p. 5, 1673. Compare Miss Murray's *Hist. of Commercial Relations*, pp. 42-48.

[72] Lord Lieutenant and Council to the King, February 9, 1666-7; State Papers, *Ireland*, Memorial of the three lords, *ib.*; the King's answer, March 23, *ib.*; Proclamation of June 7 reciting that of April 1, *ib.*; Ormonde to Arlington, July 31, *ib.* Carte's *Ormonde*, ii. 344.

[73] *Orrery State Letters*, March 2, 1665-6, to July 3. Ormonde's letters for the same period in State Papers, *Ireland*. For Beaufort's movements, see Corbett's *England in the Mediterranean*, chap. xxi.

[74] Ormonde left Kilkenny August 30, 1666, and returned there September 15, State Papers, *Ireland*. Ormonde's letter to Arlington, *ib.* September 4. Orrery to Ormonde, August 20, *Orrery State Papers*. Dr. Denton wrote in 1670, 'if Ormonde do chance to come to you a byled leg of mutton is his beloved dish for dinner,' *Verney Memoirs*, iv. 229. Gigery, now Jijelli, half-way between Algiers and Bona, was garrisoned by Beaufort in 1664, but disaster followed. Caulfield's *Kinsale Council Book*, p. 97, where September 14 is wrongly given for 7.

[75] *Orrery's State Letters*, ii. 51, and all his letters from July 3, 1667, to September, *ib.* pp. 203-285, and in State Papers, *Ireland*, July 12, 29, and 31. The treaty of Breda, ending the first Dutch War, was signed on July 21.

[76] Bishop French's *Narrative of the Earl of Clarendon's Settlement and Sale of Ireland*, Louvain, 1668. I have used the Dublin reprint of 1846. This tract is in the form of a letter 'to a leading member in the House of Peers in England and much relied upon in the House of Commons,' possibly to Buckingham. A MS. copy is calendared among State Papers, *Ireland*, under 1667, p. 543. French renewed his attack on Clarendon in the 'Bleeding Iphigenia,' 1674.

[77] Clarendon's *Life*, Cont., pp. 81, 107, 277, 1197, 1324. His discourse by way of vindication, dated Montpelier, June 24, 1668, is in *Miscellaneous Works*, 2nd edition, 1751. The *Life*, written three or four years later, contains the same matter, but some expressions are softened: for instance, the 'impudence' of the Irish spokesmen in the former becomes 'imprudence' in the latter. The King to the Lords Justices, April 21, 1662, in State Papers, *Ireland*, is the warrant under which the 6000*l.* was paid, and Clarendon's statements are supported by the letters printed in Lister's *Life of Clarendon*, vol. iii. nos. 66, 109, 120. The money was levied under section 33 of the Act of Settlement.

[78] Ormonde to Arlington, September 3, 1667, as given in Carte's *Ormonde*, ii. 352. Arlington's answer, September 14, printed in Lister's *Life of Clarendon*, iii. 470, and the King's letter, September 15, printed in Ellis's *Original Letters*, 2nd series, iv. 39.

[79] Letters from October 25, 1667, to September 24, 1668, in Carte's *Ormonde*, ii. appx. pp. 41-64. Pepys' Diary, May 3, 1668. Burnet, *Own Times*, i. 266.

[80] Ormonde to Ossory, May 19, 1668, to February 9, 1668-9, printed in appx. to Carte's *Ormonde*, vol. ii. Pepys' *Diary*, November 25 and December 5, 1668, and February 12, 1668-9. Ormonde to Archbishop Boyle, March 8, 1668-9, *Carte MSS.* vol. cxlvii.

CHAPTER XLV

ROBARTES AND BERKELEY, 1669-1672

Lord Robartes was again chosen for the post which he had scorned to occupy eight years before. Perhaps the King's main object was to get rid of him, for he must have been one of the most disagreeable men in England—morose, overbearing, and impracticable. Upon this point Clarendon, Burnet, and Anthony Hamilton are for once agreed, and, according to the last two, he was also something of a hypocrite. His knowledge of business, the popular opinion of his ability, and the reputation which he enjoyed among the Presbyterians made him a personage whom it was not safe to neglect. Charles announced the appointment at Council, speaking without his usual hesitation, and emphatically declaring his undiminished confidence in Ormonde. Robartes, who was present, accepted with civil expressions to the outgoing Viceroy, who answered in the same strain, acknowledging the other's fitness and wishing him success. Pending the new Lord Lieutenant's arrival in Ireland, Ossory was retained as the King's Deputy by patent. 'My Lord of Orrery,' wrote the Duchess of Ormonde with very pardonable malice, 'is as little satisfied with this change that is made, and the Duke of Buckingham, as if my Lord had continued; and I am of opinion that they will find cause, at the least I wish it may fall out so, and so I am sure do many more.' Buckingham, however, had the satisfaction a little later of driving Coventry from office, and thus clearing the ground for what we still call the Cabal. Ormonde charged his son to treat the new Viceroy with proper respect, to silence the murmurs of his friends, and to take, if possible, more trouble than ever; 'and if you can get the Tories suppressed, that His Majesty's kingdom may be delivered up in as much peace and

Robartes Lord
Lieutenant.

order, as I found it in war and confusion when I was first Lord Lieutenant.’ Robartes lingered long in England after his nomination, and his instructions were not settled for more than five months. The King thought of reserving military appointments to himself—probably Buckingham wished to have the jobbing in his own hands—but Ormonde successfully objected on the ground that this would be unfair to Robartes and derogatory to the great office which he himself had held twice and might hold again. The instructions about revenue matters, in which Ormonde’s enemies hoped to find some means of attacking him, were also modified at his suggestion.^[81]

Ossory was not destined to have the happiness of putting down the Tories. There had always been many in Ireland who were willing to fight, but not to work, and Chichester had much trouble with them. When the Civil War came to an end Cromwell encouraged their emigration, and at the Restoration the dispossessed Irish, many of whom had followed the King’s fortunes abroad, expected to be restored also. Crowds of priests and friars came to Ireland, and their meetings caused alarmist reports about an intended rising. Orrery generally put the worst construction upon such facts as came to his knowledge, and there were certainly some outrages, but Ormonde thought the Cromwellian soldiers and sectaries much the most dangerous, and the Castle plot showed that he was right. Later on, as it became evident that Adventurers and soldiers would keep a good deal of what they had got, the disappointed Irish gathered here and there in bands, and leaders were not wanting. John Costigan, with several followers, long haunted the woods and bogs on both sides of Slieve Bloom, but seems to have been taken at last through an informer, who thus purchased his own pardon. Many others were taken or slain by like means, but in the case of Dudley Costello, Lord Kingston, the President of Connaught, found it ‘more difficult than he believed to make one Irishman betray another.’ Costello was the heir to estates in Mayo from which he was driven during the Civil War. He distinguished himself in Flanders as a captain in the Duke of York’s Irish regiment, and was named in the Act of Settlement as one of the 232 ‘Ensignmen’ who were restorable, but not until reprisal had been made to the Adventurers and soldiers in possession. There was not land enough to satisfy both interests, and Costello’s hopes were destroyed by the Act of Explanation. In the summer of 1666 he was joined

The Tories.

Costigan.

Costello.

Nangle.

by Cornet Edward Nangle, another Connaught malcontent, and the two entered Ulster with a considerable party. They spent much of their time drinking whisky and quarrelling among themselves, but there were always plenty of sympathisers to give the alarm, and the Governor of Charlemont had to be satisfied with driving them back into their own province, where they wandered about as proclaimed traitors. Englishmen's dwellings were burned, while the Irish were spared. Nangle was soon killed in an attempt to storm Lord Aungier's house at Longford, but the band was not broken up. Thomas Viscount Dillon, who had been restored to his estate in the same district, warned his tenants against sheltering Costello, who had been his companion-in-arms, but offered to intercede for him if he would come under his protection. Ormonde's rule was to give no pardon for nothing, and if Costello expected mercy, he would have to bring some fellow-outlaw to justice, 'especially one Hill and one Plunket, who lately committed great outrages in the north and are come into Connaught.' Costello preferred ordering all Lord Dillon's Mayo tenants to leave their farms. This warning was given in August, and on a late November night Costello with thirty men burned Mr. Ormsby's house at Castlemore, 'having entered by means of a turf stack placed against the outside of the bawn.' All the native population sympathised with him, but the soldiers kept up a hot pursuit. Like the great Sicilian brigand in our own times, he never slept within two miles of the spot where he supped, nor lay two nights running in the same place. But he could always get a party together when the soldiers' backs were turned, and he burned seven or eight villages within three weeks of the Castlemore exploit. Ormonde retaliated by quartering troops on the Irish inhabitants and ordering the apprehension of the 'Popish titular clergy residing in those parts so infested by the Tories,' who had already been warned by the Lord President that they would be held responsible for their flocks. At last one evening at the beginning of March, Costello, driven to desperation or made rash by impunity, met Captain Theobald Dillon in the open field and was shot dead at the first fire. He had about forty men with him, who all escaped in the darkness. His head was sent to Dublin and stuck upon St. James's Gate with the face towards Connaught. Nangle's had been mouldering there for several months. But other Tories carried on the war in many different districts, and informers were deterred from earning blood-money by threats, which were sometimes acted on, of having their tongues cut out. The banditti were no doubt a grievous burden to the people, and in one case, as a

noted outlaw stooped to enter a boat in Connaught, the ferryman cut off his head with a hatchet. ‘This honest Charon,’ wrote Williamson’s correspondent, ‘was an Irishman as well as the Tory,’ and refused the reward, saying that the honour of the action was enough. ^[82]

Neither Orrery or Buckingham having been chosen to succeed him, Ormonde had no real cause of complaint. He doubtless knew that Robartes would never be popular, and charged his son not only to yield him the respect due to his position, but to let it be known that he would not be a friend to any who acted otherwise. These directions were strictly followed. As the time drew near for the new Lord Lieutenant’s arrival, Ossory refused to enter on any fresh business, and made careful arrangements for his reception by the Lord Mayor, the Guards, and the Militia. The Duchess of Ormonde wrote on behalf of Lady Robartes, who knew scarcely anybody in Ireland, and whom she found a very virtuous and worthy person. The Lord Lieutenant landed at Howth on September 18, and was entertained by Lord Howth, many of the officials attending him with a written programme of reception ceremonies. Robartes would have none of it, and made his way without ceremony to the castle. Three troops of cavalry met him on the road, and a miscellaneous collection of people on horseback and in carriages attended him to the bridge, where he was welcomed by the Lord Mayor and Aldermen with a congratulatory speech, to which he replied civilly but briefly. He found Ossory in the Council Chamber, and received the sword from him, the departing Deputy saying that he expected much good through his successor’s great abilities, and heartily wishing him a prosperous reign. No one could have been more considerate, but the Dublin people showed in their own way that they were not pleased at the change. Lord and Lady Ossory were treated with rather more respect than ever, and when they left on different days for Kilkenny, were escorted by seventy or eighty coaches, most of them with six horses, carrying peers, bishops, and Privy Councillors. It was rather hard on a plain man of business like Robartes to have to follow this gracious and popular couple. ^[83]

Ossory and
Robartes, 1669.

It is generally admitted, even by his critics, that Robartes was a just man and very clever about business. He favoured the Presbyterians, and blamed Archbishop Boyle, the Chancellor, with very good reason, for undertaking more than

Policy of Robartes.

any man could do. He set his face against pluralities generally, and of course made enemies in this way. His instructions for the army were to see that the men mustered were actually available for service, to allow no officers to be absent from their quarters without his permission, and not to give more than three months' leave in any year. This Robartes construed in the strictest way and without respect of persons. Even the ordinary allowance for servants was cut off. Lord O'Brien was ordered to Boyle, more than a hundred miles both from Dublin and his own district, and in the 'devilishest Tory country in Ireland.' He stayed there for a few days, but soon got leave direct from the King, and went to London with an unfavourable account of the Lord Lieutenant's proceedings. Sir Nicholas Armourer, who loved wine and company, complained bitterly to his friend Williamson that the jolly parties in Dublin were ended, and that he could not get leave to go to England on urgent private affairs. The army in Ireland had seldom been regularly paid, and there were arrears of long standing. Some officers mustered ineffective men in their private employment. Others retained money which ought to have been given to the men, and such robbery deserved the severest punishment, but the captains of 1670 could not well be held responsible for the defaults of 1662. Nevertheless a number of privates entered into an agreement among themselves to demand all that was due for eight years, and the Lord Lieutenant approved of this approach to mutiny, even rebuking officers publicly in the presence of their men. Charles wrote to say that this would not do, that persons of quality should have due consideration, and that a spirit was being fostered which it might be very difficult to suppress. It would be sufficient to see that there were no frauds in the last muster. Care for the future was much more important than the raking up of old grievances. 'Be confident,' said the King, 'that I will protect and vindicate your authority as long as you serve me there, notwithstanding this freedom that I use to yourself.' Robartes had moreover claimed the right to hold no correspondence with the Secretaries of State like all his predecessors, and was told that any such pretension was quite inadmissible. Charles concluded with an assurance that this was only 'a private admonition,' and that the changes suggested might be carried out by the Lord Lieutenant as of his own motion, 'and I shall protect you and your authority.' When he received this letter, Robartes at once tendered his resignation, and begged as his only suit not to be further employed. He had

Resignation of
Robartes.

no friends at court, and as the greedy crew there wanted his place, he was taken at his word. Serious people were ready to believe that he was recalled for his virtues, and not for any fault. ^[84]

Robartes was ready to go at once if he might appoint a Deputy, but he was told to wait until he could deliver the sword to Lord Berkeley, who did not arrive until April 21. The ceremony took place the same day, the outgoing Lord Lieutenant making a speech of four lines. Next morning he stole away quietly in his wife's coach, leaving her to follow as she might. Besides his general dislike to formalities, it was thought that he preferred no leave-taking to a paucity of leave-takers which could only accentuate his unpopularity. When Lady Ossory came to Dublin a few days later on her way to England, she was met by eighty coaches, half of them with six horses. He sailed from Skerries, having first been entertained by Mr. Cottington, who provided a very good dinner. On reaching the boat he informed his host that his house was on fire, which turned out to be true. Everything was burned to the ground, and Lady Robartes hurried back to condole with the sufferers, but her husband went straight on board ship and again sent word to her to follow him. ^[85]

Berkeley succeeds
Robartes.

The obscure intrigues against Ormonde, while successful in depriving him of the Irish government, had failed to get him impeached; and Orrery's share in the attack did not save him from being assailed in his turn. He had had much to do with the agrarian settlement, and had maintained with vigour the system founded on it. While repressing the Tories on one hand, he held the Cromwellians in check on the other, and enlisted no one in the militia who refused the oaths of allegiance and supremacy. The first steps towards the Dover treaty were taken at the beginning of 1669, and Clifford is reported to have said that no good could be done in Ireland as long as Orrery was President of Munster. But he might hope to succeed Ormonde as Lord Lieutenant, and to that end may have given Charles and James hopes of his co-operation. He had, however, many enemies, and articles by way of petition were presented to the House of Commons in the names of Sir Edward Fitzharris and Philip Alden. Fitzharris was a Limerick landowner, a Roman Catholic, who had been a minor and royal ward when the rebellion of 1641 broke out, had afterwards adhered to Ormonde's peace, and had been reinstated in his property when he returned from exile after the

Attempt to impeach
Orrery.

Restoration. Alden was described by Orrery himself as a representative fanatic and notorious villain. He had been concerned in the Castle plot of 1663, and had broken prison, but gave useful information and received a full pardon. Additional lands were assigned both to Fitzharris and Alden in the summer of 1669.^[86]

The petition was presented to the House of Commons on November 25, and a debate followed, the opinion of lawyers being divided as to whether the charge amounted to treason. Maynard, who remembered his part in the Strafford case, thought that it did, while Heneage Finch inclined the other way, saying that he ‘never knew much good done in Parliaments where many impeachments were.’ Edward Seymour, who had brought in the impeachment of Clarendon, followed Maynard, observing that no charge would have been brought against Orrery had not that against Ormonde been abandoned. Sir Robert Howard throughout supported his fellow-dramatist, but upon a division it was resolved by 182 to 144 that there was matter of treason, a copy of the articles was sent to Orrery, and he was ordered to attend and answer them, the serjeant-at-arms to leave a keeper with him until his gout allowed him to move.^[87]

Failure to show treason.

Seymour had made a rather cruel joke about a fit of gout being curable by impeachment. This was only partially the case, but Orrery, who was a member of the House of Commons, did manage to appear at the bar a week later. To a friend who condoled with him as he painfully mounted the stairs he is said to have replied that if his feet would but carry him up he would promise that his head should bring him safe down again. On Howard’s motion he was allowed to speak sitting, and had little difficulty in showing that no act of treason was charged against him. The tenth article did indeed accuse him of saying that if the King did not confirm the estates of the soldiers’ and adventurers’ party, he ‘should be compelled to do it with 50,000 swords.’ There was some doubt as to whether the word was ‘should,’ which would be a threat, or ‘would,’ which would be only a prophecy. Orrery denied having ever said anything of the kind, and no time or place was mentioned. The third article alleged that Orrery had used armed force to expel Edmund Fitzgerald of Cloyne from Rostellan and to give it to Inchiquin, whose son had married his daughter. To this Orrery replied that he had only done his

The impeachment abandoned.

duty in helping the Sheriff to execute a legal process, adding that Fitzgerald was attainted of murder, robbery, and treason, and a notorious papist, and that Rostellan was ‘a stronghold and near the sea’—commanding the best harbour in Ireland at a time when a French invasion was feared. Even Clifford thought the foundation too slight for an impeachment, Maynard and Finch agreeing that the accusers should be left to their remedy at law. This was carried, but only by 121 to 118. Ten days later there was another debate, but nothing came of it, the King having directed the Duke of York to use his influence with members in Orrery’s favour. Robartes, moreover, threatened to supersede officers with seats in Parliament if they left Ireland without leave, and this seems to have been enough to stop all further proceedings.^[88]

John Lord Berkeley of Stratton had long been specially attached to the Duke of York. Soon after the Restoration the King suggested that he might be made Deputy of Ireland, if no better could be had. ‘Do you think,’ said Clarendon, ‘you shall be rid of him by it? for that is all the good of it.’ ‘The truth of it is,’ replied Charles, ‘being rid of him doth incline me something to it; but when you have thought round, you will hardly find a fitter person.’ He had generally failed in all employment requiring tact or discretion, but his services as a soldier were respectable, and when he was made a peer at James’s request he took a title from the battle he had helped to win in 1643, for he did not possess an acre of his own. Being without fortune, his great object was to gild the coronet and so to put money in his purse by the most dishonest means. He thought himself fit for the highest place and was a loud and boastful talker. When Mountrath died towards the close of 1661, it had already been decided to make Ormonde Lord Lieutenant, and Berkeley applied for the Presidency of Connaught, with a view to making money of it. He had not the least intention of doing the work or of living in exile at Athlone, and Ormonde complained bitterly that the Presidency was a mere hindrance, and that he could not be held responsible for the government of Ireland, when one quarter of the island was in such hands. The duties were at least partially performed, sometimes by Berkeley’s nephew, Sir Maurice, and sometimes by Lord Kingston, who became joint-president in 1665, the office being granted to him and to Berkeley for life. The latter was content

Qualifications of
Berkeley.

with the profits and took no further interest in Ireland until he was sent to govern it five years later.^[89]

Andrew Marvell says, and we can well believe him, that Berkeley was ‘a man unthought of’ for the Lord Lieutenancy. His appointment was no doubt part of the scheme for subjecting the British islands to French and papal supremacy, but it is not at all likely that such a loose talker would be allowed to know about the secret part of the treaty of Dover. The Lord Lieutenant knew how the court wind blew, and was ready enough to go with it, but his instructions, whatever private hints or orders he may have had, were of the usual character. The established Church was committed to his care, and since the labourer is worthy of his hire, he was ordered to protect the property secured to her by James I. in the plantation. Since the end of Ormonde’s Government the Remonstrants had been oppressed or threatened, and Berkeley was commanded to execute the law against such titular prelates or vicars-general as had offended in this way. Sir Ellis or Elisha Leighton, a younger brother of the good Archbishop of Glasgow, went to Ireland as the Lord Lieutenant’s secretary. Roger North, in agreement with other contemporaries, calls him ‘the most corrupt man then or since living,’ who took all the bribes he could get. Pepys found him good company at a meal, but he was not ashamed to be drunk even at the viceregal table. He had been an adherent of Buckingham, and, without making any pretence of religion had become a Roman Catholic and was ready to carry out the policy of Clifford and the rest while laughing at the doctrine of transubstantiation.^[90]

Berkeley and his secretary.

Corruption of the latter.

Six weeks after Berkeley received the sword all were reported as pleased with the change except a few incorrigible fanatics. The Ulster Presbyterians, indeed, feared oppression, but Sir Arthur Forbes was able to protect them, and Primate Margetson, who was no persecutor, restrained the zeal of some northern bishops. The Conventicle Act had just been renewed in England, but the treaty of Dover was signed only a month after Berkeley’s arrival, and the Declaration of Indulgence was impending. The Roman Catholics at once felt the benefit of the change. Oliver Plunket,

Indulgence of Recusants.

Oliver Plunket.

The Remonstrants thrown over.

whom Clement IX. had just made Primate of Ireland, reached Ireland a few weeks before Berkeley. Writing from London, where he was received by the Queen, Plunket noted that Peter Walsh was there, 'hated by all.' Peter Talbot, made papal Archbishop of Dublin a little earlier, reached his see about the same time as Plunket, and both were present at a national synod convened by the latter in June. During the latter days of Robartes' government Plunket found it necessary to assume the character of Captain Brown, with sword, pistols, and a wig. Berkeley, on the contrary, received him often, though secretly, assuring him and other priests that they had nothing to fear if they behaved themselves, exercising their office quietly, but eschewing politics. Before the end of the year Plunket was able to report that he had driven all the Remonstrants out of Ulster. In the following May he added that Walsh's adherents were prostrate, and that they could not raise their heads during the existing administration, Lord Chancellor Boyle being unfavourable to them. Berkeley, though bound by his instructions to protect them, did nothing and would not allow Margetson to say a word on their behalf. Plunket was blamed by some for accepting too many invitations to the Castle, but he said that he could hardly refuse, since Lady Berkeley and the chief secretary were secretly Catholics. He even thought he could see some sparks of religion in the Lord Lieutenant. Peter Talbot, now Archbishop of Dublin, was also a frequent visitor to Berkeley, who lent him hangings for a church ceremony, and is said to have expressed a hope of seeing high mass at Christ Church in a few months. Both archbishops had a grant of 200*l.* a year from the King, but it seems that very little of this was paid.^[91]

Though no longer Lord Lieutenant, the Duke of Ormonde had still much influence in London. He was Lord Steward of the household, and his immense popularity was an offence to such men as Buckingham. It occurred to Blood, the author of the plot in 1663, that it might be possible to seize his enemy and to hang him at Tyburn. Clarendon House, the expense and the ostentation of which had been so fatal to its builder and owner, had been lent to him by the Chancellor's son, and on the night of the 16th he had nearly reached it after an entertainment in the city given to William of Orange, when he was pulled out of his coach by Blood and others. The ruffians mounted him on horseback behind one of the gang, who carried him down Piccadilly past his own door and past the other great house built

Blood's attack on Ormonde.

by Lord Berkeley, where Devonshire House now stands. Ormonde managed to get his foot under that of the rider, and the two fell to the ground together. Help came, and the Duke, who was sixty, was carried home in an exhausted condition. Two of the gang fired their pistols at him, but missed, and he escaped with some bruises. Blood had ridden on to fix a rope on the gallows, not much more than the length of Park Lane distant, and met his discomfited followers on his way back. It was generally believed that Blood was the tool of Buckingham and the Duchess of Cleveland. He was not brought to justice, and a few months later distinguished himself by his attack on the Crown jewels. In that case he was arrested but pardoned by Charles, who had, however, the decency to ask Ormonde's leave. When Arlington brought the message, Ormonde told him that if the King could forgive him for stealing his crown, he could easily forgive him for attempting his life; 'since it was His Majesty's pleasure, that was a reason sufficient for him, and his lordship might spare the rest.' Guesses are vain as to what cause or which favourite procured the royal clemency. The cases of Sir John Coventry and Tom Thynne show what might be done in connection with that corrupt Court. Blood was in frequent communication both with Arlington and Williamson.^[92]

All who held themselves aggrieved and all who hoped to gain by a fresh agitation, now thought the time propitious for an attack on the Acts of Settlement and Explanation. A commission signed by six peers and fifty-two others was given to Richard Talbot, who had been all along engaged in similar business, as their plenary agent, with power to call in two or more assistants and to promote petitions to King and Parliament. They set forth that, contrary to the royal declaration and intention, they had been 'exposed to extreme exigencies, groaning these many years past under the insupportable burden of misery and poverty for want of subsistence and having no refuge left but to prostrate at His Majesty's feet for justice and compassion.' A few weeks later, Talbot accordingly petitioned the King in Council, and a committee, which included Ormonde, was appointed to consider the question. Talbot and the Irish barrister whom he was allowed to employ enlarged upon the great services of the Irish generally instead of relying on cases of individual hardship. They ignored the rebellion, represented Ormonde as having been

The Act of Settlement attacked.

Finch deprecates fresh agitation.

Prince Rupert's Commission.

driven from Ireland by the Cromwellians alone, objected to the constitution of the Irish Parliament, and demanded an Act of Indemnity. They desired an impartial enquiry, and that in the meantime no undisposed land should be granted away. Ormonde was thus driven to recall the facts of the war, the broken peaces, and the excommunication launched against himself. Before proceeding further a report was called for from Finch, now Attorney-General, who had drawn the Act of Explanation, and in a few days he made a very able statement, which was afterwards committed to writing. In this document a clear account is given of all the proceedings connected with the settlement. Finch does not deny that there were cases of hardship, but he altogether objected to upset in the English Parliament what had already been done after the greatest deliberation in Ireland, 'for the consequence of this would be that Ireland should be always settling, but never settled.' He strongly asserted the power of the English Parliament to make laws for Ireland, subject, however, to nullification by the legislature there. As to an Act of Indemnity, certainly it would be a good thing for Ireland, provided it was not used to upset the arrangements as to land. But the Irish rebellion was specially excepted from the English Act of Oblivion, and it was doubtful whether Parliament would change that. Probably Talbot and his friends would care very little for any relief that did not alter the title to land, 'for few Irish rebels are less than fifty years old now, and no man goes about to trouble them for that crime.' Finch's opinion, coinciding as it did with Ormonde's, made it evident that nothing could be expected from the first committee. It was therefore superseded by another, from which Ormonde was excluded, but of which Buckingham, Ashley, and Lauderdale formed part. This was afterwards turned into a royal commission, with Prince Rupert at its head, and very full powers of inquiry were given as to the settlement of Ireland. ^[93]

Lord Berkeley was much under the influence of the beautiful and witty but most unscrupulous Countess of Clanbrassil. He had her worthless and foolish husband made a Privy Councillor. Whether she favoured the Roman Catholics or not, she was certainly hostile to the Presbyterians, having had one of their meeting-houses pulled down. She occupied rooms in the Castle, and was much in favour with Lady Berkeley, as well as with the Lord Lieutenant, who was by no means young. Patrick Adair records with evident pleasure that she was hurt by the fall of the gallery when present with the viceregal

Lady Clanbrassil.

party in the Smock Alley Theatre on St. Stephen's Day. Adair says the play was called 'The Nonconformist,' wherein 'the poor shadow of a nonconformist minister is mocked and upbraided.' It was Ben Jonson's *Bartholomew Fair*, which Pepys thought an admirable play, 'but too much profane and abusive.' Robartes had suppressed the players 'as well as other vicious persons,' but that did not last long. The theatre had been built by subscription in 1662, and Adair says the bishops contributed largely, 'though they refused at the time to give countenance or assistance for building a church at Dame Street, where there was great need.' The house was repaired and continued to be used as a theatre until near the end of the eighteenth century.^[94]

Berkeley went to England in June 1671, was well received, and had the honour of entertaining the King and Queen at his house at Twickenham. Lady Clanbrassil went with him. 'She thinks,' says Lord Conway, 'to trip up Nell Gwyn's heels, and you cannot imagine how highly my Lord Arran and many others do value themselves upon the account of managing Lady Clanbrassil in this affair.' Whether Charles admired her or not does not appear, but she certainly did not get the better of Nell Gwyn. Pending promotion she amused herself with Harry Killigrew, and her intimacy with the Berkeleys continued as long as they stayed in Ireland, whither she returned with them in September. Sir Nicholas Armourer, the jovial governor of Duncannon, thought her beautiful and dangerous, but did not admire the administration of which she was so bright an ornament. 'An army fifteen months in arrear, the Treasury locked up, and a mutinous city, a country in apprehensions for their Act of Settlement. What shall we say unto these things?'^[95]

Inefficiency of the Government.

During the Commonwealth and Protectorate the corporate towns had lost many of their inhabitants and much of their trade. It had not been found possible to replace the ancient inhabitants by a sufficient number of English Protestants, and in May 1661, barely one year after the Restoration, Charles II. directed the Irish Government to allow facilities for trade 'without making any national distinction between our subjects of that our kingdom, or giving any interruption upon pretence of difference of judgment or opinions in matters of religion.' But by the Act of Settlement houses in

The dispensing power exercised.

corporations were assigned as security to officers serving before June 5, 1649, and by the Act of Explanation no one was to be allowed to purchase such houses without taking the oaths of supremacy and allegiance, except by the Lord Lieutenant's licence first obtained. The loop-hole left was not wide enough to admit any very large number of recusants, and a further step was taken early in 1671. The Lord Lieutenant was directed to give a general licence to all persons, irrespective of race and religion, to buy or hire houses in towns, and so restore trade to its former flourishing state, as intended by the King's letter in 1661. Papists were to be restored to all the privileges they enjoyed under Charles I. on taking the usual oath of allegiance without that of supremacy. A proclamation to this effect was issued a few days later, but the results were inconsiderable, for Berkeley's government came to an end very soon afterwards and a different policy prevailed at Court. ^[96]

How far religious differences were concerned does not appear, but Berkeley was involved in difficulties with the citizens of Dublin during his whole term of office.

Riots in Dublin.

He promoted the building of a wooden bridge over the Liffey at the west end of Ussher's Island. Whether the citizens disliked the expense or whether those interested in the ferry objected is uncertain, but in July 1671, when the Lord Lieutenant was absent in England, a large mob of apprentices attacked the unfinished structure. Soldiers quickly appeared, and about thirty of the rioters were arrested. A few days later, when the prisoners were being escorted to a more permanent place of confinement, another mob of apprentices with swords and staves effected a rescue on Merchants' Quay, but the guard fired and three men were killed. After this there was a strong inclination towards further disturbances. More than a year later Essex reported that these riots had left an uneasy feeling. The bridge was, however, finished, and afterwards replaced by a stone one, which was called the Bloody Bridge even in our own times. ^[97]

Whether the affair of the bridge was cause or effect, it soon appeared that there were two parties in Dublin. Sir John Totty, the Lord Mayor, and the majority of the common councillors, took one side and were favoured by the Lord Lieutenant. Sir William Davis, the Recorder, with most of the aldermen, joined the other party. Enraged by opposition, and finding the disorder likely to increase, Berkeley

Berkeley
discredited.

Corruption of
Leighton.

called upon Davis to frame rules for the conduct of the city business which would have had the effect of making the corporation very close. Knowing that this would be unpopular, the Recorder exacted a promise that his name should not be mentioned, but this promise was not kept. The rules were declared temporary, and really came to nothing. Essex thought the main object of them was to enable a party in the corporation to job the water-rate. Davis was married to the Chancellor-archbishop's daughter, and he consulted his father-in-law, whom the Lord Lieutenant treated with great rudeness. In the end Totty, who had been knighted by Berkeley in church, called an irregular meeting at which Davis was removed from his place along with seven aldermen. Sir Ellis Leighton was then appointed to the lucrative office of Recorder, and Totty made himself clerk of the tholsel, where fees were, of course, to be had. Totty was a needy man, and Leighton is described by one whom he had robbed as 'worse than any Jew—pity he should be suffered to compound so palpably for his bribes.' Davis went to London as soon as he could, and found that it had already been decided to supersede Berkeley, who received strict orders to make no more appointments, particularly in Dublin, where disorders had followed upon his changes.^[98]

Besides the riots and the theatre accident, Berkeley's short reign was distinguished by a fire at the Castle during a calm night in May 1671. Some thought it was malicious, others that it was the result of carelessness. Fortunately there were but two or three barrels of powder, one of which was used to blow up an adjacent building, having been carried through the fire by Ormonde's younger son John and Anthony Hamilton, author of the famous Grammont memoirs.^[99]

Fire at the Castle.

FOOTNOTES:

^[81] As to the character of Robartes, see Clarendon's *Life*, Cont., p. 198; 'vicious under the appearances of virtue,' Burnet's *Own Times*, i. 98; 'vieux sacripante, &c.,' *Mem. de Grammont*, chap. viii. Carte's *Ormonde*, ii. 378 *sqq.*, Ormonde to Ossory, February 16, 1668-9, *ib.* appx. On the other hand, Lord Herbert of Cherbury thought his conversation most pleasing. The instructions to Robartes are in State Papers, *Ireland*, calendared at July 29, 1669, and drafts of them in the same vol. pp. 740-746. Duchess of Ormonde to George Mathew, February 1668-9, *Ormonde Papers*, new series, iii. 442. The Presbyterian Patrick Adair,

while praising Robartes, does not deny that he was 'somewhat morose in his temper and carriage,' *True Narrative*, chap. xviii.

[82] As to the Tories from 1664 to 1667, see 32nd *Report* of the Deputy Keeper of Public Records, pp. 92-97; as to Nangle, State Papers, *Ireland*, July 17, 18, 1666; as to Costello, *ib.* March 11, 16, 1666-7. There is much about Tories and highwaymen in Orrery's *State Letters*, particularly those to Ormonde in March 1666-7. Proclamation, June 3, 1668, State Papers, *Ireland*. Sir Peter Pett to Williamson, May 23, *ib.*

[83] Ormonde to Ossory, February 16, 1668-9, in appx. to Carte's *Ormonde*, vol. ii. Cal. of State Papers, *Ireland*, pp. 1-6. There is a good deal about Lady Robartes in *Mem. de Grammont*, chap. viii., but the scandalous chronicler cannot say much against her. Duchess of Ormonde to George Mathew, March 6, 1668-9, *Ormonde Papers*, iii. 442.

[84] Lord O'Brien's letters to Williamson in October 1669, State Papers, *Ireland*; Armourer to same, October 31, *ib.*; Lord Herbert of Cherbury to same, October 4, *ib.*; the King to Robartes, December, n.d.; Robartes to the King, December 7, *ib.* Marvell's letter of March 21, 1670. Airy's edition of Burnet with the notes, i. 482. 'I am,' said Locke, 'more a friend to the clergy and their calling than those amongst them who show their forwardness to leave the word of God to serve other employments. The office of a minister of the Gospel requires the whole man,' *Third Letter for Toleration*.

[85] Arlington to Robartes, February 19, 1669-70, State Papers, *Ireland*; Frowde to Williamson, April 23, May 14, *ib.*; Leigh to Williamson, June 11, *ib.*

[86] State Papers, *Ireland*, February 20 and March 23, 1661, for Fitzharris. Orrery to Arlington, *ib.* November 8, 1665. Warrant for Colonel Edward Vernon and others, *ib.* July 1669. Vernon had received Alden's confidences in 1663, Carte's *Ormonde*, ii. 262.

[87] Grey's *Debates*, November 25, 1669; Marvell's *Letters*, nos. 128 and 129, but the latter is dated November 4 in Grosart's edition, which cannot be right, probably a mistake for December.

[88] Grey's *Debates*, November 25, December 1 and 10, 1669. Articles of impeachment and answers in Orrery's *State Letters*, i. 109. Macpherson's *Original Letters*, i. 56, wrongly placed under 1670. Marvell's letter, no. 129, *ut sup.*

[89] Macray's *Notes* of conversations between Clarendon and Charles II. in July 1660, Roxburghe Club. Character in *Clarendon's State Papers*, iii., supplement, lxxiv. Burnet's character is to the same effect, adding 'corrupt, without shame or decency,' *Own Times*, i. 266. 'The greatest vapourer in the world,' Pepys' *Diary*, December 3, 1665, and very dishonest, 'guilty of one of the basest things that ever was heard of a man,' *ib.* September 27, 1668. Marvell says he gave 10,000*l.* for his place to the Duchess of Cleveland, letter of August 9, 1671.

[90] Marvell's letter of March 21, 1670. Berkeley's instructions are in Cox's *Hibernia Anglicana*, Charles II., ii. 9. As to Leighton, see Burnet's *Own Times*, i. 137, and Foxcroft's *Supplement*, p. 13. In a note to his edition of Burnet, Mr. Airy says he is 'not aware of a single word extant in his favour.' North's *Examen*, iii. chap. vi. 89—'being secretary in Ireland he extorted most

outrageously and being expostulated with for it, answered, "What a pox, d'ye think I come here to learn your language?"

[91] Cardinal Moran's *Life of Plunket*, particularly chaps. vi. and xvii. Brady's *Episcopal Succession*, i. 227. Alderman Matthew Anderton to Perrott (Williamson's clerk), April 20, 1670, State Papers, *Domestic*. Patrick Adair's *Narrative*, p. 300.

[92] Carte's *Ormonde*. Remarks on the *Life and Death of Mr. Blood*, 1680. Verney *Memoirs*, iv. 228. *Letters to Williamson*, ed. Christie, i. 14, ii. 120. Sir Walter Scott made good use of Blood in *Peveril of the Peak*.

[93] Copy of the petition of November 28, 1670, appointing Talbot agent, *Trinity College MSS.* 844-849. Carte's *Ormonde*, ii. 426 *sqq.*, and Finch's Report of February 1, 1670-1, *ib.* appx. 91. State Papers, *Domestic*, July 2 and August 1, 1671, and also at p. 595 in *Cal.*

[94] Patrick Adair's *Narrative*, pp. 290, 303. Pepys' *Diary*, June 8, 1661. For details concerning Lady Clanbrassil (Lady Alice Moore), see Lowry's *Hamilton MSS.* Dorset's verses 'On an antiquated coquette' have been thought to refer to her.

[95] Dr. Lancelot Bolton to Conway, May 13, 1671, State Papers, *Domestic*. Armourer to Williamson, June 6, July 27, *ib.* Conway to Rawdon, June 20, *Rawdon Papers*.

[96] King to Lords Justices, May 22, 1661, State Papers, *Ireland*. King to Lord Lieutenant, February 26, 1671-2, State Papers, *Domestic*. Proclamation, *ib.* March 8.

[97] Rawdon to Conway, July 13, 1671, State Papers, *Domestic*. Leigh to Williamson, July 18, *ib.* Essex to Arlington, September 14, 1672, *Essex Papers*.

[98] Letter to Williamson, March 30, 1672, State Papers, *Domestic*, Phelim O'Neill to Conway, May 23, 1671, *ib.* The King to Berkeley, April 30, 1672, *ib.*

[99] Leigh to Williamson, May 19, 1671, State Papers, *Domestic*.

CHAPTER XLVI

GOVERNMENT OF ESSEX, 1672-1677

The corrupt administration of Berkeley and Leighton could not be called a success, and much to his own surprise the Earl of Essex was named for Lord Lieutenant quite early in 1672. He was made a Privy Councillor along with Halifax in February, and some thought that the latter would go to Ireland. Berkeley's letter of recall did not reach him till May, and he was forbidden to make any appointment during the remainder of his time, particularly in Dublin, where disorders had lately followed on a change of officers. Some years later the viceroyalty was offered to Halifax, but he said he did not like dining to the sound of the trumpet and with thirty-six dishes of meat. It is not easy to see what caused Essex to be selected, for he could never have been a party to the policy of the treaty of Dover. But his firmness of character was known, and Charles may have thought that by leaving Ireland in strong hands he made it easier to get his own way in England. ^[100]

The Earl of Essex
Lord Lieutenant.

Essex reached Ireland early in August 1672, and was involved at once in the business of the corporations, for the power to make rules under the Act of Explanation expired at Michaelmas. Berkeley's temporary regulations had been quite abortive, and one of his latest acts had been to recommend Totty as Lord Mayor for another year. The policy of the English Government since the Restoration had been vacillating. In 1661 the King gave orders that the Irish or Roman Catholic inhabitants of towns should be restored to trading privileges, and this was repealed in 1672. The first letter had, however, been followed by another, which expressly declared that it had never been His Majesty's pleasure to admit the Papists to any share in magistracy or

State of the
corporate towns.

government. In 1670 it was ordered that no one should act as head or member of a corporation without taking the oath of allegiance and such other oaths as were of force in Ireland. Thus the first question that Essex had to decide was whether the oath of supremacy should be enforced or not. He thought that it should be, as otherwise every corporation would be flooded with Roman Catholics. But he would allow the oath to be dispensed with by special favour. He believed that otherwise wealthy Protestant traders would withdraw themselves and their capital from Ireland. This policy was approved of, and Charles ordered the oath of supremacy to be enforced 'as a general rule,' and the dispensing power to be exercised by the Lord Lieutenant. This was in harmony with the Declaration of Indulgence which Parliament had not yet had an opportunity of condemning.^[101]

Rules were made for Dublin accordingly. To be of any effect the choice of Lord Mayor, Sheriffs, Town Clerk, and Recorder had to be ratified by the Lord Lieutenant.

New rules made.

In the case of the Lord Mayor, sheriffs, and treasurers the elective power was confined to the Lord Mayor and not less than eight aldermen. All officers, aldermen, common councillors, and members of guilds had to take the oaths of allegiance and supremacy, the like obligations being imposed upon foreign traders and artisans, who were encouraged to become denizens with the same privileges as natives. Power was reserved to the Lord Lieutenant to dispense with the oath of supremacy at his discretion 'by writing under his hand.' Similar rules were made for all the other corporations in Ireland, which thus retained their Protestant character until the viceroyalty of Tyrconnel. By the Act of Explanation, rules made in conformity with it had full statutory force and could not be abrogated without another Act, and no Parliament met in the meantime. The dispensing power was at once exercised, and some Roman Catholics were admitted as common councilmen with the King's full approval, who nevertheless suspended the operation of the rules by letter until they had been discussed in Council. Anglesey alone opposing, they were approved in due course. The delay caused Essex much trouble and annoyance, for copies of the royal missive were circulated with a view of impairing his authority. The most notable malcontent was the learned and eccentric Dudley Loftus, but the intrigues of Anglesey added fuel to the flame. Loftus, who was a master in chancery, publicly declared that the rules were illegal, which they certainly were not, and was placed under arrest by the

Lord Lieutenant. Complaints of the rules and petitions against them continued for some time, but they had the force of law and could not be interfered with. As the validity of the Acts of Settlement seemed to be attacked, there was general consternation among the holders of property, and the King was forced to declare that he had not the slightest intention of interfering with their operation.^[102]

Essex reported that the population of Dublin had almost doubled since the Restoration, and recommended that a citadel should be built to secure order. Lives having been lost in the bridge riots, there was an undercurrent of discontent which lasted for two or three years, and was sedulously fostered by one Nevill. This man had several aliases, and having been ‘a prompter to plays was afterwards Sir Ellis Leighton’s broker to make his bargains.’ The first thing was to decide as to the legality of the late proceedings. This was tried before the Privy Council, and Essex says he scarcely ever heard a clearer case. By a unanimous vote Sir William Davis was restored to the recordership and the excluded aldermen to their places. Sir John Totty lost his position as clerk of the tholsel, but continued to stir up discontent, in which he was supported by one Philpot, who had been under arrest for contempt of the Council’s decrees, and by three or four other agitators. ‘These have been observed never to be in their shops, but all day long at taverns or coffee-houses, perpetually sending about for several citizens, persuading them to further or promote these seditious designs, which prime movers are men of small estates, and no doubt their aim was to be employed as agents in England, thereby to have got some collection of money from the city, as a little before my coming one Nevill (an unworthy instrument of Sir Ellis Leighton’s) did.’^[103]

Agitators in Dublin.

The success of Swift’s attack upon Wood’s halfpence was partly owing to the fact that the Duchess of Kendal was intended to be a gainer. A much worse injury to Ireland was projected by Charles II. when he granted the Phœnix Park to the Duchess of Cleveland, who, if we are to believe Marvell, had already made 10,000*l.* out of Berkeley as the price of his office. Later on he was ready to bribe her successor if she would get him reappointed.

Phœnix Park granted to the Duchess of Cleveland.

Essex saves the park.

It was arranged that the grant of the park should not take effect in Essex’s

time, and Arlington, whose daughter was betrothed to the favourite's son, seemed to think that his consent was a matter of course. But Essex declared that the honour of his office was in his keeping and that the fact of his own immunity only made him the more determined not to injure his successors. To alienate the Phoenix Park would be to deprive every future viceroy of the only place where he could ride or walk in comfort, for the Castle was a house merely, and a very bad one. The venison was also a consideration. With the recent additions made under Ormonde, which had cost the King 10,000*l.*, the area of the park was over 2000 acres and its value was certainly more than double that sum. All this it was proposed to settle on the Duchess and her natural sons by the King successively in tail male. Shaftesbury was Lord Chancellor, and to him Essex appealed as the proper person to prevent this monstrous job. He reminded him that Charles II. had learned to appreciate a chancellor who repeatedly refused to obey him in making grants which he knew were against his interests. We have not Shaftesbury's answer, but the scheme was abandoned, though Essex was fain to find other lands of equal value for the rapacious Barbara. Ten years earlier he might have been unable to save the park, but poor Alinda was growing old and her numerous infidelities were well known to Charles. Nell Gwyn was and remained in favour, and Louise de Keroualle was fairly installed as the official mistress. ^[104]

Essex was ordered by his instructions to suppress the presidencies of Munster and Connaught which had been established in 1569. Ireton thought these provincial governments an unnecessary charge to the country, and Ormonde was much of the same opinion. Sir George Rawdon, who had found that Ulster did very well without a special governor, said it was 'better for a son to have only a father than a grandfather also.' Lord Berkeley, whose interest in the presidency of Connaught was merely pecuniary, objected to its abolition unless an income was secured to him; this was granted, and Lord Kingston, who was a local magnate and had done the work, was also provided for. Orrery secured royal favour by prompt resignation, and was very liberally treated as to money. He remained in command of the troops in Munster, but was refused leave to have six iron guns mounted at Castlemartyr, and his licence to keep cannon

The provincial
presidencies
suppressed.

at Charleville was also withdrawn. He was never trusted by Essex, and long cherished the hope of superseding him.^[105]

The Parliament which passed the Test Act was not likely to let Ireland alone. On March 8 the King cancelled his Declaration of Indulgence one month after he had publicly ‘resolved to stick’ to it. A week later the House of Commons took Irish grievances into consideration. Some Roman Catholics had been made Justices of the Peace and some admitted to corporations, and disorders had taken place. At Clonmel in particular, when the Protestant Mayor and corporation were returning on November 5 from the service commemorating the Gunpowder Plot, they were set upon by the mob, but no great harm was done. Archbishop Peter Talbot had been using his power to oppress loyal Papists, and the country was swarming with priests and friars. Colonel Richard Talbot had a troop of horse, and it was against him that the main debate turned, since he was agent for the recusants and had obtained the commission which was daily threatening the Revolution settlement. Henry Coventry used his influence to calm the House, but on the following day it was unanimously decided to address the King about Ireland.^[106]

Intolerance of the
English Parliament.

A week later the address was brought up and agreed to without a division. The Commons demanded that the commission of enquiry into the Acts of Settlement should be revoked, as tending to the overthrow of those Acts and the disturbance of the kingdom. They required that Papists should be disarmed and that none should be suffered to be or to remain Judges, Justices of the Peace, Sheriffs, Coroners, Mayors, Sovereigns, or Portreeves. Titular bishops and abbots, especially Peter Talbot, were to be exiled as well as all regular clergy, ‘Convents, seminaries, and other public Popish schools’ to be suppressed. English Protestant settlers were to be encouraged, and it was specially desired ‘that Colonel Richard Talbot, who has notoriously assumed to himself the title of agent of the Roman Catholics of Ireland, be immediately dismissed out of all command, either civil or military, and forbid an access to Your Majesty’s Court.’ Such was the result of the treaty of Dover and the second Dutch war.^[107]

Address of the
Commons.

In a letter of the previous year Charles had directed that there should be no further prosecution for things done during the Civil War, thus carrying out the principle of the Act of Indemnity. He hesitated about cancelling this wise letter, and took no notice of the demand that Richard Talbot should be forbidden the Court. But on every other point his surrender to the Commons' address was complete. It was known that Talbot had talked about his intention to tear up the Act of Settlement, but he was allowed to sell his troop and to go abroad. The Rupert commission of enquiry was recalled in July, after a debate in the English Privy Council, and the hopes of the dispossessed Roman Catholics were deferred until the day when Talbot should return in triumph to govern Ireland. In the meantime, Essex was ordered to encourage the English planters and Protestant interest and to 'suppress the insolency of Irish Papists.' A proclamation was accordingly issued forbidding them to keep firearms without a licence, but it was not very strictly executed, for the Lord Lieutenant discriminated between arms kept for offence or defence, and he had no intention of depriving gentlemen of their swords. By another proclamation titular bishops and other dignitaries, and all regulars were ordered out of the country, Peter Talbot being mentioned by name. Most of the bishops had to go, but there was a difficulty about the friars, because some of them had been useful, particularly the few remaining of Peter Walsh's party, whose lives would hardly be safe abroad. On this point Essex wrote direct to Ormonde, whose policy about dividing the Roman clergy he exactly followed. John O'Molony of Killaloe, 'the most dangerous because the wisest man of their clergy, made a composure of all the differences among the men of their religion,' and the only chance of profiting by their dissensions was to encourage a few friars 'who always have their little wrangles with the secular clergy.' O'Molony, who played an important part later, had private means, and Essex thought him a pensioner of France, whither he now retired. Talbot went to Paris. Oliver Plunket remained in Ireland, but he thought it prudent to hide for a time and suffered considerable hardship, though in his case Essex had certainly no wish to be strict. On the whole the proclamation was very slackly executed, of which there were many complaints, and the King enjoined increased severity. A second and more

The King's
surrender.

Proclamation
against titular
bishops.

Proclamation
against convents,
&c.

stringent proclamation was accordingly issued with orders that all ‘convents, seminaries, friaries, nunneries, and Popish schools in Ireland be forthwith utterly suppressed.’ Ordinary secular priests were not included in either proclamation and were not seriously interfered with. The bishops and friars were a great source of expense to the impoverished gentry, and the Lord Lieutenant thought their banishment would not be unpopular, but, he added, should it be resolved to use like measure with all the seculars, it must be remembered that there were several hundred thousand Roman Catholics in Ireland and he would not undertake to keep the peace without at least fifteen or twenty thousand men regularly paid and available for duty.^[108]

During the time of Berkeley’s viceroyalty and for long afterwards Ormonde was more or less in disgrace and was carefully excluded from consultations concerning Ireland. When Cary Dillon, afterwards Earl of Roscommon, asked for his help, saying he had no friends but God and his Grace, the Duke answered that no two persons had less interest at Court. But he had influence in Parliament, and Essex sent him his proxy early in 1674, hoped to see him soon in Ireland, and acknowledged former friendly offices. In July he arrived at Kilkenny, and the Lord Lieutenant again expressed a wish to see him and to have an opportunity of consulting ‘one of so much experience as your Grace in the business of this country and of whose integrity there is so large testimony, as it may seem a lessening to your Grace even to name it.’ This was almost an invitation to Dublin, but Ormonde’s short visit to the capital was not an unequivocal success. He was the first subject in Ireland, though out of favour at Court, and his popularity was evident. Perhaps Essex thought that he rather overshadowed him, or it may be that his visitor did not care about a private position in a city where he had always been the chief person. But the friendly attitude of the two men was nevertheless steadily maintained, though courtiers tried to excite mutual jealousy. Essex refused to build barracks at Clonmel without the consent of Ormonde, who was chief owner of the place, and thanked him in 1676 and 1677 for efficient parliamentary support. At this time Ormonde was again summoned to the Council and was sometimes consulted, though the King was as cold in his demeanour as ever. Buckingham’s influence was at an end, and Ormonde became Lord Lieutenant again. He was as anxious for his predecessor’s honour as if it had been his own, and reminded him that great

Ormonde and
Essex.

pains had been taken to make bad blood between them, but that he had nevertheless been always his sincere friend. [\[109\]](#)

During the whole time of Essex's government there was great trouble with brigandage. Every here and there some leader appeared who had suffered by the Settlement, and a band was soon formed. The Dutch war, the legislation against cattle, and the poverty of the country generally encouraged idleness, for there was no money to pay even those who were willing to work. The gaols were often crowded, but little justice was done, for the chief sufferers were the poor, and their helplessness made them afraid to give evidence. Orrery and most of the extreme English party wished for a strong Protestant militia, but against this Essex set his face. He said the regular army was able to keep order, and no doubt it would have been had it been regularly paid. A good deal of republican feeling lingered among the survivors of the Protectorate, and where the Scots were strong the militiamen would be sure to sympathise with the Presbyterians of Scotland whenever they made a move. Orrery would be over the militia, and would thus be able to advertise his Protestant zeal and to show his importance to the Lord Lieutenant's detriment. Essex said it would even be better to exercise martial law, an illegal course but one which had always been taken in Ireland when necessity required. He objected to giving a reward for bringing in offenders dead or alive, since it would lead to people wreaking private vengeance in the name of order. The worst outrages were in Ulster, but the mountainous parts of Kerry, Cork, and Waterford were seldom altogether free from predatory outlaws. In the winter of 1673-4 the Tyrone farmers had to seek refuge in the towns, and no one dared keep any money at home. Before the end of January some thirty offenders were taken and hanged, but the horses in Sir George Rawdon's troop were worn out before the spring by bad quarters and 'jaunting after tories.' Before midsummer Essex was fain to issue a proclamation against giving protections to robbers and Tories, advantage having been taken of them to commit murder and burglary with impunity. A month later there was a further proclamation reciting an Act of Henry VI., which authorised all persons to kill any one found housebreaking by day or night, a reward for so doing to be levied off the barony. But in the following winter Armagh was again infested by highway robbers. In the year before the proclamation communications between Cork and Kerry were interrupted, and some

The Tories still
troublesome,

especially in Ulster.

parish priests in the latter county declared their willingness to excommunicate all Tories, murderers, thieves, and robbers with their aiders and abettors, and generally to help the authorities provided they were not required to give evidence themselves. [\[110\]](#)

Before Essex had been three years in Ireland there were many schemes for upsetting him and many rumours as to his successor. Orrery, Halifax, Lauderdale, Ormonde, and Conway were all named, but there seems to have been no real intention of recalling him. In the summer of 1675 he went to England for what he meant to be a short visit. The King said he wished to consult him on Irish affairs, and named the Primate and Sir Arthur Forbes as Lords Justices. Essex had asked for such an opportunity of explaining matters as had been twice allowed to Strafford, of clearing up the remaining difficulties under the Act of Settlement, of making arrangements for collecting the revenue, and of discussing measures for an Irish Parliament in contemplation. On reaching London he found that he had enemies at Court, but that they had made no impression on the King. Revenue matters detained him unexpectedly for several months, during which he frequently met Ormonde at the Privy Council, and for a long time after this there was no further misunderstanding between them. [\[111\]](#)

Essex goes to England.

Richard Jones, Viscount Ranelagh, Orrery's nephew and grandson of the prelate who had married Tyrone to Mabel Bagenal, had been much befriended by Ormonde, who procured his appointment as Chancellor of the Exchequer in 1668. The insight thus obtained into Irish finance no doubt caused him to conceive the idea of getting the whole revenue into his hands. The opportunity was afforded by Lord Aungier the Vice-Treasurer, who produced a paper showing the state of the finances for the five years ending with Christmas 1670. Ranelagh offered to collect all the taxes and to pay all the expenses of government. The revenue at this time amounted to about 200,000*l.*, consisting of quit-rents and other land taxes, and of imposts settled upon the Crown by the late Parliament independent of anything that subsidies might produce. These were the customs and excise leviable according to rates fixed by law, ale-house duties, and the hearth-money granted as compensation for the abolition of knight-service and of the Court of Wards. Two shillings upon

Financial irregularities, Lord Ranelagh.

Hearth-money.

every fireplace or stove does not seem a very heavy charge, but it was leviable by distress and involved domiciliary visits, and it was manifestly unfair as between rich and poor. It was abolished in England by William III., but continued long afterwards in Ireland. 'It still remains,' wrote Howard in 1776, 'a most oppressive burden on the occupiers of the wretched hovels in many parts of this kingdom.' In the hands of farmers it was capable of great abuse. Ranelagh and his partners were given complete control of the finances from Christmas 1670 to Christmas 1675, and the Vice-Treasurer was forbidden to interfere with them. The farmers behaved after their kind. Poor men were often charged twice over, but the establishment expenses were nevertheless badly paid. In the summer of 1676 nine months' arrears, amounting to 139,000*l.*, were due to the army alone, and an unpaid army, Essex truly said, was like tinder. He could not rest well until he saw these poor creatures righted. He believed that if the Lords Justices had had 10,000*l.* they might have nipped the rebellion of 1641 in the bud, but the Exchequer was empty and they had no credit. He himself was in much the same position, and there were small mutinies at Drogheda and Kinsale. Everything connected with the army was out of order. There were scarcely 300 barrels of good powder in the country, nor 500 good muskets. 'There is not one company in the whole army completely armed, their muskets being many of them out of order and of different bores and the pikes half of them broken, all guns and fieldpieces in the several garrisons generally unmounted.' Ranelagh was himself made Vice-Treasurer in June 1674, so that there was no supervision whatever. ^[112]

Though deprived of effective control Essex tried to keep the farmers in order, but they appointed numerous private collectors, and it was almost impossible to say who had a right to demand money. Moreover, the King and the Lord Treasurer did what they could to thwart him, and a letter signed by the one and countersigned by the other blamed him obliquely for 'encroaching on the office of our said Vice-Treasurer.' Many allowances were made for Ranelagh and much extra time was given him, but he could not be brought to account. The real reason of the extraordinary favour he enjoyed at Court doubtless was that he gave Charles ready money behind the Lord Lieutenant's back, and if it be true that one of his daughters became the King's mistress, as Henry Sidney reports, that might be an additional argument. Both Cleveland and Portsmouth made money out of Ireland. The

Essex, Ranelagh,
and Ormonde.

King cared more about putting cash into his Privy Purse than about the public service. His state policy was influenced by this, as Louis XIV. well knew, and smaller people could play the same game. In March 1677, Ranelagh at last handed in an account up to the end of 1675, but declared that it was not final and that the items were liable to reconsideration. As it was confessedly imperfect, Essex refused to pass it. In the meantime, Ranelagh had fallen foul of Ormonde, attributing his own troubles to the mismanagement of Irish finance in the ten years preceding 1671, during the greater part of which the Duke was Lord Lieutenant. Ormonde had not much difficulty in defending himself, and retorted by showing how oppressive had been the system of collection under Ranelagh. The inferior tax-gatherers did not hesitate to remedy their own deficiencies by squeezing those whom they thought unable to defend themselves. On the Ormonde estate alone 13,000*l.* were demanded from tenants who were able to show that they owed only 657*l.*, and where less powerful landlords were involved it was easy to imagine that the irregularities would be still worse. The King, after a full enquiry, exonerated Ormonde from all blame, but continued to heap favours on Ranelagh, who received an Earl's coronet at the end of 1677. In 1681 a very large sum was still due, which Charles freely forgave. At a later date Ranelagh was Paymaster-General for many years, and was expelled from Parliament in 1702 for defalcations amounting to 72,000*l.* [\[113\]](#)

Essex returned to Ireland in May 1676, but it did not seem likely that his future stay would be long. The King was inclined to think that he had been viceroy long enough, and there were plenty of candidates for the succession. Ormonde wished to be back in the Government, but in the meantime he supported Essex.

Scheme to make Monmouth Viceroy.

Charles sups with Ormonde.

He has, wrote Aungier, now Earl of Longford, 'stuck to your Excellency with the zeal and courage of a true friend.' Danby, who was not particular in money matters, supported Ranelagh, but the King refused to order Essex to pass an unsatisfactory account. Early in 1677 Ranelagh and Danby, with the help of the Duchess of Portsmouth, devised a scheme for making Monmouth Lord Lieutenant. He was to remain in England while Conway governed Ireland as Deputy with part of the salary and allowances, paying a round sum down and defraying many expenses himself. Ormonde said he would never visit Ireland while Conway governed it, and sought the help of

the Duke of York, which was readily given. At the beginning of April Charles, who had not spoken to Ormonde, sent him word that he would come and sup with him. A splendid repast was provided at a cost of 2000*l.*, and before leaving the King announced his intention of making his host Lord Lieutenant. Yonder, he said next day, ‘comes Ormonde; I have done all I can to disoblige that man, and to make him as discontented as others, but he will not be out of humour with me, he will be loyal in spite of my teeth, I must even take him in again, and he is the fittest person to govern Ireland.’ Long before, to judge by their demeanour, Buckingham had remarked that it was hard to say whether the Duke of Ormonde was in disgrace with the King or the King with the Duke of Ormonde. Essex was recalled with many handsome expressions, his successor stipulating that the same complimentary words should be used as in his own case. The letter had been signed, but Charles made the desired addition on the margin in Coventry’s presence. The new appointment was made without consulting Danby, and Essex was told that he might appoint Lords Justices and come away or wait for Ormonde’s arrival, just as he pleased. [\[114\]](#)

With all his diligence Essex had not succeeded in getting rid of the Tories and other disturbers of the peace. Orrery was an alarmist, but he found it hard to get even murder punished. One very bad offender had his bonds cut by an Irish constable, and many local magistrates ‘living in lone houses, fearing their activity might cause revenge, are remiss.’ Lord Massereene reported that the southern part of Londonderry county was full of idle people ‘supporting themselves and their clans by the spoil of others.’ In Connaught Dr. Thomas Otway, Bishop of Killala, was particularly active, and had an equally low opinion of the justices, but approved the conduct of some Scottish iron-workers who cut off the heads of such Tories as they could catch. ‘This chopping of their heads doth much more terrify others from running out than hanging, though that doth pretty well when they come to it, but it is a long time first, they have so many friends not only Irish but English and some of them sitting on the bench ... all our justices are tantum non Presbyterians and I wish they were but tantum nons.’ The Presbyterians, said Otway, were nearly as subtle proselytisers as the Jesuits, and many scandalous papers against episcopacy were in circulation. Even the gentle Margetson reported that there were great meetings for no good, though they

Ireland terrorised
by outlaws.

were professedly only to ‘hear the word.’ Considering the state of Scotland at the time there was some cause for alarm.^[115]

Ormonde left London early in August 1677, and paid his first visit to Oxford as Chancellor by the way. He entered the town from the east with at least fourteen coaches and accompanied by the Duchess and several ladies. Anglesey was one of those who travelled with him. It was market day and the High Street was crowded with butchers’ stalls, but the Chancellor halted at St. Mary’s and heard a speech from South, who had long been public orator. From Carfax to Christ Church the street was lined by the undergraduates, more speeches being delivered at various points, and there was a dinner at Magdalen. The next day being Sunday the Lord Lieutenant heard two sermons at St. Mary’s and dined with Bishop Fell at Christ Church. Next day twenty-two degrees were conferred at the Chancellor’s request. Fell had begged him to be merciful, as plenty of unworthy persons might take advantage of such an opportunity, but Ormonde said he would be responsible for his men. They were nearly all more or less connected with Ireland, among them being Lord Longford, Sir Robert Southwell, and Robert Fitzgerald, who played a distinguished part in 1690. Then there was another speech from South, and Ormonde set out at once for Holyhead by the Banbury road. He had to time the journey so that all his coaches could pass by the beach round Penmaenmawr, over which there was no road. At Dublin he was received with great honour. To show his sense of the Duke’s friendly behaviour, Essex had not applied for Lords Justices as he had leave to do, but handed over the sword himself. There was not to be another change as long as Charles II. lived.^[116]

Ormonde returns to the Government.

Irish doctors at Oxford.

FOOTNOTES:

^[100] Arlington to Essex, January 6, 1671-2, *Stowe MSS.*, vol. cc. Orrery to Essex, February 3, *ib.* Burnet’s *Own Times*, i. 396, 476. The King to Berkeley, April 30, 1672, State Papers, *Domestic*.

^[101] Essex to Arlington, August 24, 1672, *Essex Papers*. The King to Essex, August 31, *ib.*

^[102] The rules under the 82nd clause of the Act of Explanation are printed in *Irish Statutes*, iii. 205 *sqq.*, under 25 Car. II. The slight difference in the case of Drogheda seems to arise from the fact that rules had been made for that town by

Ossory in 1668, see Essex's letter of August 17 and D'Alton's *Hist. of Drogheda*, i. 191. Essex to Arlington, January 20, 1672-3, and July 19, *Essex Papers*. Proceedings in the English Privy Council reported by Southwell, *ib.* July 26. The King to Essex, November 5, 1672, and January 14, 1672-3, State Papers, *Domestic*.

[103] Essex and Boyle to Arlington, September 21, 1672, State Papers, *Domestic*. Essex to Arlington and to the King, July 22, 1673, *Essex Papers* to W. Harbord, *ib.* March 21, 1673-4; to Danby, February 10, 1674-5, *ib.* Totty carried his grievances to London, and on June 15, 1675, Essex described him to Coventry as the 'principal incendiary in Dublin, a trooper many years in Cromwell's army, wretchedly poor and has patched himself up by presents and otherwise out of collections from several corporations of the city, to encourage and promote these broils.'—*Essex Letters*, p. 345.

[104] Andrew Marvell's letter of August 9, 1667, *Works*, ii. 392. In his *Last Instructions to a Painter*, 1667, he says Castlemaine was growing old, but she was then only twenty-six. Essex's three letters to Shaftesbury, March 8, April 12, and May 3, 1673, are printed in full in Christie's *Life*, appx. iv. Warrant for the grant, February 26, 1672-3, State Papers, *Domestic*. Godolphin to Essex, July 16, 1674, *Essex Papers*, vol. i. H. Coventry cautiously resisted a grant to Nell Gwyn, *Essex Papers*, ed. Pike, 145.

[105] Essex to Arlington, September 17, 1672, State Papers, *Domestic*. Berkeley to Arlington, July 10, 1673, *ib.* The King to Essex, January 13, 1674-5, *ib.* Orrery to Essex, August 16, 1672, *Essex Papers*; Essex to Arlington, August 27, *ib.* And for Orrery's case, see *Liber Munerum Publicorum*, Part ii. 185. He tried to keep an annual allowance of 66*l.* for house-hire after the Munster Presidency was abolished, but Essex had it stopped, State Papers, *Domestic*, 1675, pp. 502, 558.

[106] Grey's *Debates*, ii. 118-129, 132, March 17 and 18, 1672-3. For the Clonmel riot see Ford to Arlington, November 25, 1672, and Essex to same, February 18, 1672-3, State Papers, *Domestic*.

[107] The text of the address is in Grey's *Debates*, ii. 159, March 29, 1673.

[108] *Letters to Williamson*, ed. Christie, July 4, 1673. Letter from the Privy Council ordering compliance with the Commons' address, September 26, 1673, State Papers, *Domestic*. Essex to Capel, October 13, *Essex Papers*; to Arlington, October 28, *ib.*; to Ormonde, November 14, *ib.*; to W. Harbord, January 25, 1673-4, *ib.* Ormonde to Essex, December 9, *ib.* The proclamations of October 27 and November 8, 1673, and April 27, 1674, are in State Papers, *Domestic*, with the King's letter of March 31. Brady's *Episcopal Succession*, ii. 120.

[109] Essex to Ormonde, February 3, March 10, July 8, September 3, 1673-4, *Stowe MSS.*, vol. ccxiv.; September 12, *ib.* vol. ccxvi.; March 6, 1676-7, *ib.* vol. ccxvii. Ormonde to Essex, April 20, 1677, *ib.* vol. ccxi. Carte's *Ormonde*, ii. 443, 446. Writing to Ranelagh on June 1, 1675, Essex notes 'what an interest remains of a great man who commanded here many years, by reason of the absolute power he had of gratifying multitudes of people.'—*Essex Letters*, p. 299.

[110] Sir George Rawdon's letters from 1673 to 1675 in State Papers, *Domestic*. Sir Henry Ingoldsby to Lord O'Brien, *ib.*, January 26, 1673-4 Proclamation of

March 2 and December 14, 1674, June 10 and July 7, 1675, *ib.* Letters during the same period in *Essex Papers*, pp. 117, 148, 177, 264; proposals from Kerry priests, *ib.*, p. 306.

[111] Essex to the King, to Danby, and to Coventry, May 22, 1675, *Essex Letters*.

[112] Ranelagh's patent was dated August 4, 1671. Essex to Danby, March 11, 1676; to the King, September 8; and to Ormonde and Orrery, September 12, *Stowe MSS.*, vol. ccxvi.; to Orrery, January 30, *ib.* vol. ccxvii. Howard's *Hist. of the Exchequer*, i. 89. Macaulay's *History*, chaps. iii. and xi. Petty's *Treatise on Taxes*, chap. xv. 11.

[113] W. Harbord to Essex, April 4, 1674, *Essex Papers*. Conway to Essex, *ib.* p. 221. Essex to H. Coventry, May 22, 1675, *Essex Letters*, much more outspoken than those of the same date to Charles and Danby. Lord Lieutenant and Council to Williamson, March 2, 1676-7, *Stowe MSS.*, vol. ccxvii. The contest between Ormonde and Ranelagh is given in Carte's *Ormonde*, ii. 451-463, including the scene at the Privy Council in November 1675, and Ormonde's written defence after Ranelagh had given particulars on March 1, 1675-6, also his memoir for the King in 1675, *ib.* appx. no. 92. After reading Ormonde's statement Essex wrote to him on May 23, 1676, that he was right, *Stowe MSS.*, vol. ccxvi. Ormonde to Essex, July 2, *ib.*, vol. ccx. Burnet's *Own Times*, i. 398, and Airy's note. See the article on Ranelagh in *Dictionary of National Biography*. Henry Sidney's *Diary*.

[114] Longford to Essex, August 26, 1676, *Stowe MSS.*, vol. ccx. H. Coventry to Essex, July 5, 1676, *ib.*, January 9 and April 20, 1677, *ib.* vol. ccxi. Sir H. Capel to Essex, April 16, 1677, *ib.* Clarke's *Life of James II.*, i. 507. Carte's *Ormonde*, ii. 463-466. Writing to Essex at the moment of his recall Ormonde says, there have been and will be great pains taken to stir up bad blood between them, but that he will always be truly his friend, April 20, 1677, *Stowe MSS.*, vol. ccxi.

[115] Orrery to Essex, December 15 and 29, 1676, *Stowe MSS.*, vol. ccx. Bishop of Killala to Essex, January 22, February 14, March 28, 1677, *ib.* vol. ccxi. Primate Margetson to Essex, August 26, 1676, *ib.* vol. ccx. Massereene to same, October 31, *ib.*

[116] A. Wood's *Life and Times*, ed. Clark, ii. 385. Carte's *Ormonde*, ii. 465-469. Essex to Ormonde, April 28, 1677, *Stowe MSS.*, vol. ccxvii. Ormonde to Fell, June 16, and to Essex, August 4, *Ormonde Papers*, N.S.

CHAPTER XLVII

GOVERNMENT OF ORMONDE, 1677-1685

On his return to Ireland Ormonde was at once involved in revenue difficulties. Ranelagh was allowed to collect arrears long after his contract had expired, and the Lord Lieutenant had the worst opinion of Sir James Shaen, who was the chief man among the new farmers. Indeed it was amply proved that great abuses are inseparable from a system of farming, and that a complete change would have to be made. The farmers, said Petty, 'have done all that knaves and fools and that sharks and beggars could do.' He was himself named as one, but Ranelagh and Shaen managed to keep him out, and he had endless trouble with them. The system indeed was essentially bad. The army was too weak, but small as it was the pay was always in arrear. Ormonde saw his way to increasing the revenue gradually, and was anxious to increase the army too, but not until accounts could be balanced. He proposed to hold a Parliament and obtain twelve subsidies amounting to 180,000*l.* payable in three years. But the farmers of the revenue objected to this on the ground that the additional burden on the taxpayer would make it impossible for them to fulfil their contracts. The King, Coventry wrote, 'is much more desirous of a revenue than subsidies, and would have your chief application be to improve that to 300,000*l.* a year, and he hath commanded me to tell your Grace you may assure them it shall all be spent in the kingdom and none sent over hither.'^[117]

Revenue abuses.

In June 1678 it was decided that there should be a Parliament before Christmas, and the heads of sundry bills were sent over. The work of the Land Settlement was incomplete, and there was much property without a clear title and liable

A Parliament contemplated.

to be seized under one pretence or another. Borrowing an expression from Temple, Essex, who also desired to hold a Parliament, declared that the lands of Ireland had been 'a mere scramble,' that the minds of all men were consequently disturbed, English settlers frightened away, and the application of capital prevented. The King was fully aware of this, but he added to the confusion by making grants of concealed lands to importunate suitors. Things were particularly bad in Connaught and Clare, where the transplantation had made titles even more uncertain than elsewhere. Charles was induced to withdraw some of his piratical letters, but the courtiers were not much discouraged in their endeavours to obtain Irish estates without paying for them. Ormonde now had a Bill prepared to put an end to this state of things, but there was great opposition to it on the ground that it would confirm intruders who had entered on lands to which they had no right. It was proposed to have a commission lasting five years for the confirmation of titles, but it was feared that this would expose all alike to the danger of having to take out new patents. A Bill of Oblivion was also under consideration, by which malicious prosecution would be prevented for offences of very old date, but it was not likely that this would pass easily in a legislature where the Adventurers and soldiers commanded a majority. Old arrears of taxation were also to be wiped out. It was further proposed to modify the intolerable burden of the hearth-money, the collectors having power to seize the poor cabin-holder's bed and the pot in which he boiled his potatoes. The loss of revenue was to be made up by increased licensing and excise duties. But all these plans were destined to come to nothing, for on September 28 Oates and Tonge appeared before the Privy Council. ^[118]

Unceasing scramble for land.

Proposed remedial legislation.

According to the first informers Ormonde was to be murdered as well as the King. The Protestants were to be massacred as in 1641, and Ireland taken charge of by a papal nuncio with the assistance of Louis XIV. A little later the extreme Protestants were denouncing the Lord Lieutenant as favourable to the plot. He hardly knew what to make of the news, and even Coventry was puzzled for a time. Orders of the most stringent kind were soon sent from England, and there was nothing to do but to obey them. The English Government were assured not only that Ormonde was to be killed through Peter Talbot's contrivance, but that the

The Popish Plot.

Alarmist measures.

nuncio had been already sent, and also 40,000 black bills to arm the Irish. Ormonde was at Kilkenny when he received Southwell's letter with a report of the first day's proceedings at the English Privy Council. 'I have the honour,' he said, 'to be singly named with the King. Who may come in after I know not, but sure His Majesty was to be better attended than by me alone.... I hope I shall rather go alone than in the company they designed me; though it be the best in the world.' On his return to Dublin he found Archbishop Talbot already in close custody. 'Peter Walsh,' he wrote, 'is able to say something of Peter Talbot's threats against my life, but I would not have him called to testify anything without his own free consent.' Officers and soldiers were recalled to quarters, and the oath of supremacy ordered to be strictly enforced. Popish residents for twelve months in garrison towns were not disturbed, but strict rules were made against fresh ones coming in, and in the cases of Drogheda, Cork, Wexford, Limerick, Waterford, Youghal, and Galway, fairs and markets were to be held outside the walls. Roman Catholics were forbidden to keep arms without licence, and their dignitaries as well as all Jesuits and regulars were ordered to leave the kingdom. As usual in former cases, the latter order was very imperfectly obeyed, and three months later a reward was offered for apprehension of the most important ecclesiastics—ten pounds for a bishop or Jesuit, and five pounds for any of the others. ^[119]

William Ryan, superior of the Jesuits, was apprehended, but there was nothing material against him and he was put on board a ship bound for foreign parts. Orders came from England to arrest Lord Mountgarret, but he was bedridden, and that was considered to be imprisonment enough. His son Richard, a foolish young man with a sensible wife, was arrested and so was Colonel Richard Talbot, but the latter was allowed to go abroad as his health suffered from confinement. No evidence of any plot was discovered, but anonymous letters were scattered about the streets of Dublin professing to give information of a conspiracy against Ormonde's life, and a reward of 200*l.* was offered by proclamation for a full discovery. In the meantime he was accused in London of treating the Protestants badly, and Anglesey in his character of candid friend carefully related all that he heard. One charge was that the Lord Lieutenant had given twenty-one days to the Papists for the surrender of their arms, thus warning them to hide all weapons, 'whereas in 1663 the poor English were searched by surprises and their

Ormonde accused
of favouring the
Papists.

arms taken away and not restored to this day.’ To this the answer was easy, that the Roman Catholics, being fifteen to one, could not be quickly disarmed, and that firearms concealed in damp cellars would soon be very harmless. As to the plot of 1663, it was the work of persons who were Protestants only in so far that they did not call themselves Papists, but who were as ready to upset governments and murder kings as any disciple of Suarez. He was accused of neglecting the safety of Dublin and of keeping the powder carelessly in a dangerous place, but he showed that the garrison was sufficient, that the magazine was where he found it, and that there was no other available building. As to having Papist soldiers in Ireland, they were sent there by the King, who had recalled them from the French service, and he wished them away ‘but not in France lest we should have them here too soon again.’ The last article of accusation mentioned by Anglesey was that Lord Mayor Ward was a dull fool, but to this the Lord Lieutenant had a full answer: ‘He had wit enough to get to be rich and an alderman, and I think by those steps men get to be Lord Mayors. If I could have foreseen the plot I would have interposed for an abler politician.’ Anglesey made great professions of friendship, but neither Ormonde nor Ossory trusted him. ^[120]

Students of Irish history have to guard themselves against seeing things too exclusively through Ormonde’s eyes. He looms so large, compared with other Irish or Anglo-Irishmen of his day, that there is some danger of being unjust to others. But Burnet was not an admirer of his, yet he stigmatises Anglesey and Orrery, his chief critics, as ‘two men of a very indifferent reputation.’ Anglesey indeed, he says, was very corrupt, ‘stuck at nothing and was ashamed of nothing.’ His letter, mentioned above, was no doubt mainly founded on Orrery’s information. The ex-president, whom Ossory called the ‘Charlatan of Munster,’ was a persistent alarmist who posed as the champion of the Irish Protestants and thought the Lord Lieutenant altogether too favourable to the Roman Catholics. A French invasion was, in his view, a thing to be daily expected, and the preparations to oppose it were quite insufficient. He was still major-general in his own province and wished to be at the head of a great Protestant militia, about the embodiment of which he thought the Lord Lieutenant too inactive. There does not seem to have been any idea of a French descent on Ireland, and after the conclusion of the peace of Nimeguen there could be no real danger. But

Ormonde and
Orrery.

Orrery continued to complain of inadequate military arrangements, and to lament that the Irish Government were blind to the Irish ramifications of the plot. He was not satisfied with warning statesmen in England, but circulated his complaints among courtiers and private members of Parliament, thus aggravating the general atmosphere of suspicion and panic. Ossory complained to the King, who merely said that he knew Orrery for a rogue and that he would ever continue so. No French soldiers came, and no attack on Protestants was made until Charles II. and Ormonde were both dead and until the latter's policy had been completely reversed. Ormonde tried to end the controversy with his critic by one full letter, but gave it up in despair, 'his lordship being impossible to be satisfied and of inexhaustible invention.' After Orrery's death in October 1679, his sister, Lady Ranelagh, continued to make mischief in Munster, but she was 'not so inventive.'^[121]

Shaftesbury used the plot for all it was worth. As to Ireland, he said, 'I am credibly informed that the papists have their arms restored, and the Protestants are not, many of them, yet recovered from being the suspected party. The sea-towns, as well as the inland, are full of papists. That kingdom cannot long continue in the English hands if some better care is not taken of it.' That this was a reflection on Ormonde no candid reader will deny. And the speech as spoken may have been a good deal stronger than the version published by Shaftesbury. But he afterwards declared that his real object was to attack Lauderdale, and that much more was said about Scotland. Ossory, however, who was an old antagonist, took up the cudgels in what Achitophel's apologists call a violent manner. His answer was at once printed in Holland, and William of Orange admired it greatly. Ossory was wrong in saying that Shaftesbury advised the stop of the Exchequer, but he said nothing against it, and he was Lord Chancellor at the time. The most faithful of biographers could not deny the *delenda est Carthago* speech. But Ossory's language, though in the main justified by facts, was not opportune, and both Arlington and Southwell advised his father to write in an apologetic or at least pacific strain. He did so, very much against the grain, congratulating Shaftesbury upon becoming President of the Council. He regretted Ossory's speech, but could not be 'much offended at the mistake or transport of a near relation, who might imagine I was glanced at, in which of all things in the world he knew I was most tender in, and valued myself most upon, and I take the liberty to believe that supposing the case your own, your lordship would

Shaftesbury attacks Ormonde.

have the same indulgence for a son of yours.’ This was all, he told Southwell, he could ‘obtain of himself to say.’ Shaftesbury took no notice of the letter, but he received it, and Christie found the original among his papers nearly two hundred years later.^[122]

Sir William Temple’s attempt to bridle the House of Commons with a Privy Council of thirty is well known. It was to consist half of official and half of independent members, and there was to be no cabinet. The landed property of this body of magnates would nearly equal that held by the Lower House in the aggregate. Barillon saw at once that the plan would not work. The new Council was too large for an executive and could not have the authority of a legislative body. Having with great difficulty been induced to admit Halifax, the King, much to Temple’s disgust, brought in Shaftesbury and made him President. The result was that a cabinet was almost immediately formed consisting of Temple himself, Sunderland, Secretary of State; Essex, First Lord of the Treasury; and Halifax, who was soon afterwards made an Earl. Shaftesbury was surrounded by another little knot of advanced exclusionists, and intrigue was the order of the day. It was again reported that Halifax would be Lord Lieutenant. He refused the offer, though some of his friends thought that he had been appointed. Essex, on the contrary, was most anxious to return to Ireland, both the emoluments and the position being to his taste. He kept up an interest in the country by supporting Sir James Shaen and the revenue farmers who gave Ormonde so much trouble and prevented him from having leave to hold a Parliament. In the following year his designs on the viceroyalty were clearly visible. ‘My Lord,’ said Shaftesbury, ‘if you will come in to us never trouble yourself, we will make you Lieutenant of Ireland.’ Temple calls these shameless words, but they had no direct result. It does not appear that the King had any idea of superseding Ormonde.^[123]

Intrigues about the viceroyalty.

No evidence bearing upon Oates’ plot had been discovered in Ireland, but Shaftesbury did not neglect that fertile field. There was a scheme to remodel the Irish Government without Ormonde, his place being filled by Orrery, Conway, or Granard. That cowardly villain, Lord Howard of Escrick, was thought of for Chancellor, and the Council was to be filled with the most extreme men of the Protestant party. But the King would have nothing to

‘The Plot’ in Ireland.

say to this precious plan, and it came to naught. Under orders from England, Ormonde sought for witnesses, but their stories did not fit in with those that had been told in London. The first Irish case of any importance was that of Richard, Earl of Tyrone, whose professed Protestantism was perhaps naturally doubted, since he became a Roman Catholic at the beginning of the next reign. He declared, however, that he was ready to sacrifice himself for the Protestant religion in which he had brought up his two sons. He had committed one Hubert Bourke, an attorney, for an assault upon a smith named MacDaniel, and Bourke, being a man of bad character, was unable to get bail. While in Waterford gaol he made charges against Tyrone, who was summoned to Dublin and examined by the Council. Nothing of importance appeared, but the Earl was indicted at Waterford Assizes, in August 1679, for conspiring to bring in the French. The Grand Jury ignored the bill, and Bourke's evidence of treasonable talks was not believed. A further indictment in the following March had the same fate, Chief Justice Keating presiding on both occasions. Another informer, a Limerick gentleman named David Fitzgerald, made similar charges against Lord Brittas and others, whom he accused of a comprehensive scheme to massacre the Protestants and bring in the French. Some of the accused were bailed for want of evidence, and in other cases bills were ignored by the Limerick Grand Jury. Oates' patrons in Parliament found it necessary to take other measures, and the hatching of an Irish plot was entrusted to a sub-committee consisting of Shaftesbury, Essex, Burlington, and Falconberg. A Mr. Hetherington, apparently a person of some education, acted as agent and stage-manager for Shaftesbury.^[124]

Tyrone was married to Anglesey's daughter, and an attempt was made to implicate the latter, but it was too absurd to have any success. He was himself confined for some time in the Gatehouse, and the Lords declared themselves fully satisfied that there was and long had been 'a horrid and treasonable plot and conspiracy, contrived and carried on by those of the Popish religion in Ireland for massacring the English, and subverting the Protestant religion, and the ancient established government of that kingdom.' They desired the concurrence of the Commons, about which there was no difficulty, but Capel, Hampden, and Russell were determined to involve James, and it was added to the Lords' vote 'that the Duke of York's being a Papist, and the expectation of his coming to the Crown, hath given the greatest

Abortive charges of treason.

countenance and concurrence thereto as well as to the horrid Popish Plot in this kingdom of England.’ According to the Maguire precedent Tyrone could be tried as a commoner in England, but the House preferred to resolve unanimously that he should be impeached of high treason. The charge came to nothing, for Parliament was dissolved a few days later. For the same reasons the proceedings against Thomas Sheridan were dropped, and he played an important part in Ireland during the next reign. He was a son of Dennis Sheridan, who befriended Bedell and others in 1641, his brother was Dean of Down and became a bishop next year. Being imprisoned by the House of Commons on vague and almost unintelligible charges, he sued out his Habeas Corpus, and when other judges shirked the task Baron Weston had the courage to grant it. The impeachment of Weston had also been voted for something he said at the Kingston Assizes. Sheridan told the House that he had defended the Protestant faith against the Jesuits and against friars of every order, that he had communicated yearly since he was seventeen, and that he had taken the oath of supremacy eleven times. [\[125\]](#)

To expose once more the perjuries of Oates and his imitators is but to slay the slain. Charles never believed in the plot, but he took no steps to check the panic, and there was a golden time for spies and informers. On returning from Kilkenny in October 1679, Ormonde found Archbishop Talbot a close prisoner in Dublin Castle. He had been long living openly and unmolested in his brother Richard’s house. Archbishop Plunket had been quiet in his province since the departure of Essex, but came to Dublin in November 1679 to attend the deathbed of his relative, the aged Bishop of Meath. A few days later he was arrested by a party to whom Hetherington acted as guide. For a few weeks his imprisonment was close, but there was nothing against him, and the rule was soon relaxed. He was a prisoner only because he had not left Ireland under the late proclamation, but a case of high treason was gradually trumped up. The witnesses were instructed in London, and Ormonde, rejecting their application for a postponement, had the venue laid at Dundalk, where both they and the prisoner were known. The result was that no evidence was offered and no Bill found. This was in July, and the case was then adjourned to Dublin, where the witnesses were in less danger of being arrested as thieves and Tories. The Archbishop petitioned that he

Spies and false witnesses.

Oliver Plunket accused.

might be tried by a Louth jury, for even a jury of Protestants who knew him and his accusers were not to be feared. Before this point was finally settled, orders came that he should be sent to London for trial, and he was lodged in Newgate before the end of October 1680. Neither Ormonde nor his son Arran thought the witnesses deserving of credit, but the latter foresaw that they would be believed in England and that the Archbishop's fate was certain. [\[126\]](#)

Ormonde thought that the evidence against Plunket was strong enough if uncontradicted to justify his being sent for trial. But it is not easy to reconcile the statements of liars, and the Westminster Grand Jury ignored the Bill. The foreman, who was a zealous Protestant, told Burnet that the witnesses evidently contradicted each other, and when we consider their characters it is hard to see how they could be believed under any circumstances. John MacMoyer and Hugh Duffy were Franciscans of bad reputation—who consorted with the Tories and were suspended by the Archbishop. Edmund Murphy, the parish priest of Killeevy, was also implicated in the prevailing brigandage, and the respect due to him may be measured by his sworn admission that it was indifferent to him whether he was a Protestant or a Priest. Another witness was Henry O'Neill, who was hanged at Mullingar for robbery a few months later, having fully confessed his perjuries, which were chiefly instigated by John MacLane, a suspended priest, who had also been one of the witnesses and was then in prison on a charge of robbery. Henry O'Neill's son Neill also appeared against the Archbishop. Other witnesses were Florence Wyer, related to MacMoyer; Owen Murphy, who did not pretend to know anything; John Moyer, who retailed gossip gathered in Italy and Spain; and one Hanlet or Hanlon, who did much the same. These nine men, carefully selected out of a host of informers, swore away Plunket's life with the entire approval of three judges and of a deluded public. [\[127\]](#)

Plunket sent to
England for trial.

The witnesses having been better drilled, a True Bill for High Treason was eventually found, and on May 3 the Archbishop was arraigned at the bar of the King's Bench. He was told that the abortive proceedings in Ireland had not led to a trial, and that he might therefore be legally tried in England for treason committed beyond channel. There

A true bill found.

Nature of the
evidence.

were precedents for this, and it is only necessary to mention the case of Lord Maguire in 1645. Plunket then asked time to get his evidence from Ireland, and the trial was fixed for June 8, five weeks off. This seems a liberal interval, but in reality it was wholly insufficient, for the Archbishop had hardly any money and expeditious travelling was expensive. Moreover, the officials in Ireland would not give copies of necessary records without an actual order of the Court. 'The servants,' he said, 'that I sent hence and took shipping for Ireland were two days at sea and came back again, and from thence were forced to go to Holyhead and from Holyhead, in going to Dublin, they were thirteen or fourteen days, the winds were so contrary, and then my servants went about to go into the counties of Armagh and Derry.' Even willing witnesses, being Roman Catholics, were afraid to start without passports. The prisoner only asked for an adjournment till the 21st, when he was satisfied to be tried whether they had arrived or not. Some of them had got as far as Coventry on the day of the trial, but he was told that he had already had an extraordinary allowance of time and that the fears and hesitations of Irish witnesses were beyond the control of the Court. The keynote was struck by Sawyer the Attorney-General: 'May it please your Lordship and you gentlemen of the Jury, the character this gentleman bears as Primate under a foreign and usurped jurisdiction will be a great inducement to you to give credit to that evidence we shall produce before you.' Wyer was the first witness, and he showed that Plunket received money and exercised jurisdiction among the clergy, but failed to connect him, except through the loosest hearsay, with any plot. There had been intrigues with France in 1667 following upon the disappointment of the Irish after the Act of Settlement, and there was an attempt to make out that the conspiracy had gone on ever since and that the Archbishop was at the head of it, the object being to further a French descent at Carlingford. In Wyer's evidence, and in that of other witnesses, papers were frequently referred to, and MacMoyer produced two, of which one purported to be a translation from a copy made at Capranica, near Rome, five years before, but which the Archbishop said was an absolute forgery. The other was a copy in Plunket's own hand of statutes, as they were called, concerning clerical contributions from Ireland to Rome. Both documents were confessedly stolen out of a packet addressed to the Secretary of Propaganda, and the original had been altered by interpolating a figure. Edmund Murphy, who took credit for being one of the first discoverers of

the plot, but was now an unwilling witness, tried to avoid repeating what he had sworn before the Grand Jury, and said he had forgotten it. He hesitated and prevaricated, though pressed by the Court, and in the end he was committed. When the evidence for the Crown was concluded, a person in Court, whose name is not given, handed Plunket a slip of paper with the names of three persons who had received subpœnas. David Fitzgerald, who might have helped him if he had had the courage to appear, did not answer his name, nor did Eustace Comyn, whose ‘mad narrative,’ as Ormonde called it, was an important element in the mass of hearsay and falsehood. The third was Paul Gormar, who said he had never heard anything against Plunket, and believed he had done more good than harm in Ireland. [\[128\]](#)

According to the barbarous practice of the age Plunket was not allowed counsel, and had to fight his battle alone before hostile judges, against Sawyer, Jeffreys, Finch, and Maynard. His witnesses did not arrive in time. He did not deny that he had exercised the jurisdiction of a popish Primate to the full, but as to the French invasion it was ‘all plain Romance—I never had any communication with any French minister, cardinal, nor other.’ As to his plan for having 70,000 men to welcome the French at Carlingford, a glance at the map of Ireland would show that it was a most unsuitable place for a descent. He might be convicted of a præmunire under the Act of Elizabeth, but as to treason he was quite innocent, ‘as you will hear in time, and my character you may receive from my Lord Chancellor of Ireland (Archbishop Boyle), my Lord Berkeley, my Lord Essex, and the Duke of Ormonde.’ According to Pemberton there could not be a greater crime against God than trying to propagate the religion of Rome, that, he said, ‘was the bottom of your treason.’ The chief justice prided himself on the eminent fairness of a trial in which he had constantly leaned against the prisoner. He had had five weeks to prepare his case, and it was no concern of the Court if that time was insufficient or if a priest educated abroad was ignorant of the formalities necessary to obtain copies of records. On the scaffold at Tyburn Plunket repeated his protestations of innocence. He was executed on the same day as Fitzharris. The credulity of the public was, however, nearly exhausted. [\[129\]](#)

Unfairness of the trial.

Execution of Plunket.

According to what Echard believed to be unquestionable authority, Essex told the King that the charges against Plunket could not be true, and that Charles said the Earl might have saved him by saying as much at the trial, but that he himself dared not pardon him. Burnet seems to admit the royal plea as to Coleman because ‘the tide went so high.’ But two and a half years later it had much subsided, and there was little to be afraid of after the dissolution of the Oxford Parliament. At the time of Plunket’s trial Hetherington, who had contrived his arrest, was in prison for seditious speeches. A cloud of Irish witnesses continued to obscure the truth, and the weapon which Shaftesbury had sharpened was soon turned against him. David Fitzgerald shifted with the tide, and from being an informer became conspicuous against the plot, and declared his intention to ‘break Shaftesbury’s knot.’ He said he could get forty Irishmen for 40*l.* to swear whatever he wished, and that Hetherington and the other witnesses were all rogues, thieves, gaolbreakers, and turbulent persons. Soon after the judicial murder of Plunket Ormonde began an action of *scandalum magnatum* against Hetherington, who was bailed by Richard Rumbold, the Rye House conspirator. The evidence at the trial was strong and the defence weak, so that a substantial Surrey jury found a verdict without leaving the Court. The damages were assessed at 10,000*l.*, though Ormonde had only asked for 1000*l.*, and Hetherington went to prison in default of payment. Shaftesbury had already died in exile, and the Irish witnesses were no longer paid or countenanced. Ormonde had long before said they were all perjurers who ‘went out of Ireland with bad English and worse clothes and returned well bred gentlemen, well caronated, periwigged and clothed. Brogues and leather straps are converted to fashionable shoes and glittering buckles, which next to the zeal Tories, thieves, and friars have for the Protestant religion, is a main inducement to bring in a shoal of informers.... The worst is they are so miserably poor that we are fain to give them some allowance; and they find it more honourable and safe to be the King’s evidence than a cowstealer, though that be their natural profession.

[\[130\]](#)

Character of the witnesses.

Ormonde’s estimate of the evidence.

In 1680, about the time of Sir Miles Stapleton’s acquittal at York, but before the trial of Lord Stafford, Castlehaven contributed to the general confusion by publishing his memoirs. As a Roman Catholic royalist with a good personal

Castlehaven’s Memoirs.

record for courage and honourable conduct, he had not been molested, but his little book gave great offence to those who were interested in the parliamentary settlement of Ireland. Anglesey lost no time in answering Castlehaven, whom he calls 'an enemy as keen as generous,' condemning the whole conduct of the late war and asserting that the 'Irish did the English more hurt and advantaged themselves more by the cessation and two first peaces than ever they did or could do by force after the first massacre.' This was to reflect on Charles I., who had ordered the truce of 1643 and the peace of 1646, and upon Charles II., who had confirmed the peace of 1649. As to the Irish, they were all guilty of treason and liable to forfeiture, their grievances being dismissed as 'crocodile tears and groundless complaints.' Ormonde, whose relations were all Roman Catholics, had helped them, but was himself a great gainer by the confiscations, and so were Arlington and the Duke of York. The King did not at first take the trouble to read Anglesey's pamphlet, but he let it be known that he thought an answer was required. Ormonde hesitated about a printed controversy with 'a man I have seen detected in public of misinformation and mean artifices for sordid sums and yet never blush at the matter, but appear the next day as brisk and confident as his favourite Thornhill, when convicted of forgery in an open full court.' A year later, after the Oxford dissolution, he saw less reason for caution, and published a letter in which he says he had at first supposed Anglesey's production to be that of a suborned libeller. It was reported that his opponent was writing a regular history, and he was ready to help him with documents contradicting his endless misstatements. As for the present instalment he supposed it would be allowed to die after it had 'performed its duty in coffee-houses.' Anglesey printed and circulated an answer, asking for particulars and threatening revelations, especially as to Ormonde's peaces with the Irish. He employed Edmund Borlase to write a second answer to Castlehaven, condemning the peaces and reflecting on Ormonde's conduct throughout the Civil Wars. [\[131\]](#)

Anglesey answers him.

When Ormonde returned to London in May he found the controversy raised by Anglesey raging, and a general expectation that his antagonist should be fully answered, if not by him, at least by an inspired writer. By this time the King had Anglesey's pamphlet at his fingers' ends, talked of it to all about him, and fully justified Ormonde's conduct as to the first truce and two subsequent

Anglesey is turned out of office.

peaces with the Irish. In his application to the King and Council Ormonde said he had been in constant intercourse with his assailant for twenty years without hearing of the accusations now made, which were evidently timed to suit the prevailing atmosphere of suspicion. Anglesey's knowledge of Ireland could not be denied, and 'his pretended candour and impartiality' might make people believe him. The accuser now became the accused, and he was carried before the Council in a fit of gout. Finding little disposition to favour him, he boldly denied their authority to try a peer for pretended libelling, and demanded an impartial jury. Charles's answer was to deprive him of the Privy Seal and give it to Halifax, whose services against the Exclusion Bill were thus in some degree rewarded. ^[132]

Brigandage in one form or other had annoyed all governors for centuries. As the tribal system yielded gradually and grudgingly before English law, there was never any lack of discontented men who would fight but who would not work. The 'swordsmen' whom Chichester strove to employ in foreign wars became 'tories' later, and after that 'rapparees,' when the older title had been assigned to an English party. The most famous leader of these outlaws was Redmond O'Hanlon, an educated gentleman who had lost his property through the operation of the Acts of Settlement and Explanation. He had been abroad, and his exploits were chronicled in France as those of Count Hanlon. For many years he kept great part of Ulster in terror, many murders being charged against him. He sometimes retired to Connaught, and even ventured upon raids in the south. His chief place of abode was in the mountains to the north of Dundalk. From the ranks of the Tories came many of the witnesses for the plot, and spies retained for one purpose could often be used for another. At the end of 1680 there was a reward of 200*l.* for Redmond's head and 100*l.* for his brother Loughlin's. Redmond's bitter enemy was Edmund Murphy of Killeavy, who had to pay him regular tribute, and it may be that he put Ormonde on the scent. The Lord Lieutenant gave a special commission to Lieutenant William Lucas, who by a judicious use of threats and money procured the death of Redmond in the following April and of Loughlin a little later. Sir Francis Brewster, when reporting the death of Redmond O'Hanlon, had to go back to the fifteenth century for a parallel—'considering the circumstances he lay under and the time he continued, he did in my opinion

Irish outlaws.
Redmond
O'Hanlon.

things more to be admired [that is, wondered at] than Scanderbeg himself.’^[133]

The destruction of the O’Hanlons did not put an end to Ulster brigandage, and Captain Hamilton, who was indefatigable against the outlaws, earned the title of Tory Will. In Leinster the O’Brennans, who had lost most of their land in Strafford’s time, were the most troublesome, and in Munster Richard Power was the chief offender. Hugh Anderton, one of Ormonde’s chaplains, was attacked while reading the burial service in his own parish of Kilmallock, and he died of his wounds. There were riots in Tipperary, and the O’Brennans were bold enough to enter and rob Kilkenny Castle which the Lords Justices had omitted to watch. Primate Boyle said ‘Power is an absolute ubiquitous, and tarries in no place long enough to be discovered and taken. He is sometimes in the county of Waterford and sometimes in Kilkenny, and immediately after we hear of his pranks in the county of Limerick and in Kerry and Cork.’ At last a spy earned the fifty guineas which was his share of the price placed upon Power’s head. He was surrounded by soldiers in a house near Charleville and made a desperate resistance. As he refused quarter, the officer in command ordered the building to be set on fire. Power yielded rather than be burned to death. He was brought out badly wounded, and hanged at Clonmel three weeks later, ‘dying very magnanimously by the help of three bottles of sack, which he took that morning for his morning’s draught.’^[134]

Southern Tories.
Richard Power.

Ormonde was in England from the end of April 1682 until August 1684, leaving his son Arran as Deputy, who did very well but without rivalling his much lamented brother. There were two quiet years in Ireland, but for the trouble given by the Tories. Yet sufferers by the Act of Settlement had not been silenced, and it was thought possible at Court to make peace by confirming the titles of men in possession on payment of fines, out of which some compensation might be given to those who had just claims but for whom there was no available land. Ormonde’s brother-in-law, Colonel John Fitzpatrick, who was one of the more fortunate Recusants, favoured the new plan, and a commission was issued in March 1684 to the Chief Governor, the Chancellor, the heads of the Treasury, and

Renewed attack on
the Settlement.

A Court of Grace
established,

which effects very
little.

several of the judges, under which a Court of Grace was established. It did not sit until June, and was then occupied by disputes about fees which were to be reduced to the detriment of existing officials. The terms of the Commission were so wide that all patents had to pass that way. Richard Talbot was no doubt favourable, for he was at this time urging his co-religionists to moderation. Fitzpatrick had already been under the lash of the House of Commons, and the Court of Grace was evidently disliked by the extreme Protestant party, who were against anything tending to modify the operation of the Act of Explanation. It was believed that some of the fees were to go to the Duchess of Portsmouth. Anglesey attacked the Commission violently as soon as its provisions were known and before he had seen the text. He said it would only enrich lawyers and officials, who were too well off already, and the wrongdoers, who had for years been holding lands to which they had no title. The Court of Grace had not time to do much, for the Commission expired with Charles II., and three weeks after his death it was known that it would not be renewed. Talbot, who then became Earl of Tyrconnel, no doubt saw his way to something much more drastic. [\[135\]](#)

In spite of commercial restraints Ireland had prospered under Charles II. The revenue doubled in twenty years. At first money had to be sent from England, but later there was a surplus, which the King promised should be spent in the country. Yet it was often not so spent, though the soldiers' pay might be in arrear. Charles's leniency towards Ranelagh may be explained by His Majesty having received money without accounting for it publicly. The system of farming was at last condemned after much unseemly wrangling between Ranelagh and Sir James Shaen, which some well-informed people thought a sham. The former had been Vice-Treasurer since 1674, and was dismissed in 1682, but in spite of his huge defalcations he was well compensated for loss of office. The collection of the taxes was handed over to Revenue Commissioners, with Lord Longford, a skilled financier, at their head. [\[136\]](#)

In May 1682 Ormonde reached London, and the Duke of York finally came back from Scotland. From that until the end of the reign the heir-presumptive exerted a great though not always a paramount influence. The Rye House plot and other events connected with it had

Last days of
Charles II.

The policy of the
next reign

nothing to say to Ireland, so that when Ormonde returned to his government in August 1684 he had no reason to expect any change, and he left Halifax and Rochester to struggle for supremacy. Before the month was out the former had succeeded in driving his rival from the Treasury and seeing him 'kicked upstairs' to the presidency of the Council. Rochester hardly attempted to hide his vexation in writing to Ormonde: 'The King hath given me a great deal of ease and a great deal of honour.' In the meantime, James was planning the new policy for Ireland which he was so soon and so unexpectedly enabled to carry out. The first thing was to separate the command of the army from the Lord Lieutenancy. Ormonde could hardly be deprived of privileges which he had always enjoyed, and the scheme was kept secret until his back was turned. Sunderland proposed to get rid of Rochester by sending him to Ireland; and Richard Talbot was above all things anxious to have Roman Catholic officers appointed. The King was induced to write a letter saying that it was absolutely necessary for his service to make great changes in Ireland, both civil and military. This would involve parting with some office-holders whom Ormonde had appointed. Rochester had, therefore, been chosen to succeed him whose ability was not doubtful and who would be agreeable to him on account of near connection by marriage. He might choose his own way of surrendering office, and live either in England or Ireland. If he preferred the latter, Charles would see that proper respect was paid him, and would in any event treat him with unabated confidence. It was Ormonde's principle to honour and obey the King, but in writing to his intimate friend Southwell he confessed to being out of countenance, though at his age he was not sorry to be relieved. And when he heard that the restrictions on his successor were so great as to deny him power to appoint a single subaltern, then he admitted it would have been very hard for him to fill the place, though duty would not let him 'refuse to serve the King upon any terms or in any station. From this difficulty, I thank God and the King, I am delivered.'^[137]

foreshadowed.

Recall of Ormonde.

Rochester was not destined to cross St. George's Channel on this occasion. Charles II. died on February 6, 1685. Within six weeks Halifax lost the Privy Seal, though he had been the chief instrument in securing James's succession, and Rochester became Lord Treasurer. Sunderland, who had voted for the Exclusion Bill and whose intrigues reached everywhere, remained a

Death of Charles II.

Secretary of State. A few days later the Chancellor-archbishop Boyle and Lord Granard were made Lords Justices by patent to take effect as soon as it suited Ormonde's convenience to swear them in. This was done on March 20, and by the end of the month he was in London, having been met on the road by an unprecedented number of coaches. St. James's Square was crowded with people who had no coaches, but who showed their admiration of his character by their shouts. In the month following the late King's death there had been more robberies in Ireland than during a whole year before, the Tories expecting that there would be no circuits and perhaps pardons at the coronation. ^[138]

FOOTNOTES:

^[117] Fitzmaurice's *Life of Petty*, p. 174. H. Coventry to Ormonde, June 18, 1678, *Ormonde Papers*, N.S. Carte's *Ormonde*, ii. 469-473. 'The Earl of Essex told me that he knew the King did often take money into his privy purse to defraud his exchequer,' Burnet, i. 398.

^[118] Essex to Harbord, March 28, 1674, *Essex Papers*. H. Coventry to Ormonde, June 18, 1678, *Ormonde Papers*, N.S. Longford to Ormonde, *ib.* August 24, September 14, and October 5, Carte's *Ormonde*, ii. 472.

^[119] A brief account of the conspiracy, &c., *Ormonde Papers*, N.S., iv. 181, calendared at August 13, 1678, but the date must be considered doubtful. Southwell to Ormonde, September 28, *ib.* p. 454. Ormonde to Lord Chancellor Boyle, October 7, *ib.* Narrative of proceedings of Lord Lieutenant from October 7, 1678, to April 5, 1679, transmitted to Coventry, *Ormonde Papers*, 1st series, ii. 254. Ormonde to Southwell, October 5, *ib.*, and the proclamations, *ib.* pp. 350-359. Account of the public affairs in Ireland since the discovery of the late plot, London, 1679 (after April 7).

^[120] Anglesey to Ormonde, November 23, 1678, and the answer, November 29, which was considered satisfactory, *Ormonde Papers*, N.S. Ossory to Ormonde, October 23 and December 10, *ib.*

^[121] Among the many letters in *Ormonde Papers*, vol. iv., the following are the most important: Ossory to Ormonde, November 26, 1678; Ormonde to Burlington, December 21; Ormonde to Orrery, January 11, 1678-9 (unfinished, with the above quotation endorsed); Burlington to Ormonde, January 10; Orrery to Lord Chancellor Boyle, January 28, and the answer March 8. A correspondent of Ormonde, writing from London, May 13, 1679, says, 'Lady Ranelagh defames your Grace more maliciously than ever, and there have been and daily are frequent meetings, both public and private, for that purpose.'

^[122] Shaftesbury's speech, March 25, 1679, is in his *Life* by Christie, ii. appx. vi., and Ormonde's letter to him, May 25, *ib.* ii. 337. Ossory's speech and William of Orange's comments (French) in Carte's *Ormonde*, ii. appx. 93 and

94. Ormonde to Southwell, May 24 and November 8, *Ormonde Papers*, 1st series, ii. 288, 293. Southwell to Ormonde, *ib.*, N.S., April 22, iv. 505.

[123] 'Monsieur Barillon said it 'was making *des Etats* and not *des conseils*,' Temple's *Memoirs*, 3rd part. Many details in Courtenay's *Life of Temple*, chap. xxiv. See the remarks in the second chapter of Macaulay's *History*. Henry Savile to Halifax, May 17, 1679, in *Savile Correspondence*. Halifax favoured the reappointment of Essex in 1679, Burnet, i. 470. Later on Shaftesbury accused him of bargaining with the Court to make him Lord Lieutenant, *ib.* 537.

[124] *Lords Journals*, xiii. 643. *Hist. MSS. Commission*, xi. 2.

[125] Grey's *Debates*, December 9, 10, and 15, January 6 and 7, 1680-1. Burnet's *Own Times*, i. 485. An independent version of the January debates in *H.M.C.*, 12th Report, appx. ix. 106.

[126] Plunket's account of the proceedings at Dundalk and afterwards in Cardinal Moran's *Life of him*, p. 289. Arran to Ormonde, November 6, 1680, *Ormonde Papers*, v. 477, and April 16, 1681, *ib.* vi. 36. *The present state and condition of Ireland*, but more especially of the province of Ulster humbly represented to the kingdom of England by Edmund Murphy secular priest and titular chanter of Armagh, and one of the first discoverers of the Irish Plot, London, 1681.

[127] Francis Gwyn to Ormonde, February 12, 1680-1, *Ormonde Papers*, v. 580. Ormonde to Arran, February 19, *ib.* 586. Burnet's *Own Times*, i. 502. Moran's *Life of Plunket*, chaps. xxv. and xxvi. Writing to Sir John Malet, May 13, 1679, Orrery says Murphy had deposed very circumstantially at Dublin, but was said to be a man of crazed brain and therefore not much to be believed, *Additional MSS.* 32095, f. 186.

[128] *State Trials*, iii. 293.

[129] *State Trials*, *ut sup.* For the opinion of Essex and the King's comments on it, see the notes to Airy's edition of Burnet, ii. 292, and Burnet's own opinion. Luttrell does not seem to have had much misgiving, for he considered the charge fully proved and 'the defence very weak, alleging only that he wanted his witnesses and papers which were in Ireland,' June 9 and July 1, 1681. *Hibernia Dominicana*, p. 130.

[130] *The Irish evidence convicted by their own oaths* by W. Hetherington, London, 1682. Power of attorney from Ormonde, September 1, 1681, *Ormonde Papers*, vi. 306; to Arran, June 26, 1683, *ib.* vii. 52. Luttrell, March 26 and May 3, 1683. Newsletter to Lady Weymouth, May 3, *Additional MSS.*, 32095, f. 212. Ormonde to Arran, November 17, 1681, in appx. to Carte's *Ormonde*, no. 126, contains the curious word 'caronated.' It appears in the original MS., but the late Sir James Murray was unable to pronounce on the etymology. Writing to Ormonde on May 20, 1682, Arran says, nine of the King's witnesses petitioned for not less than 20*l.* apiece. He gave 40*l.* among them, 'part to defray their charge at the inn where they lay, the rest to carry them home, where I doubt not but they will follow their other trade and come to the gallows that way.'—*Ormonde Papers*, vi. 365.

[131] Burnet, who was not prejudiced in Ormonde's favour, says (i. 97) Anglesey 'stuck at nothing and was ashamed of nothing,' that he was loved and

trusted by no man of any party, had no regard for truth or justice, sold everything and 'himself so often that at last the price fell so low that he grew useless.' Essex thought he intrigued against him, and Lord Mountjoy said he had no friends. Correspondence in the *Ormonde Papers*, beginning with Lord Burlington's letter of October 12, 1680, and Ormonde's of February 19 following. Mountjoy's narrative in 2nd Report of *Hist. MSS. Commission*, p. 213. *Athenæ Oxonienses* (Bliss), iv. 181. I have used the Dublin 1815 reprint of Castlehaven's *Memoirs* from the revised edition of 1684: Anglesey's letter is appended. In the *Supplement* to his History, ed. Foxcroft, p. 62, Burnet says Anglesey 'often begun a speech in Parliament all one way and (upon some secret look that wrought upon him) has changed his note quite and concluded totally different from his beginning ... I never knew any one man that either loved him or trusted him.'

[132] *A true account of the whole proceedings* between his Grace James Duke of Ormonde and the Rt. Hon. Arthur Earl of Anglesey, late Privy Seal before the King and Council, London, 1682 (attributed to Bishop Morley). Lord Longford to Ormonde, February 25, 1681-2, and March 28, *Ormonde Papers*, vi. 324, 325. Foxcroft's *Life of Halifax*, i. 360. Luttrell, August 10, 1682. Anglesey's account of the Irish Civil War is unfortunately lost. His son told John Dunton that the MS. was in hands which would not let it all appear, Dunton's *Conversation in Ireland*, 1699.

[133] Carte's *Ormonde*, ii. 512; *Ormonde Papers*, vols. v. and vi., particularly Captain Charles Poyntz to Sir William Flower, May 3, 1681. Edmund Murphy's pamphlet quoted above. Other details in Prendergast's *Cromwellian Settlement*, 2nd edition, p. 352, and in the same writer's *Ireland from the Restoration to the Revolution*. Notes to Hill's *Montgomery MSS.*, p. 119. Article on Redmond O'Hanlon in *Dict. of National Biography*.

[134] Letters in vol. vii. of the *Ormonde Papers*, particularly W. Hamilton to William Ellis, January 2, 1683-4; Primate Boyle to Ormonde, October 3, 17, and 27, 1685; Longford to Ormonde, October 27.

[135] Arran's letters of May 27 and 30, and June 5, 1684, in *Ormonde Papers*, vol. vii.; Anglesey to North and Halifax, *ib.* March 13; Sir C. Wyche to Ormonde, *ib.* February 24, 1684-5. Cox's *Hibernia Anglicana*, ii., Charles II., p. 16. *Secret Consults of the Romish Party*, London, 1690, p. 40.

[136] Statement of Revenue for 1664, signed by Anglesey as Vice-Treasurer, March 20, 1664-5, State Papers, *Ireland*: the total is 153,205*l.* 19*s.* 8*d.* Abstract of Revenue for 1683 in appx. v. to *Clarendon and Rochester Correspondence*, vol. i.: the total is 300,953*l.* 17*s.* 6*d.* *Liber Munerum Publicorum*, part ii. 133. Among a host of letters in *Ormonde Papers*, see particularly Longford to Ormonde, March 21, 1681-2, vi. 349, and Arran's letter with Report on arrears following September 22, 1683, *ib.* vii. 135. See also the article on Ranelagh in *Dict. of National Biography*.

[137] Charles II. to Ormonde, November 19, 1684, Carte's *Ormonde* ii. appx. 128. Ormonde to Southwell, *ib.* 135 and 139. Rochester to Ormonde, August 26, *Ormonde Papers*, vii. 266.

[138] Carte's *Ormonde*, ii. 542 *sqq.* Ormonde to Sunderland, March 6, 1684-5, in *Ormonde Papers*, vii. 266.

CHAPTER XLVIII

CLARENDON AND TYRCONNEL, 1685-1686

As soon as the bad news reached him, Ormonde called the Council together. All leave was stopped, officers were ordered to their quarters, and on the following day King James was proclaimed with great pomp, but with many gloomy forebodings among the Protestants of Dublin. The Lord Lieutenant's commission expired with Charles II., Lord Granard and Archbishop Boyle remaining Lords Justices. But Ormonde gave a dinner to all the officers then in Dublin, at the Royal Hospital, just built most appropriately upon the site once occupied by the Priory of St. John and dedicated to the use of worn-out soldiers. Raising his glass, he said, 'Look here, gentlemen! They say at Court that I am now become an old doating fool; you see my hand doth not shake, nor does my heart fail, nor doubt but I will make some of them see their mistake,' and so drank the new King's health. He then left Ireland for the last time. On the road he chanced to see in the *Gazette* that his regiment of horse had been given to Richard Talbot without any notice to him. Many of those Protestants who were in a position to do so, followed their protector to England, many sought the colonies, and the shadow of coming change was over those that remained. Even before Ormonde's arrival in London, rumours were rife there that the repeal of the Act of Settlement was intended. [\[139\]](#)

Accession of James II., February 1685.

Public uneasiness.

Just three months after his accession, James made Talbot Earl of Tyrconnel. The new peer was soon back in Ireland busying himself in remodelling the army, though Granard ostensibly remained at its head, much blamed for his complete surrender to the favourite. Monmouth's invasion gave an excuse for

Purging the army.

disarming the Protestant militia; he was outlawed as in England, and the arrest of those who spread his declaration was ordered. Irish troops were sent to Ulster, and communications with Scotland were maintained by sea, with a view to frustrating Argyle's expedition. In the meantime the cashiering of English officers and the substitution of Irish ones went on steadily. Soon after the failure of both the English and Scotch adventurers, Tyrconnel and Granard jointly reported that they had made many changes, but that those who lost their commissions were mostly somebody's servants, 'no officers and good for nothing, as most of the lieutenants and cornets of this army are at present.' Colonel Justin MacCarthy asked for the dismissal of Captain Bingham, absent without leave, and the appointment of Thomas Nugent, who had served under him in France, and had lost an estate during the usurpation. One reason given for taking their arms from the militiamen was that they were often carelessly kept, and might get into bad hands. In the autumn the arms surrendered were accordingly stored at Dublin or Athlone for Leinster; at Cork, Kinsale, Limerick, Waterford, and Duncannon for Munster; at Galway or Athlone for Connaught, and for Ulster at Londonderry, Carrickfergus, and Charlemont. Tyrconnel knew where to find them when they were wanted for his own purposes later. ^[140]

Tyrconnel, though as yet only a colonel, assumed the position of an Inspector-General, and everybody gave way to him because he was believed to represent the King's views. Orders were given to get rid of all officers and soldiers who had served under Cromwell, upon which Ormonde remarked that there were indeed a few who, after serving Charles I. to the end, and Charles II. after Worcester, 'took service in Ireland against the Irish barely for subsistence, and yet had served the Crown as long as it had a foot of ground to fight upon.' To represent such men as Cromwellians was a cruel injustice, and some of them were among the best in the army. 'This I take to be the case of one Quartermaster Benson in the Lord Blessington's troop, and may be of more in the army.' His representations were allowed no weight, and he believed that officers appointed by him were more certain to be cashiered than others. ^[141]

Influence of
Tyrconnel.

Rochester as Lord Treasurer, and his elder brother Clarendon as Lord Privy Seal, seemed all-powerful for a time, since their royal brother-in-law was still anxious to

Clarendon made
Lord Lieutenant.

conciliate the Church of England, and fidelity to that Church was the one point upon which the Hydes showed resolution. In other respects they were both very subservient, and the King hoped that the doctrine of Filmer's foolish book would prevent them from ever asserting their independence. To get him out of the way, Sunderland had recommended Rochester for the Lord Lieutenancy, and for the same reason Rochester recommended Sunderland; but neither of them would go. In September, Clarendon was nominated, to the general joy of the Church party, but the best informed did not envy his position. He was not required to resign the Privy Seal, but Commissioners, of whom John Evelyn was one, were appointed to do the work during his absence in Ireland. Tyrconnel prepared to go to England, where he might undermine the Viceroy by his direct influence with the King. Even among those of his own religion, his schemes caused an uneasy feeling, and the gallant Colonel Grace, who became Governor of Athlone, put information which reached him from Ireland into Clarendon's hands.

[\[142\]](#)

The new Lord Lieutenant left London on the 16th of December, escorted by the fashionable world in two hundred carriages, some of which went as far as St. Albans. He did not reach Dublin until January 9, his mode of travelling being leisurely in the extreme. At Coventry he met a servant of Sarsfield, who expressed surprise, the latest letters from England saying that his appointment to Ireland was cancelled. The same man announced that Tyrconnel was just leaving for England. Clarendon noted that the two Coventry churches were well filled, thanks to 'executing the law upon the non-conformists in making them pay.' He was sumptuously entertained at Chester and at St. Asaph, where he heard many stories about Tyrconnel. One of them was that he entered the church at Whitechurch where a Talbot was buried whom he claimed as ancestor. 'This church,' he said, 'was in better order when you took it from us Catholics, but we shall have it shortly again, and then you shall pay for all.' There was in those days no road over Penmaenmawr, and it was customary to send heavy vehicles by water from Chester or Neston. Sometimes the journey could be made from Conway by the sands, but on this occasion tides did not serve. To Clarendon's great surprise his servants managed to drag the carriages over the mountains, the horses drawing in single file and four or five men shoving behind, 'so that this journey will be famous, three coaches and a waggon having been

Clarendon's arrival,
January 1686.

brought over Penmaenmawr.’ Lord Bulkeley entertained the Lord Lieutenant at Beaumaris, the terrors of the Menai Straits were successfully overcome, and the sea-sick company reached Dunleary at last, in the early morning of January 9. The Primate sent his coach, and Clarendon was sworn in the same day, his head still swimming from the waves. ‘I have,’ he told the Council, ‘the King’s command to declare upon all occasions, that whatever imaginary (for they can be called no other) apprehensions any men here may have had, His Majesty hath no intention of altering the Acts of Settlement.’ Tyrconnel reached London on the same day, having purposely missed the Lord Lieutenant at Holyhead, though he thought it worth while to give out that he was most anxious to meet him. ‘Count Tyrconnel is come,’ says a London letter, ‘and kindly received as he can wish: played the devil on the road for horses.’^[143]

Just before Clarendon’s departure for Ireland, the French King took a step which profoundly affected the history of Europe, and of England and Ireland particularly. After having long been shamelessly infringed, the Edict of Nantes was formally revoked in October 1685. The Protestant Chapel at Charenton was pulled down by the mob of Paris. It was pretended that there were no longer any heretics in France, and that therefore the law which still partly protected them, was no longer necessary. In official correspondence, the reformed faith was known as the R.P.R. (*religion prétendue réformée*). Thousands conformed insincerely, but a vast number preferred expatriation at the risk of their lives, and carried their industry, their skill, and some of their capital into Holland, Germany, and England. The tale which these refugees had to tell fell upon no deaf ears, and great sums were subscribed for their relief, but James II. took care that as many as possible should remain unrelieved. The newspapers and gazettes controlled by the Court were silent on the subject of the persecutions, but private letters of news got into print, and the appearance of the fugitives in person was more eloquent than any article. The King could not prevent a great collection in their favour, but he directed that no one should benefit by it who would not take the Anglican sacramental test. Sincere French Calvinists were thus excluded from relief. This was the period of his reign when James, deceived by the slavish doctrines of some High Church divines, thought it possible to be a despot with the help of the Established Church. When he found that there were limits to what that Church would bear, he turned to the Nonconformists in

Revocation of the
Edict of Nantes.

the name of religious liberty. After the failure of his schemes, the victorious Protestants were guilty of grievous persecution, but they remembered that James was the ally of the King who had ruthlessly destroyed the religious liberties of his own subjects. ^[144]

While Huguenot visitors excited the anger and pity of English Protestants, Irish Roman Catholics kept pouring into London to remind them of dangers nearer home. Tyrconnel's countrymen gathered round him, and it was soon known that he would return to Ireland as generalissimo, and that great military and judicial changes would follow. Rumours of all this, and even the names of those who were to lose their places and of their successors were known in Dublin long before any intimation was given to the Lord Lieutenant, who found that he had very little power. The archbishopric of Cashel was vacant, and he proposed to fill it by making two translations and a new appointment: 'though there be but one see vacant, yet, for the enlargement of His Majesty's first-fruits, and to make them as considerable as I can upon this occasion, I have humbly proposed these removes.' This was for the King, but in writing to Sancroft the Lord Lieutenant did not think it necessary to mention his plan of supporting the Church by taxing her. The process was too slow for James, who preferred to keep vacant sees in his own hands. By this means the establishment might be made to pay for the clergy of the King's religion. When Clarendon had been a little more than two months in Ireland, Sunderland informed him that the King had long thought it necessary to make great changes there, and that these could no longer be delayed without much prejudice to his affairs. Catholics were to be admitted to the Council and to be sheriffs, magistrates, and members of corporations. New commissions in the army were already prepared and would soon be sent over. ^[145]

Refugees from
France and Ireland.

James attacks the
Church
establishment.

As a preliminary to the general remodelling, Primate Boyle was deprived of the Great Seal, and no bishop has held it since. He was approaching his eightieth year, and accepted dismissal with a good grace, declaring, with imperfect apprehension of an archbishop's duties, that he had made the whole business of his life to serve the Crown. Roman Catholics had found him impartial, and even Tyrconnel admitted this, but attributed it to craft, 'and,

Protestant judges
turned out.

by God, I will have him out.’ It was thought prudent to appoint a Protestant successor until the King felt strong enough for more extreme measures. The man chosen was Sir Charles Porter, who was needy and extravagant and thought likely to be subservient, but who afterwards showed unexpected independence. The next step was to remove three judges—Sir Richard Reynell from the King’s Bench, Robert Johnson from the Common Pleas, and Sir Standish Hartstonge from the Exchequer. They were all able men and nothing could be said against them, but they were Protestants, and that was enough. Johnson had been sixteen years a judge. Clarendon had pointed out that the Act of Supremacy obliged all officials to take the oath; if the King dispensed with that, he suggested that English Roman Catholics should be sent over. James answered that he did not see how employing some Catholic natives could harm ‘the true English interest there, so long as the Act of Settlement is kept untouched, which it must always be, though many ill and disaffected people are secured in their possessions by it.’ Ten days later Lord Chancellor Porter reached Dublin and publicly announced the King’s resolution not to have the Acts of Settlement shaken. [\[146\]](#)

The new Chancellor had heard the common report that there were to be three Roman Catholic judges, but he was told nothing officially, and the appointments were almost ostentatiously made without consulting him or the Lord Lieutenant. The vacancy in the King’s Bench was filled by Thomas Nugent, a son of the late Earl of Westmeath, who boasted about his promotion, and had his robes made in Dublin long before. Clarendon says he was ‘a man of birth indeed, but no lawyer, and so will do no harm upon the account of his learning.’ He and Lyndon, the other puisne judge, squabbled ‘like two women’ about precedence. Viceroy and Chancellor agreed that Nugent was foolish and troublesome. The new judge of the Common Pleas was Denis Daly, ‘one of the best lawyers of that sort,’ says Clarendon, ‘but of old Irish race, and, therefore, ought not to be a judge’; otherwise there was nothing against him except that he was ‘very bigoted and national.’ He had been bred a lawyer’s clerk, and made money, which he invested in land under Settlement titles. The appointment to the Exchequer was in some ways the most important of the three Courts, because it was the only one from which no writ of error lay in England. Charles Ingleby, an English Roman Catholic, having refused to go to Ireland, the place was given to Stephen Rice, whose abilities as a lawyer were not disputed. Clarendon was not even formally

Roman Catholic
judges appointed.

consulted, though his patent gave him the appointment of all judges and officers of the Exchequer except the Chief Baron. Nugent, Daly, and Rice were dispensed from taking the oath of supremacy, which had been invariably required ever since the second year of Elizabeth. [\[147\]](#)

Clarendon was ready to do anything that the King wished, but he usually gave good advice, which was very seldom taken. Indeed, James said plainly that he had made up his mind to remodel the administration, both civil and military, and would go to work at once quite irrespective of anything the Lord Lieutenant might say, who, having been only a short time in Ireland, could

A new Privy Council.

Tyrconnel made commander-in-chief.

not possibly give His Majesty 'so good an account as he had already received from persons of undoubted integrity and zeal for his service.' Having begun with the bench, he went on to name nineteen Roman Catholic Privy Councillors, who were not to take the oath of supremacy. Among them were the three new judges, Richard Hamilton, Lord Galmoy, Justin MacCarthy, and Tyrconnel. Clarendon did not think that the dignity or usefulness of puisne judges would be enhanced by making them politicians, and neither Rice nor Daly were anxious for such promotion, though it flattered the vanity of Nugent, who was much the least able of the trio. Nagle, whose fees exceeded a Chief Justice's salary, agreed with the Lord Lieutenant that a practising barrister was unfitted for the position. Having a large family, he could not afford to lose briefs, and he declared, and perhaps at this time really fancied, that he was not ambitious. In the meantime it became known that Tyrconnel, in pursuance of the scheme hatched before Charles II.'s death, was about to return as lieutenant-general, with power over the army, independent of the Viceroy, who was informed by Sir Robert Hamilton that he had seen the commission. Clarendon thought the creation of such a potentate absurd, as indeed it was, and he professed to disbelieve the story; but a fortnight later Rochester wrote to confirm Hamilton's statement. Alarmed by such reports and by what they saw going on, several Protestant families left Ireland every week, carrying with them what they could realise. Industry was paralysed, and large employers of labour prepared to wind up their business and to make haste out of the country. The Government and the judges on circuit tried to settle men's minds, but it was persistently rumoured that by Christmas Day no Protestant would be left in the army. At last Tyrconnel arrived, and the alarmists were soon seen

to be better informed than those who cried peace when there was no peace.
[148]

The struggle for supremacy at Court between Rochester and Sunderland was still undecided, but the latter gradually gained ground, though he had supported the Exclusion Bill, while Halifax, who had been largely instrumental in rejecting it, was turned out of the Government, and even out of the Privy Council. Sunderland was ready to increase his power over James by turning Roman Catholic, while Rochester, who would not go that length, was willing to let the King believe that he was open to conviction. The reputation of Sunderland is so bad as to need no remark, but Rochester, who did suffer for his religious opinions, was not above supporting Catherine Sedley, James's ugly but witty mistress, against Mary of Modena. With Father Petre's help, the Queen won, and Catherine, who became Countess of Dorchester in January 1686, was ordered to retire into Flanders, but resolutely refused to inhabit any country where there were convents, and preferred Ireland, where the Lord Treasurer's brother could protect her. She was through life immoderately proud of her ill-gotten rank, and insisted upon being fully recognised. When Clarendon went to the Curragh races he did not take his wife, because Lady Dorchester would have gone too. She was commonly the first at church in the morning, and Lady Clarendon thought she might make a very good Irish saint 'if our preachers do not make her despise them.' But after a time she found Ireland dull, and returned to England in August. The discarded favourite ceased to be politically important, but she had pensions, and used to dine with Clarendon both before and after the Revolution. He and his brother lost influence at Court by supporting her, and in Irish matters their loss was Tyrconnel's gain. [149]

Catherine Sedley in Ireland.

While still at Court, Tyrconnel had devoted his attention to the Irish army, since there was no immediate prospect of gaining the viceroyalty for himself. To the King he said his main object was to get Cromwellian officers and soldiers dismissed, and Clarendon, who clung to office, was willing to go a good way with him. Lord Granard, who commanded the forces under the Lord Lieutenant, was superseded with a pension and the post of President of the Council; but there had never been such an office in Ireland, and the old

Protestant officers and soldiers got rid of.

soldier felt himself quite unfit for work of that sort. In the end he had the pension without the place. The ground having been thus cleared, Tyrconnel was sent over with a lieutenant-general's commission, making him quite independent of the viceroy. He desired Thomas Sheridan, who was in favour at Court, to help Sunderland in undermining Rochester while he was in Ireland. Sheridan said he did not want to burn his fingers 'like the cat in the apologue,' but it was arranged that he should correspond with Tyrconnel, visit Sunderland at times, and tell the King as much as was desirable for him to know. The new general carried with him a long list of officers to be removed in favour of his own friends and relations. He wished to have some thousands of Irish Catholics incorporated in the English army, excluding the native Irish. In this scheme Sheridan refused to help, saying that the O's and Macs were ten to one of the others. During the whole time of his power Tyrconnel continued to favour the Anglo-Irish at the expense of the old Irish, and this preference was a source of weakness to the Jacobite cause. The King had to pension some of the loyal Protestants who had been cashiered, and a much greater number carried their swords and their grievances to the Prince of Orange. The same process was going on in the ranks, and in nine months 2300 recruits were enlisted, of whom five-sixths were Irish Roman Catholics. But the pace was too slow to satisfy Tyrconnel, who landed on June 5. [\[150\]](#)

The Lord Lieutenant and the Commander-in-chief had a preliminary interview on the day of the latter's arrival. On the morrow they met for business, and Tyrconnel made a long rambling speech of which Clarendon took notes at the moment, and which may be taken as the key to what followed: 'My Lord, I am sent hither to view

Contest between
Clarendon and
Tyrconnel.

Hard cases.

this army and to give the King an account of it. Here are great alterations to be made, and the poor people who are put out think it my doing, and, God damn me, I have little to do in the matter: for I told the King that I knew not two of the captains nor other officers in the whole army. I know there are some hard cases, which I am sorry for; but, by God, I know not how to help them. You must know, my Lord, the King, who is a Roman Catholic, is resolved to employ his subjects of that religion, as you will find out by the letters I have brought you, and therefore some must be put out to make room for such as the King likes.' Meritorious officers were displaced without pity, and Clarendon mentions a few specially ill-treated men among

the multitude who were in the ‘common calamity of being put out.’ Thus Captain Brook was deprived of his troop, for which he had paid 1600*l.* two years before, and Lieutenant Pargiter of his commission for which he had given 800*l.* The privates were treated in the same way. When a troop or company was mustered Tyrconnel merely sent an order to the captain to dismiss such men as Colonel Richard Hamilton marked upon the list. ‘Could not I have done that as well?’ asked the Lord Lieutenant pathetically. Four hundred men were thus turned out of the regiment of Guards in one day. The General himself was so little of a soldier that he could not draw up a regiment, and his orders sometimes disgusted officers of his own Church as much as the Protestants. He told Lord Roscommon to admit only Roman Catholics into Ormonde’s regiment. Major Macdonnell, who had served in Germany, received the same order, and gave it out on parade, but in his walks about Kilkenny freely declared that he had never known a distinction between soldiers on the score of religion. Tyrconnel denied his orders, but Roscommon was as outspoken and as sure of his fact as Macdonnell. The men dismissed were often physically superior to those who supplanted them, and many recruits spoke no English, which in Dublin excited the mockery of street boys. The disbanded men despised their successors, and ‘rapped them soundly at fisticuffs.’ To make sure of getting good Catholics, one of the places selected for recruiting was St. John’s Well, resorted to by pilgrims at Midsummer. [\[151\]](#)

Captain William Hamilton had been in the King’s service ever since he could carry a musket. He had almost cleared Ulster of Tories, and Sir William Stewart, afterwards Lord Mountjoy, suggested that he should be made a magistrate for Armagh, Monaghan, and Tyrone until some more substantial reward could be given. Hamilton’s success was largely due to the clever way in which he employed two soldiers as spies, but he was ready enough to risk his own life. ‘Neal O’Donnell,’ he wrote, ‘fled a considerable way, but being overtaken by my cousin, Archibald Hamilton, when his feet could not carry him off, he turned and first snapped his gun at me, and then fired a pistol at my cousin, who was not above four yards from him, on which my cousin fired at him, and, being the better marksman, knocked the rogue over, so that he had as fair play for his life as ever any Tory had.’ Among the changes following the death of Charles II., Tory Will, as he was called, lost his military employment, great zeal in the service of Government

Tory Hamilton’s case.

having never been a sure way to promotion in Ireland. He had, however, many friends, including Rochester, and by purchase or patronage he managed, after a visit to England, to secure a troop of horse. His old lieutenant was cashiered, and Tyrconnel appointed Daniel Magennis, with whom and his brother Murtagh he had had a dispute, saying that they would soon make friends in the same troop. The Lord Lieutenant thought differently. By blood or fosterage many outlaws had interest with the native gentry, though in this case Clarendon thought the Magennises were chiefly anxious to appropriate some of the credit which had been given to Hamilton. The quarrel came to a head at Downpatrick. Murtagh refused to withdraw in writing some charge which he had made against Hamilton, who seems to have struck, or at least threatened, him with his cane, but without drawing his sword. Magennis's friends held Hamilton while he stabbed him to death, also wounding a Mr. Maxwell who was with him. The Assizes were going on, Nugent and Lyndon being the judges, and when the first report came that Magennis was the victim, the former said they would try the case at once. 'But quickly after the truth was brought that Magennis had killed Hamilton; upon which the whole court was emptied in a minute, and only the judges and the prisoners left in it.' The coroner's jury found a verdict of murder, and even Nugent made some difficulty about bail, but Tyrconnel overruled everyone, saying that it was often given in murder cases; and he took Magennis with him to England to get a pardon. ^[152]

In another case William Aston, whose father had been a judge in the last reign, slew Mr. Keating in a sudden affray on the Quay. It was said that an English or Protestant jury would certainly acquit, since the victim was an Irishman, and Clarendon was pleased when a conviction followed. The fact of the homicide is not disputed, but Aston gave a paper to the sheriff on the gallows stairs in which he denied the malice prepense which is of the essence of murder. He said his intention was to wound Keating slightly for having grossly insulted his wife. He died a Protestant, and recorded that great efforts had been made by many priests to make him confess and be absolved according to Roman practice. The last of these visitors was Lord Abbot Taafe, who said he came thirty miles to save the prisoner's soul, 'which could not otherwise but be damned, if I died in the faith of the Church of England; and that he was anointed in Germany, but that our ministers had no ordination.' Clarendon refused to interfere, but both he and

Aston's case.

the judges, Nugent and Lyndon, interceded for Aston's family, and his small property was not confiscated. ^[153]

The army in Ireland consisted of about 7000 men, and was soon purged sufficiently to make it a safe tool. In August Sheridan, by Sunderland's orders, wrote to say that the pear was nearly ripe, and that Tyrconnel was wanted in London. He went over accordingly, accompanied by Nagle, by Dominic Maguire, the Roman Catholic Primate, and by Bishop Tyrrell of Clogher. The weight of all four was exerted to oust Clarendon. James shrank from the odium of appointing a successor who would not only be disagreeable to all Protestants, but to all who dreaded French influence. Tyrconnel, with characteristic duplicity, told Sheridan that he could give up Ireland to France without being Lord Lieutenant, but employed him to persuade James that the thing was impossible. Sheridan argued that England must always have the preponderating power in Irish politics, since the old Irish, who were ten to one, favoured Spain, and the Anglo-Irish France, while neither faction would submit to the other. But Tyrconnel was determined to be Viceroy. As the price of his help Sunderland might have 5000*l.* a year in Irish land or 50,000*l.* down. The Queen, who hated him, might be bribed with a pearl necklace worth 10,000*l.*, which Prince Rupert had given to Margaret Hughes. Sunderland, as greedy and as extravagant as Catiline, was willing to take the money, though not the land, and offered Tyrconnel a lieutenant-general's place in England with 5000*l.* a year extra pay, and the reversion of the Lord Lieutenancy as soon as the penal laws were repealed. He said James could only be ruled by a priest or a woman, and that everything would follow if the Queen and Father Petre were made safe. But nothing less than the government of Ireland would satisfy Tyrconnel, though he was willing to be called Berwick's deputy provided he had all the power. If the King wanted to get him out of the way, he would go abroad for 10,000*l.* and 4000*l.* to pay the expenses of his late journeys to and from Ireland. Petre, who hoped for a red hat, and the archbishopric of York to support it, helped him, and James gradually yielded, though with many misgivings. Early in October Tyrconnel was made an English Privy Councillor, and in November it was generally known that he had carried his point, and was openly preparing for the Irish journey. Lord Powis had been talked of, but the King said very truly that there was rough work to be done in Ireland which no English nobleman would do. He pressed Sheridan to go

The King throws
over Clarendon.

as secretary, with Alexander Fitton as Chancellor, for he knew Tyrconnel too well to trust him without good advisers to moderate or counteract his violence. It would take twelve or eighteen months to reform the army, to call in the charters, and to get such corporations appointed as would elect the right sort of Parliament. When all that was done he would provide handsomely for Sheridan. Since James himself had no confidence in the man he was sending to represent him, it is not surprising to find Evelyn noting his appointment 'to the astonishment of all sober men and to the evident ruin of the Protestants in that kingdom, as well as of its great improvement going on.'^[154]

In times of public excitement little things sometimes have a great effect, and are better remembered than more important events. Such were the letters of obscure men in the German Reformation, the *Marriage of Figaro* before the French Revolution, John Brown's march in the American civil war, and such, in the Irish branch of our own revolution, was the song of 'Lillibullero.' Thomas Wharton, afterwards Marquis and Lord Lieutenant of Ireland, boasted that by this ditty he had sung a king out of three kingdoms. It had a success altogether out of proportion to its merit, and in the next century my uncle Toby whistled the lively air on all occasions. The words allude to the period of suspense when James still hesitated about Tyrconnel's appointment.

'Lillibullero.'

Ara! but why does he stay behind? Ho! by my shoul, 'tis a Protestant wind. Lillibullero, bullen-a-la.

His landing was to bring commissions galore and to ruin the heretics of Ireland. Swift had some justification for calling Wharton the most universal villain he had ever known; but he was the shrewdest of politicians, and his doggerel tells exactly the same story as Evelyn's grave reflections.^[155]

In adopting the rash policy represented by Tyrconnel, James parted with his two brothers-in-law, in whom the Church of England trusted. Rochester was dismissed from the Treasury, though with a large pension, and Belasyse, a Roman Catholic who had suffered by Oates's plot, was made First Lord. The Privy Seal was not restored to Clarendon, but given to Lord Arundel of Wardour,

Clarendon's weakness.

who had signed the secret treaty of Dover. Clarendon had been a painstaking governor, but he did not deserve much sympathy, for he was ready to support his master's arbitrary policy though he did not approve of it. That the King should be dissatisfied with one of his letters was, he said, a 'mortification beyond anything that can befall me in this world ... to live under your Majesty's displeasure is impossible for me.... I have made it the study of my life to practise obedience ... you will find a most resigned obedience in me.' This was very shortly before his dismissal, and after the blow had fallen he goes on in the same strain, talks of casting himself as quickly as possible at His Majesty's feet, and of obedience to him having been the business of his life. The same flavour of servility permeates his letters to his brother and to Sunderland. Short of changing his religion, there seems to have been no degree of compliance at which he would have stopped.^[156]

When taking leave of his Council, Clarendon defended the English in Ireland from the charge of fanaticism. They were, he said, good Church of England men, and had been the first of the late King's subjects to restore him. They had also been against the Exclusion Bill, and were most ready to acknowledge royal authority. He pointed with some pride to the Irish Exchequer. Under Ormonde the annual revenue had risen to over 300,000*l.* a year without subsidies, and his successor had made it cover the expenses. All charges had been defrayed as they became due, and the army was paid up to the last month of his reign. James had indeed no fault to find with him but his religion. Having personally delivered the sword to Tyrconnel, Clarendon returned to England, and on March 3 Evelyn drove out of London to meet him. He was received at Court very soon after.^[157]

He leaves Ireland.

FOOTNOTES:

^[139] Proclamations of February 10 and 11, 1684-5, Carte's *Ormonde*, ii. 543. Ormonde's letters of February 22, March 1 and 4, in Singer's *Correspondence of Clarendon and Rochester*. Luttrell's *Diary*, March 27. The story of the officers' dinner is in *Secret Consults of the Romish Party*, 1690. Ormonde's arms were placed over the entrance to the new hospital.

^[140] Proclamations of Lords Justices against Monmouth and his adherents, June 13 and 22; as to the militia arms, June 20 and October 16, 1685. For Argyle's expedition, Earl of Antrim to Lords Justices, May 18, and Captain

Thomas Hamilton of the *Kingfisher* to Granard, June 17, in *State Papers, Ireland*, vol. cccli. As to the removal of officers, Tyrconnel and Granard, August 12, *ib.*, and Justin MacCarthy to Granard, *ib.* Ormonde to Primate Boyle, October 17, 1685, *Ormonde Papers*, vii. 374. Tyrconnel reached Ireland before May 29, *ib.* 341.

[141] Correspondence between Ormonde and Roscommon, particularly August 15 and September 17, 1685, *Ormonde Papers*, vol. vii.

[142] Clarendon to Rochester, December 28, 1685, *Clarendon Correspondence*. Writing on December 20, 1685, Bishop Fell wishes Clarendon ‘good luck with his honour, which to me seems sufficiently hazardous,’ *Hatton Correspondence*. According to the *Sheridan MS.*, Sunderland had suggested Clarendon to the King, ‘for mending his fortune, of which he stood in need, pacifying Tyrconnel by saying that the two brothers would be ruined by being kept apart.

[143] Evelyn’s *Diary*, December 16, 1685. Clarendon’s letters, December 21 to January 10 and January 23, 1685-6. *Ellis Correspondence*, i. 9, 11. Luttrell’s *Diary*, December 16 and 18, 1685. Clarendon’s speech on taking office is in the *Clarendon and Rochester Correspondence*, ii. 475.

[144] Evelyn’s *Diary*, November 3, 1685. A newsletter to Colonel Grace from Dublin, November 11, in *Clarendon’s Correspondence*, notices the silence of the *Gazette* there about the French persecutions and the persistence of unauthorised sheets: ‘if it be a fiction, as certainly it is for the most part, why does not the Government take notice of it?... great concern that those of Geneva—Dublin have for their Calvinist brethren in France.’ The latest lights are in Lavissee’s 7th and 8th vols. and Rousset’s *Hist. de Louvois*, iii. chap. vii. For the dragonnades in Bearn, Henry IV.’s own country, see Sainte-Beuve’s article on the intendant Foucault, *Nouveaux Lundis*, vol. iii. In 1686 Avaux found there were 75,000 French refugees in Holland, Lavissee and Rambaut’s *Hist. générale*, vol. vi.

[145] Clarendon’s letters, February and March 1686, particularly that of February 14. Sunderland to Clarendon, March 11. An acute observer notes that the Irish Protestant refugees in England were too proud to complain and less noticed than the French, though they were ‘our bone and our flesh.’ Every Frenchman was distinguished by garb and speech, but those from Ireland by neither, and so in the crowd not discerned. *Character of the Protestants of Ireland*, May 1689, p. 8.

[146] Clarendon to Rochester, March 14 and April 17. James II. to Clarendon, April 6. In Burnet’s *Hist.* i. 654, the remarks on Porter are much softened compared to his original MS., *Supplement*, ed. Foxcroft, p. 170.

[147] Clarendon’s letters of April 17, 20, and 24.

[148] Clarendon to Rochester, April 17, 20, and 24, 1686; to Sunderland, April 24 and 27; to Rochester, May 11 and 15. Sunderland to Clarendon, March 11, May 22. In his diary on January 31, 1686-7, Clarendon says Nagle pretended that he had no wish to be Attorney-General, but ‘I do not believe him in the least, for I am sure he is both a covetous and an ambitious man.’

[149] Clarendon to Rochester, May 1, 1686; Lady Clarendon to Rochester, March 15. Luttrell’s *Diary*, January 19 and February 24. Evelyn to Clarendon, September 1686, appended to the *Diary*, iii. 425.

[150] *Sheridan MS.* Clarendon to Sunderland, May 30, June 1, and July 20, 1686. King's *State of the Protestants*, chap. iii. sec. 2. Luttrell's *Diary*, June 8. After the Revolution Sunderland thought it wise to disclaim any share in the Irish business: 'My Lord Tyrconnel has been so absolute there that I never had the credit to make an ensign or to keep one in, nor to preserve some of my friends, for whom I was much concerned, from the least oppression and injustice, though I endeavoured it to the utmost of my power,' letter in H. Sidney's *Diary*, ii. 378. Tyrconnel cashiered about 4000 Protestant soldiers and 300 officers, Fortescue's *History of the British Army*, iv. chap. 1.

[151] Clarendon to Rochester, June 8 and July 4. St. John's Well was at Kilmainham, near where O'Connell Road now crosses the railway, and the name is perpetuated in the intersecting road. A 'pattern' fair, which became very disorderly, was held here till about 1835, when the well was swallowed up by builders. See Frazer's *Balder the Beautiful*, i. 205 (Golden Bough).

[152] Letters in *Clarendon and Rochester Correspondence*, vol. i., particularly August 4 and 19, 1686. *Ormonde Papers*, vols. vi. and vii., particularly Sir W. Stewart to Arran, February 13, 1682-3; Tory Hamilton to W. Ellis, January 2, 1683-4, and Longford's letters in August 1686. King mentions the murder, chap. i. section 7. In the correspondence of the time Hamilton is generally called a very honest fellow. *Ellis Correspondence*, i. 166.

[153] Letters in vol. i. of *Clarendon and Rochester Correspondence*. Aston's dying declaration is appended to that of June 3. King's remark is (chap. iii. sec. 2), 'they might kill whom they pleased without fear of law, as appeared from Captain Nangles' murdering his disbanded officer in the streets of Dublin; but if any killed or hurt them they were sure to suffer; as Captain Aston found to his cost, who was hanged for killing a Papist upon his abusing the captain's wife in the street.'

[154] *Sheridan MS.* *Ellis Correspondence*, November 30, 1686. Luttrell's *Diary*, December 1. Evelyn's *Diary*, January 17, 1686-7. Sunderland was considered bribable, see his own statement in *Diary of H. Sidney*, ii. 379.

[155] The air of 'Lillibullero,' originally composed by Purcell for another song, is still whistled in Ulster under the name of 'Protestant Boys.' The words have been often reprinted, see Wilkin's *Political Ballads*, i. 275, and (with variants) the third part of *Revolution Politicks*, 1733. Purcell's music is given in the 1873 edition of Sterne's *Works*, i. 93, at the end of *Tristram Shandy*, 2nd part, chap. iii. See also Croker's *Historical Songs of Ireland*, pp. 1-11.

[156] See in particular Clarendon's letters to the King of October 23, 1686, and of February 6, 1686-7 (in the appendix). Evelyn's *Diary*, March 3 and 10.

[157] Clarendon's parting speech, February 12, 1686-7, is in the appendix to King's *State of the Protestants*. No mention is made of the Ulster Scots. Evelyn's *Diary*. Luttrell's *Diary*, March.

CHAPTER XLIX

GOVERNMENT OF TYRCONNEL, 1687-1688

James forced Sheridan upon Tyrconnel as secretary, and made him chief commissioner of revenue to make the Irish service worth his while. Clarendon thought him a 'wicked, cheating man,' and the new Lord Deputy objected to him, not on that ground, though he accused him of dishonesty, but because he knew he was sent to be a drag on him. He could not avoid taking him, but did so with a very ill grace, advising him to give up drinking, and not imitate Sir Ellis Leighton or Mr. Ellis, 'the first having ruined Lord Berkeley, and the other, the blackest and most corrupt of villains, my Lord Arran.' Sheridan answered that he was the most abstemious of men, that he abhorred corruption, and that for all he cared Tyrconnel might give the secretary's place to his nephew, Sir William Talbot. He at first refused to go unless he had a seat at the Irish Council, but Tyrconnel said he had asked the King for this and been refused. Nevertheless, when Lord Bridgeman spoke about it to James, he at once consented, saying that Tyrconnel had never mentioned the matter to him. In January the new Viceroy and Sheridan were at Chester, where Cartwright was now installed as bishop, along with Richard and Anthony Hamilton and two Irish lords. Fitton joined them at Holyhead, and they all talked of Irish affairs while waiting for a wind. Tyrconnel suggested that Christ Church should be taken from the Protestants, that a Catholic militia should be raised and trained, and that Catholics should fill all places. Sheridan and Fitton disagreed, 'both of them knowing these things were contrary to His Majesty's intentions and interest.' It is clear that they were against his interest, but not that they were against his intentions. On reaching Dublin,

Tyrconnel Lord
Deputy, February
1687.

Sheridan was sent to Clarendon with the King's letter of recall, repeating one from Sunderland in which he was directed to give up the sword to Tyrconnel within a week of his arrival. Before he received the sword, and while still a private person, the latter demanded the surrender for punishment of one of Clarendon's servants who had attributed the change to the dog Talbot. Tyrconnel was sworn in as Deputy, not Lord Lieutenant, on February 12, and Clarendon was Cartwright's guest at Chester a few days later. He heard a sermon from Mr. Peake in the cathedral on the duties of governors, and it seems not to have been pleasant, for the bishop thought of suspending the preacher, though both Lord Derby and Mr. Cholmondeley interceded for him. Ten days afterwards Cartwright sent his carriage to meet Porter, and found the ex-Chancellor's children 'set in a stage-coach broke in the quicksands three miles from Chester.' They were rescued, and next day their father and mother were brought safely from Neston. [\[158\]](#)

When Nagle left Ireland it was thought probable that he would return as Attorney-General, and that part of his business would be to attack the Act of Settlement. The King had assured Clarendon that it 'must always be kept untouched, though many ill and disaffected people are secured in their possessions by it.' Nagle was back in November, and neither then or later did Clarendon have any intimation from the English Government that a change of policy was intended. It was not until January, shortly before his recall, that he received through private hands the copy of a letter from Nagle to Tyrconnel purporting to have been written on the road at Coventry, but doubtless composed in London as the result of careful deliberation. In it the Acts of Settlement and Explanation and the administration of them were vigorously attacked. About the same time the Benedictine Philip Ellis, afterwards Bishop of Segni, was allowed, or, as some thought, bribed, by the Irish in London to preach at St. James's against the Acts. Tyrconnel admitted that he had inspired the sermon and promised Ellis the bishopric of Waterford as a reward. The contents of Nagle's letter were known in Ireland before Clarendon got his copy, and the writer complained of its surreptitious publication. Tyrconnel had the original, and his denial is worth little. Both letter and sermon were disliked by moderate men, but they evidently foreshadowed extreme measures. Less than a year after the date of Nagle's

The Coventry letter.

manifesto, Barillon knew that James had made secret preparations for repealing the Act of Settlement.^[159]

The commission of grace issued less than eleven months before the late King's death expired with him. The court constituted by it had not time to do much, but it excited hopes and fears, for the old proprietors expected to get money in exchange for their claims, while the men in possession saw that their titles were endangered. Clarendon found men's minds much disturbed, and thought the best way to quiet the country would be to renew the commission. He believed the Protestant holders under the Act of Settlement, as well as the many Roman Catholics who had bought land from them, would be willing to pay well for confirmation of their titles, and 150,000*l.* might thus be raised to compensate the most deserving sufferers. Lord Chancellor Porter sounded the men of his own profession, and found them generally favourable to such a policy. Chief Justice Keating was strongly of that opinion, and at first James seemed inclined to agree, but contrary influences prevailed, and Clarendon was informed that the King preferred a parliament to a commission. He was to take counsel with Tyrconnel and others as to how much landowners would be willing to pay for clear titles, with a suggestion that the parliamentary way might bring in the larger amount. Rice and Nagle supported Tyrconnel, who inveighed against the idea of a commission with much cursing and swearing, holding that it would bring in little money, 'but would confirm those estates which ought not to be confirmed.' In the meantime many secret meetings were held among the Roman Catholics. A letter found at Christ Church after morning prayer on the last day of August professed to be written by one who 'politically went to mass' in order to gain admission to these conclaves, which he said were attended by nine bishops, ten Jesuits, and eighteen friars, and that letters were received from the Queen, from Lord Castlemaine, from the Pope and cardinals, and from the King of France. All this was no doubt greatly exaggerated, and the writer's name did not transpire, but Clarendon knew from other sources that there were many private consultations at which Tyrconnel attended, and that at one of these it was resolved to send Nagle to England. When he returned, after having written the Coventry letter, there was more uneasiness than ever, and he soon became Attorney-General, displacing Domville, who had held that office ever since the Restoration. As a practising lawyer, says Archbishop

The Land Settlement threatened.

King, Nagle ‘was employed by many Protestants, so that he knew the weak part of most of their titles.’^[160]

In order to carry out their policy, James and Tyrconnel saw that an Irish Parliament would have to be called, and one of a very different character from the last. There were thirty-two counties, in each of which the freeholders were entitled to return two members, and one hundred cities and boroughs where two members were eligible by the burgesses. In the counties Government could generally maintain itself through subservient sheriffs, and it was resolved to attack the charters in virtue of which the boroughs existed. The process of transforming the municipalities by prerogative alone began as early as June 1686, when Tyrconnel brought over a letter from the King directing the Lord Lieutenant to admit freemen without tendering the oath of supremacy. Even the English oath of allegiance was thought too strict, and he was ordered to be satisfied with a shorter oath of fidelity. Acting by the advice of Judge Daly and other reasonable Roman Catholic Privy Councillors, Clarendon aimed at appointing English and Irish in equal numbers, ‘which they say is the best way to unite and make them live friendly together.’ Had this wise course been persevered in, an understanding might have been arrived at, but Tyrconnel’s faction thought the mere fact of being a Roman Catholic was qualification enough for anything. As it was, all who could make out any sort of hereditary claim were accepted as freemen, though they did not live in the towns and were engaged in no trade or business.^[161]

Protestant
corporations
attacked.

Those who were encouraging James to take extreme measures tried to make out that most Irish Protestants were Cromwellian fanatics or their descendants. Clarendon said that there were not many adventurers or soldiers, nor many of their children remaining. Land had been freely bought by men who wanted to make fortunes by buying in a cheap market. These new purchasers and the representatives of settlers before 1640 formed the bulk of the colony, six-sevenths of the trade being in their hands. They had hitherto had things much their own way, but it was now determined to humble them to the dust. By the statutory rules made under Essex, every mayor or other municipal officer was required to take the oath of supremacy, but might be dispensed from so doing by name and in writing by the Lord Lieutenant and Council. The result of these rules had been to

keep the Protestants in power, though the Roman Catholics, scattered for the most part in the country, but claiming the hereditary freedom of old towns, were more numerous. Corporations of recent origin had been the creation of the colonists, and had always been in Protestant hands. The changes made by Clarendon were considerable, but the process was too slow for a man of James's temper. In August he summoned Tyrconnel to meet him at Chester. The King was attended by Sunderland, and the Deputy by Nagle, Rice, William Ellis, and a Jesuit named Johnson. Richard Hamilton was also at Chester. Tyrconnel wished to keep Sheridan back in Ireland, but orders came from Sunderland that he was to come over, and they went on to Shrewsbury together to meet James, who sent for Sheridan early next morning, and told him he should expect a full report at Chester. There were heated discussions about the Act of Settlement, but no decision was come to. 'God damn you,' said Tyrconnel, 'for making you a Privy Councillor!' to which the secretary replied that the King made him. The Deputy then damned himself for making him secretary, and told him to go to the devil. Rice and Nagle tried to smooth matters by attributing all this to Sunderland's wine, but Sheridan says he was sober. Next day Tyrconnel thought it prudent to apologise, pressing the other to dine, 'and taking him about the neck and hugging him.' The quarrel broke out again as soon as they got back to Dublin. ^[162]

Tyrconnel had been able to report at Chester that the transformation of the corporations was already well begun. Dublin had resisted successfully for a time, but *quo warrantos* were brought against all the corporations, except a few that surrendered at discretion. Soon after his return from the Chester conference, James wrote to Tyrconnel announcing that judgment had been given against most of the cities and towns, and that suits were pending for the rest. The Deputy was empowered to issue new charters appointing the officers and members of all municipalities by name, with power to fill up vacancies and to return two members to Parliament. He was to reserve power for himself and his successors to remove all magistrates and officers by Order in Council, both they and the freemen being obliged to swear 'that it is not lawful upon any pretence whatsoever to take arms against the King.' This, of course, made all the corporations absolutely subservient to the Government. The charters were brought into the Exchequer, the only Irish court whence no writ of error lay in England, and were nearly all declared

Municipal charters annulled.

forfeited. Rice and his brethren took advantage of every legal quibble, and it does not appear that any case was tried upon its substantial merits. Strafford had long since discovered how easy it was to find technical flaws in letters patent, and Rice before he was a judge had said that he could drive a coach and six through the Act of Settlement. The general result was that two-thirds of each corporation were Roman Catholics who could be trusted to return members of their own persuasion when the time came for a parliament. In many old towns this was no doubt only a return to the state of things that had existed before the Civil War, but the new boroughs were chiefly the creation of English Protestants. No exception was made, Londonderry and Belfast faring like the rest. The colonists were placed in the power of men who had seldom any substantial commercial interest, and who were often descended from the insurgents of 1641. ^[163]

Tyrconnel's proceedings in general had driven many Protestant families from Ireland. In June 1686, 120 went to Chester in one ship, and multitudes hastened to realise their property. The certainty of his being made Viceroy caused a greater exodus, and while he was waiting for a wind at Holyhead, Ormonde wrote that many men and more women had fled, 'but I think a less matter than the dread of my Lord Tyrconnel will fright a lady from Ireland to London.' It was natural that the men who stood their ground should wish to place their families in safety, for Clarendon reports that many merchants and others were going, though he tried to steady them by saying that all would be well. As they left Dublin their places were filled by crowds of officers who came to meet the rising sun. After his arrival Tyrconnel lost no time in proclaiming his intention of dealing justly with all according to the known laws. The prevailing terror had, he said, been much heightened 'by some few fiery spirits in the pulpits, by taking upon them to treat of matters that do not lie within their province.' The Protestants, nevertheless, continued to leave Ireland when they could, though magistrates and officers were empowered by proclamation to stop them. Many were unable to go because they could not afford the journey or because they had everything invested in stock or buildings. Officials generally stood their ground from a sense of duty, or lest their places should be taken by hostile Roman Catholics, and many clergymen were actuated by the same motives. But the drain steadily continued, and after William's invasion at a greatly increased rate. ^[164]

Panic among the Protestants.

Lord Chancellor Porter, though nothing could be truly said against him, proved less accommodating than was expected, and as early as June 1687 it was rumoured that he would be recalled. Tyrconnel worked incessantly to that end, and accused him of taking a bribe of 10,000*l.* from the Whigs, ‘which, upon my conscience,’ said Clarendon, ‘is as true as that he has taken it of the Great Turk.’ General MacCarthy was satisfied of Porter’s probity, and Mr. Nihill, a young Roman Catholic King’s Counsel, admitted that if Tyrconnel took a dislike to a man, he had ‘a sly way,’ and would ruin him while pretending to be reconciled. Tyrconnel emerged victorious from the obscure struggle at Court, and Porter shared Clarendon’s fate. They dined together on January 4, and within a week both were recalled. The Lord Chancellor was treated with marked discourtesy, for he only heard of his removal from a third person.^[165]

Lord Chancellor
Porter dismissed.

No explanation was offered to Porter, the King treating him with studied coolness, and merely remarking that it was all his own fault. He returned to the English bar, and was counsel for Sir Alexander Fitton, his successor as Irish Chancellor, in one of his numerous lawsuits. Fitton, who was released from prison and knighted by the King, seems never to have had any practice to speak of, but he was a convert to the Church of Rome. He had been engaged in long litigation with Lord Gerard, and was accused of setting up a forged deed. A jury found against the document, and he was fined and imprisoned by the House of Lords. He apparently owed his appointment to Father Petre and to James himself, rather than Tyrconnel, whom he accompanied to Ireland. Archbishop King, who was in Dublin during the whole time that he held office, has represented Fitton as not only partial and tyrannical, but quite incompetent to perform his judicial function, while a modern biographer who examined the records of Chancery declares that all was done in order. Possibly the legal knowledge was supplied by two new Masters in Chancery appointed to strengthen the Court. One of these was Felix O’Neill, whose father had been a member of the Confederate Council in 1642; the other was Alexius Stafford, a priest who may have been a learned civilian. Both Stafford and O’Neill were killed at Aughrim. King may or may not have painted Fitton in too dark colours, but Sheridan, who was closely associated with him, says he was ‘a most poor and timorous man, having nothing to maintain him but his office, to which dignity he was

Fitton succeeds
him.

surprisingly raised from a tedious imprisonment of many years in the King's Bench in England for debt and pretended forgery in the business of the estate in dispute between him and Lord Macclesfield.'^[166]

At the time of Clarendon's recall one judge out of three in each Common Law Court was a Roman Catholic; under Tyrconnel the proportion was reversed. In the Exchequer, which became much the most important, Rice was made Chief Baron, and was supported by Sir Henry Lynch, who pursued the same policy. Baron Worth was a Protestant, but not much trusted by his own co-religionists, and in any case always in a minority. Probably he tried to be impartial. The same policy was adopted in the case of local magistrates, whose personal fitness was not always considered. Porter had no objection to Roman Catholics, but he had some regard for his own reputation. He received lists of candidates from the judges and rejected only those for whom no person of position would vouch. Among these was Primate Maguire's brother. 'He is a poor country fellow,' he told General MacCarthy, 'lives upon six pounds a year, which he rents of Sir Michael Cole, and has nothing else in the world. After all this, if you think fit for the King's service to have such a man come upon the Bench, he shall be a justice of peace.' 'No, in good faith,' answered MacCarthy, 'I do not think it fit.' Even the degree of independence which Porter showed was not to be expected from Fitton.^[167]

Judges and
magistrates.

The appointment of sheriffs was of the highest importance. They were not only the chief officers for enforcing the laws of property between man and man, but they might exercise great influence in the case of a general election. Clarendon had to nominate them immediately after his arrival, and before he had time to make a wide personal acquaintance. He got the best information he could, and thought he had made a happy selection, but the list was sent back to him with criticisms which, according to Tyrconnel, were made by Sheridan and Sir Robert Hamilton. He answered them all in detail and with much confidence. Sir William Evans was objected to as Sheriff of Kilkenny because he was Cromwell's baker's son. The answer was that his father had been a baker in England before the war, that he had made a fortune near Kilkenny, married Captain Coote's daughter, been made a baronet, 'and since a justice of peace, which office he has

Sheriffs.

discharged very honestly.’ But Tyrconnel was not satisfied, though he owned that the Lord Lieutenant had done his best. ‘By God, my Lord,’ said he, ‘you must not wonder if the Catholics do think you a little partial after your making such a set of sheriffs, who are four parts out of five rogues; but, by God, I justified you to the King,’ and so forth. Long before the year was out Clarendon had orders not to name any sheriffs for 1687, instead of which Tyrconnel handed him a list drawn up by himself and Nugent, and purporting to make no religious distinction. Clarendon remonstrated, telling the King that the judges were the proper persons to suggest names, and that many of those now proposed were obviously and scandalously unfit for positions of trust. When the appointments were at last made, Tyrconnel was Deputy, and every county was committed to the charge of a Roman Catholic except Donegal, where one Hamilton was pricked by mistake for another. It is easy to believe that many of these sheriffs were unfit men. Protestants were also turned out of all the minor offices connected with the law.^[168]

The corporations, the judicial bench, the army, and the shrievalty having been remodelled to his liking, Tyrconnel wished to hold a parliament. Rice and Nugent

Rice and Nugent in London, 1688.

were sent over early in 1688, and their presence tended to increase the general unrest in London. Their coach, when they appeared in the streets, was escorted by a mob carrying sticks with potatoes at the ends, and calling upon all men to make room for the Irish ambassadors. They brought with them heads of a Bill for repealing the Act of Settlement, and were authorised to offer 40,000*l.* to Sunderland, who loved money even more than he loved power. In the negotiations that took place, Rice showed his great ability and Nugent his conspicuous want of sense. Sheridan was in London part of the time trying to rebut the charge of corruption brought against him by Tyrconnel. He told Sunderland that the Lord Deputy had been bragging about the money he had offered the minister, and about the Queen’s necklace. The result was that the bribe was now refused with becoming indignation. To the King himself Sheridan said that Tyrconnel hated him for objecting to turn out Protestant officers ‘for being such only,’ and for differing with him in opinion about the Act of Settlement. Nugent and Rice did not stay long in London, and they failed in their immediate object. Bellasyse and Powis opposed them, the former with many severe

expressions about Tyrconnel's rash folly. A year was still to elapse before the land legislation of Charles II. was repealed by an Irish Parliament. ^[169]

The Declaration of Indulgence was republished in Dublin one week after its appearance in London. For the relief of the Roman Catholics it was hardly necessary, since the Statute of Elizabeth and the oaths depending on it had been virtually suspended even under Clarendon; but the prospect of general toleration was pleasing to the Ulster Presbyterians. Three or four loyal addresses were presented from Nonconformists in Dublin and Belfast and in Munster, but on the whole their attitude was cautious, for they could not forget what James had done quite lately in Scotland. Halifax's famous letter to a Dissenter does not appear to have been reprinted in Ireland, but no doubt it circulated there, and its argument is conclusive to all who reject Filmer's theory and the doctrine of passive obedience. If a King can sweep away the statute law at pleasure, he is absolute, and Parliaments and courts of justice are superfluous. In the end the Irish Presbyterians had to say Yes to Halifax's short question, 'whether you will join with those who must in the end run the same fate with you?' The Episcopalians were, of course, not pleased, for all that the King would promise was less than what the law already gave them. There was an address from the Irish Quakers, which may probably have been due to Penn. In the meantime very few Protestants were left in the army, while they were placed in a minority on the bench and in civic administration. Those who could leave Ireland did so, and cashiered officers helped to fill the gaps in the Prince of Orange's forces, made by those who obeyed the King's order of recall. In less than a year after the Declaration of Indulgence the King forbade all foreign enlistment, and his proclamation was republished in Dublin, with stringent directions to magistrates and port authorities to stop all who endeavoured without licence 'to transport or to enter and list themselves in the service of any foreign prince or state.' ^[170]

The Declaration of Indulgence.

In about five months after his arrival as Deputy Tyrconnel had granted over one hundred commissions in the army, and the names show that few, if any, were Protestants. Among them were Anthony Hamilton and his brother John, both of whom became generals. Before he had been three months in the country he found that the private soldiers, especially in the infantry, were in

Tyrconnel and the army.

great misery and more likely to cause disorder than to be useful in keeping the peace. The most he could do was to give each soldier of the line threepence-halfpenny a day, with a promise, which was not kept, of another halfpenny at the end of the year. Out of this the man had to feed himself. He was to receive fresh clothing free every eighteen months, the solitary coat to be turned without charge at the end of ten. It was found that some officers had been in the habit of enrolling recruits, keeping them for awhile, and then turning them away without pay, thus making a handsome profit in each case. In July 1687 he assembled a force in camp at the Curragh with a free market for victuallers, the soldiers having strict orders to pay ready money and ‘in all things to behave themselves as becomes good and peaceful subjects.’ When the camp broke up Sheridan advised Tyrconnel to send the regiments of Mountjoy and Forbes, the only two Scotch Protestant colonels, to Munster, and Catholic regiments to Ulster, where the Presbyterians had been assembling in great numbers. Mountjoy dissuaded him from this course, with important results both to himself and to the country.^[171]

The attack on Magdalene College, the persecution of the seven bishops, and the proceedings of the Ecclesiastical Commission had little direct effect in Ireland, but they caused many Protestants to make haste out of Tyrconnel’s reach and spread terror among those who were unable to get away. In July 1688 the Irish army was again encamped at the Curragh, and James, unwarned by his father’s and Strafford’s fate, determined to use it for his own purposes in England. In the camp at Kildare all Roman Catholic soldiers—that is, the great bulk of them—were to confess regularly and to forfeit three months’ pay if they failed to produce a priest’s certificate of having received the Sacrament at least twice a year. In the camp at Hounslow loud cheers hailed the acquittal of the bishops. There were a few Irishmen there, and one of them murdered a comrade. He was promptly hanged as the only means of stilling the consequent uproar. A few weeks later Evelyn reports that ‘many murders had been committed by Irish Popish soldiers.’ Officers forfeited their commissions rather than admit Irish recruits at the King’s command. Nearly a whole regiment laid down their arms rather than declare against the tests. In the face of this popular feeling James persevered in his determination to bring over Irish troops. There were not enough of them to be of any real use, and they were guilty of many disorders on the road. Probably they were

Irish soldiers in England.

Tyrconnel raises fresh regiments.

unpaid, and had to steal or starve. Tyrconnel was weakened by the loss of trained troops. Some 5000 were brought over in all, including about one-half of the Irish standing army of seven or eight thousand. Sarsfield and his men behaved well at Wincanton, but the skirmish there could not influence events. When the Revolution was accomplished most of the Irish were disarmed and kept in the Isle of Wight, whence William III. sent about two thousand as a present to the Emperor for employment against the Turks, thus contributing to the discomfiture of France and indirectly to that of their dethroned king. When the Dutch descent on England was imminent, Tyrconnel began to raise new regiments. He told James that Ireland was rich in men and provisions, but without money, and he sent full particulars through Sarsfield. The supply of competent officers was at once seen to be insufficient, and many non-commissioned officers and men left their colours in the old army with a view to getting promotion with the new levies. Before the end of the year Tyrconnel gave out that His Majesty's revenue had decreased and was daily decreasing, and the clear pay of a soldier of the line was reduced to twopence halfpenny a day. Hundreds of commissions were issued in a very irregular way, and the new officers, in Archbishop King's words, 'were without money, estate, or any visible means to raise their troops and companies and to subsist [so they termed maintaining] them for three months from the first of January, a thing impossible without allowing them to steal and plunder. It was this struck so much terror into Protestants, and made them so jealous and apprehensive of danger that they fled into England in great numbers, especially when they found that the new raised men, as they surmised, began to make havoc of all things.'^[172]

On July 21, less than a month after the acquittal of the seven bishops, the Duke of Ormonde died at Kingston Hall in Dorsetshire. It was the anniversary of his wife's death four years before, and the end of his life was clouded by many other losses. His eldest son Ossory, who had a reputation scarcely inferior to Philip Sidney's, had died in 1680, and his much less satisfactory brother Arran followed in 1685. As soon as the news reached Oxford, Convocation was hastily summoned, and the Duke's grandson and successor was chosen Chancellor. A royal mandate to stop the election came too late, and the University was saved the indelible disgrace of seeing Jeffreys at its head. In one respect Ormonde was happy in an opportune death, for he did not have

The Duke of
Ormonde dies.

to choose between the King and the law. It would have been a bitter thing for him to come under another sovereign when James was still alive, but he opposed his policy. Only a year before his death he signed a protest against admitting a pensioner to the Charterhouse without taking the oath of allegiance and supremacy as required by an express Act of Parliament. The governors who protested with him were Sancroft, a non-juror, Craven, whose loyalty was absolute, Halifax the cautious, Danby and Compton, who signed the invitation to William of Orange, and Nottingham, who was privy to it but shrank from signing. The King and Jeffreys were cowed by this powerful opposition. Besides his anxiety about public affairs, Ormonde was troubled by want of money, for Tyrconnel's proceedings had interfered with Irish rents, and he foresaw discomforts such as he never expected to feel 'during the reign of any of the race of King Charles the First.' His health was gradually failing, though he travelled much almost to the last, but he felt that the time for field sports was over, and that 'the steps downwards are very natural from a field to a garden, from a garden to a window, from thence to a bed, and so to a grave.'^[173]

Ormonde's character has sufficiently appeared in the course of these volumes. His patience was boundless.

His character.

Burnet, who had not much in common with him, says he was 'firm to the Protestant religion, and so far firm to the laws that he always gave good advices: but even when bad ones were followed, he was not for complaining too much of them.' His distinguishing principle was loyalty to the person of the sovereign and to the Crown as an institution. Thus, he fought for Charles I. as long as he had any party, and then he surrendered Dublin to the Parliament rather than damage the value of the reversion. Having begun by repressing the Irish rebels, he joined them when they were fain to call themselves royalists. During the interregnum he followed Charles II., and even risked his life in London when Cromwell was at the height of his power. During his three years of retirement after the accession of James, he continued to give good advice, and followed the King as long as he was able to go about. In Ireland he was undoubtedly popular, though an offence to extreme men on either side. Those who were ruined by the Act of Settlement thought he did not do enough for them. The Settlement, however, was not specially his work, but the result of the political situation, and for many he was able to secure special terms. By the Roman ecclesiastics he was, of course, hated, but they had done him all the

harm they could in their day of power, and he made no secret of his wish to divide them. Most of his relations were Roman Catholics, but he stood staunchly by the Church of England. For persecution he had no taste, and he did much to soften the action of the English House of Commons. He did not neglect his own interests, though he might have had much more than he got, but some critics forgot that he had been in dire poverty during several years of exile. He, or rather his Duchess, was extravagant, as when 2000*l.* was spent on Charles II.'s supper, but his own tastes were very simple, and a boiled leg of mutton was all he insisted on. As a soldier he distinguished himself in the early part of the Civil War, but the disaster at Rathmines damaged his military reputation. He had a very bad army there, and Michael Jones had a very good one. His whole career is a comment on Wellington's question—How is the King's government to be carried on? The sovereigns whom he served were unworthy of such loyalty, but both England and Ireland profited by it.^[174]

The state of the country after a year of Tyrconnel's government may be inferred from such reports as have survived of the Spring Assizes in 1689. Chief Justice Keating and Baron Lynch, one of the new judges, presided at Wicklow. John Price, lately Receiver-General, but dismissed since Clarendon's departure, was under his successor's protection. When the new levies were in progress 'the Merryboys,' urged on by some of their clergy, made a general attack on the Protestants. Plunder was the order of the day. Price lived at Ballinderry in the Wicklow hills, and his neighbours gathered round him for mutual safety. Colonel O'Toole, who was said to have collected twenty-six loads of miscellaneous booty, demanded their horses and arms, which were refused. Colonel Sheldon was then sent with a strong force, and to him they submitted. On these facts Price and a hundred other Protestants were indicted for high treason. A true bill was found, but the multitudinous defendants challenged all Roman Catholics. For want of Protestant freeholders no petty jury could be had, so that the trial failed. A juror named Saville was discharged as destitute. Even his wife's and his children's clothes had been taken. Keating asked him the value, and he answered, 'Truly, my lord, I have not yet computed my loss, but they have taken away all.' In his charge to the Grand Jury the Chief Justice said the country generally was in an ill state, 'but here they spare not even wearing clothes

Disturbed state of
Leinster.

Price's case.

and habits of women and children, that they are forced to come abroad naked without anything to cover their nakedness.' He prayed for the preservation of his sacred Majesty King James II., 'for the protection of dutiful subjects, and for the subversion and eradication of all those who desire the subversion of his government either by foreign force or inbred conspiracy.' He told the Roman Catholics that their turn would come. They knew that there had been 'an invasion in England of a foreign enemy, the Prince of Orange, and the same is designed on this kingdom.' When these words were spoken William was actually King of England, and it is not surprising that the Protestants, when they regained power, should have considered Keating a traitor, or at the very least a trimmer.^[175]

At the same Assizes Maurice Cavanagh and two men named Poer and Boland, were indicted for robbery with violence. Cavanagh gave evidence against his accomplices and was acquitted. In sentencing Poer and Boland to be hanged, Keating said the worst of the three had escaped; and he drew a vivid picture of the condition of those who had put the labour of their whole lives into cattle and lost all in a night. There was, he said, nothing so barbarous this side of the Cape of Good Hope. Cavanagh swore that his parish priest had ordered him to have a skean, that similar orders had been given in other parishes, and that companies were thus everywhere collected armed with skeans or half-pikes. A letter dated March 2, addressed by Tyrconnel to the judges, was read in court. The Chief Justice having returned to Dublin, the Grand Jury gave in their answer to Lynch. The Lord Lieutenant complained of a falling revenue, and demanded a voluntary aid to be raised by the sheriffs, but they said in writing that the country was poor through the daily ruin of the English, and they could hardly live, much less subscribe. In discharging them the judge said their paper was a reflection and scandal to their country, and would be very ill taken by Government. He ordered it to be torn out of the minute-book, lest it should be used in evidence against them, and this was accordingly done.^[176]

Opinions of two judges.

Cork and Bandon, Mallow and Castlemartyr, being in Jacobite hands, about a hundred of the Munster gentry who were determined not to submit, prepared to join Lord Kingston at Sligo. Sir Thomas Southwell of Castlematras, near Rathkeale, was the leader of this expedition. Avoiding

Case of Sir Thomas Southwell, March 1689.

Limerick, they crossed the Shannon at O'Brien's Bridge and made their way through Clare with slight opposition. At last they were captured in a narrow pass by James Power, sheriff of Galway, at the head of a strong force. It seems clear that the conditions were not faithfully kept, but the prisoners were all taken unharmed to Loughrea and thence to Galway. They were tried before Martin, one of the new judges, who went to court preceded by a piper instead of a trumpeter. The facts could not be denied, and the whole party were sentenced to be hanged, drawn, and quartered, and even ordered to prepare for immediate death, but there were several reprieves, and all were suffered to live until William's arrival altered the situation. Southwell himself made friends with Kenneth, Lord Seaforth, who was allowed to carry him off after several months' captivity. James granted him a pardon, though Nagle said he was then precluded by the Act of Attainder from doing so. As Southwell was by that time safe in Scotland, the validity of King James's clemency remained undecided. ^[177]

Tyrconnel was a partisan of France, and in 1686 boasted that he could hand over Ireland to her whether he became Viceroy or not. Barillon said much the same, adding that only time and a Parliament could restore their property to the Catholics of Ireland. In the meantime James thoroughly approved of the Lord Deputy's proceedings in that direction. There is no evidence that Tyrconnel at any time contemplated making terms with William, but he may have wished it to be thought that he did. He told Archbishop Marsh and others that he was weary of the government, but could not quit it without his master's leave. 'What,' he said, 'shall I do with the sword? There is nobody to receive it. Shall I throw it into the kennel?' He may have had a moment of despair when he saw the thanes leaving their misguided master, and there is a letter written by Chief Justice Keating with his approval, which hints that he and his co-religionists would be satisfied if they could be placed in as good a position as they had held under Charles II. If James gave the order he was ready to disband his new levies. Keating's letter was addressed to Sir John Temple, whose nephew advised William to send over Richard Hamilton, one of the officers sequestered in the Isle of Wight. It is uncertain whether Hamilton had an understanding with Tyrconnel, or whether he really thought he could persuade him to accept William's terms. However that may be, it was known in a month that the emissary would not return as he had promised, and he doubtless confirmed Tyrconnel in his

William's attempt
to gain Tyrconnel.

determination to resist. John Temple was blamed for the bloodshed that followed, and his tragic death was the result of remorse. [\[178\]](#)

‘It pleased God,’ said George Walker, ‘so to infatuate the councils of my Lord Tyrconnel that when the 3000 men were sent to assist his master against the invasion of the Prince of Orange, he took particular care to send away the whole regiment quartered in and about Londonderry.’ The air was full of rumours, and the prevailing panic was increased by an anonymous letter announcing that there would be a massacre of the Protestants on Sunday, December 9. Many copies were circulated, one of which, addressed to Lord Mount Alexander, was found in the street at Comber in Down. The letter was doubtless an impudent fabrication, but it had a great effect, for 1641 was not forgotten. Copies reached Dublin on Friday, Sunday was the fatal day, and 3000 Protestants managed to get away by sea on the Saturday. Tyrconnel did not lose a moment before issuing a proclamation against false news, and he sent a yacht after the fugitives, but they could not be persuaded to return. The alarm spread to the country, and for several successive Sundays Protestant congregations worshipped with armed sentries at the door, like the Scotch field conventicles in Lauderdale’s time. The panic in London owing to false reports brought by countrymen took place a week later, and may have been an echo of the Comber letter, but the truth will never be known. Londonderry became a city of refuge, with vigorous support from Enniskillen and Sligo, which Tyrconnel had also neglected to garrison. [\[179\]](#)

Unrest in Ulster,

and in Dublin.

The English colonists in Ireland were naturally most unwilling to break with the King. The Scots were less so, though the Presbytery of Belfast had in some sort taken the part of Charles I. against the Parliament. The position occupied by the covenanted King before Worcester had not increased their respect for the royal office, nor had the boot and the thumbscrew done much to revive it. Ezekiel Hopkins, Bishop of Derry, was for non-resistance at any price. Dr. William King, who succeeded him after the Boyne, held the same doctrine, but he realised that James was on the road to ruin, and has left an interesting account of the steps by which he came to see that his allegiance was due to King William. It was a comfort to him to reflect that he had done nothing to bring about

Non-resistance. Dr. King.

Lord Mountjoy.

the change, and might become an archbishop under the sovereign whom Parliament had chosen. Less fortunate was William Stewart, Viscount Mountjoy, whose father had fought against Cromwell at Dunbar, who had been Master of the Ordinance since 1684, and who had seen foreign service. It was his regiment which was withdrawn from Londonderry to replace one sent to England. On account of his great influence the purge had been sparingly used in this case, and many, perhaps most, of Mountjoy's men were Protestants. After Londonderry had shut its gates Mountjoy was admitted alone, but the town was induced to receive two companies, chiefly Protestants, under the command of Lundy, who has thus gained an unenviable place in history. Mountjoy then went to Dublin, where Tyrconnel persuaded him to go to James in France, to say that he would destroy Ireland, but not save it, and to ask leave for the Deputy to treat with the usurper. Tyrconnel promised upon his word and honour not to raise or arm additional troops and to sign no fresh commissions, to keep the new levies in quarters, and to send no more into Ulster, to molest no one for any tumultuous meeting or disorder before January 10, and to quarter no soldiers in any private gentleman's house. The sequel is well known. Chief Baron Rice accompanied Mountjoy to Paris with secret orders directly opposite to those avowed. The deceived soldier was at once shut up in the Bastille, where he remained for over three years, and was then exchanged for Richard Hamilton. Having by this time had enough of passive resistance, he joined William as a volunteer, and was killed at Steenkirk. James was no party to the imprisonment, and would have been satisfied to let Mountjoy leave France. Tyrconnel at once proceeded to do all the things he had promised on his word and honour not to do—the honour which stooped to traduce Anne Hyde, and the word which had gained him the name of lying Dick Talbot. The treacherous detention of Mountjoy was a blunder, for the Protestants found other leaders, and were confirmed in their opinion that no faith would be kept with heretics.

On the same day that the Comber letter reached Londonderry there came another from George Philips of Limavady, who had been governor in Charles II.'s time. He was a descendant of that Philips who had been conspicuous in the Ulster Settlement. He informed the townsmen that Lord Antrim was near with his regiment, and cautioned them against admitting it. Antrim's men were raw levies, some 1200 Highlanders and Irish, not

The gates of
Londonderry shut,
December 1688.

properly clothed and very imperfectly armed, and, of course, all Roman Catholics. The men on the wall saw the motley crowd, and thought that they had come to fulfil the predicted massacre. Against the advice of the bishop and disregarding the fears of their elders, some young apprentices shut the gates in the face of Lord Antrim's officers. He withdrew to Coleraine, and ten days later Tyrconnel ordered him to be ready to march at a moment's notice. The Lord Deputy was about to send an army against the rebellious town, and would follow himself in a short time. In the meantime Mountjoy had received a somewhat apologetic letter from the citizens, in which the apprentice boys are called a rabble; but in writing to the Irish Society in London the same men say only that 'just as the soldiers were approaching the gates, the youthhood, by a strange impulse, ran in one body and shut them.' Old and young combined to form themselves into companies. Philips accepted the office of governor, and, while seeking a pardon from the Lord Deputy, the offenders made it quite clear that they would stand on their defence. Mountjoy entered the town alone, but it was agreed that two companies of his regiment, chiefly Protestants, should be quartered there under Colonel Robert Lundy, who became governor, and that future reinforcements should be at least one-half Protestant. When the flight of James was known, the determination to hold out became stronger, and when William actually became King of England all restraint was withdrawn. Lundy received a commission from the new sovereign. When James landed in Ireland he found the state of war fully established between his own Government and the Protestants of Ulster.^[180]

'We stand upon our guard,' said Gustavus Hamilton, governor of Enniskillen, 'and do resolve, by the blessing of God, rather to meet our danger than expect it.' The great men of the neighbourhood were timid or lukewarm, but the people did not hesitate, and their chosen governor identified himself with them. His grandfather, who was Archbishop of Cashel, had died in exile after being plundered by the rebels in 1641. His mother was a Swede, his father and uncle had served under the great Gustavus, and he himself had been turned out of the army by Tyrconnel. At Enniskillen, as at Derry, there was great unwillingness to oppose King James, but circumstances were too strong, and the party of resistance soon got the upper hand. The Comber letter arrived on December 7, and the effect was immediate. The Irish were drilling and arming in the neighbourhood, and the news from Dublin grew

Enniskillen
determines to resist.

daily worse. It was hard to get a horse shod, for the country smiths were busy making pikes, and staves were being cut openly in the woods. On December 13 came news that two companies were actually on their way to garrison the town. From that moment country people with horses and arms flocked in to reinforce the inhabitants, who were under a hundred in number. Three days later the dreaded companies, with a convoy of arms for the rabble, reached Lisbellaw, some four miles away. By this time the townsmen could muster 200 foot and 150 horse, and they resolved to be the attacking party. Hamilton had raised another 100 horse on his own account, and was ready to support them. The invaders fled without striking a blow to Maguire's Bridge, and the next day to Cavan. Hamilton then accepted the office of governor, and a few days later the news came of James having left London, after which there was no hesitation, though it was long before the full facts were known. Some said he had gone to Rome, others to a monastery, and others that he was dead. Until after his landing in Ireland there was no further attempt against Enniskillen. Lundy was accepted as commander-in-chief, and on March 11 William and Mary were joyfully proclaimed with as much ceremony as circumstances admitted. [\[181\]](#)

The panic extended to Sligo, and the gentry there, chiefly under the guidance of Robert, Lord Kingston, determined to resist. As at Londonderry and Enniskillen, Roman Catholics were excluded from the town, and the Protestants resolved to cast in their lot with the English Government and Parliament. Troops and companies were formed, Kingston and Colonel Chidley Coote were chosen commanders-in-chief, and care was taken to provide for communication with Enniskillen. One outpost was at Manor Hamilton, which had played a part in 1641, and another at Dromahaire, the old O'Rourke stronghold near Lough Gill. The Protestants of Roscommon, Mayo, and Leitrim flocked to Sligo, and when James landed it was still in Protestant hands.

Sligo.

The Protestant gentry of Down and Antrim met at Comber and formed an association. Lord Mount Alexander, who was only a nominal soldier, was made commander of the forces raised, which were considerable in point of number. A council was established at Hillsborough, where there was a fort, and

Ineffective resistance in Ulster.

The Break of Dromore.

stores were collected there; but from the first ill-success attended the movement. The general showed little ability, and his heart was not really in the business, while he complained of being ill seconded by others. The local magnates quarrelled among themselves. No real leader made himself known. A plot to seize Belfast and Carrickfergus, which were undefended, failed through want of promptitude, and an attempt to surprise the latter place after it had received a garrison was ill-managed and unsuccessful. Just before James landed in Ireland, Tyrconnel sent Richard Hamilton with a thousand good soldiers and twice that number of raw levies to the North. The Protestants were scattered about in small bodies and never came properly together. Those at Rathfriland and Loughbrickland fled at Hamilton's approach. A stand was made at Dromore, but he fell upon them before they were all assembled, and a complete rout followed. Tradition says the struggle was so short that a woman left her baking to see the fight, and on her return found the bread not burnt. Some delay was caused by the strong fort at Hillsborough, but there was no serious resistance. The general and most of the chief men fled to England or Scotland, and the rest flocked to Londonderry and Coleraine. By the time that James reached Dublin opposition to him was practically confined to the territory controlled by Londonderry and Enniskillen. Sligo was evacuated by special orders from Lundy, who laid the blood of all Ulster on Lord Kingston's head, if he did not come at once to the relief of Londonderry. The holder of King William's commission was obeyed, but when the Sligo men got to Ballyshannon they were ordered to stop there and defend the Erne. Afterwards they were told to go to Cladyford, but the order came too late. Lundy, who had at first demanded every man, then offered to take in a few as a sort of favour. Lord Kingston made his way to England, but he left Colonel Lloyd behind, who became the fighting hero of the Enniskillen garrison.'

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FOOTNOTES:

[158] *Sheridan MS.* Cartwright's *Diary*, January 17 and February 21 to March 5, 1686-7. Clarendon's *Diary*, February 6, and his letters of October 2 and January 8.

[159] The Coventry letter, dated October 26, 1686, is in the *Jacobite Narrative*, ed. Gilbert, appx. i., and in *Ormonde Papers*, vii. 464. Clarendon's *Diary*, January 4, 1686-7. *Sheridan MS.* The King to Clarendon, April 6, 1686. Barillon to Louis XIV., October 16, 1687, in *Dalrymple*, ii. 262.

[160] Clarendon's letters of March 14, April 17, 1686, May 8, 11, 15, 25, and 30, and June 1 (to Ormonde). Sunderland to Clarendon, June 14. Anonymous letters of warning to Clarendon and the Protestants are in *Clarendon and Rochester Correspondence*, i. 369, 498, 563.

[161] Sunderland afterwards claimed to have prevented James from allowing Tyrconnel to hold a parliament, though he was offered 40,000*l.* to agree to the repeal of the Act of Settlement in that way. This may be believed, as he appealed for confirmation to Godolphin, as well as to Nugent and Rice, *Diary of H. Sidney*, ii. 379.

[162] Rules for Corporations in *Irish Statutes*, pp. 197-239. Clarendon's letters, particularly that to the King of August 14, 1686. Cartwright's *Diary*, August 1687. *Sheridan MS.*

[163] James's letter of September 20, 1687, is in Harris's *Life of William III.*, appx. viii. The *quo warranto* to Belfast and the new charter are printed in Young's *Town Book of Belfast*. King's *State of the Protestants*, chap. iii. section 5. *Apology for the Protestants of Ireland*, 1689. The proceedings in the Londonderry case are given by King, appx. vii.

[164] Clarendon's letters of June 22 and August 14, 1686, and of January 22 following—his last from Ireland. Ormonde to Southwell, February 5, 1686-7, in *Ormonde Papers*, 1899. Proclamations of February 21, 1686-7, and April 4, 1688. *Life of James Bonnell*, p. 273, and his letter to Strype, January 21, 1688-9, in *English Hist. Review*, no. 74.

[165] Clarendon's letters of June 26, July 27 and 31, August 26, 1686, and his *Diary*, January 4, 10, and 11, 1686-7. The Duke of Berwick agreed with Mr. Nihill that Tyrconnel was 'fort rusé.'

[166] *Sheridan MS.* King's *State of the Protestants*, chap. iii. section 3. O'Flanagan's *Irish Chancellors*, i. 470, 487.

[167] Clarendon's letters of June 19 and July 31, 1686. King *ut sup.* In *Secret Consults of the Romish Party* Worth is represented as their chief tool, but Tyrconnel said he was 'by God, a damned rogue ... by God, I will have it brought to the Council Board, the King has an ill opinion of him, and I will do his business.'

[168] Clarendon's list of sheriffs for 1686 is printed with his letter of March 2, 1685-6. Tyrconnel's list for 1687 is in King, appx. vii. Clarendon's letters of June 12 and 15. The King to Clarendon, October 8, and the answer, October 16.

[169] The two judges left Dublin on March 17, 1688, St. Patrick's Day, *Secret Consults of the Romish Party*, pp. 115, 120. They had left London on their return before April 25, Luttrell's *Diary*, i. 438.

[170] Tyrconnel's proclamations of April 11, 1687, and April 4, 1688. As to Irish Nonconformist addresses, see Reid's *Presbyterian Church*, ii. 351, and Luttrell's *Diary*, June to August 1687.

[171] List of Commissions in Dalton's *Army List*, i. 10, from February 12 to June 21, 1687. Proclamations of February 24 and July 18. *Sheridan MS.*

[172] Avaux fully sustains King. He says most regiments were raised 'par des gentilhommes qui n'ont jamais été à l'armée, que ce sont des tailleurs, des

bouchers, des cordonniers qui ont formé les compagnies qui les entretiennent à leur despens et en sont les capitaines,' to Louvois, April 16, 1689. Tyrconnel's proclamations of July 20, August 24, December 29, 1688. Luttrell's *Diary*, July 6, August 27, September 8, December 15, 19, and 30, 1688, January 1, and April 24, 1689. Evelyn's *Diary*, July 23, October 7, 1688. Hoffmann to the Emperor Oct., Doc. 626 in Campana Cavelli. Tyrconnel to James II., Oct. 3/13, *ib.* Doc. 633. King's *State of the Protestants*, chap. iii. sec. viii. 5. It was absurdly reported in France that William had interned the Irish in a little island that they might all perish there, *Memoirs of De Souches*, January 12/22, 1689.

[173] Carte's *Ormonde*, ii. 547, and see Macaulay's remarks on the Charterhouse case in chap. viii. Ormonde to Southwell, November 18, 1686, in *Ormonde Papers*, O.S., ii. 306; and to Temple, June 15, 1687, *ib.* N.S., vii. 494. A. Wood's *Fasti Oxonienses* and his *Life and Times*, ed. Clark.

[174] Burnet's *Own Times*, i. 95, and the *Supplement*, ed. Foxcroft, p. 60. The two characters should be compared, that in the published History, written in 1702, being kinder to Ormonde than the original draft written in 1683. Burnet tells us that he had associated more with Ormonde's enemies than with his friends, and looking back at the Caroline court from a convenient distance, he was able to see the old cavalier's superiority. I have read Nicholas French's *Unkind Deserter*, 1676, which is not convincing, though the Bishop proves that Ormonde got larger grants of land than Scævola and Horatius Cocles. A defence of his hero in money matters is in Carte's *Ormonde*, ii. 308 *sqq.*, 430. Burnet notes that Ormonde 'writes the best of any man that has no learning that I ever knew.'

[175] Proceedings against John Price, &c., Wicklow Assizes, March 6, 1688-9, 1 William and Mary, Howell's *State Trials*, xii. no. 363. The reporter says he was present in court. The author of *Secret Consults* is unfair to Keating, but points out (p. 75) that he had 'always been a servant of the Duke of York'; he had done his law business in Ireland, *Hist. MSS. Com.* (House of Lords), 11th Report, ii. 219.

[176] Howell's *State Trials*, xii. no. 364.

[177] The fullest account of this matter is in Lodge's *Peerage of Ireland*, ed. Archdale, vi. 20. Hardiman, in his *History of Galway*, p. 155, note, says Lodge's account is unfairly coloured, but does not dispute the facts. King's appendix no. 16. *Account of the Transactions of the late King James*, &c., licensed July 7, 1690, p. 3. Luttrell, i. 517. Two Ponsonbys, a Percival, and a Purdon were among Southwell's companions.

[178] *Sheridan MS.* Letters of Barillon, September 13/23, 1686, and September 6/16, 1687, and of Bonrepaus, August 25/September 4 1687, in notes to Macaulay, chap. viii. Luttrell, i. 495, 500. King, iii. 8, and Keating's letter of December 29 in appx. xiv. Evidence of Sir Robert Colville and John Philipps to the House of Lords, *Hist. MSS. Com.*, appx. to 12th Report, part vi. 1689.

[179] Walker's *True Account*. The Comber letter is in King, appx. xii., and in many other places. *Secret Consults of the Romish Party*. Proclamations of October 15 and December 7. The 'Irish night' in London is sufficiently described by Macaulay, chap. x. *Ellis Correspondence*, ii. 356. Writing to her cousin Abigail Harley on December 13, 1688, Mrs. Pye says, 'The watch called all up

that the Irish were near, and at Knightsbridge had killed man, woman, and child, and were resolved for to fire and massacre. I bless God I was not much frightened as might be expected,' *Portland Papers*, iii. 420.

[180] *Faithful History of the Northern Affairs, &c.*, licensed December 10, 1689.

[181] Andrew Hamilton's *True Relation*, 1690. He says there were public masses through the North 'for the furthering of that which they called Inteneragh—that is, a secret intention.'

[182] *Faithful History of Northern Affairs*, 1689.

CHAPTER L

JAMES II. IN IRELAND, 1689

At the beginning of 1686, Bonrepaus, a high official in the French marine, was sent by Louis XIV. on a special mission to England. He found the navy there in very bad order, also discovering that Sunderland and Barillon were closely allied, and that the French diplomatist was no match for the English politician. He believed that in this way many important secrets became known to the Prince of Orange. Avaux wrote to the same effect from Holland, and even Skelton formed a similar opinion. Tyrconnel thought he could utilise Bonrepaus and defeat Sunderland, and when the former returned to England in the summer of 1687, he pressed him to come to Chester and arrange with James for the separation of Ireland from England in the event of a Protestant succeeding him on the throne. Tyrconnel and Sunderland were both with the King in August, but Bonrepaus trusted neither of them and kept away from Chester. James had no idea that he would be dethroned in little more than one year, and thought Ireland might be in a fit state after five of leisurely preparation, but Tyrconnel, who may have seen more clearly that his master was on the road to ruin, pressed for more speedy measures, and made all the military preparations that he could. Seignelay particularly cautioned Bonrepaus not to let Barillon know anything about his dealings with Tyrconnel. Sunderland, however, told the ambassador a good deal, adding that the King was determined to repeal the Irish Act of Settlement, and that in the opinion of all Englishmen this would lead to an entire separation of Ireland from England. The announcement that Mary of Modena was likely to become a mother, cut the scheme short, but when William became King of England the Irish Government was prepared to go

French designs on Ireland.

on with the original plan. French and Irish were united as to the desirability of making Ireland depend only on France, but James was always too much an Englishman to take that view heartily.^[183]

When James fled to France it soon became evident that Ireland was his only chance. In order to find out the true state of affairs there, Seignelay sent Pointis, an officer of marine artillery who had done good service at Genoa and Algiers and had already been on a mission to James in England. He was accompanied by Captain Michael Roth of the Irish foot-guards, by whom he was to be guided. Pointis produced a detailed report, which shows clearly the state of Ireland after William reached London and before James left France. He had been particularly instructed to consult Tyrconnel and to inquire whether the majority were strong enough absolutely to subdue the Protestant minority. No hope was to be held out of any help from France except in arms and ammunition. Pointis found that in Ulster about half the population was Protestant, but only one twentieth in the other provinces. They had arms, money, and good horses. Mountjoy had had the address to put Protestant garrisons into Londonderry and Sligo, but the towns generally were in Catholic hands. The Governor of Duncannon was a Protestant, but his men were not. There were 2300 good cavalry and 3500 infantry of the old army, and about 40,000 Catholics raised by the gentry but without arms or officers. He did not believe Tyrconnel could take either Sligo or Londonderry, though unfortified, for there were no gunners or artillery officers. This he attributes to the machinations of Mountjoy, who was Master of the Ordnance, but it is sufficiently accounted for by the general neglect prevalent under Charles and James. Dr. King had been all over Ireland some months before. He rejoiced in the nakedness of every garrison town, which would make it easier in good time to subdue the 'papistical faction' to whom James had entrusted all. Pointis returned to Ireland after reporting, and gave some trouble as Seignelay's representative. He claimed to be independent of Avaux and almost independent of Louvois.^[184]

Mission of Pointis.

His report.

Pointis found a general expectation that the heretics would be crushed before help could come from England. In the three southern provinces they were easily disarmed, there was a daily exodus of Protestants, and hundreds quitted

Pointis on the new army.

Ireland at the mere news of his arrival. Tyrconnel's raw recruits were willing enough to be drilled, but they had only rusty muskets and pikes or mere sticks with nails at the end. Even the women begged on their knees for arms from France. There was no money to pay or feed them, but the number of men might be easily raised to 100,000 if none were rejected, and Lord Antrim, who hesitatingly followed his brother's footsteps, had a commission from some Highland chiefs to join his force to theirs. Present help was necessary, but in the end Pointis thought Ireland could pay her way provided the wool trade were diverted to France. An invasion of England might even be possible, and in any case, William would be kept so busy as to make it impossible for him to do anything against French interests elsewhere. ^[185]

Captain Roth carried a letter from James to Tyrconnel, and brought back his answer, containing the same information as Pointis gave to Seignelay, and urging him to appear himself in Ireland: 500,000 crowns would be wanted at once, with at least 16,000 muskets and 12,000 swords. Many good officers should be sent, including all those who had followed their King to France. 'I beg of you,' he added, 'to consider whether you can with honour continue where you are when you may possess a kingdom of your own, plentiful of all things for human life.' He could live well in Ireland on what the King of France allowed him. Vauban wrote to the same effect. Ireland was James's last stake, and he ought to play it in person. It was his only chance, and, even if he failed, the diversion would be useful to France against her many enemies. Evidently James was not anxious to start. His insensibility and want of dignity in misfortune were generally remarked, while his Queen was praised and admired. But French and Irish opinion left him no choice, and the expedition was decided upon after he had been at St. Germain about six weeks. ^[186]

Tyrconnel invites James to Ireland.

It has often been said, and is probably true, that if Louis XIV. in September 1688 had besieged Maestricht instead of Philipsburg, William of Orange would have been fully occupied in defending Holland and could not have invaded England. France might then have lorded it over Europe for an indefinite time. But James, before his affairs became desperate in England, had in one of his

James II. in France.

The Emperor.

The Pope.

fits of independence refused the French King's help because it would be unpopular. The revocation of the Edict of Nantes and the persecution both before and after, made the idea of a French alliance hateful to England. But after his flight James found that Louis was his only friend. He appealed for help to all the Catholic powers, but in vain. The league of Augsburg had been defensive against the overweening ambition of France, but Germany had been confirmed by the devastation of the Palatinate. Meanwhile, the Emperor Leopold reminded him that he had slighted his advice sent through Kaunitz, and that the favourable time had passed. He himself had to employ all his resources in defending the frontiers of Christendom, while the French ravaged German lands and burned the palaces of princes. 'It has,' he said, 'become a diversion to them to commit all manner of insolencies and cruelties in many places, but chiefly in Catholic countries, exceeding the cruelties of the Turks themselves,' and they were as dangerous to the Holy Roman Empire as to smaller potentates. The Pope supported the Emperor, for Gallicanism under such a king as Louis seemed to him a greater danger than Protestantism. James, while professing to tolerate and protect all creeds, privately proposed to root out heresy by military force, but success did not seem very probable while the most Christian King was actually threatening to occupy Rome. Louis expected the Pope to give money, but would make no concession on his part. In 1687, while James was still really King, Castlemaine's mission to Rome had failed entirely. James Porter, Endymion's fifth son, had no better fortune later, and was not allowed to go to the next Pope for fear of interfering with Melfort. By good and skilful government Innocent had replenished an empty treasury, and all that he could spare was wanted to repel the Turks. Of course he wished for the success of a Catholic monarch, but the prospect of good to the Church by James's plan of invading Scotland from Ireland and England from Scotland did not recommend itself to him. Innocent XI. died two days after the relief of Londonderry, but the election of Ottoboni, who became Alexander VIII., brought no relief to James, though considered a victory for the French faction. Louis yielded some points in dispute, but the Pope said he could not afford to fight against Turks, Vaudois, and English. He mourned in tears of blood and was ready to sell his cassock, but he had no money. Melfort's diplomacy was not likely to improve matters. [\[187\]](#)

It is possible, though not probable, that Tyrconnel may have hesitated a moment about his attitude towards the Dutch invader, but, if so, he was

confirmed in his allegiance to James by the news of his escape to France. The Lord Deputy had always belonged to the French party, and he doubtless exaggerated William's difficulties, though they were great enough. His mind once made up, he proceeded to enlist men as fast as possible though he could not arm, clothe, or feed them. Those who would undertake to support the recruits for three months from January 1 received commissions, 500 being issued in one day. The resulting confusion was indescribable and was felt for long afterwards. The colonels were men of family though not always soldiers, but the real recruiting was done by men of inferior rank, who became captains and subalterns. The new levies were begun in December, and by February over 50,000 had been enlisted. As for the most part they could not be armed, they were exercised with sticks three feet long tipped with iron or hardened in the fire. They were willing enough to be drilled, and were not accustomed to luxury, but they could not live without food, and being unpaid, they took what they wanted and more. The robberies and depredations could not be denied. They were daily, said Tyrconnel officially, 'committed by loose and idle people, which are by some imputed to the new levies.' He showed that he thought the imputation not ill-founded by ordering officers to keep strict discipline, to see that the soldiers took nothing without payment and behaved civilly to all, and to restore to their rightful owners such stolen horses, cattle, and other goods as could be recovered. Three weeks later he issued another proclamation announcing that the Prince of Orange was coming, and that to prevent his seizing them, arms and horses in private hands were to be immediately confiscated. Those who neglected to give them up at once were to be subjected to domiciliary visits on pain of being punished and of 'risking the ill consequences which may fall upon them by the disorders of the soldiers.' This applied to Dublin and the suburbs. Four days later the Lord Deputy had discovered that the associations in the North were armed and had rebellious intentions. The principle of confiscating arms and horses was therefore extended to all parts of the country, with saving clauses for those who did not appear to be rebels. Travellers were not to be molested except in Ulster and Sligo. As for the associated Protestants there, they were called upon to deliver up arms and horses, and on submission were promised protection, but Lord Kingston and ten principal gentlemen in North-East Ulster were excluded from favour or mercy.^[188]

Tyrconnel prepares for war.

General disorder.

In Leinster there was no resistance to Tyrconnel's Government. In Connaught the Protestants were comparatively few, but some found their way to Sligo from adjoining counties. In Munster the Protestants were in a hopeless minority, and a conspiracy to seize Cork was betrayed and ended in nothing, but where Lord Cork and Sir William Petty had left their marks something was attempted. At Bandon, in the neighbourhood of which robberies were openly committed, there was a small garrison under Captain Daniel O'Neill, who had doubtless good reasons for doubting whether he could trust the inhabitants. The corporation had been reformed here as elsewhere, but the oath was generally refused. O'Neill called upon all to give up their arms, but not many obeyed. A few days later Lord Clancarty threatened the town with a stronger force, but the Protestants resolved not to admit him. The garrison were suddenly overpowered in the night or early morning, and a few who resisted were killed. The captured arms enabled the people to man the wall, but the old cannon were neglected and useless. Lord Inchiquin advised them to make the best terms they could, and when General MacCarthy appeared with an army, nothing effectual could be done and the town was soon in his hands. He proposed to hang ten of the ringleaders and to burn the place, but Dr. Brady, the versifier of the Psalms, who had not yet abandoned the doctrine of non-resistance, interceded for his native town. MacCarthy, who was a civilised warrior, agreed to take an indemnity of 1500*l.* in ready money, full restitution being also made to soldiers who had been stripped of their arms or otherwise injured. Tyrconnel and James blamed the General for giving such easy terms, and some of the Bandonians were afterwards indicted for high treason. Many of the townsmen found their way to Londonderry, and thence to the Boyne. Petty's settlement at Kenmare had long been threatened by the natives. The Protestants, who were chiefly engaged in the iron works and in fishing, were not one in 500 of the population in those parts, and they began to think of 1641. Petty's agent was Richard Orpen, who was specially unpopular for his determination in bringing malefactors to justice. Among them was a MacCarthy, who in 1680 had robbed and murdered a smelter in open day, and Owen Sullivan (a loose gentleman), who in the same year had treacherously run Orpen himself through the back on a dark night for seeking to recover a debt. In 1685 Teague a Glauna had murdered a

Attempts to resist
Tyrconnel.

Bandon.

Kenmare.

pursuivant for trying to arrest papists in Kerry. In 1686 Daniel MacDermot, with half a score more, had robbed some French Protestant fugitives who had taken refuge in Kenmare River. In 1687 Daniel Croly and seven more Tories attacked Orpen and his brother, who shot three of them. 'Being made prisoners they lived till they were hanged at the assizes following. The greatest part of all these malefactors were severely prosecuted by Richard Orpen; some of them were hanged, some burnt in the hand, some remained in gaol, and the rest dispersed and fled out of the country.'

Siege of Kenmare.

Though suffering from occasional robberies, the settlers managed to live in tolerable comfort until the new policy was adopted in 1685, after which it became daily harder to get any redress. When the fresh levies began in November 1689, the officers, 'being persons of broken and desperate fortunes, not able to maintain themselves or their soldiers, were forced to filch and steal black cattle and sheep.' The thieves appeared in bands, sometimes seventy at a time and well armed, and openly drove away the cattle by scores through the neighbouring glens. The corn was carried off, and by the beginning of January the Kenmare people were reduced to what they had in their houses. They appealed to MacCarthy, who had the chief command in Munster, and to Sir Valentine Brown, who governed Kerry under him; and after a week's delay they sent back warrants to be executed by the plundered people themselves, which of course they were unable to do. In the meantime six of their houses were sacked. Sir Richard Aldworth of Newmarket was consulted, who said there was nothing for it but to retreat to the nearest garrison, but there were forty miles of mountains between them and Bandon, and they determined to stand on their defence. On the rocky peninsula of Killowen, in the estuary above the present town of Kenmare, Petty had built a house for his agent, 44 feet long by 22 feet wide, and containing four rooms and a garret. Here, under the command of Orpen and of his father-in-law, the Rev. Thomas Palmer, who held Kenmare and other Kerry livings, 42 families congregated numbering 180 persons, of whom 75 were fighting men. They had four blunderbusses and 40 guns of various kinds, besides pistols, swords and pikes, and 170 pounds of powder. Half an acre was enclosed by a bank 14 feet high and 12 feet thick, and wooden cabins were erected of such materials as might be easily pulled down if an assault were threatened. The house stood in the middle, and was strengthened with balconies and flankers. The country people about, who

had lived mainly on wages paid by the colonists, made no difficulty about doing the rough work. On the last day of January an association was formed under seal, and all swore on the Gospel to obey Orpen and Palmer until they had orders from the Prince of Orange, 'in defence of our lives and religion against the enemies of the Protestant Church.' Stolen goods may be sweet, but in the long run they tend to poverty. The wild people who had driven off the cattle took no steps to till the ground, but lived on the plunder. People who had been used to potatoes or oatmeal with meat perhaps four times a year, now 'gorged themselves with flesh, half-raw, half-roasted, sometimes half-boiled, half-rotten and stinking for want of salt, sometimes moving towards the boiler by the assistance of the wriggling crawlers, that lately before received their birth from the same piece of flesh.'^[190]

Having provided a temporary place of refuge, Orpen thought he might make an effort to execute Sir Valentine Brown's warrants. He sallied forth by night with a strong party and captured six of the robbers with stolen property in their possession. The goods were retained at Killowen, but the men were handed over to the authorities and soon released 'upon insolvent bail.' On February 25, the day appointed for disarming the Protestants, Captain Phelim MacCarthy arrived at one o'clock in the morning hoping to surprise the little garrison, but good watch was kept. At daylight there was a parley, and the Irish captain produced a letter from Sir Valentine Brown authorising the seizure of their horses and arms and promising to make good any condition made on surrender; otherwise he was empowered to use fire and sword. The garrison stood on their guard, but sent out a spy to gather news, who returned in four days saying that the Protestants of Cork were disarmed, that Colonel Henry Boyle had surrendered Castlemartyr, and that Bandon was in little better condition. There was no sign of help from England, and Orpen and Palmer, knowing that they could not resist cannon, capitulated on condition that the garrison were not plundered or molested, but suffered to retain their swords, as Sir Valentine had promised, and to leave the country or stay in it, as they thought fit. The house was nevertheless invaded by a mob, and the contents carried away. The garrison, with the women and children, embarked on two vessels of about 30 tons each, where they were 'packed like fish one upon the other.' They were not allowed to sail until Orpen had given a bond in 5000*l.* that they would all go to Cork and surrender to the governor there.

Kenmare
capitulates.

The garrison escape
to England.

He resolved to ignore the bond, which would be valueless if William succeeded, and sailed at once for England. The boatmen could not lay a course, but the two gentlemen, who knew geography if ignorant of navigation, managed to reach Bristol on March 25, after a full fortnight at sea. They had salt beef, meal, and water enough to support life, but little or no shelter, and they had lost all they possessed. On landing, three died of exposure. Many more had fever, dysentery, and ‘a more than ordinary sort of measles.’ Petty was dead, but on reaching London his widow, now Lady Shelburne, and others, relieved them. Most of the men enlisted in the army intended for the reduction of Ireland. [\[191\]](#)

James landed at Kinsale on March 12. He was escorted by a strong French squadron, but no enemy appeared, and the passage was quite uneventful. At this time he would not have accepted the help of a French army, and in any case Louis had no troops to spare, but he sent over 100,000*l.* in money, 20,000 muskets or carbines with ammunition, and 30,000 swords. Among the French officers sent by their sovereign to help his brother king were De Rosen, Lieutenant-General; Maumont, Marechal de Camp; and three brigadiers, Pusignan, Boisseleau, and Léry. Pointis accompanied them to superintend the artillery and, above all things, to represent Seignelay’s interest against that of Louvois. There were also a few French officers of lower rank, and some 200 English and Irish. Still more important was the appointment of Avaux as ambassador. Barillon was considered too fat and, moreover, he had been duped by Sunderland, while his rival’s good advice from Holland had been neglected at the English Court. Among James’s own subjects were Lord Dover, Lord Powis, whom he had just made a Duke, Berwick, and his other son Henry Fitzjames, on whom he had bestowed the empty title of Grand Prior of England. Some Jesuits, without whom the King could do nothing, were not wanting. There also was Bishop Cartwright of Chester, and above all Lord Melfort, who was James’s evil genius during the following months. The English officers, who were as yet unattached, landed at once, collected all the good horses for miles round, and hurried off to Dublin before travelling became difficult and before everything on the road was eaten up by the crowds following the King. Such animals as could be found were employed to take James and his

James arrives in Ireland, 1689.

French officers.

A French ambassador.

Royal progress to Cork.

baggage to Cork two days later. Pipers played and girls danced before him all the way. Cloaks and garlands were strewed in his path, and if some of the latter were made of cabbage stalks, it should be remembered that flowers are scarce in the first half of March, and that evergreens were not as common then as they are now. The French generals had to stay behind at Kinsale with the stores. There were no carts, only a sort of sledge (traineau) upon which a cargo of 250 lb. could be drawn by one horse at the rate of twelve miles a day. After four days, thirty quadrupeds were produced without saddles, bridles, or halters, enough rope to make reins being hardly procurable.^[192]

Tyrconnel met the King at Cork, made his report as to the state of affairs, and was created a Duke. James stayed there six days, lodging with the Dominicans. The Franciscans, in the dress of their order, escorted him through the streets to hear Mass in their new chapel. He granted Prebendary Brady's request so far as to spare the walls of Bandon, though Avaux strongly pressed their demolition. The people there continuing to show their political colours, an order to level the walls was at last given, but not obeyed, and they were left standing. During his stay, Nugent presided at the Assizes, and some Protestants looked upon him as an Irish Jeffreys. A gentleman named Brown had started with Sir Thomas Southwell's party, thought the adventure hopeless, and returned to his own house. He was brought before Daly at Limerick and discharged, but was arraigned at Cork, and found guilty of treason under the Chief Justice's direction. The High Sheriff took it on himself to put off the execution for a fortnight so that the prisoner's wife might have time to petition, and she appeared before James at Dublin with five or six children. 'Woman,' he is reported to have said, 'your husband shall die.' The sheriff was reprimanded for his humane action, and Brown was hanged, drawn, and quartered. In spite of his pardon to the Bandonians, for which he claimed the name of a gracious king, James allowed some of them to be indicted. A true bill was found, but the Assizes ended before a trial could be had. When Nugent would have tried them later MacCarthy interfered, much to his credit, and insisted that his word should not be broken. It was generally believed that Nugent on both occasions acted under direct orders from the King.^[193]

James at Cork.

Brown's case.

James left Cork on March 20 and travelled by Lismore, Clonmel, Kilkenny, and Kilcullen to Dublin, which he reached on the 24th. The hedges were lined by half-pike men, something between bandits and soldiers, and the whole journey was attended by rejoicing crowds as upon the first day from Kinsale. At Carlow, we are told, 'he was slabbered with the kisses of the rude country Irish gentlewomen, so that he was forced to beg to have them kept from him.' He entered Dublin on horseback, great preparations having been made for his reception. Troops lined the streets which were freshly gravelled, and stands were erected for musicians, who played loyal and joyful tunes. And so, amid the shouts of the populace and the roar of cannon, James reached the Castle, above which waved a flag with the legend 'Now or Never, Now and Forever.' All was fair to the eye, but Avaux had misgivings from the first. The King of England, he said, vacillated continually and often came to the wrong decision at last. He minded small things and neglected great ones, having so little foresight as to wish to leave Kinsale before the stores were landed. Of ten fat bullocks sent as a present to His Majesty at Cork, two were stolen on the way. Bands of plunderers were everywhere, and the newly raised troops, being unpaid, added to the confusion. Avaux reported that within one month of the King's landing over 5000 cattle were killed for the skin only, the bodies being left to rot unburied. A beast would be slaughtered to make a pair of brogues, sometimes the hide was used to boil part of the flesh in. Meanwhile the troops south of Dublin were not armed or even divided into regiments. [\[194\]](#)

Royal progress to Dublin.

His reception there.

Avaux had orders from his sovereign to stay with James wherever he went. He was particularly charged to allay the fears of the Protestants, to assure them that the King of England would make no difference between his subjects on religious grounds, and that zeal in his service would be the only title to his favour. A little later Louis reminded him that Cromwell had divided the land among the Protestants, but that the regicides' portion had since been given to James, who would have to surrender it to create a fund for compensating Catholics. In future Protestants who joined the Prince of Orange should be considered traitors who forfeited their lands by English law. Other Protestants were to be promised quiet possession and be persuaded that they had no violence to fear from the Catholics. Avaux lost no time in telling his master that it was hard to distinguish between Protestants, for the Irish said

Louis XIV.'s orders to Avaux.

none were loyal. Melfort wished to confirm all Protestants in their estates, but the ambassador disagreed, for the Catholics only were really faithful to James. Some of the bishops had gone to the Prince of Orange, and Avaux proposed that they should be treated as dead and not replaced. By that means all their property would be gradually made available for Catholics. Louis understood enough of English politics to know that James would never recover his kingdoms without the goodwill of Protestant England. He thought it possible by pursuing a tolerant policy in Ireland to take advantage of the unpopularity which was certain to beset William and his foreigners when the first flush of the Revolution was over. In any case there might be a long struggle in England, Scotland, and Ireland, during which the Prince of Orange would be able to do little against France on the continent. Louvois soon came to see that the real business in hand was to make Ireland absolutely secure. So little did James appreciate the facts, that he wanted to go to Scotland before he had been in Ireland a month. Avaux saw that it would be madness for him to leave the island until it was all in his hands, and that could not be as long as Londonderry held out.^[195]

To those who were not in the secrets of James's Court he seemed to be entirely dominated by the French ambassador, but Avaux himself knew better. The King cared little for Ireland and only wished to make her a stepping-stone to Great Britain. The Frenchman cared even less for Ireland, but wished to make her an appendage of France and to keep William busy. Tyrconnel had always been a French partisan, and Avaux found that he acted like a Frenchman to all intents and purposes. Both ambassador and Lord Lieutenant did their best to drive away Melfort, who was Secretary of State and in whom James most confided, though he thought only of England and Scotland. Tyrconnel was indolent and often ill, and it was with the secretary that Avaux had to work. Melfort was dilatory and neglected the most important business. His promises were valueless, and he spent much precious time in walking or driving with his wife, of whom he was absurdly jealous. Lady Melfort was beautiful, but at thirty-six one might suppose that she could have taken care of herself. Rosen and Pointis sustain Avaux on this point, and the latter hints that the ambassador, who was handsome and insinuating, was himself the cause of the secretary's jealousy.^[196]

The Jacobite
Government.
Melfort.

The day after his arrival in Dublin James held a council from which Granard, Keating, and others were excluded. Among their successors were Avaux, Bishop Cartwright, and Colonel Dorrington, who had been Tyrconnel's chief instrument in raising the new troops. Tyrconnel's own promotion to a dukedom was announced on the same day, and a proclamation was issued summoning Parliament for May 7. By another proclamation James promised protection to all and the full exercise of their religion, provided nothing was preached or taught among them 'which may tend to alienate the hearts of our people from us.' As for his Irish subjects then in England and Scotland, he promised such protection if they returned within forty days, but only to those who fled from fear and without doing anything more against their allegiance. No one who had resisted his government in any way would be covered by this, and it had no effect at all. By another proclamation he admitted that many persons not of the army had armed themselves with pikes and skeans in fear of invasion by the Prince of Orange, and seized great numbers of cattle 'upon pretence that the owners were in actual rebellion against us: which if true the same could be no ground for such irregular actions.' Stolen property was to be restored to the owners, and if they could not be found or had been in rebellion, then to be delivered to the sheriff. The half-pikes and skeans were not to be given up, but to be kept at home and not carried to fairs and markets. But by another proclamation a week later, all loyal people were to be armed and ready for active service at a moment's notice. The King then turned his attention to the affairs of the North, and by proclamation ordered a free market for all who brought provisions to his army. They were to be paid in ready money, and no violence was to be offered to them on pain of death. [\[197\]](#)

Proclamations. A parliament to be held.

Richard Hamilton came to James at Dublin to say that he had routed the Protestants at Dromore, but that his force had been insufficient and that he had been repulsed from Coleraine. That town was defended by Colonel Gustavus Hamilton, afterwards Viscount Boyne, who must not be confounded with the Governor of Enniskillen. With him were Sir Arthur Rawdon and the remains of the beaten forces. Lundy, who was from the first suspected, was not allowed to enter. He advised that the place should be abandoned, and this was ultimately done, though not before the Irish army had been beaten back

Fighting in Ulster.

Coleraine evacuated.

George Walker.

after an attempt to carry the town by assault. Hamilton had only five or six small fieldpieces, and the gunners could not hit any house. The garrison retired across the Bann to Londonderry, destroying the bridge behind them, and everything else they could find between the two towns. James sent Pusignan and Berwick towards Coleraine, and after some skirmishing they passed the Bann at Portglenone. Thenceforth the seat of war was on the left bank of that river. George Walker, rector of Donaghmore in Tyrone, had raised a regiment and occupied Dungannon, but by Lundy's orders he left the place before the evacuation of Coleraine. Other small Protestant garrisons did the like, and before the end of March nearly all the Ulster Protestants who had not accepted protection from James were collected at Enniskillen and Londonderry.^[198]

On March 20, three or four days before the desertion of Coleraine, Captain James Hamilton arrived in Lough Foyle with 1000*l.* in money, 480 barrels of powder, and arms for 2000 men. He brought also a commission as governor for Lundy, with orders to administer the oath of allegiance to William and Mary to all officers, civil and military. Lundy took it himself, but some thought not with enough publicity. Hamilton was, however, specially ordered to swear him on board ship in presence of the chief civil magistrate. If he refused the oath, the commission was not to be delivered. After this the new governor and thirty-five others made a public declaration, by which they bound themselves to resist the Irish enemy to the last. If the latter should prove too strong in the field, they undertook that 'the said Lord Blaney, Sir Arthur Rawdon, and their forces and all other Protestant friends shall be readily received into this city, and as much as in us lies be cherished and supported by us.' Lundy was, therefore, thoroughly bound both to King William and to the townsmen. He was instructed to spend the 1000*l.* in buying stores and in strengthening the works. The new sovereigns were proclaimed with great joy and solemnity, and Philips, the late provisional governor, was sent to England for supplies.^[199]

King William
proclaimed at
Londonderry.

James found it hard to believe that Londonderry would be a serious obstacle, and Melfort, whose eyes were fixed on Scotland, encouraged this view, but Avaux opposed it, fearing that, in the absence of Tyrconnel, the King would be entirely led by Melfort in the English

James goes to
Ulster.

Skirmish at

interest. Tyrconnel also wished him to stay in Dublin, to devote his attention to forming a strong army, and not to dream of Great Britain until he had thoroughly secured Ireland. He decided at last to go North, and started on April 8, Pusignan having already gone thither with reinforcements for Hamilton. The King was accompanied by Avaux, Rosen, and Melfort, while Tyrconnel occupied himself with the new levies, whom there was no money to pay and whom he tried to get clothed at the expense of the officers. Before reaching Armagh, which had been stripped bare by the Protestants and afforded scant lodging for a court, James heard that Coleraine had been evacuated. At Charlemont, Pusignan, who said the country was like Arabia, found all military matters in a very bad way; and at Dungannon, James himself saw a regiment in which not a hundred muskets were fit to fire. Order after order was sent to expedite the arms from Cork, Kinsale, and Waterford, but when he returned to Dublin nothing had yet been done, nor were any tools being prepared for siege-work. The French ambassador was disgusted with everything he saw, but admired the wonderful hardiness of the Irish soldiers, who would swim a river thrice in a day's march, and with no sustenance but thin oatcake and bad water. Such beer as could be had was no better, and would not keep at all. Louvois took note that French soldiers could not live on this fare, but required bread, half of wheat and half of rye. Only three wretched cabins were passed between Charlemont and Omagh, where the chimneys were demolished, the windows broken, even the locks and bolts carried off. As they drew near the city of refuge, the fugitive Protestants had had more time to make a desert behind them. Hearing that Lundy was in the field with a large force, and that English ships had appeared in Lough Foyle, James lost heart and went back to Charlemont, on his way to Dublin. But Lundy had taken care that the King's road northward should be safe, for he posted thirty men at Cladyford on the Finn, with only three rounds of ammunition. They were commanded by Adam Murray, who was the bravest of the brave, but he was forced to retire. Lord Kingston was ordered up in support, but the summons was sent when it was already too late. A panic seized some other regiments, and Rosen was able to cross at Strabane without loss. It was proposed to throw harrows into the ford, but this precaution was not taken. Lundy set the example of flight, and from five to ten thousand men went crowding back to Londonderry without striking a blow. Among them was Walker's regiment, which was shut out, and did not gain admission till

Cladyford.

next morning, 'with much difficulty and some violence upon the sentry.'^[200]

Throughout his stay in Ireland James showed a proper regard for his own safety, and he turned back from Omagh though unwilling that the French should have the credit of taking Londonderry. Some chance shots fired by his own men filled him with apprehension of an attack. Before setting out he had the news of Rosen's victory, but that general took care not to ask for the royal presence. At Charlemont an express came from Berwick saying that negotiations for surrender were on foot, and that if the King appeared nothing could or would withstand him. Melfort warmly encouraged the idea, and Avaux resisted in vain. After a day's rest the poor horses, which had not had a proper feed for four days, were again called upon, and James started for the North. The French ambassador, having no taste for the discomforts of a camp and nothing to do there, returned to Dublin, where he might hope to expedite too long neglected preparations. The King pushed on to St. Johnstown, five miles from Londonderry, and sent a letter to the garrison suggesting a parley for the purpose of a surrender. A clergyman named Whitlow was the messenger. Lundy assembled his council with the officers of Cunningham's and Richards' regiments, taking care to exclude the fighting party. They agreed that the town was untenable and that it would be necessary to surrender, and the English ships sailed away. The King went no further than to promise them protection if they gave up the place and their arms. On the night of April 17 one of the town gates stood open and the keys were missing. An officer noticed it, and doubled the guards on his own responsibility. Muggeridge, the town clerk, disclosed the proceedings at the council. Jacobite emissaries were within the walls, and there can be little doubt that Lundy meditated treachery. Next day Adam Murray, who had been driven from Cladyford by want of ammunition, appeared at the gates. Lundy refused him admission, and even Walker hesitated about the men, though he offered to pull their leader with a rope over the wall. James Morrison, captain of the Guard, cut the knot by throwing open the gate. Murray brought in his followers, and became the great fighting hero of the siege. Next day James came near the gate, believing that his presence would work wonders, and that nothing was to be feared from Lundy. A shot from the wall killed an officer at his side, and the great siege began. Hamilton

Vacillation of James.

He comes before Londonderry.

had promised not to come within five miles during the negotiations; but Rosen, though he knew this, moved up his troops without orders from James, and the men on the wall naturally supposed that they were betrayed. [201]

The ships that accompanied James to Ireland returned to Brest, and his English, Irish, and Scotch subjects gathered there from different parts of northern France. There were also French officers sent by Louis, and many adventurers who hoped for plunder or promotion. One who had been cashiered for a fatal duel was allowed to serve in Ireland at Mary of Modena's request. Others, who could not show themselves at Paris, did likewise.

French fleet at
Bantry.

John Stevens.

Naval action.

Among the English loyalists was John Stevens, whose account has been fortunately preserved. His father was in Catherine of Braganza's service and had been known to the elder Clarendon at Madrid. Young Stevens, who was a Spanish scholar, hankered after military distinction, and was recommended by the Lord Lieutenant Clarendon for a cornetcy—'a colours would make him very happy.' Tyrconnel would, of course, do nothing on his predecessor's recommendation, but Stevens found employment as an exciseman at Welshpool. He learned something of the language and found it useful in Brittany. [The strength of his royalist and anti-Protestant feelings may be guessed from his calling the seven bishops champions of Satan. Ken and Sancroft champions of Satan!] Stevens followed his King to France, and was on the road to Brest before the end of February. There was no discipline among the horde of exiles who flocked to the naval port, and they were 'guilty of all sorts of disorders that could have been acted by a dissolute army in an enemy's country.... I have since seen some of the greatest rascals in the company preferred to considerable posts.' The poverty-stricken crowd were treated with contempt by the French naval officers during the long delay at Brest and the passage to Ireland. They lay on boards without blankets, and those who were fortunate enough to find hammocks were cut down at night by the sailors. On the last day of April they entered Bantry Bay. The English fleet under Herbert being soon descried in the offing, the French Admiral, Count Château Renaud, ordered all the passengers, treasure, and arms to be landed from his light vessels, while he prepared for action. The battle or skirmish of May 1 was quite indecisive, but the French fleet was much the stronger of the two, and

Château Renaud gained his main object, which was to land the passengers and stores. Herbert was made an Earl, and James ordered a *Te Deum*.^[202]

The means of locomotion were of the poorest, and it was three weeks before Avaux could report that all the French officers had reached Dublin, except a few whom Boisseleau kept at Cork. James made the senior captain a lieutenant-colonel, the rest majors, the lieutenants were made captains, and fifteen cadets became lieutenants.

General
mismanagement.

The army
neglected.

Most of them were sent to Londonderry. When the arms came to be distributed they were found to be very bad, muskets of many patterns, and swords even worse. Louvois was a man of detail, and it seems likely that he purposely allowed refuse stores to go to Ireland. It took Stevens a fortnight to get from Bantry to Dublin, generally on foot, for it was seldom possible to hire a horse. Parliament was sitting, and but little attention was paid to military matters. The royal army, on the highest estimate, was about 50,000, but everything was expected from France, and there was talk of arms arriving sufficient for the host of Xerxes. A commission was what Stevens wanted, but he was too modest to apply to James. Lord Limerick, Maguire the Roman Catholic Primate, and the Duke of Powis, who had known him in prosperous days, all put him off with empty promises. More forward applicants had better success, and were not deterred by the divinity that hedges a king. Stevens was horrified to see an ensign pluck His Majesty by the sleeve because he had passed without noticing him, while he himself was not only not employed but almost starving. He sold every valuable he had, including his father's rings and the silver hilt of his sword, 'so that I might be truly said to live by my sword,' though as yet no soldier. The only kindness he received was from a Protestant to whom he had been civil in Clarendon's time and who volunteered to lend him 10*l*. The money was repaid, but the borrower deeply regretted that he had never been able to requite the kindness. When Londonderry was relieved, officers flocked to Dublin, and among them Usher, a captain in the Grand Prior's regiment, who had travelled with Stevens from England and easily got a lieutenancy for him.^[203]

FOOTNOTES:

[183] Bonrepaus' letter of September 4, 1687, and Seignelay's answer of September 29 in Lingard x. appx. IIII., and other extracts in appx. KKKK. Bonrepaus says: 'Tyrconnel presse incessamment le roi d'Angleterre pour que cela se fasse en moins de temps; et effectivement Sa Majesté Britannique y a envoyé [to Ireland] depuis huit-jours un vaisseau chargé de poudre, armes, et mortiers à bombe.' Dangeau, January 11, 1686, and May 6, 1687. See also Macaulay, chap. iii. Bishop Cartwright's Diary, August and September 1687. Barillon to Louis XIV., October 16, 1687, in Dalrymple, ii. 262.

[184] Seignelay's instructions to Pointis, January 12, 1689, in Campana-Cavelli, doc. 529, and the report in the following month. 'Quo magis nuda erant castra et fortilitia eo facilius prevideam eos posse ad obedientiam reduci.'—Archbishop King's *Autobiography*.

[185] Pointis reported to Louis himself in Seignelay's presence.

[186] Tyrconnel to James II. January 29/February 8, 1689, in Campana-Cavelli, doc. 771. Abbé Melani to Grand Duke of Tuscany January 17/27 and February 18/28—'buonissimo, ma non di quella elevatura che da principio aveva pubblicata la fama'—'tranquilla et cosî insensibile' that he would have stayed in France hunting and praying but for the 'stimoli' applied by Tyrone and the French Court, *ib.* docs. 728, 769. Dangeau's Journal and Madame de Sévigné's letters for January and February. On February 2/12 the latter writes: 'La Reine d'Angleterre a toute la mine, si Dieu le voulait, d'aimer mieux régner dans le beau royaume d'Angleterre, où la cour est grande et belle, que d'être à S^t Germain, quoique accablé des bontés héroïques du Roi. Pour le roi d'Angleterre il y paroît content, et c'est pour cela qu'il est là.' Vauban's letter of February 15/25 is in Rousset's *Louvois*, iv. 187.

[187] In his letter to Cardinal d'Este, his Queen's uncle, at Rome, James says: 'J'espère que Sa Sainteté croira que l'occasion qui se présente *de détruire l'érésie avec une armée Catholique* n'est pas de celles qu'on doit perdre, et qu'il n'épargnera pas les trésors de l'Église où j'expose si franchement ma propre vie,' February 14/24, 1689. Campana-Cavelli, doc. 759. Writing to the Cardinal four days later Mary of Modena hopes the Pope's acts will correspond with his words: 'quali sole in questa congiuntura non ci bastano,' *ib.* doc. 760. In the scarce *Hist. de la Révolution d'Irlande arrivée sous Guillaume III.*, Amsterdam, 1691, attributed to Jean De la Brune is the following passage: 'Malheureusement pour ce prince nous sommes dans un siècle où l'on comprend que deux et deux font quatre, et que ceux qui renversent et foulent aux pieds les droits et les libertés d'un état n'en sont point les protecteurs et les défenseurs.' Leopold's letter, March 30/April 9, is in *Somers Tracts*, x. 18, and Clarke's *Life of James II.* Louis's policy at this time is discussed by Lavissee, viii. 16. Rousset's *Louvois*, iv. 152. For the Pope's relations to James see Charles Gérin's paper in *Revue des questions historiques*, 1876. Both Porter and Melfort were paid by Louis. Melfort took his orders from Croissy and corresponded with him weekly.

[188] Proclamations of February 2 and 25, March 1 and 7, 1688-9.

[189] Bennett's *Hist. of Bandon*, chaps. xv. and xvi., besides the plain facts records interesting traditions. 'During his stay at Cork Mr. Brady, the minister of the place and ten men from Bandon petitioned him (James) for pardon for that town, which he granted, saying, "You may now see you have a gracious king."

And when the Earl of Clancarty and Duke of Berwick urged the destruction of that nest of rebels: to the first he said that he was a young man, and to the latter that he was a fool.... Two days after, notwithstanding the King's pardon to those of Bandon, several were indicted at the assizes, insomuch that 30 or 40 of them fled by this opportunity and came to Bristol, being frightened at the bloody proceedings against one Mr. Brown, who was hanged, drawn, and quartered at the same assizes,' *Full and True Account* of the landing of King James at Kinsale ... a letter from Bristol, April 1, 1689. See also a letter from Tyrconnel to MacCarthy, March 10, 1688-9, in Smith's *Hist. of Cork*, ii. chap. vii. *Exact Relation of the Persecutions, &c.*, sustained by the Protestants of Kenmare in Ireland, 1689.

[190] *Exact Relation, ut sup.*

[191] *Exact Relation, ut sup.* Orpen says eight families were detained by the Irish officers 'as slaves to work for them at their iron-works, which none of the natives were skilful in.' Fifteen hundred pounds worth of bar and pig iron was left behind. There is a picture of the 'white house' of Killowen in its present ruined state in Fitzmaurice's *Life of Petty*.

[192] The rank of the French officers is mentioned by Rousset, but according to Dangeau, Boisseleau was only a captain in the Guards, while Pusignan was already a marechal de camp. Abbé Bronchi to Duke of Modena, March 11/21, in Campana-Cavelli; Rosen to Louvois, March 16/26, *ib.*; De Sourches, iii., February 5/15 and 15/26. *A full and true account of the landing, &c.*, April 1, 1689. The Marquis de la Fare notes in his memoirs that Barillon realised how he had been duped by Sunderland, 'et je crois qu'il est mort de regret.'

[193] King, iii., xiii. 2. *A Short View of the Methods made use of in Ireland, &c.*, by a clergyman lately escaped from thence, licensed October 17, 1689, dedicated to Burnet. Smith's *Cork*. Leslie in his answer to King says Brown resisted the sheriff and that a man was killed in the scuffle, this accounting for James's unusual harshness in that case. Sir Lawrence Parsons, who was included in the great Act of Attainder, had defended his own house at Birr. He surrendered it on conditions, and Baron Lynch sentenced him to be hanged, drawn, and quartered for articing with the King, but he did not actually suffer. Howell's *State Trials*, xii. no. 364.

[194] *Full and true account of the landing, 1689. A Light to the Blind. A Short View of the Methods, ut sup.* Avaux to Louvois, April 14; to Louis XIV., April 23.

[195] Louis XIV.'s instruction to Avaux, February 1/11, 1688-9, and March 2/12, and Avaux's answer, March 17/27. Avaux to Louvois, April 4/14. Louvois to Avaux, June 3/13.

[196] Avaux to Louis, May 27. Writing to Croissy on October 21 he calls Melfort 'grand fourbe et qui ment plus effrontément qu'aucun homme que j'ai jamais vu.' For Melfort's opinion of Avaux, see Pointis on September 5 in Rousset's *Louvois*, ii. 214. Afterwards, when Melfort was at Rome, Mary of Modena insisted on his forgiving Tyrconnel. He obeyed: 'but without a fault to let loose a pack of about fifty nephews against me, besides the females, and all the time protest all manner of friendship and respect for me, swearing he could not tell what could be done when I was gone, to send his Duchess to cry an hour

at my lodgings and make me cry too for company, and all this while harbour malice in his heart is horrible,' Ellis's *Original Letters*, 2nd series, iv. 187. 'The King went to Ireland only in order to go to England,' Melfort's memorial of October 20, 1689, in Macpherson, i. 334.

[197] Proclamations of March 25 and April 1, 1689.

[198] Mackenzie's *Narrative*. Macpherson's *Original Papers*. Avaux to Louvois, March 4/14. Belfast was effectually protected by King James's Government until Schomberg's arrival made it no longer necessary, document in Benn's *Belfast*, p. 165.

[199] Instructions to Lundy, February 21, and to James Hamilton, February 22, in Mackenzie. Declaration of Union in Walker's *True Account*.

[200] Walker's *True Account*. Mackenzie says a shot was fired and threats made to burn the gates. *Light to the Blind*. Avaux to Louis XIV. and to Louvois, April 13/23 and 15/25.

[201] Walker and the author of *Light to the Blind* substantially agree. Clarke's *Life of James II.*, ii. 333. Macpherson, i. 186.

[202] Stevens says 1500 English, Scotch, and Irish were landed, but Dangeau (April 20) says 'plus de quatre mille,' which must include those in the first fleet. *Life of Sir John Leake*, chap. iii. Troude, *Batailles navales de la France*, pp. 189-194. *Clarendon and Rochester Correspondence*, ii. 45, 65. Captain Mahan observed (*Sea-power*, chap. iv.) that in spite of Bantry Bay and of the numerical superiority of the French at sea, Rooke never lost command of St. George's Channel. Schomberg landed unopposed, and 'the English communications were not even threatened for an hour.'

[203] Stevens, pp. 54-59. Avaux to Louvois, and May 28/June 7 and June 17/27. Stevens followed what was afterwards the mail-coach road from Cork to Dublin by Clogheen, Clonmel, and Callan to Kilkenny. The MS. of his journal in the British Museum has been published with valuable notes by Dr. Robert H. Murray, Oxford 1912.

CHAPTER LI

THE PARLIAMENT OF 1689

Among James's advisers during his reign in Ireland Tyrconnel was by far the most important. As a thorough French partisan Avaux supported him, and Berwick, whose sympathies were also French, while noting that he was rich, says he was not accused of getting money unfairly. Anthony Hamilton, who knew him very well, says he did save some property for sufferers by the Cromwellian settlement, and was well paid for his services. His disregard for truth was shown in his dealings with the younger Clarendon and with Mountjoy. The elder Clarendon tells us that he was mixed up in a plot to assassinate Cromwell, and that he had threatened Ormonde with a like fate, since there was no chance of killing him in a duel. He was personally brave, but no soldier. He cursed and swore with a force and frequency remarkable even in that age. As a Gentleman of the Bedchamber he was in the secret of James's many amours, and was one of the 'men of honour' who tried to blast the character of Anne Hyde, notwithstanding which he remained her husband's trusted servant. James doubted his judgment, even when following his advice. Sheridan is a hostile witness, but his opinion of Tyrconnel has much support from other sources. 'He was a tall, proper man, publicly known as the most insolent in prosperity and most abject in adversity, a cunning dissembling courtier of mean judgment and small understanding, uncertain and unsteady in his resolutions, turning with every wind to bring about his ambitious ends and purposes, on which he was so intent that to compass them he would stick at nothing, and so false that a most impudent notorious lie was called at Whitehall and St. James' one of Dick Talbot's ordinary truths.'

King James's Irish supporters.
Tyrconnel.

[204]

Donough MacCarthy, the Muskerry of the Civil War, was created Earl of Clancarty before the Restoration, and after it regained most of his property. He had married Ormonde's sister, and his third son Justin, who served long in the French army, returned to England with the rank of colonel at a time when the no-papery feeling was at its height. Justin promoted the marriage of his nephew Donough, the fourth Earl, with Sunderland's daughter. The young lord, though he had been brought up a Protestant by Fell, was not kept safely by him at Oxford, and soon returned to the Church of Rome. His romantic story has been told by Macaulay, and the tale was dramatised by Tom Taylor. His uncle had married Strafford's daughter, and was thus by several alliances connected with the most powerful people at the English Court. When Charles first entertained the idea of remodelling the Irish army he thought of employing MacCarthy as a fitting instrument. Halifax warned him of the danger of meddling with an army 'raised by a Protestant Parliament to secure the Protestant interest; and would the King give occasion to any to say that where his hands were not bound up he would show all the favour he could to the Papists?' Since the Oxford dissolution Charles no longer feared Parliament, and replied that he did not care what people said. He repeated the whole conversation to MacCarthy, which was hardly the way to secure honest advice. Soon after the accession of James, Justin was in command of a regiment at Cork, and became very popular, even with the Protestants of that town. When Clarendon arrived his relations with him were at first quite amicable, but he was more or less in co-operation with Tyrconnel, and a coolness soon arose. He seems to have made love to the Lord Lieutenant's married sister, which did not mend matters. MacCarthy became major-general in April 1686, when Tyrconnel was made lieutenant-general, and, like him, was sworn of the Privy Council.^[205]

Justin MacCarthy.

Patrick Sarsfield resembled Tyrconnel in his great stature, but in nothing else, except that he also was an Anglo-Irishman of the Pale. At the Restoration the estate of Lucan was in the hands of Sir Theophilus Jones, who was protected by the Act of Settlement. William Sarsfield, Patrick's elder brother, who married Charles II.'s daughter by Lucy Walters, was declared innocent by the Court of Claims, his father having been innocent; and so the remainder was saved. Jones held on at Lucan until he was fully compensated, but

Sarsfield.

ultimately Patrick became his brother's successor to about 2000*l.* a year. He served for several years in France, and afterwards in Charles's guards with the rank of captain. He was always ready to resent any insult to his country or countrymen, and was wounded dangerously in a duel when he seconded Lord Kinsale. Both the principals were lads of twenty. He commanded a regiment after the accession of James, served with distinction at Sedgemoor, helped Tyrconnel to remodel the Irish army, and fought bravely at Wincanton. In Ireland afterwards he commanded the regiment of horse which bore his name and was raised through his influence, and his popularity was boundless. Berwick praises him, though without allowing him much military talent. Avaux had a high opinion of him, and Englishmen acknowledged that he always kept his word. James was inclined to depreciate him at first as having no head, but afterwards saw good reason to better his opinion. It took the joint efforts of Avaux and Tyrconnel to get him made a brigadier. [\[206\]](#)

Of the six Hamilton brothers, Ormonde's nephews, three survived to take part in this war. They were grandsons of the first Earl of Abercorn, but probably born in Tipperary. George was killed at Saverne, having married Fanny Jennings, who, as Tyrconnel's second wife, played an important part. Anthony, famous as a courtier, but above all as a writer, was much liked by the Lord Lieutenant Clarendon, and did not approve of the way in which good soldiers were turned out of his own regiment only because they were Protestants. A younger brother, John, was killed at Aughrim, but not otherwise distinguished. Richard was perhaps the most important of James's Anglo-Irish officers. He fought gallantly at the Boyne, but showed little ability as a general. Melfort disliked the family, and no doubt the feeling was reciprocated. He said Lady Tyrconnel had a black heart, and that both Anthony and Richard deserved to be hanged, the one for running away at Crom, the other for mismanaging the siege of Londonderry. All the brothers had served in France. [\[207\]](#)

The Hamiltons.

On May 7 Parliament met according to the proclamation in the King's Inns, the suppressed Dominican priory where the Four Courts now stand. James wore a crown, and was generally present at sittings of the Upper House, where he was always sure of a majority. The Protestants

Meeting of
Parliament.

The Peers.

were indeed two to one on paper, but scarcely half a dozen temporal peers remained in Ireland, and but seven bishops. Primate Boyle, Gore of Waterford, and Roan of Killaloe were excused for infirmity, but four took their seats. Their leader was Anthony Dopping of Meath, who was supported by Digby of Limerick, Otway of Ossory, and Wetenhall of Cork and Ross. James did not venture to summon any prelates of his own Church, for the lawyers knew that it would have a disastrous effect in England. He did create some temporal peers, and could create more if they were wanted. Lord Clancarty, who was under age, was allowed to sit. In the Commons the Protestants were an insignificant minority, for no returns were made from the districts commanded by Londonderry and Enniskillen. In the counties the sheriffs had been appointed by Tyrconnel, and most of the boroughs had been remodelled by him. He sent letters to the returning officers, and nothing more was required. Strafford had done much the same, and in Charles II.'s Parliament there had been no Roman Catholics in the House of Commons. In 1689 Protestant freeholders had for the most part left the country, and in the reconstructed boroughs Protestant freemen were always in a minority. Of the whole number of 230 not many more than 60 bore Celtic names, the rest being of Norman or English origin. Tyrconnel was always accused of favouring the Pale at the expense of the Irish natives, which may in some measure account for the predominance of the Anglo-Irish element. They were all new to parliamentary work, and the King himself instructed them in procedure as far as he could. An assembly of men impoverished by war and by the legislation of the victors, and long excluded from public life, found themselves in power, and were above all things anxious to regain the possessions of their ancestors. ^[208]

The Commons.

James opened the proceedings with a speech in which he thanked the Irish nation for their loyalty, and declared for liberty of conscience. His former attempts to establish it had, he said, unfortunately failed, but he was nevertheless determined that where he had power there should be 'no other test or distinction but that of loyalty.' He was anxious to relieve sufferers by the Act of Settlement 'as far forth as may be consistent with reason, justice, and the public good of my people.' Nagle, the great assailant of the Settlement, was at once chosen Speaker of the Commons, Fitton the Chancellor and

The King's speech.

Chief Justice Nugent being summoned to the House of Lords by writ as Barons of Gosworth and Riverston.^[209]

In his opening speech James handsomely acknowledged his debt to the Most Christian King, without whose help he could never have reached Ireland, and he gave Avaux a copy for transmission to France. He often resented the Ambassador's arrogance, who, on his part, took no pains to hide his contempt for His Britannic Majesty's incapacity. But everyone knew that the Frenchman was in power, and that his counsels were all but commands. Many members of the House of Commons wished to thank Louis XIV. directly for the services mentioned in the royal speech, but Nagle said this should be left to the King himself. The great work of the session was the repeal of the Acts of Settlement and Explanation. James saw that such a revolution would destroy his chances in England; but he was in the hands of the Irish, who would not hear of any compromise. Not only members of Parliament, but the soldiers in the street, said that if he would not restore them to their own, they would not fight to restore him to his. The Commons insisted on total repeal, but there was opposition on one point. Since the Parliament of 1661 much property had changed hands for value, and it was now proposed to confiscate the land and all the improvements. Compensation to Protestant purchasers was scarcely thought of, but there were many Roman Catholics in the same position, and among them two or three judges. The lawyers might have been willing to make allowances, but the ignorant majority of the Commons would listen to nothing. Those who bought forfeited lands, they said, bought stolen goods, and had no rights at all. Within a few days of the opening of Parliament, and while the Repeal Bill was as yet not quite ready, an address to the King was presented by Lord Granard on behalf of the purchasers. It was written by Chief Justice Keating, who showed that the credit of the country and the royal revenues would be destroyed if property legally acquired were to be confiscated without regard to two solemn Acts of Parliament or to the promises of two Kings. The Protestants had already been deprived of their movable goods by the Rapparees, 'that is, the armed multitude,' and would be completely and finally ruined if they lost their lands also. 'The thriving Catholics who were purchasers (as most of the province of Connaught are) are likewise to be turned out of their estates and possessions, and their own and the

Influence of Avaux.

The Land Settlement attacked.

Proposed confiscation.

improvements of those who hold under them utterly lost.... What is to become of the frequent declarations made by the Earl of Clarendon, and the Earl (now Duke) of Tyrconnel, of Your Majesty's fixed resolutions never to lay aside the Acts of Settlement and Explanation? Why did the judges in their several circuits declare in all places where they sat, unto the countries there assembled, that Your Majesty was resolved to preserve the Acts of Settlement and Explanation, and that they were appointed by the then Chief Governor here to declare the same unto them; from whence they took confidence to proceed in their purchases and improvements, and (with submission be it spoken), if this Bill pass, are deluded.'

[210]

A Bill for recognition of the King's title received the royal assent on the fourth day of the session. No difficulty was made about declaring the Irish Parliament independent, nor about annulling all patents conferring office during life or good behaviour, but the Commons would do nothing further until the Act of Settlement had been repealed; and many of the old proprietors seized upon land without waiting for the legal sanction. A Bill introduced into the Lords by Chief Justice Nugent provided that half of the land disposed of by the Acts of Settlement and Explanation should be restored to the old proprietors, but the Commons would have none of it, and insisted on total repeal. A Bill for the desired purpose brought in by Sir Ulick Bourke, member for Galway county, was received with loud huzzas, and read a first and second time on the same day. One member moved that anyone who opposed the repeal was an enemy to King and country; another that the horrid and barbarous law should be burned by the common hangman. But James saw clearly enough that to annul the legislation of his father and brother would be fatal to his chances in England. After consulting Avaux, who saw how Ireland, which he hoped to make a dependency of France, would be impoverished, the King conferred privately with some members of both Houses, and found that he could struggle no longer, but it was agreed that purchasers under the Settlement should have reprisals out of forfeited land. Bishop Dopping made a gallant but vain effort to stem the tide. The King, he said, would have no regular revenue, for the Protestants were already stripped by the Rapparees of all but the bare walls. It was now proposed to take them also, and improving Catholics would be in no better case. 'The old proprietor comes poor and hungry into his estate, and can pay nothing until his tenants

Parliamentary
independence.

Violence of the
Commons.

raise it; and the present possessor loses the benefit of his purchases and improvements, and who then is able to supply the necessities of His Majesty? Besides this, in many parts of the kingdom the land is hardly able to pay the King's quit-rent by reason of the universal depredations that reign everywhere; and can it be imagined but that things will grow far worse when the ablest Catholic merchants, and the most wealthy purchasers of that communion are ruined and undone?'^[211]

In the House of Lords many attempts were made to soften the measure of repeal, but they were as constantly resisted by the Commons, and no other business could be done until the royal assent was given about the middle of June. The Bishop of Meath, with three of his brethren, and four temporal peers, recorded their dissent, James telling them that they must not use the word protest, which had grown up in rebellious times. They were not allowed to set out their reasons. The Acts of Settlement and Explanation, and every transaction growing out of them, were 'absolutely repealed, annulled, and made void to all intents, constructions, and purposes whatever, as if the same had never been made or passed,' and the land restored to the representatives of those who possessed it on October 22, 1641, the day before the rebellion broke out. Real property belonging to anyone who had been in rebellion since August 1, 1688, or in communication with those who had, was forfeited without trial and vested in the King. The property of the London companies in Ulster was confiscated. There were some provisos for the relief of a few highly favoured persons, and the King was empowered to grant reprisals in specially meritorious cases. Land formerly belonging to any monastery, and used for public purposes, was vested in His Majesty, to be disposed of to 'such pious and charitable uses' as he should think fit. Reprisals to purchasers for valuable consideration might be made out of the forfeitures. All outlawries of the ancient proprietors were reversed. A few Protestants whose titles were older than 1641 might have escaped the operation of the Act, and it was resolved to draw the net still closer.^[212]

The Act of Settlement repealed.

The preamble to the Act of Attainder, passed before the end of June, sets out that 'a most horrid invasion' had been made by the King's unnatural enemy, the Prince of Orange, supported by many of his traitorous subjects. To quell this

The Act of Attainder.

rebellion, Tyrconnel had raised an army, promises of pardon having been given by proclamation to all, with very few exceptions, but this clemency had been without effect. The Act affected some 2400 persons, of whom more than half, from the Primate and the Duke of Ormonde down to yeomen and shopkeepers, whether 'dead or alive, or killed in open rebellion, or now in arms against Your Majesty or otherwise,' were attainted of high treason, and subjected to all its penalties, unless they voluntarily surrendered by the 10th of August. Others who had been absent from Ireland, presumably for 'a wicked and traitorous purpose,' since November 5, 1688, were given till September 1, while those already living in Great Britain or the Isle of Man had till October 1. Among the latter was Henry Dodwell, the most learned of the non-jurors. A few whose residence had always been in England might surrender there up to November 1, in case the King had then been in that kingdom for a month. A certain number of persons, among whom was Robert Boyle, 'by reason of sickness, nonage, infirmities, or other disabilities,' could not come to Ireland, but it was not desirable that their Irish incomes should be paid beyond the channel, and therefore their lands were vested in His Majesty, for the defence of the realm. If they were innocent, they might come over and prove it to the satisfaction of Fitton or Rice, or of the commissioners appointed to execute the Act. A special clause repealed the private Act by which Monck, the chief instrument of the Restoration, had sought to secure his share of the forfeited estates. A royal pardon was to have no effect unless it was enrolled in Chancery before November 1. James afterwards complained that he had been induced to assent to this clause without fully understanding it, and it was indeed as great an act of political suicide as his father had committed when he gave up the power of dissolving the Long Parliament without its own consent.^[213]

Most of the absentees mentioned in the Act stood attainted unless they surrendered in Ireland within a few weeks; none were given longer time than four or five months, and there was no official publication. The earliest list, printed in London, and without authority from the Irish Government, was not circulated till four months after the latest date at which the King could pardon. A few well-known names had been published earlier, but no one could be expected to face Rice or Nugent without accurate knowledge of the position. Commissioners were appointed to carry out this Act and the

Extreme harshness
of the new law.

Act of Repeal, but many of the old proprietors took possession before they were passed. All titles deriving from the Act of Settlement had been annulled, and the refugees could have had nothing even if they returned. Whether the text of the Act of Attainder had been purposely kept secret or not really makes very little difference. It remained in manuscript, though the general drift of it was, of course, quickly known in London. Those concerned were scattered all over Great Britain, and many of them in extreme poverty, having nothing but the little they had been able to carry away. Men who had owned thousands of cattle were living on charity, and in no condition to employ lawyers. And those who had fled for their lives were not likely to trust themselves empty-handed in Dublin. Communication with Ireland was exceedingly difficult, and letters from such Protestants as stood their ground could only increase the distrust of those who had gone. It was evident to all thinking men that the difference between the two Kings and the two Parliaments could only be decided by arms.^[214]

The Act of Attainder was drafted and passed in a great hurry. Many of the persons included are insufficiently described, and the Christian name, so necessary for identification, was often omitted and sometimes wrongly given. This occurs even in the case of several peers. Less known names were given in by the members of the House of Commons, whose accuracy there was neither means nor time to test. Joseph Coghlan, who sat for the University, was called on to give a list of the members of Trinity College, Provost Huntingdon and all but four of the fellows having gone to England, but he said he could not do this without the buttery book, and he took care that the butler should not be found until after the Bill had passed into law. Perhaps the King had had enough of colleges. The power of appeal from the Irish to the English courts of law was taken away by a separate Act, which also declared the independence of the Irish Parliament. Another Act vested in the King the personal property, including arrears of rent and unreaped corn, of persons who had left Ireland, ‘thereby endeavouring to weaken Your Majesty’s interest, and showing an apparent diffidence of Your Majesty’s protection.’ It must be admitted that their fears were well founded, for James was not his own master.^[215]

Hasty legislation.

Case of Trinity College.

‘What, gentlemen, are you for another ’41?’ said James to those who would have gone still greater lengths against the Protestants; and we are told that the Irish never forgave him for this speech. More than forty-seven years had passed since the fatal October 23, and it had become the fashion to say that the Puritans or Protestants had been rebels from the first and their opponents the loyal subjects. The parliamentary majority cared little for the Crown unless its wearer would be their very humble servant, while he only thought of how to regain England and Scotland. Avaux, who cared for none of these things, but thought only of thwarting the Prince of Orange by gaining a dependency for France, encouraged the separatist tendency. An Act had been passed in 1662 reciting the events of 1641, and appointing October 23 as an anniversary holy day for ever. That Act was now repealed, but the dreadful memories of the rebellion could not be so effaced either in England or Ireland. James’s old assailant, Thomas Pilkington, who had been cast in 100,000*l.* damages and spent nearly four years in prison, was now a knight and Lord Mayor of London. With the sheriffs and several aldermen he attended the anniversary service in Bow Church, where the Irish Protestants in London met to hear a sermon from Archbishop Vesey of Tuam, who had been plundered, but did not leave Connaught until he thought his life in danger. The preacher reflected upon those half-hearted Protestants who would fain have submitted quietly, forgetting the past and prophesying smooth things for the future. ‘They were,’ he said, ‘almost made to believe the Paris massacre was a fable by those that affirmed there was no dragoon reformation in France, that the gunpowder conspiracy was a Protestant plot, that the murders in Ireland were committed by the Protestants upon themselves. They were almost persuaded of their great moderation in the use of power, till by the gnashing of their teeth, they saw their grinders.’ While this sermon was being preached in London, Schomberg’s army was still rotting at Dundalk. [\[216\]](#)

King James is powerless.

Protestant refugees in London.

Two archbishops, seven bishops, and more than eighty other clergymen were included in the Act of Attainder, and the number of those who left Ireland was probably much greater. Those who stood their ground, or who went no farther than Dublin, were reduced to poverty, and three Acts were passed which made their position desperate. By one of these, tithes due by Roman Catholics

Treatment of the clergy.

were made payable to the Roman Catholic incumbents, ‘and to no other person, or persons of whatsoever religion or persuasion soever.’ Improprate tithes were at first excepted, but by a second Act all such tithes as formerly belonged to bishops and other dignitaries were to be paid by Roman Catholics to the corresponding persons of their own church. The decision as to who was entitled to each bishopric and deanery was left to the King, archdeaconries and other patronage being vested in the bishop or archbishop so acknowledged. Advowsons belonging to Roman Catholics were preserved for the presentation of their co-religionists. A third Act abolished the impost popularly called Ministers’ Money, payable to the incumbent out of household property in corporate towns. In no case was any compensation given. As the Rapparees had stripped them bare, most of the Protestants could do little by voluntary contributions; but they made an effort to support such clergymen as remained at home. ‘Many dissenters of all sorts,’ says King, ‘(except Quakers) contributed liberally to this good end, which ought to be remembered to their honour.’ Apologists for James draw attention to the fact that the word Protestant does not occur in his Act of Attainder, but it was not wanted. He established liberty of conscience by law, but sought help from Rome to destroy heresy with a Catholic army, and in the meantime he had sheriffs, judges, and officials to begin the work. [\[217\]](#)

In considering the dealings of England with Ireland, nothing has been more justly blamed than the commercial restraints imposed by the stronger country upon the weaker. Trade from Ireland to the plantations was forbidden except through England. The Irish Parliament now abolished this restriction, but it was not forgotten that James was still nominally King of England, and therefore colonial goods might be transported in Irish bottoms to Great Britain as well as to Ireland, thus dispensing with English legislation to the contrary. It was recognised that Ireland possessed but few merchant vessels, and the building of more was encouraged by large premiums. Shipwrights and artificers were offered great privileges if they would settle in Ireland, and schools of navigation were to be established at Dublin, Belfast, Waterford, Cork, Limerick, and Galway. But while thus moving in the direction of free trade the Irish Parliament passed another Act prohibiting the importation of English, Scotch, or Welsh coal, on the ground that it prevented the employment of poor people in supplying turf and fire-wood. If,

Commercial
legislation.

English coal
prohibited.

nevertheless, fuel ran short, the Lord Lieutenant might grant licences to bring in a strictly limited quantity on the requisition of the Lord Mayor and Corporation of Dublin; thus securing a monopoly to the licensees. It was, however, feared that the proprietors of Irish coal mines, at Kilkenny and elsewhere, might raise their prices; and a maximum was accordingly established in their case. When winter came the shivering soldiers broke into empty houses for the sake of the woodwork, and it became necessary to offer special encouragement to people who would bring coal from Kilkenny to Dublin.^[218]

It is not likely that any reports of debates in this Parliament ever existed. The documents concerning it are scanty, for the Parliament of England lost no time in declaring all its proceedings void, and the Parliament of Ireland in 1695 further ordered all records to be destroyed, imposing heavy penalties upon officials for not surrendering those in their keeping. But we have some evidence that the proceedings were disorderly, as was to be expected in an assembly of inexperienced men violently excited by the prospect of regaining the power and property they had lost. Mr. Justice Daly was a Roman Catholic, and strongly Nationalist, but Clarendon had no objection to him except that he thought no native Irishman should be a judge. He was a man of high character, who had made a fortune at the bar and had invested it in land of which the title was derived from the Act of Settlement. His interest was therefore opposed to the repeal of that measure, and he fought hard on the same side as Bishop Dopping. Disgusted by the turbulence of the majority, he declared in private conversation that this was no Parliament, but a Masaniello's assembly, and that men whose property was taken by the King could not be expected to fight for him. The members were squabbling for estates instead of preparing to resist the Prince of Orange, dividing the bear's skin before they had killed the bear—'All the honour we do to His Majesty is by reflecting on his father and brother as wicked and unjust princes, charging them with enacting those laws that were contrary to the laws of God and man.' This incautious speech was reported to the House of Commons, and articles of impeachment were quickly agreed to. Daly refused to withdraw his words, saying he would rather emigrate to Jamaica. But his friends persuaded him to promise some

Imperfect records of this Parliament.

Daly's case.

Scramble for property.

Small revenue from confiscations.

sort of apology. Edmund Nugent of Carlanstown, who represented Mullingar, was sent to tell the judge that he would be pardoned on submission. Perhaps he thought the proposed apology insufficient; at any rate he announced that there would be a full one, and also that Londonderry was taken. The members cheered loudly and threw up their hats, with shouts of ‘No submission—we pardon him’; but the truth was soon known, and Nugent was threatened with being brought to the bar for playing this trick. The scramble for the property of absentees had begun even before the meeting of Parliament, and it was clearly necessary to make some attempt at order. In March, military officers, acting, or professing to act, by Tyrconnel’s authority, seized the goods of absentees all over the country, but not in Dublin, where the quays were crowded like a fair. Nearly everything of value was sent to England. In May, when Parliament was sitting, the Commissioners of Revenue continued the work of the soldiers by royal warrant. By that time much of the goods already taken had been sold, and the officers concerned, being at the siege of Derry, could not be brought to account. On the last day of the session an Act was passed at the instance of the Commissioners, vesting in the King all the personalty, including arrears of rent, left by absentees mentioned in the Act of Attainder, or who aided and abetted the Prince of Orange. In August, when Parliament had risen, the Commissioners extended their operations to Dublin, but they were instructed not to strip houses or injure trade. The business was so mismanaged, and there was so much dishonesty, that His Majesty had little profit from the widespread ruin. Six months after the passing of the Act Avaux reported that the King had not received, and he believed never would receive, more than one thousand crowns out of confiscated property worth two millions. ^[219]

Avaux did not believe James had much chance of gaining England and Scotland, though the sanguine English Jacobites kept him constantly informed as to the general discontent and as to William’s personal unpopularity. But in any case the ambassador was sure that the complete reduction of Ireland was a necessary preliminary. In the meantime he sought to advance French interests. One plan was to naturalise all Louis’s subjects in Ireland, and a Bill for this purpose passed the House of Commons, but James insisted that the privilege, such as it was, should be

French efforts to capture trade.

French wines.

Irish wool.

extended to all foreign visitors. He was asked sarcastically by members of the Lower House whether Kirke and Schomberg were included, but he had his way. Avaux also sought special terms for French wines, instead of which an Act was passed giving the King general power to regulate the duties on foreign commodities, and he ordered the Revenue Commissioners to remit tonnage and other dues in the case of French importers. By far the most important of Irish commodities was wool, the exportation of which to foreign parts from England or Ireland was felony by an English Act of Charles II. Avaux now proposed to make the export of wool to France free, and at the same time entirely to prohibit its being sent to England. By this means English manufacturers would be deprived of their raw material for the benefit of their French competitors. A Bill for the double purpose found favour with the House of Commons, but the King again interposed, and the ambassador had to be contented with a promise that all French ships should be allowed to take cargoes of wool. The Irish Parliament had declared itself independent, but the English Act remained in force, and the sailors of a St. Malo vessel refused to load the forbidden goods, with the chance of being taken at sea and hanged in England. The Englishman in James was always asserting himself, while he knew that his only effective supporter was the French King. Avaux saw that great profits might be made if these difficulties could be got over, and he offered to share them with Louvois, who administered a dignified rebuke. He would have nothing to say to such traffic, and 'the King, our master,' would take it very ill. [\[220\]](#)

The Irish Parliament was prorogued on July 18, and it did not meet again. Londonderry was relieved twelve days later, and Schomberg landed in less than a month. Many of the members had already dispersed to look after the forfeited lands, the repeal of the Act of Settlement and the measures against absentees having exhausted their interest in parliamentary matters. One of the last Acts passed secured 15,000*l.* a year to Tyrconnel. At least one chief reason for assembling a Parliament was to get money for the war, and 20,000*l.* a month was voted, but it was hard to collect, and proved quite inadequate. Supporters of James who were not mainly interested in the land question thought the Parliament had done much more harm than good, many officers and the best of the country people being engaged at home and leaving the war to take care of itself. It was evident to every clear-sighted person that arms must decide, not only whether James or William should

End of the
Parliament.

rule Ireland, but whether the King of England should be King in Ireland also. The pretension of the smaller country to act independently of the greater had been defined by the late legislation, and was evidently incompatible with the facts, nor did James venture to separate the two islands by repealing the law of Poynings. The penal laws that followed are accounted for, though not excused, by the conduct of the native Irish Parliament during its short tenure of power. The treatment of the French Protestants by James's patron had also done much to embitter the feelings of the victors. ^[221]

Clever men saw at the time, and everyone can see now, that James's Irish adventure was hopeless. He thought of Ireland only as a stepping-stone to England, and his French supporters thought only of diverting William's attention from the Continent, and thus strengthening the position of their own King. The Irish very naturally thought first of regaining their lands, and hoped, with the aid of French power, to hold the country in spite of England. The English colony would have been destroyed if James had been victorious, and the Protestant landowners, who received no mercy from an Irish Parliament, were not likely to show much when their turn came.

FOOTNOTES:

^[204] *Sheridan MS.* The character in *Macariæ Excidium*, p. 83, is much to the same effect; O'Kelly and Sheridan both accusing Tyrconnel of favouring the Anglo-Irish and depressing the native Celts. In his memoir, printed at the end of Avaux's *Negotiations*, Hugh Baldearg O'Donnell says Tyrconnel was particularly hostile to the Ulster Irish. *Light to the Blind*, attributed to a Plunket, always praises him. 'Infiniment vain et fort rusé,' says Berwick. 'Talbot s'était dès long-tems porté pour patron des Irlandais opprimés. Ce zèle pour sa nation était fort louable; mais il n'était pas tout-à-fait désintéressé. De tous ceux que son crédit avait fait rétablir dans une partie de leurs biens il avait écorné quelque petite chose; mais comme chacun y trouvait son compte, personne n'y trouvait à redire,' *Mem. de Grammont*, chap. ix. Clarendon's *Life*, Cont., pp. 929 sqq. Burnet, i. 176, 227, and the Supplement, 255.

Next Talbot must by his great master stand,
Laden with folly, flesh, and ill-got land;
He's of a size indeed to fill a porch,
But ne'er can make a pillar of the Church.

Marvell's *Advice to a Painter*, p. 67.

[205] Burnet, i. 602, information from Halifax himself. *Clarendon and Rochester Corr.* 'Colonel MacCarthy's carriage has been so differing from the others that he has by his great civility recommended himself highly to the affections of the people of Cork, though they are notoriously fanatic.' Longford to Ormonde, September 7, 1685, in *Ormonde Papers*, vii. 358. When Boisseleau was governor there he treated the 'fanatics' very harshly.

[206] 'Sarsfield n'est pas un homme de la naissance de Milord Galmoy, ny de Makarty, mais c'est un gentilhomme distingué par son mérite, qui a plus de crédit dans ce royaume qu'aucun homme que je connoisse,' Avaux to Louvois, October 21, 1689. Berwick married Sarsfield's widow.

[207] Melfort's letters, cited in note, p. 142, to O'Callaghan's *Macariae Excidium*. *Sheridan MS.* Madame de Sévigné, July 1, 1676. For an estimate of Anthony Hamilton, see Sainte-Beuve's article, *Causeries du Lundi*, vol. i. For the early adventures of the brothers, see the *Mem. de Grammont*. Melfort told Avaux that the Tyrconnells had hunted him out of Ireland, 'pour sauver Antoine et Richard Hamilton, qu'on avait peur qu'il n'accusast.' Avaux to Louis XIV., August 20/30, 1689. Madame de Lafayette says Anthony was driven from the French Court for making love to the Princesse de Conti, who liked talking to him better than to anyone else. 'Richard alla mourir chez sa nièce, quoique pauvre elle-même, mais moins pauvre que lui, pour ne pas mourir de faim,' St. Simon's addition to Dangeau, December 20, 1717.

[208] A catalogue of the Acts of this Parliament, numbered from 1 to 35, was published in London with an 'Exact List of the Lords, &c.,' licensed November 13, 1689. The text of many of them is in a *List of Such of the Names, &c.,* licensed March 26, 1690. The Act of Attainder is in an 'Account of the Transactions of the late King James in Ireland', licensed July 7, 1690.

[209] James's speech to both Houses, published by his order, May 10, and the Parliament's address in reply are in the appendix to Leslie's Answer to King. The latter document has no allusion to the King's pronouncement about the Act of Settlement. A French version of the speech was sent by Avaux to Louis XIV. on May 8/18.

[210] Keating's address (early in May 1689) is in King's appendix no. 22 and in other places. Avaux to Louis XIV., May 26/June 5, 1689. King James to Clarendon, April 6, 1686, in *Clarendon and Rochester Corres.*, vol. i. Clarendon to Rochester and to the King, April 17: 'Your Majesty's often gracious professions that the Acts of Settlement shall not be touched, does extremely quiet the minds of men,' *ib.* Sunderland to Clarendon, June 14, *ib.* Writing to Rochester on October 12, Clarendon says: 'In almost every letter I have had the honour to receive from the King he has declared the Acts of Settlement must not be touched, and that he will support the English interest,' *ib.* vol. ii. After this date he began to see more clearly, and on January 4 received a copy of the Coventry letter, which left no doubt as to Tyrconnel's plans, *ib.* ii. 142.

[211] Avaux to Louis XIV., May 26/June 5, 1689. *Journal of the Proceedings of the Parliament in Ireland from May 7 to June 11*, and a letter appended carrying the narrative nearly to the end of July, London, licensed July 6, 1689. The journal and letter are reprinted in *Somers Tracts* as if they had been published separately. There is also a journal by another hand ending May 20, *Somers Tracts*, xi. 426. Bishop Dopping's speech, June 4, is in King, appx. no. 23. A

True Account of the Present State of Ireland, by a person that with great difficulty left Dublin, June 8, 1689.

[212] The Act of Repeal is in a *List of Names, &c.*, licensed March 26, 1690. *Journal of Proceedings, ut sup.* Avaux to Louis XIV., May 16/26.

[213] The Act of Attainder is printed from a copy certified by a clerk in the Rolls Office in King's appendix, published anonymously late in 1691. A *List of the Names* had already appeared in a pamphlet licensed March 26, 1690. The discrepancies are just such as Paley would have considered proofs of genuineness. For instance, King's Lieutenant John Newton of Drogheda is St. John Newton in the earlier list, while Katherine, Viscountess Ranelagh, and Anne, Viscountess Dungannon, first appeared as Katherine Vir, Countess of Ranelagh, and Anne Vir, Countess of Donegal. No doubt King's list is the more trustworthy of the two. In the *Transactions of the late King James*, licensed July 7, 1690, p. 33, it is noted that some names in the list already published, pp. 30-31, were wrongly added, and this is confirmed by comparing the two pamphlets with King. He believed, and gives good reasons for believing, that the Act was kept hidden away, so that no one could take any advantage under it. See also *An Apology for the Protestants of Ireland*, dated May 27, 1689, and a *Character of the Protestants of Ireland*, licensed November 13, 1689.

[214] Chief Justice Keating, who tried hard to keep terms with James, and who even excused Tyrconnel, said he was 'confident and assured that the Government of England will and must at length take place here against all opposition whatsoever,' letter to Sir John Temple, December 29, 1688, in King's appendix no. 14. *London Gazette*. Luttrell's *Diary*, June 2: Keating committed suicide in 1691, Cal. of State Papers, *Domestic*, October 20, 1691, p. 548; James Reilly's letter from Poitiers, January 3, 1692, in *Spicilegium Ossoriense*, ii. 309. In troubled times a man who tries to be impartial is likely to find himself without friends. He had been indicted for high treason and his place given to another, see the article on him in *Dict. of National Biography* and Luttrell, ii. 139. The treason consisted in taking a commission from King James after February 17, 1688-9.

[215] King says (iii. 13) that Coghlan consulted Vice-Provost Acton, and he may have been guided by Dopping, who was still Vice-Chancellor.

[216] Lestie's Answer to King, p. 124. Irish Statutes, 14 & 15 Car. II. cap. 23. A *Sermon preached to the Protestants of Ireland, &c.*, London, 1689, dedicated to Pilkington and published at his request. 'He spoiled his business in Ireland by his over great indulgence towards them. He was infatuated with this rotten principle—provoke not your Protestant subjects,' *Light to the Blind. A Short View of the Methods, &c.*, by a clergyman lately escaped from thence, licensed October 17, 1689. The writer fled from Vesey's province of Tuam, and the tract is dedicated to Burnet.

[217] King knew that great reforms were desirable in the Established Church, and he did what he could. But he saw clearly that the great exodus to England would cause fatal jealousies between those who stuck to their duty and those who ran away, Bonnell to Strye, August 5, 1690.

[218] Act 29 for the advancement of trade. Act 21 for excluding English coal. Proclamations of November 24, 1689, against wrecking empty houses, and of

November 29 for encouraging the conveyance of coal from Kilkenny. On November 14/24 Avaux writes to Louis XIV., 'Ce qu'on avait de bois et de charbon pour un écu en coûte quatre, et il faut envoyer bien loin à la campagne pour en pouvoir trouver.'

[219] *Journal and a Letter* from Dublin, licensed July 6, 1689. *True Account of the State of Ireland*, 1689. Act 24. *List of the Names, &c.*, licensed March 26, 1689, p. 41. Copies of the orders, &c., in King's appendix no. 24. Avaux to Louis XIV., February 1/11, 1690. In a report to James dated June 4/14, 1689, Avaux had written: 'Votre Majesté sait que les sheriffs et les particuliers qu'on employe à la recherche de ces biens sont les premiers à souffrir qu'on les détourne moyennant quelques presens qu'on les fait.'

[220] Acts 19 and 27. Avaux to Louvois, April 6/16, 1689, and the answer, June 13. Writing to Louis on June 30/July 10, Avaux says James 'a un cœur trop anglais pour se déterminer à rien qui puisse chagriner les Anglais, c'est-ce qui arreste l'affaire des laines.'

[221] *Light to the Blind*, p. 70. 'By the sitting of this Parliament,' says John Stevens, p. 70, 'the army was much damaged and weakened, the King lost the assistance of many of his friends, and gained a vast number of irreconcilable enemies.' King James, says Colonel O'Kelly, 'convoked the states of the kingdom, and as if in time of peace and leisure spent in unnecessary consultations the whole summer season, which might be better employed to go on more rigorously with the siege of Londonderry,' *Macariae Excidium*, p. 33. King says it was 'manifestly against his interest to call a Parliament,' chap. iii. sec. 12, 5. Besides anything given to Tyrconnel by his private Act, there appear to have been other grants. According to the *Sheridan MS.*, James regretted at St. Germain's that he had been tricked into giving him 50,000*l.* a year while only intending 12,000*l.* The extreme Irish party, of which Bishop O'Molony was the soul, condemned this Parliament for not repealing Poyning's Act, Macpherson, i. 339.

CHAPTER LII

LONDONDERRY AND ENNISKILLEN, 1689

It was the remark of a brilliant writer that trying to describe the siege of Londonderry after Macaulay was like trying to describe the siege of Troy after Homer. No elaborate copy need be attempted here. The heroism of the defenders it is scarcely possible to exaggerate, but the weakness of the attack was largely responsible for their success. Hamilton had never seen a siege, and Rosen, though an experienced soldier, was wanting in initiative. There was the worst feeling between French and Irish, the latter complaining that the foreigners got all the good appointments, and the former that they were exposed without support. At first Avaux thought the town could not hold out long, but very soon he changed his opinion. On the same day that he wrote to Louis of his hopes, he confided his fears to Louvois. A week later he was in despair. Maumont and Pusignan were killed, with several other French officers. Pointis, who commanded the artillery, was badly wounded. The besieging army was then under 3000 men, and not one musket in ten was serviceable, so that they had to entrench themselves against the attacks of the garrison. Even at the end of May most of the soldiers had no swords. Some carried iron-tipped sticks, and others pike-staffs without heads. In the long June days, the Enniskilleners extended their raids to within forty miles of Dublin, and James sent Rosen to check them. At Trim, where he had been promised four battalions of infantry, a regiment of dragoons, and nearly two regiments of cavalry, he found two battalions, one very badly and the other very indifferently armed. The dragoons did not appear at all, and of cavalry there were but five ill-mounted troops, the men without pistols or carbines,

The siege of
Londonderry.

Difficulties of the
besiegers.

and most of the horses without saddles or bridles. There were some guns, but the shot did not fit, so that only one in six could be fired. Then it was reported that Kirke's fleet had been seen in Lough Foyle, and Rosen was sent to Londonderry, where he found that there were only thirty pickaxes, and no available cannon, and that the unpaid soldiers were deserting in great numbers. The battering train was throughout inadequate. By the middle of July only five out of thirty-six French gunners were fit for service, and Massé, the chief engineer, was killed while laying a gun, since no artillery officer was to be had. Avaux says Lord Melfort was not sorry for the French officer, who had complained that he was abandoned, and given none of the promised requisites for a siege. [\[222\]](#)

The Londonderry of the siege, standing entirely on the left bank of the Foyle, was nearly oblong in shape, extending about half a mile from north to south, and something less from east to west. It was surrounded by a strong wall without any ditch, having a small bastion at each angle. There were four gates, and in front of the southern, or Bishop's gate, a slight ravelin had been thrown up by Lundy as his sole contribution to the defence. The besieged had twenty guns, none of them as large as a twelve pounder, and many much smaller. The men bearing arms at the beginning of the siege were over 7000, divided into eight regiments, the total number of people within the walls being thirty thousand. There were about 300 cavalry under Adam Murray's command. Major Baker and George Walker were chosen joint-governors, both of them being colonels of regiments. According to the accounts hostile to Walker, he was only an assistant in charge of the stores, and no doubt that was his most important duty, but he was commonly called Governor, and always signed first, which can hardly have been without the general consent of those chiefly concerned. Many, perhaps most, of the defenders were Scots Presbyterians, or inclined that way, but sectarian differences were got over while the siege lasted. The Episcopalians had the cathedral in the morning, and the Presbyterians in the afternoon, and sermons did much to keep up the spirit of the garrison. Walker was afterwards accused of preaching in a discouraging tone, but his extant sermons do not sustain this. By the wise connivance of both Baker and Walker, Lundy was allowed to escape in disguise. On April 21 the Jacobites opened fire with one light gun from the right bank of the river, doing little damage, and on the same day the

Character of the town.

Baker and Walker governors.

garrison made a sally towards Pennyburn Mill lower down the water, on their own side. The fighting was indecisive, but Maumont fell, perhaps by Murray's own hand. Two days later Culmore surrendered, thus giving the besiegers the means of preventing relief from the sea. On the 25th, there was another sally in the same direction, and Pusignan received a wound from which he died for want of a surgeon. On May 6 there was a sally towards Windmill Hill, on the south side of the town, to prevent an attack there, and the besiegers suffered severely, Brigadier-General Ramsay, a distinguished Scotch officer, being among the slain. The guns used by the Jacobite army were never of calibre sufficient to damage the wall seriously, and nothing like a breach was made at any time. Three mortars appear to have been used, which killed a few men and did much damage to the houses, but none to the defences. Two hundred and sixty-one shells were thrown in, each weighing 272 pounds, without the charge, and 326 of 34 pounds. [\[223\]](#)

The fiercest fight during the siege was on June 4. The garrison had dug a ditch, and thrown up a bank across the Windmill Hill, which protected St. Columb's Wells.

Fight at the
windmill.

These were very important, for the wells inside the walls were made turbid by the constant firing. The windmill itself, which still stands, had been strengthened by earthworks, and two or three small guns were mounted on it. Hamilton ordered nearly all his available infantry and some cavalry to advance against the bank, which for the most part was about twelve feet high. No attempt was made to loosen the newly made work, there were no ladders, and the foot-soldiers were quite unable to surmount the obstacle. They fell fast under the fire of the besieged, whose fowling pieces carried farther than their muskets. Only one-third of the defenders fired at a time, and thus a continuous hail of bullets was kept up. The assailants' right wing of cavalry was commanded by Colonel Edmund Butler, Lord Mountgarret's eldest son. He was exceptionally well mounted, and galloped to the top of the bank, which at the waterside did not exceed seven feet. On descending within the enclosure he was at once made prisoner. About thirty men tried to follow, but only two officers jumped successfully, one of whom was killed, the other escaping after his horse had been shot under him. Of the Irish, at least 200 were killed, besides many officers, the besieged only losing one officer and six men. [\[224\]](#)

Three days after the fight at the windmill, the spirits of the garrison were momentarily raised by the appearance of three English ships. Most of the Irish guns had been moved to the riverside below the town, but the mortar battery was placed in an orchard on the right bank. The frigates exchanged shots with Culmore fort, but the *Greyhound* took ground, and lay exposed with a heavy list. Even with this advantage the garrison of Culmore could not sink her, but some French gunners were brought up, who made nine good shots out of fourteen. Nevertheless, the vessel got off with the tide, having been hit seventeen times. The experience gained was enough to show that it would not be easy to relieve the town by water. A week later Kirke's fleet, twenty-six transport and store ships under convoy of four men-of-war, was descried in Lough Foyle, the fighting squadron under Rooke, with Leake among the captains. But a council of war, comprising both naval and military officers, was held on board the *Swallow*, where, after the manner of such councils, it was unanimously decided that the thing could not be done. There appeared to be a boom across the river, and it was wrongly suspected that boatloads of stones had been sunk in the channel. As soon as the result of the council of war reached the English Government Schomberg gave the order which saved Londonderry. The sunken ships, he said, were only guessed at, and the boom might not be formidable. Kirke was told to get better information, 'and to consult for that purpose the sea-officers whether it may not be possible to break the boom and chain and to pass with the ships, and that you attempt the doing of it for the relief of the town.' A considerable reinforcement of horse and foot was at once despatched. In the meantime Kirke seems to have thought that he could relieve Londonderry by land, and he established a post on the Isle of Inch in Lough Swilly, scarcely five miles from the walls, to which the Protestants of the country round flocked for protection. After sending what help he could spare to Enniskillen, Kirke obeyed Schomberg's orders, and sailed round again to Lough Foyle. The long delay in rescuing the beleaguered city had caused much indignation in England. 'When I speak for money,' said Birch, 'I would lay the fault where it is. I will not talk of account of money now. 'Tis pity these brave fellows in Ireland should be deserted; we are likely to lose those 10,000 brave men, to our shame all the

An English
squadron appears,

but is forced to
retire.

Schomberg
interferes.

Debate in the
English Parliament.

world over.’ The dreaded boom, he added, could probably be cut, and if not, there was nothing to prevent the landing of a relieving army.^[225]

The garrison of Londonderry were never short of powder, in spite of the constant firing. The stock of cannon balls failed before the end of June, and the want was supplied by covering pieces of brick with lead so that the size and weight were right, and good practice was made with these rude projectiles. Food soon became scarce, dogs, cats, and rats being readily eaten and sold at high prices. Rations of salted hides were served out and tallow mixed with starch. The latter compound was found to be a cure for dysentery. At the last distribution, before the end of the siege, the allowance for a fighting man was half a pound of meat and a pound and a half of horse flesh. There were no vegetables, of course, and a handful of sea-wrack or chickweed fetched a penny or twopence. Fuel was not much wanted in summer except for cooking, and there was very little to cook, but fires could be made with the roofs shattered by shell-fire. Only eighty soldiers were slain by the enemy, but famine and sickness reduced their number from 7500 to about 4300, of whom more than a fourth were unserviceable. Governor Baker died on the last day of June, after naming Michelburn to succeed him. Murray was shot through both thighs on July 17, and the starving troops had not the advantage of his leadership during their last feeble sallies. The very last was on July 25, when they issued from the Bishop’s Gate and the Butcher’s Gate simultaneously in hopes of driving in some of the enemy’s cattle. They killed many of the besiegers, but caught no cows, and returned as hungry as before, having lost a few men. Starch was found in the pockets of the slain, and one dying soldier said he had nothing else for five days.^[226]

Sufferings of the
besieged.

Conrad De Rosen was a Livonian, and King James had occasion to call him a barbarous Muscovite, but he was a good officer, and was made field-marshal-general. He wrote French well and knew how to behave in good society, but was subject to fits of rage in which he was little better than a madman. As Hamilton made no progress with the siege, Rosen was sent to see what he could do, and he reached the camp on June 20 with his badly armed reinforcements. His arrival gave some encouragement to the besieging army, which was on the

Cruel action of
Rosen.

Indignation of
James.

point of dispersing spontaneously. He devoted himself to strengthening the force for guarding the river, and at the same time tried to push approaches up to Butcher's Gate with a view to blowing it in. His men got so near that the garrison drove them off with stones. The weather was very wet and the ditches filled with water which was kept back by the high tide, so that it was found impossible to work in them. When he heard Rosen's report, Avaux had little hope of the town being taken. But Kirke was daily expected to attempt something, and Hamilton made an effort to do by treaty what he could not do by force. The town was summoned to surrender on such terms as might be agreed on, with a general promise that there should be no distinction made between Catholic and Protestant. Protection was offered to all, and favour to those who would serve King James. It was particularly insisted that Rosen had no power to interfere concerning the siege, that he was sent only to stop the English succours, and that 'all conditions and parleys' depended on Hamilton, who had power to grant such articles as he thought fit. In spite of all this, Rosen took everything into his own hands three days later. He issued a declaration requiring the garrison to accept Hamilton's terms within twenty-four hours, and to send hostages. Failing this, all the men, women, and children of their party (*cabale*), whether under protection or not, from Enniskillen to Charlemont, and from Charlemont to the sea, should be driven under the walls, without any provisions or shelter. The garrison might admit them if they liked, otherwise they would have the pain of seeing the death by starvation of their 'fathers, mothers, wives, children, brothers, sisters, and, in short, all their relations, for not one single one shall be left at home, and they shall have nothing to eat.' Those who had taken refuge in towns were to be turned out and driven along with the rest. Orders to this effect were at once sent to the commandants at Coleraine, Antrim, Carrickfergus, Belfast, Dungannon, Charlemont, Belturbet, and Sligo, and to the Duke of Berwick, who had a flying column on the Enniskillen side. All mills and houses belonging to the rebels and their adherents were to be burned, all horses and cattle driven off or killed; so that if English troops were to land they would find only a desert. On the same day Rosen wrote to inform King James of what he had done and meant to do. James at once replied that he should have been informed of the Marshal's plan beforehand, and that he thoroughly disapproved of it, though he had no objection to ravaging the country for military reasons. He positively ordered commanding officers to

disobey the Marshal except in that one particular, and to send back to their homes all who had already suffered. He had promised protection to all who lived peacefully, and they should have it. Rosen, who cared nothing for His Majesty's favour, rejoined that he was much too full of benevolence to rebels, who were thus encouraged in their insolence. James was greatly annoyed at his word being broken and at the General's presumption in acting without his orders. Avaux tried to plead that the time had been too precious to stand upon ceremony, and that neither he nor Rosen had official knowledge of the King's promises, but he admits that his arguments had no effect. Melfort, who could not lose such an opportunity of annoying the ambassador, said that if the Marshal had been the King of England's subject he would have been hanged. 'I found the expression very strong,' said Avaux, 'but made no answer, for the King was already very angry.'^[227]

Rosen may have hoped to frighten the town into surrender without carrying out all his threats. If so, he was completely mistaken. In the evening of Monday, July 1, about 200 victims were gathered under the walls and a thousand more appeared in the morning. Many of these had been living peaceably under the King's protection. Throughout that day and the next the number increased, being brought in from the surrounding country. It does not appear that Rosen's orders were fully carried out in more distant parts, probably because of James's action. Even before the King's letter arrived the Marshal saw that his bolt had missed, and had merely furnished the garrison with an irrefutable argument. They erected a gallows on the south-western bastion, and warned the prisoners, who had hitherto been very kindly treated, to prepare for instant death. There were twenty of them, and they appealed to Hamilton, who gave them no comfort but the assurance that their deaths should be revenged on many thousands of people, innocent or guilty, both within and without the city. As to the proposals for capitulation, the governors said that they could not trust the besiegers, Rosen's manifesto being inconsistent with Hamilton's suggestions. Besides, the latter's commission was dated May 1, since which a Parliament had sat in which their lives and estates were forfeited. Meanwhile neither the besieged nor the starving people outside had any thoughts of surrender. On the fourth day Rosen allowed the victims of his scheme to return to their devastated homes, and King James renewed Hamilton's commission. A few of the strongest outside slipped into the town, and many of the weakest within

Determination of
the besieged.

seized the chance of escape. The governors thought their food would not last beyond July 26, and might have yielded if time had been given to that day, but it was refused, and all negotiations came to naught. Help did not come until after the last ration of famine-fare had been served out. ^[228]

From the time that Kirke appeared upon the coast until the end of the siege there were many attempts to establish communications. Daily signals were made from the cathedral and answered from the ships, but were not well understood on either side, though it seems, from the account of Captain James Roche, that there was so much of a preconcerted code as enabled him to tell Kirke how many more days the town could hold out. Roche was induced by the promise of 3000 guineas to carry a letter, and this he succeeded in doing, by swimming under great difficulties; but even he could not get back, and had to stay till the end. Another messenger was drowned, and a third taken and hanged. A little boy afterwards succeeded in bringing a letter. The investment was very close, but the besiegers gave up any hope of succeeding except by starvation, and Kirke's chief advice by Roche was to husband the provisions. On July 20 Hamilton held a council at which six generals attended, all of whom agreed with him that the town could only be taken by famine. Rosen was in bed, and disclaimed all responsibility, saying that he was always against the siege, and that his advice had been slighted. The guns, said the others, were quite insufficient, and the besiegers had suffered so much that they were not numerically superior to the besieged. On Saturday, July 27, the day of Killiecrankie, Captain Ash wrote in his diary, 'Next Wednesday is our last, if relief not does arrive before it.' About six in the evening of the day following that on which these despairing words were written, three ships were seen coming up the Foyle. They proved to be the *Dartmouth*, of forty guns, commanded by John Leake, the *Mountjoy*, under Micaiah Browning, a native of Londonderry, and the *Phœnix* of Coleraine, under Andrew Douglas. If we consider what Rooke and Leake did together in after years, we may believe that they would have made the attack much sooner, but they were under Kirke's orders, and he was a landsman. The *Dartmouth* anchored opposite Culmore and engaged the fort, the man-of-war having probably better guns, and certainly better gunners. Meanwhile the two merchant-ships, accompanied by boats from the fleet, sailed or were towed up to the boom, at each end of which a fort had been built. The boats' crews hacked at the

The town relieved
by sea.

obstacle, and before it was quite cleared the *Mountjoy* struck against its timbers, and went ashore. A shout of triumph went up from the Irish army, and the hearts of the men on the wall sank. But a gap had been made and the *Phœnix* passed up to the Quay. The larger vessel—her burden was only 135 tons—used what guns she had, and the concussion, joined to the rising tide, soon brought her off, but not before her brave captain had been killed by a cannon-ball. He died, says Macaulay, ‘by the most enviable of all deaths, in the sight of the city which was his birthplace, which was his home, and which had just been saved by his courage and self-devotion from the most frightful form of destruction.’^[229]

The *Phœnix* carried three or four thousand bushels of Scotch meal, the *Mountjoy* was laden with biscuit, cheese, pork, and pease, and as Hamilton’s only hope was in famine, the siege was virtually over. It lasted 105 days, and cost some 15,000 lives, more from fever and starvation than from wounds. The mortality among the women and among those who were too old or too young to fight was far greater than among the soldiers. Michelburne lost his wife and all his children. For two days the Irish continued to fire from their trenches, but they were preparing to go. Everything within reach was destroyed, and on the night of July 31 they set fire to their camp and marched off to Strabane. Some of the late besieged, who had no horses, attempted pursuit, but the Irish rearguard turned on them and killed seven men. The battle of Newtown Butler was fought on the day that the siege was raised, and when the news reached Strabane, Hamilton’s army retired, abandoning their guns, and burning everything until they got near Charlemont. Avaux reported that they were completely ruined, and that the double disaster had demoralised the Irish everywhere.^[230]

Cost of the siege.

While Londonderry was beset Enniskillen kept her assailants at arm’s length. The north-east side was protected by the garrisons left by Lord Kingston in Donegal and Ballyshannon, but on the north-west Sarsfield had a good force of Connaught men at Sligo and Manor Hamilton, and in June he fixed a camp at Bundrowes, where the waters of Lough Melvin reach the sea. To the south, Colonel Crichton maintained Crom Castle. The Protestants living in the open country knew that they had nothing to expect from Lundy, who had ordered the

Defence of
Enniskillen.

Repulse of Galmoy.

evacuation of Dungannon, and done what he could to prevent Enniskillen from resisting. All the help he gave the defenders was five barrels of powder and some old gun-barrels, which they managed to fix with locks and stocks. They had no other ammunition for months, except what they took from the enemy. In March Lord Galmoy with a strong force approached Enniskillen and on March 30 the defenders saw the Protestants of Cavan pouring in. First came some horse and foot, then ‘the whole inhabitants with their women and children to their middle in clay and dirt, with pitiful lamentations, and little or no provision to sustain them.’ They did their best to persuade the Enniskilleners to fly with them to Londonderry. After two days’ rest they were told that if the men went the women and children should be turned out. Some remained with their families, but the majority went on. Galmoy came as far as Belturbet, whence he sent a party to besiege Crom. He had no battering guns, but made a show with two pieces consisting of tinplates covered with buckram, and bound round with whipcord. A wooden ball was fired from one of these machines, which quickly burst, and did not frighten the garrison, who were soon strengthened by a detachment from Enniskillen, conveyed partly in boats. Galmoy advanced as far as Lisnaskea, but drew back towards Crom on the approach of the whole Enniskillen force. The men in the castle and those who came by road then attacked the Irish simultaneously, and Galmoy retired with loss to Belturbet, leaving his buckram batteries behind him. ^[231]

At Cavan, on his passage northwards, Galmoy captured Captain Dixie, son of the Dean of Kilmore, whom he was anxious to exchange for an officer named Maguire, a prisoner at Crom. This was agreed to, and Maguire was given up accordingly, but Galmoy nevertheless tried Dixie and another by court-martial and ordered them to be hanged. Their heads were then cut off, and kicked about like footballs. This atrocious act satisfied the Protestants that no faith would be kept with them, and added much to the bitterness of the struggle. Maguire was so much disgusted at the use to which he had been put that he resigned his commission. ^[232]

Galmoy’s cruelty.

A month after the attack on Crom the Enniskilleners, now reinforced by many of Lord Kingston’s men, set out, under Lloyd’s command, to prevent a Jacobite garrison from being established at Trillick. Having succeeded in this, they

Exploits of Colonel Lloyd.

made a like expedition to Augher, and returned by Clones, which they found burned. A great many cattle were driven off, and during the whole time that Londonderry was starving, Enniskillen enjoyed plenty. So successful were the foragers that a milch cow could sometimes be bought for eighteenpence, and a dry one for sixpence. When horses were caught, they were used to bring in foodstuffs and fodder. Two days after their return from the raid into Tyrone, Lloyd's men were again engaged. A large body from Connaught attacked Ballyshannon, and the relieving force met them at Belleek. Lough Erne was on one hand and a great bog on the other. Lloyd provided his troopers with faggots to make a causeway, but a guide suddenly offered himself and showed them a sound passage. The Irish were routed, and near 200 of their horse slain. Sixty men whom they left in the fish-island at Ballyshannon were taken, but the rest of the foot made their way through bogs back to Sligo. The Enniskilleners did not lose a man. This affair is known in history as the 'Break of Belleek.' Before the end of May, Lloyd, with something over 1500 men, attacked and took Redhill and Ballinacargy in Cavan, and penetrated as far as Kells in Meath, only thirty miles from Dublin, returning with 5000 head of cattle and sheep, and 500 horses laden with provisions. The small garrison of Trillick were equally successful in an attack on Omagh, and the horses of three troops were surprised and led away.

The Break of Belleek.

So great was the reputation of the Enniskilleners that Dublin was hardly considered safe, their numbers being, of course, enormously over-estimated. The besiegers of Londonderry were throughout hampered by their fear of them, and Berwick with a flying column was constantly occupied in trying to keep them at a distance. Governor Hamilton resolved to relieve the beleaguered city if possible, but the expedition was mismanaged. It was food, and not men, that the defenders wanted, whereas the relieving party did not take enough even for themselves. They occupied Omagh, but Lord Clancarty was reported to be on his way, and Sarsfield being at Manor Hamilton, it was feared that the unfinished fort at Enniskillen might be attacked. The expedition was accordingly given up, though some thought that it might have succeeded if Lloyd had been in command. Immediately after his return, Hamilton had news that Brigadier Sutherland was at Belturbet with a daily increasing

Attempt to relieve Londonderry.

Victory at Belturbet.

force, but the Jacobite general promptly retreated even before Lloyd appeared with his dragoons. The garrison was easily overcome, 300 becoming prisoners with their arms and 700 muskets which had been stored for the use of a newly raised regiment. Two barrels of much-needed powder were also taken, with fifty troop-horses, and enough red coats to dress two companies. Two hundred able men were kept to work at the unfinished citadel. Thirteen officers were detained, but the rest of the prisoners with the women and children were allowed to go free. [\[233\]](#)

A fortnight after the affair at Belturbet, news was brought to Enniskillen of Kirke's arrival in Lough Swilly. Communications were opened with him at once, and he promised thirty barrels of powder and the help of some officers. Before they came, Berwick crossed the Barnesmore Gap and attacked Donegal, where Lord Kingston had left a garrison. He burned the town, but could not take the castle, and afterwards joined Sutherland at Trillick. He was attacked by Governor Hamilton, Lloyd having gone to meet Kirke, and here the Enniskilleners suffered their only serious check, losing fifty men killed, and as many prisoners. On July 28, a fortnight afterwards, the officers sent by Kirke reached Enniskillen by water, under the command of Lieut.-Col. William Wolseley, whose Protestant zeal was well known. He brought acting commissions for two regiments of cavalry and three of infantry, a supply of powder, 1600 muskets and firelocks, and eight field-pieces. On the very evening of his arrival, Wolseley learned that MacCarthy had come before Crom, where there were no cannon, with a considerable army and with eight guns, not made of buckram. Next day, being July 30, every available man was brought up from Ballyshannon, and Colonel Berry, the second in command, was sent on as far as Lisnaskea, MacCarthy raising the siege as he drew near.

Kirke in Lough Swilly.

Defeat at Trillick.

Arrival of Wolseley.

Early in the morning of July 31, Berry, after spending the night in the open, moved forward as far as the little village of Donagh, where his scouts brought word that MacCarthy was advancing. He drew back accordingly through Lisnaskea, and took up a position among the marshes near the Colebrooke River. Some of his troopers, who had behaved badly in the fight

MacCarthy threatens Enniskillen.

near Trillick, now swore to support him, and they kept their word. The enemy consisted of thirteen companies of dragoons under Anthony Hamilton, who dismounted his men when they got into the difficult ground. The Enniskilleners were skilfully posted, and much the better shots, so that when the Jacobite dragoons were withdrawn, their retreat rapidly changed into a headlong flight. Berry's horsemen followed them through Lisnaskea and for a mile beyond, taking thirty prisoners and killing two hundred men. Hamilton himself was badly wounded. At the approach of MacCarthy's main army, the victors drew back to Lisnaskea before nine o'clock, and waited for Wolseley, who was coming to their rescue with all his available forces. Of the two roads to Lisnaskea, Berry had taken that to the right, Wolseley that to the left, and they met at the junction at about eleven o'clock. [\[234\]](#)

Wolseley had left Enniskillen in a great hurry and without provisions. He had, therefore, no choice but to fight or to fall back, for Sarsfield was at Bundrowes, and might attack Enniskillen in his absence. The men were consulted, and all decided to advance. Beyond Donagh the two armies came in sight of one another. The first encounter was in crossing a bog with a paved causeway through the middle. Apparently MacCarthy intended only a reconnaissance at this point, for he retired after some skirmishing without bringing his guns into action. The Jacobites kept their ranks through Newtown Butler, and set fire to the town as they left it. About a mile beyond there was another causeway through a bog. The position was strongly held by infantry, who nearly all fought under cover, but failed to stem the advance of Wolseley's foot. The causeway was swept by cannon, which at first prevented his cavalry from moving, though the practice was so bad that no one was hurt. At last the wings under Lloyd and Tiffen got up to the guns and killed the gunners, who resisted bravely. The causeway was then cleared, and the Enniskillen horse advanced very quickly without much attempt at order. The Jacobite cavalry, posted on rising ground, made no attempt to charge, but galloped away towards Cavan. When they had ridden their horses to death, they threw away their arms and clothes so as to run faster. The infantry scattered among the bogs in the direction of Wattle Bridge, where great numbers were killed. Of 500 who took to the water all but one man were drowned. When King James heard the news he nearly took the advice of Melfort, who wished him to retire to Rathfarnham, where he would be

Victory of
Newtown Butler.

safe from the Dublin Protestants, but Tyrconnel, Nugent, and Rice persuaded him that he was in no danger, and that to leave the capital without a garrison might cause an insurrection, in which many good Catholics would perish.^[235]

Deserted by all but his own troop, MacCarthy made a desperate attack on the infantry who guarded the captured guns, but he soon fell covered with wounds. He was taken to Enniskillen, where he was very well treated, as Avaux testifies, and King James sent a doctor and a surgeon with wine and other luxuries. There were over 300 prisoners, most of whom were afterwards employed by Kirke to clean and repair the rescued but almost ruined city of Londonderry. The unfortunate runaways were mercilessly killed among the reeds and bushes. The pursuit lasted all night, and no quarter was given until the morning. The victors excused this bloody work as a natural revenge for Lord Galmoy's perfidy. Avaux reported that a regiment of dragoons and three battalions of infantry had almost entirely disappeared. When MacCarthy was taken, a letter from Sarsfield was found in his pocket saying that he was encamped at Bundrowes and ready to attack Enniskillen on the west if MacCarthy and Berwick would attack it on the east. The French ambassador thought it much more likely that the garrison would crush the three armies in succession; and, in fact, Wolseley lost no time in marching towards Bundrowes, but Sarsfield, as soon as he heard of the rout at Newtown Butler, broke up his camp and retreated to Sligo. Berwick, who was threatening Donegal, also retired at the news, and effected an exchange of prisoners. Those who returned to Enniskillen had seen Hamilton's ruined army march away from Londonderry. They had no wish to meet another victorious garrison, and Wolseley's scouts saw their rearguard pass through Castle Caulfield, so that pursuit was impossible. One regiment of cavalry, two of dragoons, and three of infantry were formed from the defenders of Enniskillen. Of these Cunningham's became the Inniskilling Dragoons, famous at Waterloo and on many other fields, and Tiffen's grew into the Inniskilling Fusiliers. The fame of these troops was great in their own day, and when a London regiment made a loyal address to Queen Mary shortly before the Boyne, Tories and Jacobites called them Inniskillings in derision, while good Whigs hoped that they would be found such.^[236]

MacCarthy a prisoner.

Retreat of Sarsfield.

Tangier was a bad school, and Kirke showed during the Monmouth insurrection that he had learned its lessons only too well. Very little credit was due to him personally, but he treated Londonderry like a conquered city. The late garrison was made into regiments, and the claims of some who had done much were ignored. But Michelburn, who had served under him in Africa, was continued as Governor, and Walker, who hastened to get rid of his military character, was sent to London with the news and an address from the defenders to King William. While he was on his way, William's letter of thanks and congratulation arrived addressed to the Governors, for only the bare facts of the relief had then reached London. Kirke filled up the blanks with the names of 'George Walker and John Michelburn, Esquires.' Walker travelled by way of Scotland, receiving the freedom of Glasgow and Edinburgh. Sir Robert Cotton, the great antiquary's son, drove out as far as Barnet to meet him, and crowds followed him in the streets. He was presented to the King, who gave him 5000*l.*, which was paid next day, adding that that was only a small part of what he owed him. On receiving the thanks of the House of Commons he made little of his own services. At William's request Cambridge agreed to make him a Doctor of Divinity, but he did not go there to receive the degree. At Oxford, which he visited on his return journey in company with Archbishop Vesey, the same distinction was conferred on him in convocation as the defender of Londonderry, 'and by that fact, as we hope, the preserver and avenger of all Ireland.' In London, says Luttrell, he was caressed by all sorts of people, and entertained at dinner, and has the character of a very modest person.' Tillotson said his modesty was equal to his merit, and that everyone was pleased at hearing that he was to be made a bishop. He spent about six months in England, exerting himself to obtain rewards and recognition for those who had suffered by the siege, not forgetting the services of the seven dissenting ministers. [\[237\]](#)

Kirke at
Londonderry.

Walker in England.

After giving a slight sketch of the events at Londonderry, Burnet originally wrote that 'there was a minister in the place, Dr. Walker, who acted a very noble part in the government and defence of the town; he was but a man of ordinary parts, but they were suited to this work, for he did wonders in this siege.' In the published history this was left out, and Macaulay was at a loss to explain the omission. Swift and Routh

Burnet on the siege.

Walker's True
Account.

both blame the Bishop for not mentioning Walker. The explanation is not, however, far to seek. Burnet, writing in the summer of 1691, agreed with his friend Tillotson, and with society generally, in giving a lion's share of credit to Walker, but he pretended to no exact knowledge of Irish affairs, and when the time came to publish his work he remembered that the late governor had detractors who were chiefly Scotch Presbyterians, remaining dissenters in Ulster, but established in the Bishop's own country. He therefore prudently decided not to mention any individual hero, but to praise the resolution of the defenders generally. In other respects the revised narrative gained in accuracy what it lost in picturesqueness. Walker wrote an account of the siege, and published it by request soon after his arrival in London. It was done in a hurry, and to meet a pressing want—that the demand was great is shown by the three extant editions bearing date 1689, and by the translations into Dutch and German. Walker was soon attacked for claiming too great a share in the siege, for giving less praise than was due to Murray and others, and, above all, for not naming the seven dissenting ministers whose good service he had acknowledged. He then published a Vindication, saying that he did not know the names which he was accused of suppressing, and supplying the omission after inquiry. Some months later, when Walker had returned to Ireland, the Rev. John Mackenzie, who had been through the siege, published a more detailed pamphlet, declaring, among other things, that Walker was never governor, and giving nearly all the glory to the Presbyterians. Candid readers will not agree, but Mackenzie added largely to the facts recorded and is historically very valuable. His narrative is, however, dull reading compared to Walker's account and the public had had enough of the subject. There were several minor publications connected with this quarrel. We can only regret with the very prosaic poet who wrote the Londeriad that the union between Protestants which danger produced should have passed away with it. [\[238\]](#)

Mackenzie's
Narrative.

FOOTNOTES:

[\[222\]](#) Avaux's despatches, April 26/May 6 to July 30/August 9, 1689. Rosen wrote to James on July 5 that the troops lately sent him had to take such arms as were given them, 'mostly damaged and broken, and accordingly useless, as you have not in all your army a single gunsmith to mend them.' Hamilton's soldiers were still worse off, no battalion stronger than 200 men; and more than two-

thirds without swords. No troop of cavalry had more than fourteen serviceable men.—Macpherson's *Original Papers*, i. 205. The account of the siege in Witherow's *Derry and Enniskillen*, 3rd edition, 1885, would leave little to be desired but for the writer's violent antipathy to Walker.

[223] Walker and Mackenzie. Sermons and speeches by Walker are reprinted in Dwyer's edition of the *True Account*. Sir Charles Lyttleton, writing to Lord Hatton on August 8, 1689, says he had talked the day before to a gentleman who was storekeeper in Ireland, who confirmed all he had heard about the Irish want of guns. There were only a few heavy ones in the country, and the ground about Londonderry was so 'rotten' that they could not be drawn thither.—*Hatton Correspondence*. Walker and Mackenzie both call the work at Bishop's Gate a ravelin, but as there was no ditch it should probably be called a demi-lune.

[224] Walker and Mackenzie. *Light to the Blind*, p. 77.

[225] Walker and Mackenzie. Pointis to Louis XIV. or Seignelay, June 13, 17, and 22, State Papers, *Domestic*. Colonel Birch's speech, June 19, in Grey's *Debates*, ix. 351. Schomberg's order to Kirke is printed from the copy among the Nairne MSS. in Dwyer's edition of Walker: it was apparently written on June 29 and despatched with a postscript on July 3. Avaux to Louvois, June 16/26. The author of the *Light to the Blind* says a sunken gabbar or two would have destroyed the channel, but that James had forbidden this for fear of lessening his customs revenue.

[226] 'I myself,' says John Hunter, a private soldier, 'would have eaten the poorest cat or dog I ever saw with my eyes. Many a man, woman, and child died from want of food. I myself was so weak from hunger that I fell under my musket one morning as I was going to the walls, yet God gave me strength to continue all night at my post there, and enabled me to act the part of a soldier as if I had been as strong as ever I was; yet my face was blackened with hunger.'—Journal in Graham's *Ireland Preserved*, p. 335.

[227] Hamilton's proposals, June 27, are in Walker's appendix and elsewhere. Rosen's declaration, June 30, is enclosed in Avaux's letter to Louvois, an English version being printed by Walker and elsewhere. Rosen's correspondence with James, June 30 to July 5, is in Macpherson, i. 204-210. See Berwick's account of Rosen, and Avaux to Louvois, July 5/15.

[228] 'One pound of oatmeal and 1 lb. of tallow served a man a week, sometimes salt hides. It was as bad as Samaria, only we had no pidgens' Dunge. I saw two shillings a quarter given for a little dog, horse blood at 4d. per pint, all the starch was eaten, the graves of tallow, horse flesh was a rarity, and still we resolved to hold out ... I believe there died 15,000 men, women, and children, many of whom died for want. A great fever—all the children died, almost whole families, nor one left alive.' Narrative of George Holmes in *Le Fleming Papers*, p. 265. Macpherson i. 312.

[229] Walker and Mackenzie. *Light to the Blind*. The written opinions of Hamilton and his council of war are in Macpherson, i. 217. James's letter of July 22 ordering the siege to be turned into a blockade, *ib.* p. 218. Roche's story is in Harris's *Life of William III.*, appx. xxix., and see Cal. of Treasury Papers, February 14, 1693-4. Writing to Louis XIV., August 4/14, Avaux says: 'L'estacade était si mal faite qu'elle n'a pas résisté aux chaloupes qui

remorquaient les deux petits bastiments qui portaient des vivres, et nous avons déjà sceu plus d'une fois que cette estacade se rompait souvent par le vent; et par la seule force de la marée.' Though the Rev. James Gordon can scarcely be credited with the relief of Londonderry, his local knowledge may have been useful to Kirke, or rather to Rooke and Leake: Reid's *Presbyterian Hist.*, ed. Killen, ii. 387 and notes. Pointis, who was destined to meet Leake again in later years, gave a description of the boom (to Seignelay, probably), which he thought he had made very strong, State Papers, *Domestic*, June 13, 1689. It was partly attached to a great stone, which may still be seen, though moved from its original place, in the grounds of Boom Hall, and partly to a great tree, of which the stump remains.

[230] Walker and Mackenzie. Avaux to Louis XIV., August 4/14. McCarmick. There is an independent account by George Holmes, who was all through the siege and was made a major by Kirke; it is dated from Strabane, November 16, *Le Fleming Papers*, p. 264.

[231] Hamilton and McCarmick.

[232] Hamilton and McCarmick.

[233] McCarmick.

[234] The roads through the boggy flats of upper Lough Erne were paved. Mr. Thomas Plunkett, of Enniskillen, who knows more than anyone of the subject, has found some bits of these causeways, but the exact line taken by Wolseley and Berry cannot now be traced. The drainage works at Belleek have done much to dry the country.

[235] Hamilton and McCarmick. Wolseley's own account to Kirke is dated August 2 in *London Gazette*, 2481. Kirke's letters of August 5, *ib.* Avaux writes to Louis XIV., August 4/14: 'Ceux d'Enniskillen estant venus à la debandade mais fort hardiment attaquer My lord Moncassel, la cavalerie et les dragons ont lâché pied sans tirer un coup depistolet,' and on the same day to Louvois: 'Ces memes dragons qui avaient fuy le matin lâcherent le pied, &c.' MacCarthy's force was much the larger of the two, but it is impossible to give exact numbers. For the reception of the news by James, see Avaux to Louis XIV., November 14/24. Harris's account is taken from Hamilton. *A Light to the Blind* minimises the defeat, but Kirke says it was the greatest blow to the Irish since Scariffhollis. *Macariæ Excidium*, chap. xxxvi. Under August 16, Luttrell's *Diary* says Wolseley had 2000 men and MacCarthy 7000, which is doubtless much exaggerated. McCarmick says the Irish were estimated at 6000, and that only some 2000 escaped.

[236] McCarmick. Letter to Abigail Harley, May 9, 1690, *Portland Papers*, iii. 448. Colonel Filgate has traced the history of many Irish regiments.

[237] Walker's *True Account* and papers printed with it and the *Vindication*. Note 113 to Dwyer's edition of the same. Luttrell's *Diary*, August and September 1689. Wood's *Fasti Oxonienses*, p. 234, February 26, 1689-90, and his *Life and Times*, ed. Clark, ii. 326. Tillotson to Lady Russell, September 19, 1689, in her *Letters*. Dawson's memoir of Walker in *Ulster Journal of Archæology*, ii. 129.

[238] Naming Walker, Mackenzie, and other preachers, the author of the *Londeriad* says:—

From sun rising to sun setting they taught, While we against the en'my bravely fought. Thus Heaven assists those actions which proceed From Unity in greatest time of need.

In my copy of Mackenzie's *Narrative of the Siege* (March 31, 1690) is written in a contemporary hand: 'A partial account against Kirk, Walker, &c., on behalf of the fanatick party.' The controversy is handled by Macaulay, chap. xv., with the titles of the pamphlets in a note. It is fully but not impartially treated in chap. viii. of Witherow's *Derry and Enniskillen*, 3rd edition, Belfast, 1885. Burnet, ii. 19, and the *Supplement*, ed. Foxcroft, 321.

CHAPTER LIII

JAMES II. AND SCHOMBERG, 1689-1690

Before leaving London, Schomberg had ordered Kirke to relieve Londonderry. If the town could hold out, and if his orders were obeyed, he had no doubt that it would be safe to land in Ulster, but he feared that Kirke could not be depended on (*un homme capricieux*). The boom was broken on July 30, and the good news reached Schomberg at Chester on August 3, though at first he could hardly believe it. Three days later one of the warships from Lough Foyle came in with the official account, and the captain wanted to go on to London, but Portland, who had come to Chester, preferred to carry the message himself. Kirke's account got to Edinburgh as early as August 1. Dundee received his death-wound only three days before the breaking of the boom, and after that Schomberg knew that there was no danger on the Scotch side. On arriving at Chester, Schomberg found nothing to his liking. He blamed William Harbord, Essex's old secretary, who had been appointed paymaster-general, in the belief that he made money unduly by taking advance of the exchange, while the brass coin made all values uncertain. Harbord had a company, but the old general says scornfully that he had seen nothing of it but the colours in his room. It was said that he employed the officers at civil work. As to John Shales, the chief commissary, Schomberg is quite outspoken, and in the end he sent him to England to stand his trial. Shales had great experience, and that was why he was appointed, but the extreme Whigs naturally believed evil of all who had served the late King. Most likely the mismanagement and the speculation were much what the general described, but Shales probably knew that greater men than himself were involved, and the charges against him were never sifted to the bottom.

Schomberg's
preparations.

Schomberg had a poor opinion of the English officers generally, and they were particularly unfit to train raw recruits during actual warfare. Cromwell's plan had been to enlist men in England and to send over half a battalion at a time to join the more seasoned soldiers and to learn the rest of their business from them. Yet even Cromwell lost many men by disease during his first campaign. As it was, hundreds, perhaps thousands, of village lads were swept into the ranks who had never fired a gun, and some who had never seen one fired. The infantry were thinly clothed, and had no great coats. The cavalry were rather better off, but the officers, for the most part, did not mind their men's comfort, and the privates would hardly take the trouble to groom their horses. Schomberg stayed over three weeks at or near Chester, grumbling much and with good reason, but working hard to make up for the defects of bad administration. In the meantime a fleet of transports was assembled in the Dee with enough men-of-war to guard against possible attack by French cruisers. [\[239\]](#)

On August 5 Portland arrived with William's last injunctions, and probably with orders to hasten the embarkation. He had an hour's private talk with Schomberg, even lieutenant-generals knowing nothing of what was said. The two men visited one or more of the ships. The certain news from Londonderry came next day, and on the third Schomberg went on board. All were ready to sail at a given signal as soon as the wind came south-east. Belfast Lough was their destination, and it was arranged that if any vessels were driven out of their course there should be a rendezvous at Ramsey, in Man. On August 12 the signal gun was fired, the wind held all the way, and the whole squadron were off Bangor, in Down, after thirty-one hours' sail. The shore was crowded with Protestants of both sexes and every age, 'old and young falling on their knees with tears in their eyes thanking God and the English for their deliverance.' In mid-channel a crazy little boat had been picked up containing a poor minister, his daughter, and a servant girl, who were flying to Scotland to escape King James's men. Schomberg took them on board and carried them to a place of safety. The little harbour of Groomsport was utilised for the disembarkation. Ten thousand men were landed and lay with their arms for the first night. They were not interfered with, though an enterprising officer might have done much, since Schomberg had at first no cavalry with him. The horses of one regiment had all perished at sea

Schomberg reaches Ireland.

Weakness of the Jacobite army.

through mismanagement. The Jacobites fell back to Lisburn, leaving a garrison in Carrickfergus, who promptly burned the suburbs, and Belfast was occupied by the invaders on August 14 without any resistance. On the 20th, Carrickfergus was invested. Having to leave a good detachment in Belfast and another near the landing-place, Schomberg reported that he had only 6000 effective foot for the siege and no horse. Brigadier Maxwell, who commanded in Ulster for James, was much blamed for not attacking him at once, but he overrated the strength of the English, and feared to be hemmed in between them and the combined forces of Kirke and the Enniskilleners. Avaux wondered that Schomberg did not march straight to Drogheda, where there were scarcely 2000 men ready to oppose him. Berwick says he could easily have taken Dublin, and that the Jacobites were infinitely obliged to him for amusing himself at Carrickfergus. Londonderry and Newtown Butler had destroyed so many that for the moment it seemed almost impossible for James to get an army together. An artillery officer named Dean had deserted from Schomberg immediately after landing, and no doubt his account led Avaux to believe that the invaders were in overwhelming strength. He did not realise that the English regiments, who formed the bulk of Schomberg's army, consisted chiefly of raw recruits. Before the cavalry from England and the victorious Protestants under Kirke and Wolseley assembled it seemed better to take Carrickfergus, whose guns were an annoyance to the shipping.^[240]

The Governor of Carrickfergus was Charles MacCarthy More, who had never seen a shot fired, but Colonel Owen MacCarthy was the real chief. There were no regular works, no skilled gunners, and no surgeon, but the two regiments of Munster infantry fought well. Approaches were made and batteries with guns and mortars erected on the north, east and west sides, while English men-of-war annoyed the Castle from the sea. The bands played 'Lillibullero' to encourage the gunners. A breach was made near the north gate of the town, but the garrison drove cattle on to it. As the poor beasts fell they were piled up to make a breastwork, from behind which the Irish fired. When bullets failed, they stripped lead from the Castle roof. The bombardment of the town did little harm except to certain Protestant inhabitants, but powder ran short and, to save time, Schomberg was content on August 28 to let the garrison march out with the honours of war after a week's siege. The terms of capitulation were observed by the army, but the

Schomberg takes
Carrickfergus.

Protestant mob, who had suffered much from the garrison, were very violent, stripping the women and threatening the men. Schomberg himself, pistol in hand, exerted himself to protect them, otherwise the country people, says Story, ‘would certainly have used the poor Irish most severely, so angry were they one at another, though they live all in a country.’ Some of the Irish-Scots particularly would have fallen on them in spite of the capitulation. The only excuse for what happened was that the garrison were said to be carrying off private property contrary to the articles, and that the owners recognised it. Carrickfergus once taken, James no longer held anything in Ulster except Charlemont and the eastern portion of Cavan. ^[241]

Having thus secured his communications by sea, Schomberg encamped about Belfast, where he received a letter from Berwick addressed to him as Count, but he sent it back unopened because the title of Duke was withheld. He ordered the horses and train of artillery to come from Chester to Carlingford, and then marched in a leisurely way to guard that bay. At and round Dromore, where the Protestants were routed early in the year, not so much as a sheep or cow could be seen, and very few people. At Loughbrickland it was much the same, the reaped corn lying unbound on the ground under the rain. Here the Enniskillen horse joined the army, badly equipped but ready to advance against any odds if allowed. They said they would never thrive as long as they were under orders. When these enterprising horsemen appeared three miles from Newry, Berwick set the town on fire, destroying all except an old keep and five or six houses, and throwing one gun over the bridge into the river. He had only 1600 men with him, but made such a show that he was thought to be much stronger. Schomberg sent a letter to say that if the enemy burned any more towns it would be the worse for the prisoners at Enniskillen and Londonderry. He was answered that the terms granted at Carrickfergus had been infringed, and that until they were fulfilled King James would make reprisals. But Dundalk was not burned, and Schomberg occupied it unresisted. No attempt was made to obstruct him at the Moyry pass where there was so much fighting in Elizabeth’s time. There was, however, considerable difficulty in feeding the army, for the country north of Dundalk had been devastated and baggage animals were almost entirely wanting. The ships did not reach Carlingford for some days, and even when they came, artillery horses had

Desolation of the country.

Berwick evacuates Newry.

Want of provisions.

to be used, to the great disgust of the officers, in bringing provisions from thence. Two thousand of Lord Bellew's sheep were soon eaten, and for some time there was little or no bread. Story, the historian, had to dig potatoes for dinner, and he says many better men were glad to have that resource. In the meantime, James was steadily increasing his force, and Schomberg's army of about 14,000 was soon confronted by superior numbers. Many of the Irish were raw recruits, but the English were for the most part no better. They were ready to fight, but knew nothing of firearms, scarce one in four being able to discharge his matchlock, and they had no idea of looking after themselves. Being undisciplined, they could scarcely be got to work even for their own good, lying on the wet ground rather than build huts; both French and Dutch showed a marked superiority in these respects. [\[242\]](#)

When Schomberg landed he was, of course, unaware that James had no more than 2000 effective men available for the defence of Dublin. It was even proposed to fall back on Athlone at once. On the night of August 25 Melfort stole out of Dublin for fear of the Irish. He had long been aware of his own extreme unpopularity, and had sought to be relieved. James made a pretence of sending him on a mission to France. At the French Court his discomfiture was attributed to the failure of his intrigues to oust Tyrconnel. Under pressure from the Irish, James made Nagle secretary-at-war in his place—a very good lawyer but entirely ignorant of military matters. Rosen thought Dublin could not be saved, and advised a withdrawal to Athlone, but James could not neglect the wishes of Tyrconnel and of the Irish generally, who would leave him if he despaired. The removal of the hated minister worked miracles. Men were collected from all sides. Eight thousand pike-heads from France which had lain idle were at last fixed on staves. Many scythe-blades were used in the same way, and made a brilliant show when the hostile armies faced each other in the sunshine. Unserviceable muskets were repaired as far as possible, but this was not easy, for the armourers were all Protestants and took care not to do their work too well. On the day after Melfort's departure James went to Drogheda with 200 horse. There he issued a general order to officers to join their regiments. By proclamation, all who served under Schomberg, irrespective of nation or religion, were invited to desert him, officers being

Flight of Melfort.

James's
proclamation.

Schomberg refuses
battle.

maintained by their legitimate king in their old rank at least, and soldiers receiving a bounty of 40s. The army generally was encouraged by the promise of aid from France, and the ranks filled fast. No opposition was offered to James's progress through Louth, and by September 16 he had 26,000 men, nearly double Schomberg's force, encamped along the line of the Fane River, little more than three miles from Dundalk. Five days later he offered battle on a bright autumn morning, his right wing moving very near Dundalk, but Schomberg remained within his entrenchments, where he felt safe. He argued that a defeat would be disastrous to William, and that he could not risk it with a force much inferior in numbers and ill-provided with shoes and clothing. He believed that if his half-trained army were once broken he would never be able to get it together again. The Irish lords, who were anxious to get back to their homes and properties, favoured a bolder policy, and of course the London gossips blamed the old general without moving him. A sort of opposition was headed by Loftus of Rathfarnham, lately created Lord Lisburn, and Schomberg considered him a dangerous influence in the army. But even William thought more activity might have been shown. On the other hand, there were many among James's followers who wished to attack Dundalk, but James would not risk it, and a few days later drew back towards Ardee, where he began some fortifications and lay encamped till the end of October. By that time all the forage was consumed within a radius of four miles, most of the soldiers had neither shoes nor stockings and their clothing gave little protection against torrents of cold rain. James was as improvident as ever, and Nagle, though active and zealous, knew nothing about the business of an army.^[243]

The inducements held out had no effect on the fidelity of Schomberg's English and Dutch troops, but in the so-called Huguenot regiments many Roman Catholics had enlisted, and among them a serious conspiracy came to light. The ringleader, who was said to have instructions from the Jesuits, was Duplessis, formerly a captain in the French service, who had fled from justice for some act of violence. The plan, in case of a battle, was to open fire on the rear of Schomberg's army. Duplessis was broken on the wheel, and five others were hanged. About 200 Roman Catholics were found in the ranks, who were all sent to Carlingford, and thence to England. The real Huguenots were to be trusted, but by their overbearing manners they incurred the dislike of the English, who were jealous of their superior

Military conspiracy.

industry and efficiency. Even amongst British troops there was a tendency to desert and join King James. Sir John Lanier, who was not conciliatory, had much trouble with his men. ^[244]

Schomberg thought it might be possible to risk a battle when his army had been reinforced by a promised Danish contingent, who would be useless if they arrived after a defeat. Owing to French intrigues, and other diplomatic hindrances, these valuable allies did not reach England until November. They were about 5000 foot and 1000 horse, 'old disciplined soldiers, and very civil, and the Duke of Wirtemberg their general.' By that time Schomberg had retired from Dundalk, where the mortality had been frightful, and the state of things in the Belfast hospital was no better. Story, who was an eye-witness, and who did what he could to help the poor soldiers, has left notices of these scenes which, in their simple brevity, vie with the descriptions of Thucydides and Manzoni. They were quite demoralised, not caring much for the death of comrades, but resenting their burial because they could then no longer make shelters with the bodies. During the retreat, two men died at Newry among a number who cowered in a ruined stable. The survivors begged the chaplain to get them a fire, 'which I did, coming in about two hours after they had pulled in the two dead men to make seats of.' The cavalry suffered less than the infantry because they had cloaks. Further on in the winter, when thousands had already died, 18,000 great-coats were ordered in London. Regimental surgeons at 4s. 6d. a day with assistants at 2s. 6d. were not likely to be very efficient. Apothecaries received but 1s. The supply of medical stores was altogether inadequate, very little for wounds, and nothing at all for fever and dysentery, which were the real destroyers. The mortality was not quite so great among the officers, who were better clad and had more foresight than their men, but many died. With some exceptions, the English officers, many of whom drank hard, were not careful enough of those under them, and compared unfavourably with the professional foreign soldiers. Count Solms, in particular, was said to be a father to his men. The fever, originating in the camp, spread all over the north. Vessels lay off Belfast entirely filled with the dead, like the phantom ships in Campbell's poem, and the greatest mortality was among people who lived near the hospital there. At first the Irish army suffered less, for they escaped much of the rain which fell upon Dundalk. The superstitious attributed this to a judgment,

Sufferings of the
army at Dundalk,

and at Belfast.

but Story who was not superstitious, says ‘it was because we lay in a hollow at the bottom of the mountains, and they upon a high sound ground ... they were born in the country and were used to bad lying and feeding.’ Between the camp, the transport, and the hospital about half of Schomberg’s army perished. Before he retreated, the mortality among James’s men was nearly as great, and they confessed to a loss of 7000. Of Schomberg’s army, 1700 died at Dundalk, 800 on ship-board, and 3800 in the Belfast hospital, leaving only 7700 survivors. [\[245\]](#)

When military affairs go wrong, it is the common practice to seek for a scapegoat. Schomberg was disposed to blame the paymaster, William Harbord, whom he thought more attentive to his own perquisites than to the business of his place. He was superseded early in the following year, but was employed elsewhere. A French apothecary was put under arrest for not providing the necessary medicines. But both the general and the public agreed in condemning Commissary-General Shales, whose experience had been gained in victualling King James’s army during the Monmouth affair, and afterwards in the camp at Hounslow. He had lingered long in England after Schomberg took up his position at Dundalk, and it was scarcely denied that he had been guilty, but he said that if pressed he would put the saddle on the right horse. His conduct was the subject of a very hot debate in the House of Commons. ‘Whoever put this man into this trust,’ said Birch, ‘are friends to King James and not to King William,’ and that was the opinion of the majority who addressed the King for the removal of Shales and for the name of the person who recommended him. Somers suggested that His Majesty should be merely asked to dismiss the person who had given the advice; but the more violent course was adopted. William readily agreed to dismiss Shales and impound his papers, but said it was impossible for him to name his adviser. There is some reason to suppose that the statesman aimed at was Halifax. Shales was sent over to England, but not until after the dissolution, and nothing further seems to have been done. [\[246\]](#)

Mismanagement
and corruption.
Harbord and Shales.

The Jacobites, though their challenge was not a very determined one, claimed to have had the best of the campaign. But between the two main armies there was no serious fighting. Towards the end of September, Colonel Lloyd left Sligo

Sligo taken and
retaken.

with a small force of Enniskilleners, passed the Curlew hills, and defeated a much larger body under O'Kelly, killing many and taking many prisoners, besides a great quantity of cattle. So complete was the victory that he was able to occupy Boyle and Jamestown on the Shannon. Schomberg, who was glad to have any chance of encouraging his men, made much of this affair, paraded all the Enniskillen men in camp, and rode along their ranks with his head bare. Three rounds of musketry were fired, and also salutes from some of the big guns. The noise excited wonder and some alarm in the Irish camp, but James's men professed to be ignorant of any defeat. Sarsfield and Henry Luttrell were, however, sent to the West a few weeks later with a considerable force. Schomberg had not men enough to operate in that direction, and Lloyd was soon driven from his new conquests back into Sligo, and from thence to Ballyshannon. The fort commanding Sligo was gallantly defended for three days by St. Sauveur, a French captain, but provisions and water failed, and he was forced to surrender, marching out with arms and baggage. Sarsfield kept his word strictly, and as the garrison filed past he offered five guineas and a horse and arms to any soldier who would serve King James. One Huguenot accepted his offer, but carried the guineas, the horse, and the arms to Ballyshannon. All the rest declared that they would never fight for the 'papishes.' Sligo was the key of Connaught, and the whole province remained in James's hands until after the Boyne. [\[247\]](#)

James was inclined to cling to the position at Ardee with its unfinished fortifications, which Avaux had always said would be useless. But the ambassador prevailed upon him to remove his headquarters to Dublin, where at least the soldiers would not have to live in huts that did not keep out the rain. Scarcely any of them had shirts, one-half were without shoes and stockings, and one-third were bare-legged. The country was exhausted, and the magazines recommended by Avaux and Rosen had never been built. When the camp was evacuated, many dying men were left behind without food or care. In the hospital established between Ardee and Drogheda, there were 300 sick without provisions, wine, or beer. There was no doctor, no baker or cook, not even an attendant to bring a glass of water. At Drogheda there were over 200 more in a disused church. One-third had palliasses, the rest lay on the ground, with scarcely any food, and no drink but bad water. Dublin itself was given up to riot and dissipation during the

Sufferings of
James's army.

State of Dublin.

winter and early spring. The city, says Stevens, ‘seemed to be a seminary of vice, an academy of luxury, or rather a sink of corruption, and living emblem of Sodom.’ Other Jacobite accounts are much to the same effect. Among the worst drunkards was James’s son Henry, who enjoyed the empty title of Grand Prior. He was Stevens’s colonel, but scarcely ever fit for duty. Dining one day with some Irish officers he began to quarrel with them, and Berwick tried to smooth matters by drinking confusion to Melfort. The Grand Prior then declared that Melfort was his friend and an honest man, and ended by breaking his full glass on Lord Dungan’s nose. James was willing that his son should fight, but Dungan very wisely passed the matter over as a childish ebullition. [\[248\]](#)

King James did little to improve the state of affairs. He seldom made up his mind until it was too late, and would scarcely listen to those who sought to establish discipline. There were many French officers who could be of little use, for they had no direct charge of the soldiers, and received commissions as majors and colonels with no duties attached. Some of them indeed, in Boisseleau’s language, were good neither to boil nor to roast. There were also many French swashbucklers, who did nothing but increase the ill-feeling between their countrymen and the Irish. Tyrconnel, Avaux, and Nagle worked together to evolve order out of chaos. They suppressed over a hundred loose companies, and aimed at reducing the army to twenty battalions of 800 men, seven regiments of cavalry, and seven of dragoons. Louis made up his mind to send over six or seven thousand men as soon as he could spare them, receiving in exchange a like number of Irish for his own army. About the beginning of 1690 it was known that troops were going to Ireland and that Lauzun would command them. The decision to send a force had been come to early in the previous summer; the appointment of such a general was owing to Mary of Modena, to whom Louis paid frequent visits. La Hogue was made second in command. He did not like the work or the general, but prepared to obey. Bussy Rabutin said the exiled Queen was mad to raise a man of so little merit as Lauzun, for himself he would always have the meanest opinion of him, though he were given the Golden Fleece in addition to the Garter and the Holy Ghost. Louis XIV. realised that it was impossible to put Avaux and Lauzun together, as they were on the worst of terms. The ambassador and Rosen were to return with the Irish contingent

Incompetence of James.

Lauzun is sent to Ireland.

in the ships which brought over the French. Lauzun lingered in Paris as long as he decently could, but at last followed his men to Brest, whence he sailed on St. Patrick's Day 1690. [\[249\]](#)

James was at first unwilling to have the assistance of a French army, lest the control of the country should be taken out of his hands. But after less than six months' experience he despaired of doing anything without this dreaded help, and as France could not spare men until the continental campaign was finished, he thought of leaving Ireland. Louis warned him that to do so would be to give up all hope of ever regaining his crown. But jealousy of his great ally continued to animate him. He did not like Sarsfield, whom he had promoted very unwillingly; but when Avaux proposed to send him in charge of the Irish going to France, he said the ambassador wished to steal all his best officers. It was the same in Lord Kilmallock's case, and in that of every competent candidate. Louis refused to have any of the Hamiltons, and the command was given to Mountcashel, who was peculiarly fit for the work, and who, from the circumstances of his escape from Enniskillen, could not serve again in Ireland. Very few tolerable officers were to be had, and it was not easy to collect the stipulated quota of privates, but in the end five strong regiments were embarked, numbering 5300 men. Many of the officers were shopkeepers and artisans, and they could not be refused for fear of stopping the recruiting, but it was intended to change them in France. As may be imagined under these circumstances, the health and cleanliness of the rank and file were neglected, and many were sick on arriving at Brest. Louvois gave orders to have them cared for and to force their officers to cleanse them from the vermin by which they were devoured. Yet these same men served gloriously in many a continental battle. [\[250\]](#)

Irish troops sent to France.

Even before his failure at Londonderry, many at the French Court thought James's presence in Ireland did more harm than good. During the lull between the arrival of Lauzun and the expedition of William, Madame de Sévigné reported the general opinion that James had spoiled his own business there and earned all his misfortunes. With a greatly superior force he was just able to check Schomberg's advance, and yet he talked of a descent on England or Scotland. He hated Ireland, and lent a ready ear to secret emissaries from both his lost

French Opinion.

Advice of Louis XIV.

kingdoms, who assured him that William was most unpopular and that all were ready to welcome their rightful king. His Queen received many messages to the same effect, but for some months she did not think it would be safe for her husband to invade England with less than 20,000 men. About the time that the two armies were going into winter quarters, she thought it might be attempted with any force he could command and without French help, except at sea. He gave a list of the Irish troops which he proposed to send. Avaux, Louvois, Vauban, and Louis XIV. all impressed upon him that the business in hand was to make himself master of Ireland, and the latter said he would never risk his ships in St. George's Channel until he had command of the sea. The opportunity did not come till the battle of Beachy Head, but that was on the eve of the Boyne. Quite late in the winter, when James feared that Schomberg would be reinforced and that an English force might land in Munster, he began to talk again about going to England. Louis finally declared that this was not to be thought of until there was a party under arms strong enough to resist William's army, until there was a fortified port ready, garrisoned and victualled, and until all the conditions of his return were fully settled. Above all, he must wait until the passage was made safe by a naval victory. James was cautioned not to believe those who gave contrary advice and who were very probably secret agents of the Prince of Orange, but he went on talking of invading England even when William was making his final preparations for attacking him in Ireland. We know from Jacobite sources that the English Government was always well informed about what happened at St. Germain. [\[251\]](#)

Pikes could be made in Ireland, where ash-trees are plentiful, for 3s. 10d. apiece, but firearms and even swords had to be imported from France. Textile fabrics of all sorts ran short. In the winter of 1689 some armourers were at work in Dublin, but the supply of steel was insufficient. Wool was abundant, and cloth for uniforms could be produced. But the most important manufacture under James's rule was brass money. Needy governments have been tempted in all ages to tamper with the currency. Gallienus, and other late Roman emperors, carried the practice very far. Leather money was issued by Indian princes at a very early date, with the usual result. The credit of paper, which is the modern equivalent, depends upon the ability of the government to make good its nominal value. In the American Civil War, the notes of the seceding states became depreciated as the end drew near, and

Brass money.

when all was over were sold very cheap as curiosities. Three months after James's arrival in Dublin he issued a proclamation setting forth that money was scarce, and that he proposed to remedy this by coining sixpenny pieces out of brass or copper. These were made legal tender, except for the payment of duties on foreign commodities, of money held in trust, or of judgment debts already due. Interest accruing thereafter on mortgages, bills, bonds, or obligations might be satisfied with the new currency, and also the principal of debts 'where the debtor or his goods are or shall be taken in execution of the same.' Refusal to accept the new coin was to be punished with the utmost rigour of the law as contempt of the royal prerogative, but actual importers of foreign goods were excepted for the first payment. The King declared that the expedient was only temporary, and promised to pay the full value in gold or silver when the base coin should be cried down. A few days later an issue of shillings and half-crowns was proclaimed on the same terms. [\[252\]](#)

The full effect of these measures in destroying credit and paralysing trade was not felt at once. Within a month of the first proclamation Avaux reported that the copper coins were everywhere taken as ready money, and that this was a great relief to King James. The precious metals soon disappeared from circulation. Even copper ran short, and the ambassador applied to the French King for at least fifty tons. Steel to make dies was also wanted, and men who could use it; for the whole supply of money depended on a single Protestant engraver who might go away at any moment. When French troops were expected, it was decided, after much discussion, to pay them in French money, and this made matters worse. Prices rose to an undreamed-of height in anticipation of brass having to compete with gold and silver. Cannon were converted into coin, and the total issue ultimately reached a million or more. Every sort of rubbish was used to make up for the want of good brass or copper. Half-crowns were converted by re-stamping into crowns, and at last a guinea, which at the beginning of 1689 was worth 24s. Irish, became exchangeable for base metal to the nominal value of 5*l*. As in the old Greek tale, gold made its way in spite of brass. The Protestants hoarded it or smuggled it to England. Writing to the exiled Queen on December 12/22, Tyrconnel says, 'Not a farthing of silver or gold is now to be seen in this whole nation.' All attempts to arrest the depreciation of course failed. By one proclamation the Government undertook to receive

A depreciated
currency.

any quantity of currency by way of loan, to be repaid in specie when it was decried, interest being fixed at six per cent., and afterwards at ten; but the public liked not the security. All the exceptions made in favour of creditors were abrogated, and brass or pewter money was declared universal legal tender. To counterfeit it was high treason, and to refuse it contempt of the prerogative. Only a fortnight before the Boyne a guinea was officially rated at 38s., and no one was to give more on pain of death. When William gained possession of Dublin he lost no time in crying down the base money. The best of the crowns and half-crowns were made legal tender for one penny, and the smaller pieces in proportion.’^[253]

The military operations between Schomberg’s retirement from Dundalk and the landing of King William were not very important. Boisseleau made an attempt to surprise the ruined town of Newry, but his party was beaten back by the small garrison consisting chiefly of sick men. Some who could not stand managed to fire with their backs propped against the walls of the roofless houses, and others shot from the windows. Among the slain Irish was Magennis, who killed Tory Hamilton at Down in 1686. After this Schomberg sent regular reliefs, and Newry remained his outpost on the side of Belfast. The outpost on the side of Enniskillen was Belturbet, which Wolseley surprised early in December. More than two months later Berwick led an expedition to recapture it, and concentrated a considerable force at Cavan. Wolseley was well informed and determined on a night attack before the whole of the enemy arrived. He had with him about a thousand men, and the English accounts say that Berwick’s force along with the garrison was four times as large. This is probably an exaggeration, but the odds were certainly not less than two to one. Wolseley was delayed on the march, and did not reach Cavan till after daybreak. The surprise was not therefore complete, and the assailants were met by a smart fire. The Irish retired through the town to the fortified castle, and the Enniskilleners, who imagined their victory complete, began to plunder in all directions. A sally followed, and Wolseley had to set fire to the houses to get his men out. They fell back on the reserve, and he then advanced in good order. Berwick’s success was short-lived. His cavalry, as he tells us himself, fled for a distance of twelve miles, and he owns to a loss of 500. Wolseley lost thirty men and two officers. Among the slain was Brigadier Nugent, a brave

Fight at Newry.

Wolseley takes Belturbet

and Cavan.

soldier, much regretted by the Irish, and many officers were taken prisoners. Berwick had a horse shot under him. The victorious soldiers took 4000*l.* in brass money, but they threw it about the streets as not worth carrying away. The Castle was too strong to attack, and Wolseley marched back to Belturbet, which was not molested afterwards. Soon after this Sir John Lanier threatened Dundalk, but found it too strong to attack. A detachment took Bellew Castle, and 1500 cattle were driven off. Schomberg had garrisons at Clones, Monaghan, and Armagh, and his headquarters were at Lisburn. There were frequent skirmishes along the line between Lough Erne and Newry, but beyond it Charlemont was the only place holding out for King James. The rest of Ireland was in his power.^[254]

Avaux and Rosen were both recalled to please James and because neither of them could get on with Lauzun. Avaux did his best to hide his contempt for the King, but did not quite succeed. Rosen was scarcely civil to His Majesty and was moreover hated by every officer in the Irish army.

Melfort was generally hated on both sides of St. George's Channel. In Scotland, Dundee was thought to be his only friend, and was an extremely candid one. But he had Mary of Modena's ear, and he always worked against Avaux and against Tyrconnel as head of the French party in Ireland. In the three months preceding his journey to Fontainebleau at the beginning of October, Louis paid the exiled Queen no less than fourteen visits at St. Germain, and Melfort had influence in this way. Even when recalling the unpopular favourite, the King of France rebuked Avaux for being too hard on him. At Dublin Lord Dover tried to steer a middle course, realising Melfort's incompetence and working with Tyrconnel, though he hated his French tendencies. In July, when Londonderry was still unrelieved, James sent him on a mission to France, and Avaux evidently feared his action there while defying him to contradict anything he had said about the mismanagement of affairs in Ireland. Dover was commissioned to ask for 6000 French infantry, a considerable sum of money, a hundred thousand pounds of powder, a train of artillery with the necessary officers, and a vast quantity of small arms and other munitions of war. On reaching Versailles he spoke slightly of Tyrconnel and favourably of Melfort, with whom he was supposed to have some understanding, but court opinion was entirely with the former. Dover

Intrigues in France.
Melfort.

Mission of Dover.

pressed Louis hard to give all that James had asked for, but he was told that it was impossible to do this with English and Dutch fleets at sea, but that when December came the men should be sent and as much of the other things wanted as could be spared. The visits to St. Germain had done their work, and when they were resumed after the excursion to Fontainebleau, the exiled Queen was informed to her great joy that 6000 men were going, and that her favourite Lauzun was to command. This had been known for some time in official circles. That James and his wife should have been foolish enough to wish for such a general is surprising, but that Louis should have granted their prayer passes all understanding. Bussy Rabutin, expressing the general opinion, says Lauzun was one of the smallest of God's creatures, both in body and mind. Dover was sent back to Ireland with 2000 muskets and ammunition. He reached Kinsale safely in December, but the vessel containing arms was captured by the English off the Scillies. Avaux was afraid that Lauzun's intrigues would injure him at Versailles, but Louis reassured him on this point. As neither he nor Rosen could serve with the new general, they were ordered to return with the fleet that brought him to Ireland. The King of France showed that he valued his ambassador's services by inviting him to all the much valued, but very uncomfortable parties at Marly, and by sending him on a mission to Sweden. Rosen obtained an important cavalry command. [\[255\]](#)

Exactly twelve months to a day after King James Lauzun sailed from Brest and arrived in Cork harbour with over 7000 French troops. One regiment contained many Dutch Protestants, and had to be closely watched. The general had not yet got the ducal coronet which he had tried to stipulate for, but he wore the Garter and the Order of the Holy Ghost. Tyrconnel warned Avaux that there would not be horses for the officers nor carts to carry stores. It was no business of the retiring ambassador's and he could only warn Lord Dover, who was responsible for embarkation and quarters. When Avaux and Rosen were gone, Lauzun, who thought only of the King of France, had difficulties with Dover, who thought of James as King of England. Much merchandise had come with the fleet, and the Frenchman sought favourable terms for the traders, while the Englishman was chiefly anxious that his sovereign's rights should not be infringed. Lauzun thought, perhaps rightly, that under existing circumstances not one guinea would reach King James out of the duties thus insisted on, that Ireland should be regarded as a

Lauzun reaches Ireland.

besieged city, and that famine could only be averted by opening the ports. This reasoning prevailed, and three weeks after his landing Lauzun persuaded James to issue a proclamation remitting the customs on all foreign goods except silk and tobacco. But the difficulties about transport and storage continued. La Hoguette thought King James improvident, but it was Lauzun's cue to lay the whole blame upon Dover. Cork, he said, was a tomb very hard to get out of. As soon as Avaux and Rosen had embarked with the Irish regiments, he and Dover went to Dublin, but the French troops could not move for some time. Even the flour they brought with them had to be stored in a ruined building, and half of it was washed away or reduced to a condition in which the dough would not rise. Much of what remained was lost in the carriage to Dublin on horses' backs. ^[256]

On February 25, 1689, Tyrconnel, having heard all that Richard Hamilton could say, issued a proclamation for disarming Protestants. They had to carry their weapons to their parish churches on pain of being subjected to disorderly searches by the soldiery. Three thousand firearms besides bayonets, swords, and pikes were seized, and horses were taken also. Both before and after this, crowds went to England and others found their way to the North. Many fled from their country homes to Dublin in hopes of escaping thence or perhaps supposing that the law could protect them there. The established clergy got away in large numbers, Francis Marsh, Archbishop of Dublin, among them. He left Dean King authority to act as his commissary, and the chapters of St. Patrick's and Christ Church submitted in spiritual matters to Dopping, Bishop of Meath. Some other Dublin clergymen stood their ground, and with the help of the fugitives from country districts King managed to arrange for the duties of every parish in the diocese. When the Irish Parliament had been prorogued just before the relief of Londonderry and only a little before the landing of Schomberg, King was imprisoned in the Castle. No evidence was ever produced against him, and Sir Edward Herbert was for releasing him on bail, but Nugent was hostile, and he remained in confinement for more than four months. He was allowed to see his friends, and had many visitors, Roman Catholics as well as Protestants, who kept him well informed. The possible approach of Schomberg made his gaolers stricter, but in November Nagle said the invading army was mouldered to the Devil, and he saw no use in prisoners; in the following month King was released. Even when the

The Protestants
disarmed.

Dr. William King.

watch was pretty close he mentions a venison pasty for supper, and Father Harold the Franciscan, who helped to eat it. Lest his diary should fall into the hands of the enemy he always entered James as King and William as Prince of Orange. In June 1690 when the deliverer was at hand, a state of siege was established in Dublin, and there were some 3000 Protestants in custody. Lists were made of all male Protestants from 16 to 80, any arms that still remained among them were ordered to be given up on pain of death, none were to leave their houses from ten at night till five in the morning, and it was a capital offence cognisable by court-martial for more than five of them to assemble anywhere or at any time. [\[257\]](#)

Vast numbers of Protestants had been leaving Ireland ever since the death of Charles II., but many remained because they could not get away or because they had no means elsewhere. Many placemen stood their ground, for patents could not be voided without some process of law, and the depositaries of official knowledge might reasonably hope to be found indispensable. Among them was the accountant-general, James Bonnell, who took up the active duties of his office in 1685. Clarendon, while acknowledging him to be ‘ingenious,’ did not think him strong enough for the work, but there were trained clerks, and he soon learned the business. He had travelled, and saw that Versailles was sucking the life-blood of France as clearly as Arthur Young did more than a century later. He was a remarkably good and religious man, and his Anglican orthodoxy is certified by many bishops, and by the fact that his familiar friend was the Rev. John Strype. Bonnell was, nevertheless, willing to meet the Presbyterians half-way on the question of orders. He spent his salary and his spare time in relieving the wants of others during the time of Tyrconnel and James II. The doctrine of passive obedience weighed heavily with him, but he ‘could not but secretly wish success to King William,’ and accepted the result gladly. When Bishop Cartwright, of whom historians have little good to say, died in Dublin in April 1689, Bonnell gives him credit for fidelity to the Church of England, and a sort of disinterestedness—‘he was buried decently from the Bishop of Meath’s house, and at his charge, for he had no money.’ On July 3, 1690, Bonnell saw his fellow-Protestants ‘congratulate and embrace one another as they met, like persons alive from the dead.’ Later on, when Aughrim had been won and Limerick taken, Bonnell wished to have a parliamentary union as in Cromwell’s time and to make all English laws

Protestants in
Dublin. James
Bonnell.

since Henry VII. applicable to Ireland. By these means the English and Protestant interests might be preserved.^[258]

As the principal traders, the skilled artisans and the officials were mostly Protestants, and as they were the chief sufferers the tradition of the Brass Money has naturally been preserved among their descendants. The crowd of fugitives from country visitors added to the confusion. Men who had been rich were reduced to penury, and the holders of power and influence were either in exile or reduced to the condition of a conquered population. As in 1641 the established clergy and laymen with property guaranteed by the Act of Settlement were often surprised at what happened. They found the conquered people friendly enough in common life, and often failed to see that they were perfectly certain to retake their own when they could, and in doing so often to take what never belonged to them. Trinity College, Dublin, though the fellows had escaped personal attainder, was not spared. Under Tyrconnel no rents were paid and but one meal a day was given in the hall, ‘and that a dinner, because the supper is the more expensive by reason of coals, &c.’ But fourpence a day was allowed to each fellow for kitchen and buttery. All arms and horses were taken away. When James landed, Vice-provost Acton and his three remaining colleagues waited on him and were promised protection and encouragement. But six months later the college was turned into a barrack and prison for Protestants. The government grant to the scholars was stopped. The chapel plate—all that was left of a rich store—was sent to the custom-house by Luttrell, but preserved by a friendly commissioner of revenue. The chapel itself was re-consecrated and Mass said there, but later it was made a magazine. All the woodwork in the college was destroyed, first by way of searching for arms, and then no doubt for fuel, of which there was a famine in Dublin. Dr. Michael Moore, a distinguished scholar and a man of high character, was made Provost by James, but soon had to resign as a punishment for having preached against the Jesuits. Another priest, Tieve MacCarthy, had charge of the library, and is honourably distinguished for having preserved the books and manuscripts. Provost Huntingdon and the fellows returned immediately after the Boyne.^[259]

Refugees in Dublin.

Case of Trinity College.

FOOTNOTES:

[239] Schomberg's letters to William, calendared in State Papers, *Domestic*, July 21 to August 3. Journal in Kazner's *Schomberg*, ii. 282. Hamilton to Melville in *Leven and Melville Papers*, August 1, 1689.

[240] Journal in Kazner's *Schomberg*. Story's *Impartial History*. Avaux to Louvois, September 10/20. Schomberg to King William, August 16, State Papers, *Domestic*. Dean's information is in Clarke's *Life of James*, Original Mem., ii. 374. Berwick's *Memoirs*. Contemporary letter in Benn's *History of Belfast*, p. 171.

[241] Story's *Impartial History*, pp. 7-10. Schomberg to King William, August 27, State Papers, *Domestic*. *Light to the Blind*. The articles of capitulation are in Story's *Continuation* and in McSkimmin's *History of Carrickfergus*, part i. Letter printed in Benn's *History of Belfast*, p. 171. Nihill's Journal in Macpherson's *Original Papers*, i. 222. Letter of September 2 in *Le Fleming Papers*.

[242] Story's *Impartial History*, pp. 10-16, 38—'A regiment of Dutch were so well hutted that not above eleven of them died the whole campaign.' Schomberg letters of September 20 and 21 and January 9, 1689-90, in State Papers, *Domestic*, and Dalrymple. He says the English were 'si délicatement élevés,' that in all countries he had seen them die off at the beginning of a campaign. Early in the journal, in Kazner appx. no. 85, it is said that the English nation 'veut assez être conduite à son sens et n'aime que peu la subordination quoiqu'au reste très belliqueuse,' and under September 9 the writer says the English soldiers liked no law but 'leurs fantaisies.' Writing on October 8, 1689, Schomberg says his levies were as raw as those of King James, but the latter twice as numerous, *Leven and Melville Papers*. General Douglas's opinion of the English soldiers is in Evelyn's *Diary*, February 19, 1689-90: they were very brave and very badly treated. Dumont de Bostaquet, whose *Mémoires inédits* were published in 1864, was with Schomberg in September 1689, and describes the Enniskilleners as very good troops, but 'trop picoreurs.'

[243] Story's *Impartial Hist.*, pp. 17-28. *Light to the Blind*. Avaux to Louis XIV., August 20/30, August 28/September 7, September 10/20, September 17/27. In the last it is mentioned that Rosen visited the outposts at midnight and found all sentries and vedettes asleep, 'sans en excepter pas un.' Same to same, October 21/31. Nihill's journal in Macpherson, i. 222. *Mémoires du Marquis de Sourches*, September 19/29. Schomberg to William III., September 15, 20, 27, October 3, 6, State Papers, *Domestic*; and Dalrymple. Lord Lisburn to Shrewsbury, September 25, *ib.* A Jacobite account is in *A relation of what most remarkably happened*, 1689. On October 28 Dangeau notes that Avaux had told the French King that James's army was in a good state, twenty-eight battalions of 600 men, sixteen squadrons of cavalry and ten of dragoons. He offered battle in two lines, leaving a reserve under Sutherland. Hamilton was at the centre of the first line with the King, Tyrconnel on the right, Rosen and Galway on the left. Berwick was at the centre of the second line with Sarsfield on the right. A diagram sent by Avaux is in Dangeau's *Diary*, iii. 23.

[244] Schomberg to William III., September 20-27 and November 14, State Papers, *Domestic*. Caillemote to Shrewsbury, September 23, *ib.* Story's *Impartial History*, p. 25. Letter in *Le Fleming Papers*, October 24. Dumont, who had fled from Normandy to Holland to escape the dragonnades, throws light on

the sincerity of official conversions in France: he had received absolution from a conscientious priest at Rouen, who told him to take his time and not to go to church till he had reflected, 'ce que j'ai exécuté fort religieusement, n'ayant jamais entendu de messe ni participé à leurs mystères.' Luttrell, i. 613.

[245] Story's *Impartial History*. Schomberg's letters from September to December 1689, in State Papers, *Domestic*. W. Harbord to William III., October 23, *ib.* Newsletter of November 28, *ib.* Luttrell's *Diary*, October and November, particularly November 15, where it is noted that letters from Ireland report a mortality of at least 10,000 in the Jacobite army. Evelyn's *Diary*, February 19, 1689-90. Mr. Waller's evidence in Grey's *Debates*, November 26. During the terrible days of December 1812, after Napoleon deserted his army, Segur testifies to the extreme demoralisation of the survivors: 'Tels que les sauvages, les plus forts dépouillaient les plus faibles: ils accouraient autour des mourants, souvent ils n'attendaient pas leurs derniers soupirs.' Dumont lay in the Dundalk hospital for four weeks with enteric fever and actually recovered.

[246] Schomberg's letters, *ut sup.* Story's *Impartial History*, vol. i. *Commons Journal*, November 26, December 2 and 16. Grey's *Debates*, November 26. A defence of Shales is attempted in Walton's *Hist. of the British Army*, p. 74. Foxcroft's *Halifax*, ii. 82. On February 19, 1689-90, Evelyn met General Douglas at dinner, who mentioned 'the exceeding neglect of the English soldiers, suffering severely for want of clothes and necessaries this winter, exceedingly magnifying their courage and bravery during all their hardships.'

[247] Story's *Impartial History*, pp. 25, 34. Avaux's narrative sent to Seignelay on November 24/December 6, 1689. Luttrell's *Diary*, October 3, November 15. State Papers, *Domestic*, November 28. Clarke's *Life of James II.*, ii. 383.

[248] Stevens, p. 72. *Light to the Blind*, p. 90. *Macariæ Excidium*, p. 38. Avaux to Louis XIV., November 14/24 1689, and February 1/11, 1689-90.

[249] Louis XIV. to Avaux, May 24 and November 16, 1689. Avaux to Louis XIV., November 24. Dangeau, January 6, 1689-90. De Sourches, November 19, February 20. Bussy Rabutin to Madame de Sévigné, March 23, 1689.

[250] Avaux to Louvois, October 11/21, 1689, and April 2/12, 1690. Louvois to Buridal, May 11, 1690, in Rousset, iv. 383. Schomberg considered that MacCarthy had broken his parole, but he was acquitted by a Court Martial in France. A sergeant whom he had bribed was executed. The regiments that sailed were those of MacCarthy himself, Butler, O'Brien, Fielding, and Dillon.

[251] Avaux to Louis XIV., November 14/24 and January 15/25 1689-90. Louis XIV. to Avaux, December 25/January 4. De Sourches, April 18, 1689. Madame de Sévigné, May 31, 1690. Lauzun to Louvois, May 10/20, in Ranke's appendix. Letter of Rizzini in Haile's *Mary of Modena*, p. 261. Louis privately cautioned James against trusting Albeville, who was known to be corrupt.

[252] Clarendon to Rochester, February 8, 1685-6. Proclamations of June 18 and 27, 1689. On September 19 Dr. King notes in his diary that 'the great gun which lay in Castle yard was taken away in order to be melted and coined.' Avaux to Louis XIV., December 12/22. On December 26/January 5 Louvois wrote to Avaux: 'Comme le roi a veu par vos lettres que le Roy d'Angleterre craignait de manquer de cuivre pour faire de la monnoye; Sa Majesté a donné ordre que l'on mist sur le bastiment qui portera cette lettre une piece de canon du calibre de

deux qui est eventée, de laquelle ceux qui travaillent à la monnoye du Roy d'Angleterre pourront se servir pour continuer à faire de la monnoye, en attendant que les soixante et quinze milliers de cuivre que le Roy envoie soient arrivez.'

[253] Proclamations of February 4 and 28, March 28, April 21, June 9 and 15, 1690; and July 10 (William III.). Avaux to Louis XIV., July 5/15, 1689; to Louvois, June 30/July 10; to Louis XIV., August 20/30 and September 10/20; to Louvois, November 1/11, November 26/December 6, 1689, and January 22/February 1, 1689-90. *Light to the Blind*. King's *State of the Protestants*, chap. iii. section 11. *Transactions of the Late King James in Ireland*, licensed July 7, 1690, p. 57. *Character of the Protestants of Ireland*, licensed November 13, 1689. This last well-written tract has been attributed to Halifax, but neither Miss Foxcroft nor Sir W. Raleigh mention it. Story's *Impartial History*, l. 93. Lauzun to Louvois, June 16/26, in Ranke's appendix. King makes the total base coinage 965,375*l*. Story learned from treasury officials that 'not much above' 1,100,000*l*. had been coined. The *True and Perfect Journal*, 1690, states the amount at about two millions. Tyrconnel's letter is in Haile's *Mary of Modena*, p. 258.

[254] Captain Kennedy to the Scotch Council, December 12, in *Leven and Melville Papers*. Story's *Impartial History*, November to February, 1689-90. The author of *Light to the Blind* says the attack on Newry was a mere reconnaissance and that there was no repulse. Schomberg says Boisseleau was there, *State Papers, Domestic*, December 6. As to the action at Cavan, besides the above and Berwick's memoirs, there are accounts in *State Papers, Domestic*, particularly Schomberg's letter, February 19, and that of Gustavus Hamilton, ambiguously calendared under March 21, 1689 (Addenda, p. 571).

[255] Melfort's unpopularity is sufficiently shown by Dundee's letters to him, June 27 and 28, Napier, iii. 599. Notices in Dangeau and De Sourches. Avaux's letters, particularly that of July 16/26, enclosing James's requirements, Louvois to Avaux, September 7/17. Madame de Sévigné marvelled greatly at Lauzun's 'second volume.' The reference to her letters and to Bussy Rabutin's concerning him are collected in the Grands Ecrivains edition of La Bruyère, i. 335, 535, where he is characterised under the name of Straton. Madame de Caylus in her memoirs notes the good luck of Lauzun in being in England at the critical time, gaining honour and glory for helping William by assisting the flight of James.

[256] Lauzun to Seignelay, April 6/16, in appendix to Ranke's History and to Louvois, *ib*. June 16. Proclamation of March 25/April 4. It was known at the French Court that Lauzun was 'extrêmement ulcéré avec raison' against Dover, De Sourches, April 24/May 4. Compare the extracts in Miss Sandars's *Lauzun. True and Perfect Journal*, June 16.

[257] Simon Luttrell's orders as Governor of Dublin, May 3 and June 18, 1690, in appendix to King's *State of the Protestants*, nos. 30 and 31. Besides King's principal book on this subject we have his autobiography, the original Latin printed in *English Historical Review*, vol. xiii., an English version in King's *A great Archbishop of Dublin*, and his diary edited by Dr. Lawlor in the *Irish Journal of Archaeology*, 1903.

[258] Archdeacon Hamilton's *Life of Bonnell*, 3rd edition, 1707, particularly pp. 60, 273. Bonnell to Strype, August 20, 1684, January 21, and April 17, 1689, and August 5, 1690, in *English Historical Review*, xix. 122, 299. *Clarendon and*

Rochester Corr., i. 245, 266. Cartwright was buried in Christ Church with a full choral service, all the principal people in Dublin attending, *Athenæ Oxonienses*, p. 831. Bonnell to Harty, *Portland Papers*, November 3, 1691.

[259] College register for 1689-90 printed in Stubbs's *Hist. of the University of Dublin*, pp. 127-133. Harris's *Ware*, ii. 288. King, iii. 15.

CHAPTER LIV

WILLIAM III. IN IRELAND, 1690. THE BOYNE

Lauzun and Dover were in Dublin together early in April, and continued to quarrel there. The Englishman made light of the French contingent, saying that Louis was plainly deceiving King James, who would be well advised to make terms with the Prince of Orange. Uncle and nephew might then join their forces to those of the Augsburg allies and attack the tyrant of Europe. The old courtier proposed to go to William and make terms for himself, but James could not countenance this, though willing to give him a pass for Flanders, since he could not venture into France. In the end he was allowed to live and die unmolested in England. As for Lauzun, he had no hopes of successfully resisting the Prince of Orange, and proposed to burn Dublin and destroy the country entirely while retreating from point to point, but James thought this policy too cruel. In the meantime the French general exerted himself in the work of arming and organising the Irish, and in this he made considerable progress. He could not speak or understand English, and his attendance at the Council was waste of time, so he proposed to do business with the King and Tyrconnel. The three accordingly met daily, and Lauzun succeeded in making friends with the Lord Lieutenant, who had been cautioned by Avaux not to trust him lest he should usurp all power, seeing that he had already ruined his career by vaingloriousness, and was not likely to be much changed for the better. But he assured the French minister that he was a chastened man and worked with a single eye to the interest and wishes of his own King.^[260]

The French
contingent. Dover
and Lauzun.

While Lauzun and Tyrconnel tried to make up for lost time amid the dissipations of Dublin, Schomberg was growing stronger every day by the arrival of fresh troops from England and Scotland, including 6000 Danish veterans under the Duke of Würtemberg. Long before William left London the old general saw that a stand would probably be made at the Boyne, and he was anxious to take Charlemont, so that no enemy should be left in the rear. It was James's last stronghold in Ulster, and Mountjoy had chosen the position well. The castle, which stood on the right or Armagh bank of the Blackwater, a few miles above Lough Neagh, had been fortified in modern fashion, and was well armed and manned. The town or village had been levelled, and the fort was nearly surrounded by bogs and fields subject to flooding. It was considered unassailable, except by placing batteries on the left bank of the river, and Schomberg, who reconnoitred the place, thought it too strong to attack with the means then at his command. In March Colonel La Caillemote brought up a small force in boats to stop the garrison from making incursions into Tyrone. He set fire to the bridge, and drove the Irish out of two small outworks. Paul Rapin, the historian, was wounded in this skirmish, and it is much to be regretted that we have no account by him. As his force increased, Schomberg massed troops all round Charlemont. Nevertheless, at the beginning of May Colonel Macmahon, who held Castleblaney, managed to elude the post at Armagh and brought 500 men, well armed but badly clothed, with provisions and ammunition, to the blockaded fort. Having got within the lines, they were quite unable to break out again, and had to encamp miserably between the inner and outer works, for the governor would not have them inside. This relief only hastened the end, for men could not carry much food through bogs and hills, and there were so many additional mouths. At last starvation-point was reached, and Schomberg was glad to have the place surrendered without a formal siege. The garrison marched out with all the honours of war, and made their way to Dundalk. As they passed, it was noticed that many were chewing pieces of hide with the hair on. They left nineteen pieces of ordnance behind them, but nothing eatable. Teague O'Regan himself was a grotesque figure, with worn-out clothes and draggled wig. He had been drinking brandy—and it naturally affected the head of a half-starved man. His charger, a vicious old screw, would scarcely

Siege of
Charlemont.

Attempt to relieve
it.

Fall of Charlemont.
Teague O'Regan.

allow him to salute Schomberg, who remarked that Teague's horse was very mad and himself very drunk. But William met no braver enemy, and he afterwards defended Sligo with the same courage and tenacity. The victorious general ordered bread to be distributed among the vanquished. About 800 marched out, with 200 women and children. When Schomberg was told that the Irish would not stay in garrison without their wives and mistresses, he said there was more love than policy in it. Story himself saw papers in the late governor's room which showed that he had information as to what was going on outside. James very rightly knighted O'Regan as soon as he reached Dublin. ^[261]

It was known at the beginning of 1690 that King William had resolved to go to Ireland in person. There was strong opposition on the part of the Whigs, who argued that there were too many active Jacobites in England for the sovereign to leave it safely. Better to lose Ireland than England, said some. Nor would he be safe himself, for his courage led him into danger, in which he furnished a strong contrast to the King of France. He was reminded of Richard II.'s fate and of his own insecure position. 'When any one at meat,' said Delamere, 'has unnecessarily risen from his chair to reach over to the other side of the table, if by design or chance his stool has been removed, who, suspecting no such thing, his breech has found the ground instead of his chair—there has been more in the company who have been pleased with it, than concerned for him.' An address against the Irish voyage was contemplated in both Houses, and might have passed had not William prorogued and afterwards dissolved the Convention Parliament. The general election was favourable to him, and preparations began in earnest. The Commons did not give all that the King wished, but they provided money enough for the immediate purpose. Harbord was superseded for a time, and the duties which Shales had neglected were committed to others. Both Houses adjourned on May 23, and did not meet again for business until after William's return from Ireland. The Government was left in Mary's hands with a special council of four Whigs and five Tories. ^[262]

King William and Ireland.

The King, accompanied by Portland, set out from London on June 4, and slept that night at Northampton. On Sunday, the 8th, he attended service in Chester Cathedral, and heard a sermon from Dr. Stratford, who had succeeded

William reaches Ireland.

Cartwright in that see. On the 12th he took ship at Hoylake and arrived with 300 sail at Carrickfergus on the 14th. An eye-witness says that the total number of vessels assembled was 700, and that Belfast Lough looked like a wood. William mounted his horse as soon as possible and rode amid cheering crowds through the town on his way to Belfast. At Whitehouse, Schomberg met him with his coach, and they drove together; a second carriage was sent by the General to bring up some of the grandees who had landed. At the north gate of the town the illustrious visitor was met by the Corporation in their robes, accompanied by Dr. Walker and a dozen other clergymen. All the way to the castle there were shouts of 'God save King William,' 'God save our Protestant King.' At night the streets and all the country round blazed with bonfires. They were seen, and the signal guns heard by one of Lauzun's spies, who brought him the news two days later. Next day being Sunday, William heard Dr. Royse preach in the Cathedral on 'Who through faith subdued kingdoms,' and on the Monday received an address from the clergy, with Walker at their head. Good order was kept, and necessities were cheap, for the ships brought vast quantities of provisions, and even of hay and straw. 'We fear no more Dundalk wants,' says one letter, and the army was thoroughly well provided; but of money there was no great plenty. William spent four days at Belfast, reviewing the troops and making arrangements. Sick of inaction and not fully paid, officers and soldiers longed for active service, and were not disappointed. On the 19th William dined with Schomberg at Lisburn, having previously issued a proclamation against plundering or taking goods without payment, and on the next day he was at Hillsborough, spurring those in authority under him to fresh efforts. He had not, he said, come to let the grass grow under his feet. Lest there should be any doubt about the meaning of his proclamation, he here issued a special order against pressing horses belonging to the country people without permission under the sign manual, which was afterwards refused even for ambulance purposes. A soldier transgressing this order was to run the gauntlet thrice through the whole regiment. A few months before Schomberg had rather made light of seizing the little country horses. On the 22nd William was at Loughbrickland, and by the 27th the whole army, mustering about 36,000 men, encamped a little to the south of Dundalk. During the whole campaign the King and Prince George of Denmark lived

He marches
towards Dublin.

He Maintains
discipline.

each in a wooden hut designed by Sir Christopher Wren, and capable of being carried on two wagons. When William inspected his troops he was not satisfied with seeing them march past from a comfortable eminence, but went in among the ranks, regardless of heat, wind, and clouds of dust. When a fuss was made about the wine for his table, he said he would drink water rather than that the men should suffer. He was deficient in courtly graces, but he was the kind of king whom soldiers will follow cheerfully against any odds. [\[263\]](#)

Before making a general advance, William took care to have the line of march thoroughly reconnoitred. At a boggy spot about half-way between Newry and Dundalk, where there was a broken bridge, a party of 200 foot and dragoons fell into an ambushade on the day that the King reached Loughbrickland. Lauzun takes credit for having laid the snare, and he had reason to know the place, for his horse had fallen under him there only two days before. The morning was foggy and the surprise complete. Captain Farlow, who led the infantry detachment, was taken prisoner with several others, and Colonel Dempsy, who commanded the Irish, was mortally wounded. There was a sharp skirmish, and the English were decidedly worsted, but not pursued. From Farlow James had the first certain news of William's landing. [\[264\]](#)

Skirmish near
Newry, June 22.

Two days after King William's landing, King James left Dublin to join his army near Dundalk. They were encamped about Roche Castle, and the prisoners taken with Captain Farlow reported that William was on the road to Newry with 50,000 men, which was an exaggeration. On the day after the skirmish there was a general retreat to the old position at Ardee, where entrenchments had been left unfinished the year before. James's main object in advancing had been to exhaust the country through which his rival would have to march, but William, with the sea open, was in no want of supplies. The guns of the English fleet could be heard by both armies. The difficult ground about Moyry and Ravensdale had been the scene of much fighting in Elizabethan times, and had been slightly fortified by James, who was blamed for not trying to stop the invader there; but Berwick says that, with the force at his disposal, William could easily have turned the position from the Armagh side. Dundalk itself, though well fortified, was judged to be untenable, and

James leaves
Dublin, June 16.

He falls back
without fighting.

Lauzun evacuated it five days before the final struggle. He abstained from burning the soldiers' huts because some of last year's infection still hung about them and might do the enemy more harm than want of shelter at midsummer. But both Dundalk and Ardee were thoroughly sacked by the Irish. On June 28, twelve days after leaving Dublin, James recrossed the Boyne, half of his army marching through Drogheda and the other half over the ford at Oldbridge, where entrenchments were begun but not finished, owing to the want of labour. Lord Iveagh was Governor of Drogheda, with 1300 men, and had he been an enterprising man he might have done much to cover the Jacobite right. The left wing, extending up the river, was evidently open to a flank attack, but James rightly says that the country afforded no better position. Sarsfield's division, which had been detached to guard against a possible attack on Athlone, joined the main body on June 26, their leader having satisfied himself that all the troops about Cavan and Belturbet had drawn towards Armagh, so as to fall in with William's line of march. [\[265\]](#)

On June 27 William's army was encamped a little to the south of Dundalk. He intended to attack the enemy at Ardee, but a party of cavalry found that position already abandoned. On the 30th the whole army marched towards the Boyne, the King himself diverging a little to the left so as to view Drogheda and the course of the river from the hill at Tullyesker. Schomberg was with him, and also Prince George, the Duke of Ormonde, Sidney, Solms, and Scravenmore. The latter, who had seen many armies, remarked that James's was a small one, but William said there might be more in the town and behind the hills. A deserter said they were about 25,000, and the Williamite chaplain admits that his King had some 36,000. The line of march was through a deep depression, where a modern road runs to the east of Townley Hall, which is still known, and will always be known, as King William's Glen. Thomas Bellingham, an officer who had connections in the country, took the opportunity of paying Mr. Townley a visit. About noon the head of the column came out into the open, and took up ground facing Oldbridge on the other side of the Boyne. William sat down to eat and rest a little higher up. A party of five officers, of whom Berwick, Tyrconnel, and Sarsfield were three, were observed riding slowly along the opposite bank, and shortly afterwards two field guns were quietly brought up and fired as soon as

William's march to the Boyne.

He is wounded, June 30.

William was in the saddle again. A six-pound shot ricocheted and struck him on the right shoulder, tearing his coat and breaking the skin. He merely remarked in Dutch that it was near enough. Thomas Coningsby, afterwards an earl, applied a handkerchief to the bleeding wound, and William made light of it, retiring to a tent to have it dressed and then remounting. He remained on horseback for three hours without changing his coat, and laughed at one Dr. Sangrado who proposed to bleed him. The enemy, says Captain Parker, 'concluded he was killed, and this news soon flew to Dublin and from thence to Paris, where they had public rejoicings for it.' About three o'clock his artillery came up, and both shot and shells from small mortars were sent across the river, doing some mischief, but without altering the situation. At sunset there was a council of war, and Schomberg advised that a strong force should be sent up the river at midnight, so that James's army might be taken in flank and rear and cut off from Dublin. William, however, who was supported by Solms and other Dutch officers, decided upon a frontal attack, somewhat to the veteran's disgust. Many of the Enniskillen officers knew all the fords, and with their help the order for next day's battle was arranged. At twelve o'clock William rode by torchlight through the whole army. He was a man who kept his own counsel, but his unwillingness to take Schomberg's advice and perhaps gain a victory as complete as Ulm or Sedan may fairly be ascribed to his dread of catching James. As at Rochester, a means of escape was provided, and experience had shown that it would not be neglected. The necessity of sparing Mary's feelings and the political danger of a captive king might well prevail against purely military considerations. [\[266\]](#)

Whatever William may have said or thought at the evening council, he did not entirely reject the idea of a flank movement. Very early in the morning of July 1 he despatched Meinhart Schomberg with a strong body of horse and foot and five guns to cross at the bridge of Slane. They marched by the straight road, leaving the bend of the river far to their left. Sir Neill O'Neill with his dragoons were sent to guard this pass, and the bridge itself had been broken down, but there had been several very hot days, and the river, not being affected by the tide above Oldbridge, was fordable in many places. Schomberg's men crossed with ease, partly near Slane and partly at Rossnaree lower down, the dragoons were beaten back, and O'Neill himself mortally wounded. This was at about half-past nine. Warned by the

Battle of the Boyne,
July 1.

trumpets and drums of Schomberg's force, Lauzun had already begun to extend to his left, and when he saw what had happened developed this movement gradually in order to secure the means of retreat. Seeing that Schomberg's party was in danger, William sent Lieut.-General Douglas with a much larger force of infantry to his aid. A bog prevented the hostile wings from coming to close quarters, but Lauzun gained Duleek, which commanded the Dublin road. In the meantime the passage at Oldbridge, where Richard Hamilton commanded with eight battalions, had been forced, and soon after noon most of the Irish infantry were in full flight, nor is this to be wondered at, for less than a week before, many of them had not learned how to fire their pieces. The baggage had been sent off at daybreak; the tents and knapsacks became the prey of the victors. Stevens saw the hills covered with fugitives running past like sheep before a wolf. 'The shame of our regiment,' he says, 'only afflicted me before, but now all the horror of a routed army, just before so vigorous and desirous of battle, and broke without scarce a stroke of the enemy, so perplexed my soul that I envied the few dead.'

[\[267\]](#)

Schomberg was over the Boyne before the left and centre of William's army began to move, but at a quarter past ten the Blue Dutch Guards, eight or ten deep, entered the water opposite the unfinished works at Oldbridge, their drums beating until they reached the bank. They were up to their waists, and crossed under a heavy but ineffectual fire, reserving their own until they reached dry land. The first to climb the bank was a lieutenant who formed up the leading files, and then crouched down for them to shoot over his head. The Irish foot abandoned the first ditch, but their cavalry, under Berwick's command, charged the Dutch furiously before they were fully in order. They stood firm against this and several other attacks, gradually pressing the Irish infantry backwards, and in the meantime the French and Enniskillen foot passed the river a little farther down, several English and Danish regiments still lower. The tide was rising, so that some of the men were up to their arm-pits, and on the extreme left, horses had to swim. Some of the Danish infantry carried their guns over their heads, but others fired steadily as they waded over. William was looking on, and said he had never seen anything better done. They were at once attacked by the Irish cavalry, and there was hard fighting for half an hour. A regiment of French Huguenots was broken by a charge, and Colonel La Cailemotte was carried

Victory of William.

off the field mortally wounded, but still encouraging his men, 'A la gloire, mes enfants, à la gloire!' Seeing his friends in difficulties, Schomberg crossed himself, reminding them that their persecutors were before them. He fell, shot through the neck, and with sabre wounds on the head. Dr. Walker, the still unconsecrated Bishop of Derry, was killed soon afterwards, and his brother clergyman Story, offers as an excuse for his presence, that he was going to look at the wounded general. Walker, says the chaplain, was stripped at once, 'for the Scots-Irish that followed our camp were got through already, and took off most of the plunder.' When the news of Schomberg's death was brought to William, he laid his finger on his lips, and lost no time in passing the river himself with the left wing of his cavalry, Dutch and Dane chiefly, with Wolseley's Enniskilleners and Cutts's English regiment. His right arm was stiff from yesterday's wound, and he carried a stick only. He was unable to bear his cuirass, and when he drew his sword later, had to hold it in his left hand. He crossed where the little Drybridge stream enters the Boyne, but his horse stuck fast in the boggy ground beyond the river, and he had to dismount before it could be extricated. He was at once engaged in the thickest of the fight, and a bullet which struck the heel of his boot killed a horse close by. He put himself at the head of the Enniskillen cavalry, saying, 'What will you do for me?' Owing possibly to a mistake, the Enniskilleners were driven back for a short distance, and then William led on his steady Dutch. The Enniskilleners soon recovered themselves, and the Irish foot were pressed backwards, but the cavalry for the most part fought bravely, making repeated and often successful charges, but being gradually overborne by the disciplined troops opposed to them. Lord Dungan was killed early in the fight, and his dragoons would do nothing afterwards. Lord Clare's yellow dragoons also ran away, and some of them never stopped until they got far beyond the Shannon. The broken troops rode right through the retreating foot as if they had been enemies. But Tyrconnel's and Parker's regiments of horse performed prodigies of valour. The latter was wounded, and Sheldon, who commanded the former corps, had two horses killed under him. Berwick's was shot, and rolled over his rider. Hamilton, who headed the last charge, was wounded and taken prisoner near Platin House, which stands two miles back from the river. William said he was very glad to see him, and asked if the cavalry would make any more fight. 'Upon my honour,' said the prisoner, 'I believe they will.' 'Your honour!' said the King; and

that was his only revenge. Hamilton was sent to the Tower as a prisoner of war, and was exchanged for Lord Mountjoy in the spring of 1692. Neither of them saw Ireland again, and Mountjoy, whom William made Master of the Ordnance, was killed at Steenkirk soon after his release from the Bastille. He had had enough of passive obedience. There was no more fighting, but the Irish cavalry rallied to protect the retreat with the unbroken French contingent. The flying infantry threw away their arms, and even their boots, and not many were overtaken, though little quarter was given. The loss of the victors was about one-third as great. The pursuit continued as far as Naul, when the light began to fail. Drogheda surrendered the next day, the garrison marching out without arms, rather than undergo the horrors of an assault. The terms offered were pretty much the same as Cromwell's, forty years before, and the memories attaching to his siege were not favourable to resistance. ^[268]

On the fatal morning King James posted himself near the church at Donore, whence he could see both armies. He took no part in the battle, and as appears from his own account was chiefly concerned lest his retreat should be cut off. As soon as the danger seemed imminent he drew off to the left and joined Lauzun, who strongly advised him to take care of himself. He needed but little pressing, and with four troops of horse and four of dragoons he passed Duleek first and led the way back to Dublin. The French kept their ranks and prevented the victors from pressing too hard upon the routed army. Berwick reached Duleek about the same time as William himself, and had to gallop hard to avoid being intercepted. Lauzun and Tyrconnel kept together. The loss in James's army was perhaps 1500, that in William's about 500. To compare the conduct of the two Kings, it need only be said that one led the advance and the other the retreat. ^[269]

Flight of James.

From the military point of view, the battle of the Boyne is not interesting, and French writers dismiss it as a skirmish, in which Marshal Schomberg happened to be killed. With a much superior force, both in numbers and quality, William forced the passage of a small river which was fordable in many places. The importance of the action lies in its international character, and its political effect was enormous in checking the overweening ambition of France. There have been other occasions on which very small battles have decided

Importance of the battle.

very great causes. At Valmy the forces engaged were greater than at the Boyne, but the number of casualties was less than one-half, and yet the effect is felt to this day. At Calatafimi the killed and wounded altogether were only about 400, but that fight went far to change the map of Europe. The great French victory at Fleurus and the great English disaster off Beachy Head were both neutralised on the banks of the Boyne. Lauzun's despatch is dated sixteen days after the battle, and it was a fortnight later that the full news reached Louis XIV. But King James had arrived at Brest, with the tidings of his own defeat, laying all the blame on the Irish, and giving faint praise even to the cavalry who had fought so well. Soon after this it was known that the Prince of Orange had been hit, and confidently reported that he was dead. Without any encouragement from the authorities, the Parisians abandoned themselves to rejoicing. How much the French feared William, said Bolingbroke, 'appeared in the extravagant and indecent joy they expressed on a false report of his death.' The citizens dined in the streets, casks of wine were broached, there were bonfires and fireworks everywhere. Effigies of William were cast on dunghills, thrown into the Seine, or broken on the wheel. First President Harlay and Advocate-General Talon had to drink the King's health, and Bossuet, though he protested that he was on his way to say mass, was forced to do the same. Police officers sent to suppress the unauthorised rejoicings had to drink with the rest. Even in the inner court at Versailles the guards could hardly prevent the people from lighting a fire. The excitement spread to remote villages, and was not allayed for weeks. Even after the middle of August the Abbé de Choisy made a bet with La Fontaine that the Prince was dead, staking the price of the poet's works against the books themselves. The report reached Modena, but with the puzzling addition that James was at St. Germain. Then the truth came in English and Dutch papers. At Rome, too, the event was long uncertain. Melfort at first heard that the Prince of Orange was killed, and he enlarged on King James's opportunity. This was the time to take the power of the purse from Parliament, to repeal the Habeas Corpus Act, and to abolish trial by jury in cases of treason. If an amnesty was found necessary, the list of exceptions should be as long as possible, and not one of those excepted should ever be pardoned on any consideration. Alexander VIII., who thought more of enriching his family than of rescuing England, was horrified that *Te Deums* should be sung in Austrian cathedrals for William's victory; but he had no money to spare, and could not venture to go against

the general sense of European sovereigns. Even the French, though they would have welcomed the death of their great antagonist, had very little sympathy with his dethroned rival. ^[270]

In the morning of July 1 Dublin was full of rumours that a battle was imminent. The gates were closely guarded, and Protestants kept their houses. Every hour brought a fresh report. The French were in Dublin Bay. An express from Waterford had announced that the Isle of Wight was in French hands, and the victors going to Dover. The English right wing on the Boyne had been completely routed. But at five in the afternoon stragglers arrived on tired horses, who said the Irish had the worst, and an hour later others declared that the rout was complete. 'Till one that night all the entries of the town were filled with dusty, wounded, and tired soldiers and carriages perpetually coming in.' A little before ten King James arrived with 200 horse in disorder, and was received by Lady Tyrconnel at the Castle gate. He was followed two hours later by the bulk of the Irish cavalry in good order, 'with kettledrums, hautboys, and trumpets.' Next morning came the French with all their guns and many of the Irish foot. But the King was already gone. He saw some of his Council—Herbert, Fitton, the Duke of Powis, Price, Nagle, and Albeville being among them—and asked whether the news of the battle of Fleurus was not a reason for going to France. He seems to have thought that Louis would seize the opportunity of invading England while William was away. His advisers urged him to run no risk of capture, since the victorious enemy might appear in the morning. At midnight a message came from Berwick to say that he had rallied some of the fugitives and asking for cavalry. His father sent a few troops that had not been in the battle, but the gathering soon dispersed. Tyrconnel sent his chaplain to advise His Majesty to lose no time, and to send all the troops to meet him and Lauzun at Leixlip. La Hogue and other superior officers appeared in Dublin without their men, which was explained by a mistaken order having been given to meet Lauzun at Dunboyne. At five in the morning, after a few hours' rest, James sent for the Mayor and made a speech to him and others present. Everything, he said, was against him. In England he had an army that would have fought if they had not proved false; in Ireland his soldiers were loyal enough, but would not stand by him. He had now to seek safety for himself, and advised his hearers to do the same. They were not to wreak present vengeance on the Protestants, nor to injure a city in which he still had an

State of Dublin.

interest. He then took horse for Bray, ordering Simon Luttrell to evacuate the town and to do no mischief. La Hoguette and the other French officers asked for horses, but he had none to give them, and they were left to follow as best they could. Brigadier Wauchop was posted near the north end of Dublin to turn the stream of fugitives towards Limerick. Luttrell was the last man to leave his post, and by sunset the Castle was in sole charge of Captain Farlow, who had been a close prisoner since the skirmish near Ravensdale.^[271]

Louvois had strictly charged Lauzun not to attempt any dazzling exploit, but to devote himself entirely to gain time and to prolong the war. From the slavish way in which he addressed the great minister, belittling himself and claiming no merit but in strict obedience, it is evident that Lauzun distrusted his own powers. He had no belief in the cause for which he was fighting, and his main objects were to get King James safely back to his wife and to restore to King Louis his money, his guns, and as many of his soldiers as possible. Above all things he longed to get out of Ireland himself. The glory of defending Limerick was left to Boisseleau, the credit of keeping the French troops together after the retreat from the Boyne chiefly belongs to the Swiss Colonel Zurlauben and to a captain named La Pujade, of whom little else seems to be known. John and Anthony Hamilton as well as Tyrconnel accompanied Lauzun in the retreat to Limerick. La Hoguette and several other field officers seemed only anxious to get to the sea. During the battle the only French officer of rank killed was the Marquis d'Hoquincourt, who commanded an Irish battalion. Finding that his men would not stand, he charged alone and fell covered with wounds. Lauzun certainly gained no glory, and was quite unfit for the task in hand, but he maintained order during the retreat on the day of the Boyne, and the rear was then the post of honour. Long imprisonment may have shaken his nerves, but it seems hard to call him a coward, as Rousset has done, and he is more fairly to be judged by what he wrote to Louvois from Galway shortly before sailing for France:—‘The bad state of affairs and my small capacity will cause me to make many mistakes, but I beg you to excuse me to His Majesty; and at least I can assure you that death would be sweeter than what I suffer here.’^[272]

King James had been most careful to provide for his own escape. More than a week before the battle he sent Sir Patrick Trant to prepare a ship at

Waterford, and on the day after it he rode hard in that direction. Leaving Dublin about five in the morning, he soon reached Bray with two troops, which he left behind with orders to defend the bridge until twelve. No man pursued, and he travelled unmolested through the Wicklow highlands to Arklow, where there was a halt of two hours. Soon after leaving this place he was overtaken by La Hoguette and his three comrades, who had succeeded in mounting themselves, and who declared that they had been followed by troops. This was certainly not the case, but James was easily persuaded to mend his pace. At Enniscorthy he entered the house of Francis Randall, a Quaker, who observed that 'the dejected monarch' had been riding with his pistols at full cock. The man of peace set this right, prevented his men from seizing the King in hope of reward, and provided fresh horses. James reached Duncannon Fort about sunrise. La Hoguette and his friends went to Passage, higher up the Suir, where they found a ship of St. Malo mounting twenty-eight guns. The captain, who may have been in treaty with Trant, dropped down with the tide and was out of the river before night. King James's Tower at Duncannon still preserves the memory of his flight. When safe at sea the Frenchmen wished him to go straight to Brest, but he preferred Kinsale, which was reached in the morning. There he found ten out of the twenty-five French frigates, provided at Mary of Modena's request to secure her husband's retreat and, if possible, to stop William's supplies. The rest of the squadron did not reach Ireland. Before sailing finally James wrote to Tyrconnel giving him power to continue the struggle or to make terms at his discretion, and leaving him 50,000 pistoles, which was all the money he had. He reached Brest on the ninth day after the Boyne, bringing the first news of his own overthrow to France. Louis XIV. was as kind and hospitable as ever, but took care not to trust his guest with another army. [\[273\]](#)

The ground over which the Jacobite army retreated was so difficult that no very close pursuit was made. Some scattered horsemen hung about Lauzun's flanks next morning, and added to the confusion of the beaten army, but without making any real impression. The glen at Naul formed an obstacle not to be attempted when daylight was failing. William went back to Duleek and spent the night in his carriage, the army bivouacking round him. The night was cold, though the day had been hot, and the soldiers made fires out of four or five thousand pikes and muskets which the fugitives had thrown away so as to run faster. Next morning, parties were

detached to bring the tents and baggage from beyond the Boyne. Suspense reigned in Dublin during the day after the battle. Simon Luttrell had intended to carry off some of the chief Protestant inhabitants as hostages, but was prevented by rumours of a force landing near the town. Most of the well-to-do Roman Catholics followed him southwards, but their poorer co-religionists were soon in as bad a position and subjected to as great fear as the Protestants had been. They were protected by Captain Robert Fitzgerald, uncle of the Earl of Kildare, who lived in England. But some outrages were committed by the Galway Protestants, who had been long prisoners. Fitzgerald had been turned out of the army by Tyrconnel, deprived of his troop, for which he had paid 2000*l.*, and imprisoned for some time. He now formed a guard of the most respectable Protestants, who prevented plunder, the hope of which had drawn some of King James's men back into the town. A French soldier was caught trying to burn the thatch in Kevin Street, but was released after two days because he had acted under the orders of his major. Dublin narrowly escaped the fate of the Palatinate. Fitzgerald occupied the Castle immediately after Luttrell had left it, and in the morning a committee of nine, of which Dr. King was one, took charge of the city, and appointed him Governor until the King's pleasure should be known. At noon he sent a letter to William, asking for help lest the enemy should return and injure the town. During the day the rescued Protestants ran about saluting and embracing each other, and blessing God for their wonderful deliverance, as if they had risen from the dead, and when at eight in the evening a troop of dragoons came in with an officer to take charge of stores, they hugged the horses and almost pulled the men off in their joy. When the King himself arrived, the rejoicings were not so great as for that first troop. Early on July 4, a large body of cavalry came in accompanied by the young Duke of Ormonde as a volunteer, and the Blue Dutch Guards followed later. William encamped at Finglas, and on Sunday, July 6, rode into Dublin to attend service at St. Patrick's and hear a sermon from Dr. King. He returned to camp afterwards, and next day issued a declaration offering protection for person and property to 'all poor labourers, common soldiers, country farmers, ploughmen, and colliers,' and inhabitants of towns who had fled, provided they returned home by August 1, surrendered their arms, and gave their names for registration. Tenants were to pay their rents to Protestant landlords, but in other cases to hold the money until further orders. All disorder was to be sternly repressed, but 'the desperate

leaders of the present rebellion,' who had called in the French, oppressed the Protestants, and rejected pardon offered a year before—these were to be left to the event of war unless they showed themselves fully penitent. William would have given better terms to the hostile landowners, but the men who had been included in the great Act of Attainder were in no forgiving mood, and he had to yield. When the time allowed had expired, this declaration was found to have had little effect, and the period of grace was extended to August 25, somewhat better conditions being given to the tenants and labourers. But for men of superior rank and quality, and for holders of office, no course was left but to surrender and betake themselves to some town where they might be allowed subsistence if destitute. Foreigners who came into the King's quarters, might have passports to go home to their respective countries. ^[274]

The reign of the Stuarts ended with the second flight of James II., though the military reduction of Ireland was deferred for more than a year. Owing chiefly to Sarsfield's exploit, William abandoned the siege of Limerick, the defence of which forms a kind of counterpart to that of Londonderry. The international character of the contest is emphasised by the fact that in the decisive battle of Aughrim, the English army was commanded by a Dutchman, and the Irish by a Frenchman. Later on no Jacobite insurrection took place in Ireland, but vast numbers of Irishmen entered the French service and worked against England though they were unable to do anything for their own country. Sarsfield fell at Landen. At Paris in 1715, said Bolingbroke, 'care and hope sat on every busy Irish face. Those who could write and read had letters to show, and those who had not arrived to this pitch of erudition had their secrets to whisper. No sex was excluded from this ministry. Fanny Oglethorpe kept her corner in it, and Olive Trant was the great wheel of our machine.' But Ireland herself was quiet during the ill-starred movements in Scotland and in the North of England. In 1745 again nothing happened in Ireland, though the refugees had much to do with the events of that year, and were largely instrumental in the English defeat at Fontenoy. Of the seven men of Moidart who stood by Charles Edward on the Inverness-shire shore, at least two were Irish, one being a son of Tyrconnel's secretary, Thomas Sheridan.

Final ruin of the
Stuart cause.

Sir Charles Wogan, who escaped from Newgate in 1715 and served both France and Spain, secured Maria Clementina for the Pretender. He told Swift that Irish soldiers abroad ‘had always the post of honour allowed them, where it was mixed with danger, and lived in perpetual fire,’ but that their reward was systematically scanty. Promises made to them were not kept. But they continued to fight bravely, to plot, and to hope against hope. During the dreary period of the penal laws the exiles damaged England without benefiting Ireland, but many of them or their children achieved success abroad. The names of O'Donnell, Macmahon, and Wall have a place in continental history.

FOOTNOTES:

[260] Lauzun to Seignelay, April 6/16 and July 16/26, in Ranke's appendix.

[261] There is a full account of the Charlemont episode in Story's *Impartial Account*, and an accurate contemporary plan in the *Continuation*. Compare Schomberg's letters in State Papers, *Domestic*, December 26, March (p. 534), May 5, 11, 12, and 19.

[262] Delamere to Carmarthen, n.d., but calendared in State Papers, *Domestic*, under 1689, p. 381. *Grey's Debates*, ix. 512, x. 2, 150. ‘Is the King so cock-sure of his army?’ was one of Delamere's questions.

[263] Story's *Impartial Hist.* June 1690, and *Continuation*, chap. ii. Proclamations of June 19 and 24. General order of June 20 among the *Clarke MSS.* Colonel Culter's application, endorsed, ‘Not granted,’ July 10, *ib.* Luttrell's *Diary*, ii. 12, and throughout the first half of the year. Contemporary letters in Benn's *Hist. of Belfast*, p. 180-182. Lauzun to Louvois, June 16/26. The *Clarke MSS.* are rich in details as to the preparations.

[264] Story's *Impartial Hist.*, p. 68. Lauzun to Louvois, June 23/July 3, in Ranke's appendix. *Light to the Blind*, p. 96.

[265] Lauzun to Louvois, June 21/July 1 to June 26/July 4, and to Seignelay, July 16/26. Clarke's *Life of James II.*, original memoirs, ii. 391-393. *Light to the Blind*, p. 97. Lauzun quite understood that William was well supplied by sea, but the author of *Macariæ Excidium* imagined that he was dependent on the resources of Ulster. Stevens's *Journal*, June 23-29. Two Scotch ensigns who deserted to William said it had been resolved to defend the Moyry pass. *Diary of Dean Davies*, June 22.

[266] Story's *Impartial Hist.*, pp. 70-8, and *Continuation*, pp. 19-22. Bellingham's *Diary*, June 26-30. Parker's *Memoirs*, p. 21. General Douglas's letter of July 7 to his brother, Queensberry, printed in Napier's *Dundee*, appx. vi., has the following as to William's wound: ‘He said nothing, only three words in Dutch, *T'hoobt niet naeder*—that is, it needs not to come nearer.’ See Portland to Melville, July 4/14, in *Leven and Melville Papers*. Dean Davies's *Diary*, June

30. Stevens's *Journal*, June 27-July 1. William said to Burnet (ii. 46): 'that the going against King James in person was hard upon him, since it would be a vast trouble both to himself and to the Queen if he should be either killed or taken prisoner.' In a note to this Dartmouth says William gave orders to the fleet to take James at sea and convey him to Holland, but the real order to Herbert was to do so if he 'took any vessel in which the late King should happen to be.' The original letter in Nottingham's hand is printed in Ellis's *Original Letters*, 2nd series, iv., 186. A captive king in Holland would be much less dangerous than in England.

[267] In his letter of July 7 Douglas, whose authority on this point seems superior to all others', says the original detachment under Meinhard Schomberg was 4000 horse and 3000 foot, and that he was sent to support him with 12,000 foot. Lauzun says: 'Le petit jour venu, nous les vîmes marcher en colonnes cavalerie et infanterie de l'autre côté de la rivière droit à Slaine sans que le camp qui était devant nous branlât ou fît aucun mouvement.' *Light to the Blind* says Slane bridge was broken down. G. Bonnavet, whose journal is *Sloane MS.* 1033, was with Douglas's wing.

[268] Payen de la Foulereuse stood close to William while the Danes were crossing and heard him praise them: he wrote his letter on a drum next day. In his letter above cited Douglas says, 'The enemy's horse fought wonderfully bravely as ever men could do.' Payen's letter to his sovereign Christian V. of Denmark, July 2, 1690, is in *Notes and Queries*, July 1877.

[269] 'A saying of Sarsfield's deserves to be remembered; for it was much talked of all Europe over. He asked some of the English officers if they had not come to a better opinion of the Irish by their behaviour during this war; and whereas they said it was much the same that it had always been; Sarsfield answered: As low as we now are, change but kings with us, and we will fight it over again with you.' This was after the capitulation of Limerick.—Burnet, ii. 81. Lauzun to Seignelay, July 16/26. Clarke's *Life of James*, ii. 397, Original Memoirs. Berwick.

[270] Dangeau, July 23/August 2 and following days. De Sourches, July 17/27. Abbé de Choisy to Bussy-Rabutin, August 13/23, in the latter's *Correspondence*, vol. vi. Duke of Modena's letters, July and August, in *Stuart Papers*, i. Melfort's letters, August and September, in Ellis's *Original Letters*, 2nd series, vol. iv. Writing to Madame de Sévigné on May 21/31, less than six weeks before the Boyne, Bussy-Rabutin says: 'Les affaires d'Irlande vont assez bien; il n'y a que le roi Jacques qui gêne tout, et qui montre tous les jours par sa conduite qu'il mérite ses disgrâces.' Writing to Louvois on July 15/25, a fortnight after the battle, when James was back in France, Luxembourg says (in Rousset, iv. 423): 'Ceux qui aiment sa gloire ont bien à déplorer le personnage qu'il a fait.' The Marquis de la Faro says the rejoicings for William's supposed death were the greatest possible compliment to him. He had fought like a lion, while James had lost a throne without fighting, 'malgré la ferocité des Anglais.' The author of *Light to the Blind* repeatedly calls the Boyne a skirmish and a paltry combat.

[271] *Life of James*, ii. 391, Original Memoirs. *True and Perfect Journal*. Lauzun to Seignelay and to Louvois in Ranke's appendix.

[272] In his éloge prefixed to Berwick's memoirs, Montesquieu says the English rightly regarded this war as all-important, and the French merely as 'd'affection

particulière et de bienséance. Les Anglais qui ne voulaient point avoir de guerre civile chez eux, assomèrent l'Irlande; il paroît même que les officiers français qu'on y envoya pensèrent comme eux qui les envoyaient: ils n'eurent que deux choses dans la tête, d'arriver, de se battre et de s'en retourner. Le temps a fait voir que les Anglais avaient mieux pensé que nous.' Macaulay sought in vain for the full account of the battle which Lauzun must have sent to Louvois. His despatch has been printed by Ranke, vi. 117, but it is to Seignelay and not to Louvois, and written from Limerick, July 16/26.

[273] *True and Perfect Journal*. Clarke's *Life of James II.*, ii. 403, 406. According to De Sourches (May 20, 1690), a letter from Dublin seldom reached Paris under thirteen days; nine days was a 'diligence surprenante.' Both he and Dangeau complain that the truth about Ireland was hard to come by. A pair of gold sleeve-links are preserved at Castleboro' by Lord Carew, whose ancestor is said to have met and assisted James at Aughnacoppal bridge, and to have received this keepsake from him. See Mahan's *Sea-power*, chap. iv. Randall's *Narrative*.

[274] Letter of Payen de la Foulereuse from Duleek, July 2. King William's declarations of July 7 and August 1, 1690. *True and Perfect Journal*. *The Full and True Account of the late Revolution in Dublin*, dated August 15 and licensed September 15, is attributed in Harris's *Ware* to Robert Fitzgerald, but was more probably written by another from facts furnished by him. The letter to William included in it, dated Dublin Castle, Thursday, August 3, 8 A.M., is signed by Lords Ross and Longford, the Bishops of Limerick and Meath, Dr. King, Fitzgerald himself, and three others. Eight of the eleven signed Fitzgerald's commission as Governor.

CHAPTER LV

SOCIAL IRELAND FROM RESTORATION TO REVOLUTION

Macaulay thought that under the Protectorate Ireland was probably a more agreeable residence for the higher classes, as compared with England, than at any time before or since. This may be true if we understand by the higher classes the men whose property was granted or confirmed by the Settlement after the Civil War. People bought and sold with confidence and with little fear of coming change. Nor was this confidence altogether misplaced, for we have seen that Charles II., however unwillingly, was forced to leave most of the Protestant settlers in possession. A certain number of Roman Catholic royalists were restored more or less completely, but they were not enough to disturb the balance of power, and in the Parliament of 1661 the House of Commons was entirely composed of Protestants. The position of the re-established Church was unassailable, and the Presbyterians, though troublesome to bishops, could not seriously disturb social relations. The destruction of property during the war had been great, but from 1652 onwards much was done to repair the damage. Ireland is studded with ruined castles, but there are many modern houses where the thick old walls have been utilised, and the process of conversion may be readily traced.

After the Civil War.

Civil war seeming unlikely to recur, it was natural that country houses should be built or improved. One of the finest was erected soon after the Restoration by the third Lord Conway at Portmore on the lake of the same name, not far from his town of Lisburn. His predecessor's library had been burned by the rebels at Brookhill, which belonged to Sir George Rawdon. Rawdon, who acted as

Country houses.
Portmore.

Conway's agent and married his sister, built Moira on his own account. Portmore had every attraction that a great mansion could possess. A park of 2000 acres, well stocked with deer, magnificent oaks, a rabbit warren, a decoy, a glen specially planted for woodcock, flocks and herds, hawks and hounds, racehorses, vast stables, gardens, orchards, and fisheries are mentioned; and Rawdon is to be praised for providing the Lisburn district with the best roads in Ireland. Jeremy Taylor was brought over by Conway under the Protectorate and became Bishop of Down. He in turn brought over George Rust, who became Bishop of Dromore. Neither Conway nor Rawdon loved the Presbyterians, but Lady Conway became a Quaker, and her husband thought her circle would be too dull for Rawdon's daughter, a lively girl who married Lord Granard's son. Valentine Greatrakes, who was brought from the county of Waterford to treat Lady Conway's headaches, was unsuccessful in her case, but successful in many others. He practised a kind of massage, which, of course, did not suit every patient, and Archbishop Boyle was inclined to call him an impostor; but Robert Boyle thought there was something in the matter. Greatrakes, who was not excessively modest, had more followers in England than in Ireland. Conway in later life was much involved in Court intrigues, but Rawdon remained generally in Ireland and continued his civilising work. [\[275\]](#)

The Boyle family were great builders, both in England and Ireland. In 1661 Orrery founded Charleville, abolishing what he called 'the heathenish name of Rathgogan' in honour of his master. This great house had an even shorter life than Portmore. Orrery had a patent for fortifying it and mounting eighteen guns, and he sought a similar privilege for Castlemartyr. Essex refused this request, and succeeded in getting the clause in the patent surrendered. He feared that other great men might arm in the same way, and then combine against the King like the barons of England in former times. Castlemartyr, with or without guns, made a faint attempt at resisting Tyrconnel in 1688. In 1690, when the owner of Charleville was a child and absent, the Duke of Berwick, having dined in the house, ordered it to be fired and stood by to see it consumed. According to Evelyn, it was a stately mansion and had cost 40,000*l*. [\[276\]](#)

Charleville.

Such time as Ormonde could spare from his duties in London as Lord Steward, or in Dublin as Viceroy, he

Kilkenny Castle.

spent at Kilkenny Castle, which had escaped during the Civil War, and enjoyed a holiday there as only a hard worker can enjoy one. Hawking was his favourite sport. 'I am gotten hither,' he wrote in August 1667, 'and am yet in the happiest calm you can imagine. Fine weather, great store of partridge, a cast of merlins, and no business; and this may hold for a week.' Strafford found partridge so scarce about Dublin that he had to take to hawking blackbirds; and the garrison were great poachers then and later. Ormonde had gone fox-hunting with Castlehaven in the midst of the Civil War, and afterwards had a pack of beagles at Kilkenny who were so well trained that they always turned homewards at the sound of the castle dinner-bell. He kept bloodstock, importing both Barbs and Arabs, but was not very successful as a breeder, though he took some pleasure in the reflection that Irish horse-flesh generally would be improved. There is, indeed, no pursuit in which money is more easily lost or less easily got, unless it is made the chief business of life. We have inventories of the plate, furniture, and tapestry in Kilkenny Castle at the end of Charles II.'s reign. There were also many pictures, including three or four portraits of Strafford, and a library of nearly a thousand volumes. The catalogue contains Shakespeare, Ben Jonson, and many lesser dramatists; Milton and Taylor, Hobbes and Stillingfleet, are well represented. There are many Latin and French books, and a few Italian. Inventories are also extant of Ormonde's property in Dublin Castle when he was Lord Lieutenant in 1679. The clerks and upper servants were well lodged, but eight boy scullions had only four beds between them, and 'two scavengers in the dark kitchen' probably had no beds at all. [\[277\]](#)

As long as Charles II. lived, life in town and country was easy, except for occasional mischief done by Tories. During his short reign as Viceroy, Clarendon saw much company in Dublin Castle, but it is to be noted that ladies and gentlemen do not appear to have mixed at meals. He was accused of not taking enough notice of the King's birthday, though he gave a state dinner to twenty persons at his own table, 'besides the ladies who were with my wife and at other tables in the house.' On New Year's Day the Lord Mayor and aldermen dined with him and played cards afterwards. When the Lord Lieutenant withdrew, the men all went to the cellar, and after that it was perhaps as well that they did not have to join the ladies. Three days later all the citizens' wives dined with Lady Clarendon,

Dublin Castle.

A viceregal progress.

and his Excellency had to take refuge with the Lord Chancellor. There was, however, no objection to ladies attending the Curragh races, but Clarendon's wife did not care to do so in company with Lady Dorchester. He found the racecourse much larger, and with much finer turf than Newmarket Heath. Later in the year he made a progress in the south. Lady Clarendon was left at Kilkenny Castle, Ormonde about the same time making some stay at Cornbury. At Waterford the Lord Lieutenant was very well received publicly, Lords Tyrone and Galway attending him, but not one of the many considerable Roman Catholics making any sign. He dined with Henry Boyle at Castlemartyr, and at Lismore; where Lord Burlington had given orders that he should be sumptuously entertained, he 'destroyed some of my lord's salmon.' He visited Kinsale and Bandon, and at Cork Major-General MacCarthy brought Bishop Creagh and four Roman Catholic merchants with him, but not ten of his Church paid their respects all the way from Kilkenny. 'Our people are mad,' said one priest at Cork; 'our clergy have forbidden gentlemen to appear.' At Limerick things were a little, but only a little, better, the Irish citizens showing a determination to keep apart from the English. The see of Limerick was vacant, but Dr. Brennan, the Roman Catholic Archbishop of Cashel, was very civil. At Thomastown in Tipperary, Clarendon stayed with Ormonde's half-brother, Captain George Matthew. 'This,' he said, 'is a very fine place, and the most improved of any situation I have seen since I came into this kingdom, especially considering that it is but fifteen years since he first sat down upon it, when there was not a house upon it.' Clarendon admired the rich country about Clonmel, 'but all pasture and employed in sheep walks, and feeding black cattle.' Here and elsewhere he notes the want of population, which the exodus of Protestant settlers did not improve. ^[278]

Macaulay's description of Tunbridge Wells in the days when fine gentlemen, sick of the airs of actresses and maids of honour, refreshed themselves by flirting with the farmers' daughters who brought them cream and butter, had a sort of counterpart in Ireland. Near the West Gate of Wexford is a mineral well which was brought into fashion by Dr. Patrick Dun, a Scotch physician, whose name is still well remembered in Dublin. While prescribing syrup of buckthorn as an addition to the waters, he did not forbid good claret if it was to be had in the town. The spa was nasty enough, but one grave visitor thought the 'fantastical ladies, and fops, and lampoons in Wexford

An Irish Tunbridge Wells.

doggerel' were as bad. The dietary in vogue was dry roast mutton and chicken without sauce, and the conversation turned, as at other watering-places, on the visitors' ailments. Good lodgings were scarce, but Lord Chancellor Fitton, Accountant-General Bonnell, at least two bishops, and Dr. William King, afterwards the famous Archbishop, were among those who underwent the cure. [\[279\]](#)

In general it may be said that people who were well-to-do lived in Ireland much as their equals did in England, and from the abundance of food money went farther in the poorer country. But in 1672, when the Restoration Settlement was well established, the great mass of the people lived miserably enough. In the absence of proper statistics, we must depend on Petty's estimates, which in most important points are sustained by a cloud of witnesses, though his figures, by the nature of the case, may be inexact. He gives the total population as 1,100,000. Of the inhabited houses 16,000 had more than one chimney, 24,000 had only one, leaving 160,000 without any. Three-fourths of the land and five-sixths of the houses belonged to British Protestants, and 'three-fourths of the native Irish lived in a brutish, nasty condition, as in cabins, with neither chimney, door, stairs, nor window, fed chiefly upon milk and potatoes.' These cabins, which he elsewhere calls sties, were not in all worth more than 50,000*l*. Fifteen years later, Petty believed that the population had increased to 1,300,000. The 160,000 chimneyless cabins which sheltered the mass of the people could not be kept free from vermin or animals, and all the eggs 'laid or kept' in them were musty. Some cottars might have afforded a chimney, but preferred the warmth of the smoke. With or without one, they had to pay hearth-money. Even in a small farmer's house near Kilkenny, Stevens found no food but milk, and had to lie on straw. Straw, indeed, was the usual bedding, and it was not always clean. Turf was abundant in most places. Between Dublin and Kildare Clarendon saw fine-looking men, poor and half-naked, idle, except when starvation stared them in the face, and ready to steal if they could not easily get work; the women did nothing but mind two or three cows, on whose milk they lived. 'Their habitations,' he said—'for they cannot be called houses—are perfect pig-sties; walls cast up and covered with straw and mud; and out of one of these huts, of about ten or twelve foot square, shall you see five or six men and women bolt out as you pass by, who stand staring about. If this be thus so near Dublin, Lord! what can it be farther up

Condition of the
poor.

in the country?’ During his tour in the south, he lamented the want of population, miserable as the people were. Yet improvements had been made, and there might be more if any encouragement was given. The rich county of Tipperary was given up to cattle, but the number of beasts had decreased because capital was frightened away by Tyrconnel’s proceedings. There was very little tillage. What could be expected of people when whole families, with sometimes a travelling stranger, or pack-carrier, or pedlar or two, lay nine or ten of them together, naked, heads and points? The bare necessities of life could be had with little labour. Fourpence a day was the current rate of wages, while the lowest class of workmen in England received a shilling. ‘Their lazing’ seemed to Petty not so much natural as caused by want of employment and inducement to work. These people were content with potatoes, and one man’s labour could feed forty. They liked milk, and in summer one cow would supply three men. Fish and shell-fish were easily got, and a house could be built in three days. Why should they breed more cattle since it was penal to import them into England? Trade was so fettered that capital was kept away, and even land was not safe from legal trickery. Temple said much the same as Petty, and their almost verbal agreement suggests that they had consulted each other.^[280]

Ploughing by the horses’ tails had been made illegal by Strafford’s Parliament, but custom is often stronger than law, and the Confederates stipulated with Ormonde that the Act should be repealed. This excited Milton’s ridicule, but the practice continued long after his time. In the stony barony of Burren in Clare, Dineley, in 1681, saw horses four abreast, drawing by their tails, ‘tolerated here because they cannot manage their land otherwise, their plough gears, tackle, and traces being (as they are all over the rest of the kingdom) of gadds or withs of twigs twisted, which here would break to pieces by the ploughshare so often jutting against the rock, which, the gears being fastened by wattles or wisps to the horses’ tails, the horses being sensible stop until the ploughman lifts it over.’ Seven or eight years earlier Temple found the custom general, and proposed more drastic legislation, but it survived in remote parts, and found defenders there as late as the earlier years of Queen Victoria.^[281]

Ploughing by the tail.

In 1685, the year of Charles II.’s death, there were 6500 houses in Dublin. No estimate gives less than five

Dublin.

persons for each house, and some raise the average to eight. The population was therefore a good deal more than 32,000. There was a great increase between the Restoration and the end of the reign. The town was larger than Bristol, then the second in England, where there were 5307 houses. It was exceeded by London, Paris, and Amsterdam, and apparently by Venice, but the information about foreign cities at this time is scanty. During the first half of the eighteenth century, at least, Dublin was reckoned the fourth or fifth in Europe. A great number of houses were very poor, which is not to be wondered at, for about a quarter of them were inhabited by sellers of liquor. In this respect there had been no improvement since Elizabethan days. According to Petty, there were in 1672, 164 houses in Dublin with more than 10 chimneys, Lord Meath's having 27. The Castle had 125, but no Lord Lieutenant found it comfortable. Clarendon says it was the worst lodging a gentleman ever lay in, each shower finding its way through holes in the roof or chinks in the windows. He was unwilling to spend his own or the King's money on such a place, but Tyrconnel, who laughed at his scruples, made some improvements. There were serious fires in Strafford's time and in 1684, and a much worse one in 1711, when many records were lost, after which the Castle was gradually modernised. The country house at Chapelizod was preferred by viceroys as a residence during the Restoration period. The great town-houses in Dublin, many of which still stand, and are converted to public uses, belong to the eighteenth century. Two older ones, which have now disappeared, deserve mention. Cork House, adjoining the Castle, was built by the first Earl of that name, turned to various purposes after his death, and demolished in 1768. Chichester House, where the Bank of Ireland now stands, was originally built by Sir George Carey for a hospital, and was afterwards sold to Sir Arthur Chichester. Here Lord Justice Borlase was living when the rebellion of 1641 broke out, and here sat the Parliaments of 1661 and 1692, after which it became the regular place of meeting. The old house was pulled down in 1728, and the fine building which succeeded it was taken by the Bank after the Union. ^[282]

In spite of much well-grounded discontent, Ireland prospered under Charles II. After his death there was an interval of doubt followed by civil war. In the two years preceding the Boyne a vast number of houses and cattle were destroyed, nor did the mischief cease until the full establishment of William's government. Penal laws and commercial restraint notwithstanding, capital was gradually

After the
Revolution.

accumulated during the next century, and fine houses were built both in town and country. But the mass of the rural population were badly off, for reliance on the potato long prevented improvement and kept thousands upon the verge of starvation. There was nothing to make Irish peasants forget that their ancestors had been reduced to poverty or driven into exile. [283]

FOOTNOTES:

[275] Rawdon's letters among the Conway papers are calendared with the Irish and Domestic State Papers. Some of Conway's are in Berwick's *Rawdon Papers*. The great Lisburn estate came later to the Marquis of Hertford, and that of Moira to the Marquis of Hastings. Archbishop Boyle to Conway, July 29, 1665. Dobbs's description of Antrim in Hill's *Macdonnells of Antrim*, appx. 385. *Ulster Journal of Archæology*, i. 250. Miss Masson's *Robert Boyle*, p. 264. Gosse's *Jeremy Taylor*. The great house at Portmore was entirely demolished in the eighteenth century. Some idea of its magnificence may be formed from the number of painted tiles—from Holland, no doubt. The bulk were broken through bad packing, but 7000 were saved.

[276] Essex to Arlington, August 27, 1672, *Essex Papers*, i. 21, and January 25, 1673, in State Papers, *Ireland*. Story's *Impartial Hist.*, p. 145. Evelyn's *Diary*, October 26, 1690, where Ossory is named in mistake for Orrery. Smith's *Cork*.

[277] *Ormonde Papers*, vol. vii. Temple on Irish horses, *Works*, vol. iii. Kilkenny Castle was never sacked, and John Dunton describes its grandeur in 1699.

[278] Clarendon's letters to Rochester, May 4, 1686, and from September 9 to October following, and a letter to Ormonde of September 28, in *Ormonde Papers*, vol. vii. John Dunton saw the Curragh races in September 1698. He found the plain partly covered with heath, sheltering grouse and hares. *Life and Errors*, ii. 606. In 1673 Temple gave Essex elaborate advice as to the encouragement of horse-racing, *Works*, iii. 23.

[279] James Bonnell to John Ellis, August 7, 1688, *Ellis Correspondence*, ii. 112. Dr. Dun to Dr. King, April 8 and 26, 1684, in King's *A Great Archbishop of Dublin*. Dun was fond of claret and of good living generally, see his prescription in Gilbert's *Hist. of Dublin*, i. 177.

[280] Petty's *Political Anatomy of Ireland*, published in 1691 after his death, but written much earlier; his *Political Arithmetic*, and his *Treatise of Ireland*, written for James II. in 1687. Clarendon's letters of May 4 and September 28, 1686. Stevens's *Journal* in 1689, p. 49. Dineley's *Tour* in 1681, pp. 18, 21. Sir W. Temple's observations on the United Provinces in his *Works*, ed. 1814, i. 165, and his *Advancement of Trade in Ireland*, *ib.* iii. 3. In the quarto edition of Arthur Young's *Tour*, 1780, there is a good picture of an Irish cabin without chimney or window and with smoke rolling out of the doorway. There were many such cabins a generation ago, and there may still be a few in out-of-the-

way places. The mode of constructing them and the state of their inhabitants are described by John Dunton, who saw many in 1699, *Life and Errors*, ed. 1818, ii. 605.

[281] Dineley's *Tour*, p. 162. Sir W. Temple on trade in Ireland, *Works*, iii. 17. See above, vol. i. p. 124.

[282] Petty's *Political Anatomy*, chap. ii., *Dublin Bills*, appx. (Graunt), further *Observations* on these Bills (1681), postscript, *Political Arithmetic* (1686). Sir Charles Wogan to Swift, February 27, 1732-3, in Swift's *Works*, ed. Scott, xvii. 457. Walter Harris's *Hist. of Dublin*, 1766, chap. v. Gilbert's *Hist. of Dublin*, ii. 11, iii. chap. ii. *Clarendon and Rochester Correspondence*, ii. 101. See the first two essays in C. L. Falkiner's *Illustrations of Irish Hist.* Not many years ago there was but one set of dining tables between the Castle and the Lodge in Phoenix Park, and they had to be carried to and fro. For the Dublin ale-houses, see my *Ireland under the Tudors*, iii. 448. In *Additional MSS.* 14422, an 'exact account' makes the population of Dublin 40,508 in January 1695, including Trinity College and Kilmainham. Lord Meath's great house had formed part of St. Thomas's Abbey.

[283] John Stevens found the Bantry people so poor that half a crown could hardly be changed, 'and guineas were carried about the whole day and returned whole.'

CHAPTER LVI

THE THREE IRISH CHURCHES

In the year 1756 Archbishop Stone made a speech in the Irish House of Lords which the reporter said was much the best he had ever heard there. Stone showed that the Reformation never had a fair chance in Ireland. In England the people had been ripe for change, but in the smaller island it was far otherwise: ‘The establishment at first of the Protestant religion was an act of power quite opposite to the inclination of the natives, who were, during the reign of Queen Elizabeth, generally in rebellion, with the Spanish Court to inflame them more on this account.’ During the reigns of the first two Stuarts this feeling continued unabated, and after the massacre of 1641 all attempts to reclaim the natives were hopeless. Strafford had done something, and would have done more ‘had he not been entirely governed by a peevish, weak, narrow-spirited Archbishop Laud, who placed more importance in the colour of a rag or erecting a monument in the east or middle of a church than in the great essentials of religion.’ Ussher, the only man who might have united the Protestants, was laid aside, and the Scotch colony prevented the settlement of Ulster from serving the Church. Papists were encouraged by these dissensions, and would have driven the Reformation altogether out of Ireland but for the constant support of England. Stone was an Englishman and by no means a model Primate, but he had studied without prejudice the history of the country in the government of which he had so large a share. [\[284\]](#)

The Establishment.

Bramhall, whom Cromwell called the Irish Canterbury, naturally became Primate at the Restoration, and the Laudian system was fully established. The difficulties

Jeremy Taylor.

surrounding the Church may be understood from the experiences of Jeremy Taylor. Poor and unbeneficed, in 1647 he had published the 'Liberty of Prophesying,' and had endeavoured to determine the true relation between Church and State. 'The temporal power,' he said, 'ought not to restrain prophesyings, where the public peace and interest are not certainly concerned.' He knew that 'a union of persuasion is impossible to be attained.' Taylor came to Ireland in 1658 with the Protector's licence and protection, and worked quietly as a clergyman under Lord Conway's patronage. At the Restoration he became Bishop of Down and Connor and administrator of Dromore, and little more than two years later he preached Bramhall's funeral sermon. The Primate had been softened by age, perhaps his mind had been enlarged by foreign travel and by controversy with Hobbes, and it was against the Bishop of Down that the Presbyterians exerted their full force. The gentle Margetson, who succeeded to Armagh, was not one to make the rent worse. Taylor found a great difference between philosophising as a scholar and governing as a bishop. The ministers told him that they would not acknowledge his office, and that they believed the Presbyterian polity to be of divine right. After several attempts at conciliation he treated thirty-six parishes as vacant and filled them with incumbents from England. The Presbyterians turned their faces to Scotland, and their organisation grew without any reference to the Established Church of Ireland. Bishop Taylor died in 1667, much of his later time being occupied in the hopeless task of trying to convert the Roman Catholics by argument, and in answering the critics of his 'Dissuasive from Popery.' The diocese was not fortunate in the shepherds who succeeded him. ^[285]

Roger Boyle was Bishop of Down for only five years, and made no particular mark. Margetson checked his efforts to repress the Presbyterians. His translation to

A bad bishop.

Clogher was promotion in point of money, and was also desirable because Lord Ranelagh would get something out of the first-fruits. He was followed by Thomas Hacket, whom Essex recommended as a fit person long known to him and to whom he had given a living in Hertfordshire. Hacket was English by birth, but educated at Trinity College, Dublin, and he had been Dean of Cork. According to his own account, he found both Papists and Presbyterians impossible to deal with, and he soon ceased to try; keeping out of his diocese as much as possible. The King ordered strict residence, but Clarendon found that Hacket had been six years absent. He had some

good men under his nominal charge who gave a lamentable account, ‘many of the clergy being absent from their cures and leaving them to mean and ignorant curates, such as will serve cheapest, which gives a grievous advantage to the adversaries of our religion.’ One of these incumbents was Robert Maxwell, who drew 900*l.* a year from several benefices ‘but never resided upon any.’ The lame foot of justice halted until 1694, when a royal commission suspended Hacket for non-residence, and then deprived him for simony. He was one of the worst enemies that the Church of Ireland ever had.^[286]

The twelve bishops consecrated together at the Restoration were all of British birth or parentage. Three had been educated at Oxford, three at Cambridge, the rest at Trinity College, Dublin, but some of the latter were Oxford doctors also. Robert Leslie, who was particularly obnoxious to the Presbyterians, had been at Aberdeen as well as Oxford and Dublin. Most of them were worthy men, many of them great benefactors to the Church in which they filled high places, but it does not appear that any spoke Irish. They could, therefore, have no missionary influence in the wilder districts. This was all in pursuance of the Laudian policy. Strafford trusted no Irishman nor anyone born in Ireland, and he thwarted the efforts of Bedell to reach the native Irish through their own language, leaving that work to the friars. Jeremy Taylor’s idea of civilising the Celts was to make them learn English. The Scotch in Ulster, whom Strafford tried to destroy and who instead destroyed him, were also estranged by the determination of the Irish Government and most of the bishops to acknowledge none but what the sceptic Petty called ‘legal protestants,’ and to treat Presbyterians and Anabaptists as ‘fanatics.’^[287]

Bishops ignorant of Irish.

The dignitaries were much too numerous for the requirements of the Church, and they were pretty well paid. From a report made for Ormonde’s information in 1668 by Dean Lingard of Lismore, we know that Primate Margetson had over 3500*l.* a year, including his fees as Prerogative Judge and King’s Almoner. Archbishop Boyle of Dublin had 1200*l.* a year and the expectation of more: he was also Lord Chancellor. Dr. Mossom of Derry received 1800*l.* Of the others, twelve had incomes from 1600*l.* to 1000*l.*, five between that and 600*l.* The poorest bishoprics were Clonfert and Kildare,

Condition of the clergy.

being worth respectively 400*l.* and 200*l.* Christ Church, Dublin, worth 600*l.*, was the best deanery. ‘The inferior clergy of Connaught,’ adds Lingard, ‘are very poor, the whole country being swallowed up by impropriations.’ Bedell, and later Robartes, fought against pluralities, and no doubt there were some scandalous cases, but there were a great many parishes in which no clergyman, and especially no married clergyman, could live decently on glebe and tithe. At the beginning of the seventeenth century this had gone very far. The abbey had got hold of the tithes generally, and after the dissolution the Crown granted them to laymen. The greatest deficiency was in Connaught, where the vicar who did the work got commonly but 40*s.* a year and sometimes only 16*s.* At the beginning of the eighteenth century things were not much better. When engaged in obtaining the remission of first-fruits and tenths, Swift reported that hardly one parish in ten had a glebe and still fewer a house. The livings were so small that five or six had to be joined to make up 50*l.* a year. The clergy ‘for want of glebes were forced in their own or neighbouring parish to take farms to live on at rack-rent.’ So much went to collectors that the first-fruits and tenths were worth only 500*l.* a year net to the Crown, and Swift succeeded in getting them remitted. He was less successful with impropriations still in the Queen’s hands worth about 2000*l.* annually to her and a great impoverishment to the Irish Church, amounting to one-third or one-half of the real value of each benefice affected. Goldsmith’s good parson

to all the country dear And passing rich with forty pounds a year

was in Ireland, and Chaucer’s fuller portrait of such a man might find application there too. [\[288\]](#)

An Act of 1537 provided that English should be the general language and that all children should be brought up to speak it, spiritual promotion in particular being confined to those who could do so. If a person not so qualified was admitted to orders, he was to be sworn under penalties to learn English as soon as possible, and the bishop was subject to a fine of 3*l.* 6*s.* 8*d.* if he failed to administer the oath. The New Testament was, nevertheless, translated into Irish in 1602, and James I. ordered that it should be read in Irish-speaking places. The book soon became scarce, for the Roman Catholic clergy

The Bible in Irish.

bought up as many copies as possible. The Irish types provided by Queen Elizabeth found their way to Douai, and did service against the Reformation. There was no attempt to translate the Old Testament from the original tongue, but after the publication of the Authorised English version, Bedell managed to get it done into Irish. Strafford, Bramhall, and Chappell all opposed him; nothing was printed, and the poor Irish scholar employed by the bishop was persecuted and denied his reward. When Bedell died, his friend Denis Sheridan preserved the manuscript. During the Civil War nothing could be done, but the sheets were preserved by Bishop Jones. It was not until long after the Restoration that the work was again taken in hand, the translation being then a 'confused heap, pitifully defaced and broken.' Andrew Sall, a converted Jesuit, was employed; Narcissus Marsh and Price of Cashel being active in the matter. The Chancellor-Archbishop Boyle was afraid of the Act of Henry VIII., and Dopping was affected by the same consideration. Robert Boyle, who wished to do something for the country whence he drew an income, furnished the funds, fresh types were cut, a second edition of the New Testament was published in 1681, and a first edition of the Old in 1685. The belated work was perhaps more useful in the Scotch highlands than in Ireland, for the time had long passed since the Reformation might have appealed to a Roman Catholic people in their own tongue. [\[289\]](#)

The Protestant sects of English origin gave little trouble after the Restoration, though the Castle plot in 1663 showed that some of the old leaven was still working.

The Presbyterians.

But the Presbyterians, who were in fact a colony from Scotland, had powerful support from that country, and active ministers could pass to and fro without difficulty and with little interference from Ormonde, who was not naturally intolerant. Most of his relations belonged to the Church of Rome. When Robartes succeeded him in 1669, some favour was shown to the Presbyterians, but the reign was too short to do much. Berkeley showed very marked indulgence to the Roman Catholics, and it was not his cue to persecute Nonconformists. Essex was inclined to toleration, but did not underrate the difficulties. When Ormonde returned to Dublin Castle in 1677 he found things very much changed. By the law of 1665 no minister not of episcopal ordination could administer the Sacrament without paying 100*l.* each time. It was, nevertheless, constantly done, thousands assembled to hear preachers who often came from Scotland, and Presbyterian Church

government was quietly established. Ormonde thought the most dangerous party in Ireland to the King's government was that of the Protestant Nonconformists, 'taken simply by themselves without the consideration of foreign incitement or assistance.' He knew that men came from Scotland to escape Lauderdale and his myrmidons, but it was impossible to prosecute them without doing the same with the Papists, and after many years tacit toleration that would make great trouble. If both parties were attacked the prisons would be full, the population driven from their homes and work, and the revenue destroyed. His advice was to let things alone without any pronouncement for toleration, since that would be ascribed to fear. Ulster, he said, was full of 'the worst Protestants and Papists in the whole kingdom.' The latter would very probably rebel if they saw a chance, and the great thing was not to give one. Speeches in the Long Parliament about the extirpation of Popery in Ireland were 'some cause or at least some pretence for the beginning of that rebellion in 1641, as the prospect of the division between the late King and the two Houses of Parliament was the encouragement. I have to spread the army very thin to keep Tories in awe and the English in heart.' The main strength of Irish Presbyterianism was, and is, in Ulster, but when Ormonde was writing the above its organisation had been extended to several places in the other three provinces. There was some active persecution during the period of reaction after the Popish plot was exploded, but all Protestants, except the Quakers, joined in the great effort against James II. When the danger was over, full toleration was still denied to the Nonconformists. [\[290\]](#)

The Church of Rome retained her hold on the native population of Ireland. Though in constant danger, a number of priests stayed in the country during the Commonwealth period, and the Act of Abjuration only made things worse. Ormonde tried to divide the Roman Catholic clergy, but he failed to get the Remonstrance adopted. He thought he might even then have succeeded had he been left longer in the Government, but in this he was probably wrong. Peter Walsh's party dwindled fast, and to modern eyes it appears that this was inevitable. The appointment of Berkeley, coinciding with the treaty of Dover, stopped all active repression for the time, and Essex, who tried to copy the dividing policy of Ormonde, had even less chance of success. Occasional fits of Protestant zeal in England might for a time banish some bishops and drive some friars and Jesuits into hiding, but the framework of

The Roman Catholics.

the Church and the secular clergy were not much disturbed. Ambitious and restless priests had something to fear from the English Government, but nothing to expect. Promotion came from Rome; a safe asylum and sometimes good means of support were afforded by France and Spain.

Oliver Plunket, whose judicial murder has been dealt with above, was appointed Primate by Clement IX. in 1669. On his way he made some stay in London, where he was well received by Queen Catherine, and reached Dublin in March 1670. Robartes was Lord Lieutenant and, search having been made for the new Archbishop before he came, he thought it prudent to move at night only. When Berkeley arrived, all was changed. Plunket was received at Dublin Castle, though not quite openly, and he explained that he could not help going there often, since Lady Berkeley, the chief secretary, and others were of his own faith. He was on good terms with his rival Margetson. There were at that time 1000 secular priests in Ireland and from 600 to 800 regulars who came and went. When Essex became Lord Lieutenant he was inclined to tolerate the Roman Catholic clergy if they kept quiet, but the pressure of the English Parliament in 1673 obliged him to take steps which drove most of the Roman Catholic bishops from Ireland and many of the regulars. He tried to protect the remnant of the Remonstrants which Berkeley had been ordered to do, but did not. Plunket, not otherwise given to harsh judgments, was very bitter against Peter Walsh, and against anything that looked like Jansenism. He himself remained in Ireland under the name of Thomas Cox, and he was not seriously molested until the days of Oates's plot. He held provincial assemblies, established schools, and in four years confirmed 48,655 persons, some of whom were sixty years old, and repressed vice to the utmost. Drunkenness he especially abhorred, and forbade the clergy to indulge in whisky; to give an example, he himself did not drink at meals. 'Give me,' he says, 'an Irish priest without this vice, and he is assuredly a saint.' It must be remembered that the clergy were extremely poor and that this devoted Primate had not more than 20*l.* in the world.^[291]

Oliver Plunket.

Peter Talbot became Archbishop of Dublin nearly at the same time as Plunket was appointed to Armagh, and the two were soon in controversy about precedence. Talbot was a political priest much practised in intrigues and

Peter Talbot.

O'Molony.

altogether different from the Primate. He was supported by the Duke of York, but not much liked by any party. Both Archbishops were imprisoned for supposed complicity in the 'Popish plot,' but no real evidence appeared against either. Talbot died in the Castle of stone, from which he had long suffered, and Plunket forced his way to him and administered the last rites. Probably the warders were not very unwilling. More important than Talbot was John O'Molony, 'the most dangerous because the wisest man of their clergy,' in Essex' opinion. He was appointed to Killaloe in 1671, and showed his ability by bringing about a good understanding between Plunket and Talbot and between Talbot's brother, the future Tyrconnel, and Ormonde's brother-in-law, Colonel Fitzpatrick. He had good preferment in France, so that he could spend some money if required. Essex feared that if the divisions were healed he would be unable to get any information. O'Molony had influence at the French Court even before he became a bishop, and he conferred with Plunket when at Paris on his way to Ireland. [\[292\]](#)

O'Molony, though he evidently liked being in France, did not neglect his duties in Ireland. After three years' uninterrupted residence, he escaped in 1681 just before the execution of Plunket, and gave a short account of the ecclesiastical state of Ireland. In Ulster the only bishop remaining at the moment was Patrick Tyrrell of Clogher, who wandered about as secretly as possible. In Leinster there were James O'Phelan, who managed to live among friends in his diocese of Ossory, and Mark Forstall of Kildare, who was a prisoner in Dublin Castle. In Munster, Brenan, Archbishop of Cashel, lived quietly with his relations, while Peter Creagh of Cork lurked in hiding near Killaloe; he was betrayed by a servant who mistook him for O'Molony. Wetenhall, the Protestant Bishop of Killaloe, had Creagh arrested and imprisoned at Limerick, but he was afterwards sent to Dublin and left at large under surveillance. James Duley, Bishop of Limerick, was taken before a magistrate, but allowed to go free on account of his age and infirmity. In Connaught, where the Protestant minority was small, De Burgo of Elphin and Keogh of Clonfert were able to live quietly, though not quite safely. The inferior clergy throughout Ireland were practically tolerated, not being considered as directly under foreign jurisdiction like the bishops. O'Molony was specially suspected on account of his known dealings with the French Government, and was supposed to be the contriver of the imaginary

Some other bishops.

invasion which brought Oliver Plunket to the scaffold. He came to believe that ‘there is no Englishman, Catholic or other, of what quality or degree soever alive that will stick to sacrifice all Ireland for to save the least interest of his own in England.’^[293]

James II. naturally wished to provide for the endowment of his own Church, and he proposed to create a fund by keeping vacant the archbishopric of Cashel and three other sees. Bishop O’Molony’s advice was to take all benefices, giving a pension to the Protestant incumbents who could ‘pretend’ to nothing more than a lease for life. The Acts of Attainder and of Absentees would have gone a long way towards carrying this out without troubling about life interests. When the Jacobite cause was finally lost, the Irish penal code came into being. Being in a minority, the victors never felt quite safe, and having suffered much were not in a forgiving mood. As to the results of this oppression Berkeley asked, ‘Whether it be not a vain attempt to project the flourishing of our Protestant gentry exclusive of the bulk of the natives?’ In another place he says, ‘The house of an Irish peasant is the cave of poverty; within you see a pot and a little straw; without, a heap of children tumbling on the dunghill.’ Swift at various periods asserted that the Roman Catholics of Ireland were in point of power no more considerable than women and children; and in 1731, when the persecution had done its work, he added that the estates of Papists were very few, ‘crumbling into small parcels, and daily diminishing.’ In 1745, the year of Swift’s death, Berkeley besought the Roman Catholics of his diocese of Cloyne not to rise in favour of the Pretender, lest they should lose the little that was left to them. Four years later he addressed the priests, dwelling upon their common Christianity and urging them, as the only people who had the necessary influence, to use it for the advancement of industry among their people. Respecting his character more than his office, the priests, or at least many of them, took his advice in good part, but Petty had long before pointed out that the idleness of the Irish was less due to original sin than to the absence of inducement to work.^[294]

Recusants after
James II.

In Locke’s opinion ‘that Church can have no right to be tolerated by the magistrate, which is constituted upon such a bottom, that all those who enter into it do thereby *ipso facto*, deliver themselves up to the protection and service of another

Slow growth of
toleration.

prince. For by this means the magistrate would give way to the settling of a foreign jurisdiction in his own country, and suffer his own people to be listed, as it were, for soldiers against his own government.’ Notwithstanding this consideration, which used to weigh heavily with statesmen, full legal toleration has long been achieved. Intolerance between man and man will, it is to be hoped, become less bitter and less baleful with time. Clerical influence in civil affairs will continue to diminish, but will still be strong for long years to come. In the meantime we have the three Irish Churches keeping the peace between themselves, but distinctly divided. The Protestant Episcopalians look back to St. Patrick and trace their succession to the early days of Christianity, but in modern Ireland they represent mainly the immigrants from England since the Tudor re-conquest. The Presbyterians are the Scotch colony in Ulster with some outposts in the other provinces. The bulk of the native population adheres to Rome. ^[295]

FOOTNOTES:

^[284] *Additional MSS.* 38538. The report is signed William Henry, apparently he who was Dean of Killaloe in 1761; it is addressed to a duke, probably Newcastle.

^[285] Patrick Adair is very hard on Taylor, showing little reverence for his learning and eloquence; as for his theology, ‘he had sucked in the dregs of much of Popery, Socinianism and Arminianism,’ *True Narrative*, p. 245. Later lights on Taylor’s Irish experience are in Mr. Gosse’s biography, 1903. Writing to Conway on July 4, 1665, Rawdon says: ‘His lordship is so close at his study replying to the answers to his book against Popery, that he is hardly got out of his closet,’ *Cal. of State Papers, Ireland*.

^[286] Essex to Arlington, August 17, 1672, *State Papers, Ireland*; Hacket to Conway, *ib.* December 13. Clarendon to Hacket, May 25, 1686, in *Clarendon and Rochester Corr.*, i. 404.

^[287] Mason’s *Hist. of St. Patrick’s*, p. 193. ‘The numerous companies of priests and friars amongst them take care they shall know nothing of religion, but what they design for them; they use all means to keep them to the use of the Irish tongue, lest if they learn English they might be supplied with persons fitter to instruct them; the people are taught to make that also their excuse for not coming to our churches, to hear our services, or converse with us in religious intercourses, because they understand us not, and they will not understand us, neither will they learn that they may understand and live.’—Taylor’s *Dissuasive from Popery*, preface, *Works*, x. 124. Bedell said ‘Those people had souls which ought not to be neglected till they would learn English’—*Two Lives*, p. 41.

^[288] Macaulay saw only part of the question when he wrote (chap. vi.): ‘The most absurd ecclesiastical establishment that the world has ever seen. Four

Archbishops and eighteen Bishops were employed in looking after about a fifth part of the number of churchmen who inhabited the single diocese of London. Of the parochial clergy a large proportion were pluralists and resided at a distance from their cures. There were some who drew from their benefices incomes of little less than a thousand pounds a year, without ever performing any spiritual function.' Lingard's report to Ormonde, 1668, calendared among State Papers, *Ireland*, p. 674. Collier's *Ecclesiastical Hist.*, vii. 383. Swift to Harley, September or October 1610, in his *Correspondence*, ed. Ball, i. 200.

[289] A sufficient account of the Irish translation of the Bible is in Bedell's *Life*, copiously annotated by the editor, T. Wharton. Jones, 1872. See also my *Ireland under the Tudors*, chap. liv., and the article on Andrew Sall in the *Dictionary of National Biography*. *Irish Statutes*, 28 Hen. VIII., cap. 15.

[290] Writing to Arlington, October 12, 1673, *Essex Papers*, i. 174, Essex says the Dissenters in Ulster had increased from under 14,000 of all sorts in Strafford's time to about 100,000 men fit to bear arms. On October 19, 1674, he praises the moderation of the Bishop of Down towards Dissenters, *ib.* p. 262. For a less tolerant episcopal view, see Bishop Otway of Killala to Essex, *Essex Papers*, ed. Pike, pp. 94, 113. Ormonde to H. Coventry, September 4, 1677, *Additional MSS.* 32095. Reid's *Presbyterian Hist.*, ii. 336. In 1679 the Presbytery of Down acknowledged Ormonde's 'favour and noble candour' to them, *ib.* p. 572. Avaux repeatedly mentions the favour shown by James to Quakers. Writing to Strype on August 5, 1690, Bonnell says they 'at first took civil offices under King James, and were looked upon by us and by the Roman Catholics as the same with them; but latterwards, when they saw how things were like to go, they sided more with us.' It was not forgotten that Robert Barclay had been educated by Jesuits, and it was easy to say that the Quaker leaders did 'inwardly own Ignatius Loyola as their founder,' *Secret Consults of the Romish Party*, p. 90.

[291] Moran's *Life of Plunket*, chaps. v. to viii. *passim*. 'I made use of some friars, who always have their little wrangles with their secular clergy, to set up factions against some of their Bishops, &c.'—Essex to Ormonde, November 14, 1673, in *Essex Papers*.

[292] Bishop Forstall's letter of June 5, 1680, in *Spicilegium Ossoriense*, ii. 257. Rev. John O'Molony to Propaganda from Paris, July 19, 1669: 'In aula apud regni administros non sum ignotus, in rebus agendis et tractandis non penitus ignarus,' *ib.* i. 488. Essex to Ormonde, November 14, 1673, *Essex Papers*. Brady's *Episcopal Succession*, ii. 47, 120.

[293] Bishop of Killaloe to the Propaganda from Havre, June 13, 1681, *Spicilegium Ossoriense*, ii. 258. O'Molony calls his rival Wetenhall 'heterodoxus Laonensis vir ex omni isto clero pessimus et mendacissimus.' Letter of the same, also from France, to Bishop Tyrrell, March 8, 1689, in King's *State of the Protestants*, appx. 17. At Paris in 1689 O'Molony was a thorn in Melfort's side, Macpherson, i. 339.

[294] O'Molony to Tyrrell, *ut sup.* Swift's Letter on the Sacramental Test, 1708, Drapier's sixth letter, 1724, Presbyterians' Plea of Merit, 1731. Berkeley's *Querist*, no. 255, Letter to the Roman Catholics of Cloyne, 1745, Word to the Wise, 1749, *Works*, ed. Fraser, vol. iii.

[\[295\]](#) Locke's letter concerning toleration (the first).

APPENDIX

ORMONDE TO BENNET

Bodleian Library, MS. Carte 143. [Pages 164-169.]

To M^r Secretary Bennett

Dublin, *August 22, 1663.*

S^r

As it is my duty by yo^u to give his Ma^{tie} frequent accoumpts of his commands when I receive them, and of the state of his Affaires vnder my management, soe when any thing extraordinary happens or may reasonably be apprehended I conceive it a more speciall duty to represent it seasonably that his Ma^{tie} may apply such remedyes and preuentions as may be proper to obviate the disturbance of his Goverment.

It is well knowne to his Ma^{tie} that when he arriued in England this kingdome was absolutely in the power and for the most parte in the possession of such as one way or other had been engaged against his interest, and that the endeauours of some and acquiescence of others for his restoration was vpon confidence and vpon something very neere a promis on the Kings parte that they should enjoy what was in their hands as Adventurers by the Act past in England in the 17 of the last King & as souldiers according to the lotts that fell to their share by the distribution of the vsurpers. Soone after his Ma^{ties} comeing to London applications weare made to him by such a representatiue of those that had the power of the Kingdome as could most obleege them. Their first addresses consisted of recognitions, congratulations, and a present, afterwards propositions weare made for the reduction of the kingdome to be governed in spiritualltys and temporaltyes

by the good old way established by law, and last of all a petitionary addresse to be secured in their propertyes pursuant to his Ma^{ties} gracious intentions made knowne to them by his declarations and more private vndertakeings. In the two former there was noe difficulty his Ma^{tie} graciously accepted the one and readily consented to the other, but the latter tooke vp much tyme, by reason of the irreconcilable pretentions of the English & Irish, and of the difficulty of his Ma^{ties} complying with those as irreconcilable obligations that were vpon him to many of both nations, to those Irish that had redeemed their defection by their hearty endeauour (though vnsuccessefull) to keepe his Ma^{ties} govern^t ouer them, and to those English that with successe had redeemed their faileings by an early invitation and voluntary submission to his Government, yet at length a declaration and then an Act was past after much debate betwixt the English and Irish before the King and his Councell there, a liberty without president at the consideration of a bill, but yet perhaps reasonable in this case of w^{ch} alsoe there was noe example against the exposition made by his Ma^{ties} Com^{rs} of this bill and their decrees giuen vpon it, the cry on the English side is great some of them affirming that not aboue the 6th parte of those that claymed as innocents being heard yet 800000 acres are restored to old proprietors. Whether the cry be reasonable or the computation right I will not indeed I cannot determine. The King made choice of Com^{rs} of good reputation for ability & integrity, and I presume whateuer the cry may be they will giue a good account of their proceedings. That w^{ch} most satisfied me in the Act was that his Ma^{tie} haueing diuested himselfe of the power of Judgeing & distributeing possessions and that in a way satisfactory to two Protestant Councells and a Protestant Parliam^t and named Protestant vnconcerned Com^{rs}. It would thenceforth be impossible to fix vpon him the scandall of partiallity towards Irish and papists, then w^{ch} a more dangerous cannot in my opinion be invented, and I thought this the more out of danger in that his Ma^{tie} vouchafe^[296] to assure me he would not by his letters interpose in the Judiciall parte of the settlement of this Kingdome. Two things weare by the Act intrusted with his Ma^{tie} the one vpon emergencies where the Justice of Particular cases should appeare to him to require it to direct the putting in of claimes, the other was to direct whome of the former proprietors of Howses in Corporations (who should be

found innocent) should be restored to their Howses, and not to valueable exchanges in landes adjacent, the first of these powers was left in the King that if by any vnavoydable accident some person might be soe remote as that he could not put in his claime by the limited tyme his Ma^{tie} might vpon the euidence of such accident releuee such a person, but those letters (as one may guesse by y^e number of them) haue not been refused to any that haue sought for them, and the Com^{rs} haue his Ma^{ties} command in such reuerence that they haue giuen way to the retracting of old & putting in new claimes vpon letters soe directing, though thereby some doe beleeeve they violate the intention of the Act vnder collour of obedience to the King's command and it is more then probable that thereby alsoe a way hath been opened to the forgeing of such conveyances & settlements as experience had shewen would be of force and in consequence of that to perjury in prooveing such deedes.

The other power his Ma^{tie} reserued to himselfe to the end that whereas provision was made in the Act that though the former inhabitants in Corporations should be found innocent they should not be restored to their Howses but to equivalent satisfaction for them, that the townes might be for publique security inhabited by Protestants and English, yet in case of extraordinary meritt His Ma^{tie} was trusted to dispence with the rigor of that provision and restore such meriting person to his antient dwelling, but in this as in the other case it should seeme that noe pretender to such fauour hath been refused and some provisionall letters haue beene sent that in case such a person should be found innocent he should be restored to his Howses in Corporations, and for some men will be restored to 20 some to 90 and some to 100 Howses in one Citty and be at liberty to lett in what inhabitants he thinks fitt to the vtter disappointment of that security and improvem^t w^{ch} was designed by the Act, If this be the case as I doubt it is very like it, the conclusion will be that those powers left in his Ma^{tie} for the releefe of particular extraordinary cases haue been extended promiscuously without examination to all pretenders to them.

There remained nothing now to compleate a beleefe in this people of his Ma^{ts} extraordinary fauour to the Irish but to interpose his authority in poynt of Judgement and to direct the Com^{rs} that whateuer euidence should be produced against my L^d of Antrym of the highest guilt from the beginning

to the ending of the Irish Rebellion yet they should iudge him innocent and that vpon the ground of haueing receiued precedent instructions from the late King & subsequent approbation for all his actings, some Inferences naturally arriseing thence I will not mention. I pray God there may neuer come a tyme when they may be easilyer vrged then well answered, but it is very frequently & too plausibly said this breakeing in vpon the prescribed methode of the Act cutts of all present & future security that the King may as well declare any of them who haue most contributed to his restoration to be nocent within the rules by w^{ch} the English are to be tryed and that without prooffe, as my L^d of Antrim to be innocent against prooffe, and that if there be noe security in an Act of Parliam^t they know not where to seeke for it or when they haue it, from this liberty w^{ch} it is not possible to restrayne proceede my apprehensions.

All the ill people planted heere by the vsurpers and all the officers & souldiers that haue been disbanded since the Kings coming in are still heere and put together I doubt they are the greater number of English.

There is noe mony in the Treasury noe victuall in any Garrison or store ammunition is scant enough, there are noe necessarys to make a trayne of Artillery march, and w^{ch} is wors then all this if a quarrell should be raised and stated to be betweext an English and an Irish Interest (as to the vulgar it would) the common souldier could not be trusted nor would many officers I doubt be ouer keene in the Service, & God defend vs from a necessity of Armeing Irish.

A question is raised whether the tyme prefixed by the Act for Judgeing of Innocents ended not the 2^d of July. Whether it did or noe diuers English as I heere & particularly those on my Lord of Antrims estate resolute not to giue vp possession vpon any decree made since the 2 of July: The issue to be expected is that either the sherriff will refuse to demaund possession or he will be opposed if he doe, his legall remedy in case of opposition is to rayse the power of the county and such assemblys at this tyme are not I think to be wished, and if he think himselfe not warranted to give possession there does not appeare to me any authority to force him to it or punish him for not doing it, the standing courts of Justice are armed but the Act as I am told by those that vnderstand it hath not giuen any such to y^e Com^{rs}. The difficulty I fore see I may be in is that the Kings officer and his Authority

will in appearance receiue an affront or I must apply some extraordinary and perhaps vnseasonable remedy to it. I humbly desire I may receiue the Kings direcions in this poynt.

Though this description of the condition of this Kingdome be long yet I haue omitted many circumstances & consequences deducible from what I haue said, by w^{ch} the hazardous state wee are in might be made more euident, what I haue presumed by yo^u to represent to his Ma^{tie} is to the end he should haue before him the disorders that may happen w^{ch} yet I shall imploy my vttermost industry to preuent.

Since I began this letter I haue receiued yours of the 15 currant but shall aske your leaue to deferr the answering any thing requireing answer till the next post.

S^r

Your most affectionate

humble servant

You will receiue this post seuerall letters for the promotion of some B^{hps} one in favour of S^r Tho: Wharton on very iust grounds, and one for S^r Theophilus Jones a person exceedingly merriting in the worke of his Ma^{ties} restoration and very fitt at this tyme and alwaies to receiue fauour and encouragem^t.

Heere goes alsoe a letter for Coll. Milo Power w^{ch} is but the Coppy of one graunted to him before but in some way lost by him.

FOOTNOTES:

[\[296\]](#) Or (?) vouschafe.

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